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The Tanzania Law Reports

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FOREWORD

Law reporting on the mainland of Tanzania has had a chequered history but which nevertheless reveals a progressive development and maturity. It started off with the Tanganyika Territory Law Reports between 1921 and 1947 and subsequently gave rise to the Law Reports Suppliments in the Official Gazette during 1948 to 1970, the Tanganyika Law Reports (Revised Edition) volumes I and II during the 1950s and the Law Reports of Tanzania between 1973 and 1979. Two Series of Law digests were also produced, that is, A Digest of Appeals from Local Courts covering the period 1933 to 1964 and the High Court Digest during 1967 to 1972. An examination of these law reports and digests shows that up to 1979, the main pillars of law reporting had been firstly, the Judiciary, and secondly, the Faculty of Law of the University of Dar es Salaam. The Bar and the Attorney-General's Chambers, though in existence throughout the period covered by the reports and digests, were not actively involved in the production of the reports and digests.

This new series of the Tanzania Law Reports which commences in 1980 marks a significant point of departure and development. For the first time all the main legal institutions on the mainland, including the Bar, the Attorney-General's Chambers and the Tanzania Legal Corporation, are directly and actively involved in collating and producing the reports. There are strong indications that the Judiciary and other legal institutions in Zanzibar will soon join us in a common endeavour to improve the effectiveness of the law reports as a tool of the legal profession.

It cannot be disputed that a judge or advocate or any lawyer for that matter, cannot be effective in discharging his reponsibilities if he does not have the essential legal tools in a legal system, like ours, where precedent plays a crucial role in the administration of justice. The production of this first volume of the Tanzania Law Reports is thus not only a step of great importance to the legal profession in this country but is also a matter of paramount public interest. It should therefore be followed by publication of subsequent volumes of the series at regular annual intervals to sustain its historic significance.

Dar es Salaam,
15th September, 1984.

F.L. NYALALI
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JUDGES OF THE COURT OF APPEAL OF TANZANIA IN 1980

The Hon. Mr. Justice F.L. Nyalali	— Chief Justice
The Hon. Mr. Justice A. Mustafa	— Justice of Appeal
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The Hon. Mr. Justice R.H. Kisanga	— Justice of Appeal

JUDGES OF THE HIGH COURT OF TANZANIA IN 1980

The Hon. Mr. Justice N.S. Mnzavas	— Principal Judge (Jaji Kiongozi)
The Hon. Mr. Justice M.C.E.P. Biron	— Puisne Judge
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CASES REPORTED

Abdallah Amidu Kumbuka v. Republic	C.A. 289
Abdallah Musa Mkambara v. Republic	C.A. 287
Abdul Muganyizi v. Republic	C.A. 263
Administrator-General v. Mwanaarabu Rajabu and Others	C.A. 304
Agnes Doris Liundi v. Republic	C.A. 46
Akena Adoko's Chambers v. Mohamed Maganga	H.C. 134
Alfred Lakaru v. Town Director (Arusha)	H.C. 326
Ali Salehe Msutu v. Republic	C.A. 1
Ali s/o Mpaliko Kailu v. Republic	H.C. 170
Amratlal Damodar Maltesar and Another t/a Zanzibar Silk Stores v. A.H. Jariwalla t/a Zanzibar Hotel	C.A. 31
Anjelo K. Mzali v. Alois M. Chalamila	H.C. 83
Arobogast Fundi v. Masudi Zaid	H.C. 125
Attorney-General v. Lesinoi Ndeinai @ Joseph Saleyo Laizer and two Others	C.A. 214
Bombo Tomola v. Republic	C.A. 254
Changoro Hamisi Mlezi v. The United Construction Co. Ltd.	H.C. 71
Damian Petro and Jackson Abraham v. Republic	C.A. 260
Dastan Kayanda and Others v. Republic	C.A. 23
Daudi Mchanakutwa v. Republic	H.C. 317
Director of Public Prosecutions v. Christopher Kikubwa and Another	H.C. 162
Director of Public Prosecutions v. Marwa Mwita and two Others	C.A. 306
Director of Public Prosecutions v. Mustafa Peter	H.C. 193
Director of Public Prosecutions v. Noah Kipenya	C.A. 212
Elizabeth Jeremia v. Benedict Anthony and Amiri Ally Kishindo	H.C. 68
Ernest s/o Ndesangio v. Republic	C.A. 332
Ezekiel Sylvester v. Republic	C.A. 302
Francis Mwenda v. Republic	H.C. 86
General Marketing Co. Ltd., V.A.A. Shariff	H.C. 61
Geofrey Maleko v. Thomas Mwaikaja	H.C. 112
George Mbuguzi and Another v. A.S. Maskini	H.C. 53
George Walter and two Others v. Republic	H.C. 313
Germanus s/o Beda v. Republic	H.C. 167
Godfrey James Ihuya and Others v. Republic	C.A. 197
Haji Rashid Makunyila v. Republic	C.A. 27
Hawa Abdul v. Murgian & Sons (T) Ltd. and Another	H.C. 330
Hosia Lalata v. Gibson Zumba Mwasote	H.C. 154
Hussein T. Kabeke and three Others v. Republic	C.A. 267
John Nyamhanga Bisare v. Republic	C.A. 6
Joram Ntabova and Another v. Republic	C.A. 282
Joseph Marwa Chacha v. Republic	C.A. 272
Juma Thomas Zangira v. Republic	Full Bench H.C. 73
Jumbe s/o Hamisi v. Republic	H.C. 146
Kabulofwa Mwakalile and 11 Others v. Republic	H.C. 144
Kanganja Ally and Juma Ally v. Republic	C.A. 270
Kasmiri Joseph Aridai v. Republic	C.A. 210
Khalfan v. Kichwa	H.C. 309
Kibori Ramadhani v. Republic	H.C. 136
Kibwana Mohamed v. Republic	H.C. 321
Kombo Abdulrahaman v. Republic	H.C. 90
Liberati Mtende v. Republic	C.A. 301
Lusabanya Siyantemi v. Republic	C.A. 275
Magdalena Sanga v. Republic	C.A. 305
Mathias Mhyeni and Another v. Republic	C.A. 290
Michael Mpembela v. Republic	H.C. 322
Mohamed Kaningo v. Republic	C.A. 279
Moris A. Sasawata v. Mathias Malieko	H.C. 158
Moris Onyango v. The Senior Investigation Officer Customs Department—Mbeya	H.C. 150
Musa Asakwe v. Republic	H.C. 324
Mwasegile Samuli v. Makanik Katatula	H.C. 152
Naiman Moiro v. Nailejlet K.J. Zablon	C.A. 274
Nizar M.H. Ladak v. Gulamali Fazal Janmohamed	C.A. 29
Noya Gumusha and Others v. Republic	C.A. 19
Nyanga Manyika v. Republic	H.C. 141

P. 2367 Lt. Wencelaus Herman Dedan v. Judge Advocate General ... ... H.C. 318
P.M. Jonathan v. Athumani Khalfan ... ... H.C. 175
Paul S. Albert Itula v. Theresia Andrea and Another ... ... H.C. 98
Rajabu Ramadhani v. Republic ... ... H.C. 50
Rajper Ladak & Sons v. Remtulia Perbhai Ltd. ... ... H.C. 328
Ramadhani Maisoli and two Others v. Republic ... ... H.C. 118
Republic v. Agnes Doris Liundi ... ... H.C. 38
Republic v. Akutenda Mwaipopo and Others... ... ... H.C. 152
Republic v. Deemay Chrispin and Others ... ... H.C. 116
Republic v. Emmanuel Timothy ... ... H.C. 115
Republic v. Rajabu Lemu Selenga ... ... H.C. 166
Republic v. Raphael Gwetigo and Others ... ... H.C. 92
Republic v. Selemani Ramadhani ... ... H.C. 95
Romadi Mkini v. Republic ... ... H.C. 148
Sadru H. Saidi @ Sidi v. Republic ... ... C.A. 265
Saidi Mzungumwana v. The Manager SODECO, Songea ... ... H.C. 65
* Sgt. Lawrence Mzava and two others v. Republic .... C. A. 25
* Elizabeth Jeremia v. Benedict Anthony and Amiri Ali Kishindo .... H. C. 68
* Daudi Bebwa v. Josiah Lubiindwa .... H. C. 191
Sluis Brothers (E.A.) Ltd. v. Mathias & Tawars Kitomari ... ... C.A. 294
Sylvester Fulgence v. Republic ... ... C.A. 208
Tadjin D. Miwani v. Republic ... ... H.C. 139
Thobias Mbilinyi Ngasimula v. Republic ... ... H.C. 129
Tunutu s/o Mnyasule v. Republic ... ... C.A. 204
Waziri Amani v. Republic ... ... C.A. 250
Yahaya Hussein v. Ohan Transport Ltd. and Another ... ... H.C. 58

DIGEST OF CASES REPORTED

PAGE

ADMINISTRATIVE LAW — **Delegation of functions — Judicial functions cannot be delegated.**
Mwasegile Samuli v. Makanika Katatula .. .. H.C. 152
Preventive detention — Ouster of jurisdiction clause — Power and duty of the court.
Attorney General v. Lesinoi Ndeinai @ Joseph Saleyo Laizer and two Others .. C.A. 214
ACQUISITION OF BUILDINGS — **Registrar stepping into the shoes of the owner — Whether trespasser sub-tenants may be accepted as lawful tenants by Registrar.**
Amratlal Damodar Maltaser and Another t/a Zanzibar Silk Stores v. A.H. Jariwalla t/a Zanzibar Hotel .. .. C.A. 31
BILLS OF EXCHANGE — **Cheque — Knowledge of lack of funds in a bank account and that there would not be funds to meet cheques on presentation — Whether ingredient of false pretence is established.**
Hussein T. Kabeke and three Others v. Republic .. .. C.A. 267
Money — Cheque included — S.5 of Penal Code constructed.
Dastan Kayanda and Others v. Republic .. .. C.A. 23
CIVIL PRACTICE AND PROCEDURE — **Assessors — Changing assessors in the course of trial — Case summed up to two assessors one of whom not taken part from the beginning — Whether irregularity curable — Magistrates' Courts Act, Cap.537, ss.8(3), 32(2).**
Arobogast Fundi v. Masudi Zaidi .. .. H.C. 125
Attachment of property in execution of judgment — Costs for services rendered — Defendant contested costs — Fresh suit filed in the same court instead of appeal to higher court — Whether irregularity innocuous.
Arobogast Fundi v. Masudi Zaid .. .. H.C. 125
Concurrent findings of facts by two courts — What appeal court to do — Rule of practice.
Amratlal Damodar Maltaser and Another t/a Zanzibar Silk Stores v. A.H. Jariwalla t/a Zanzibar Hotel .. .. C.A. 31
Consent order — Advocate alleged not to have authority or right to consent to such order — Whether consent order proper.
Changoro Hamisi Mlezi v. The United Construction Co., Ltd. .. .. .. H.C. 71
Consent order — Whether appeallable
Changoro Hamisi Mlezi v. The United Construction Co., Ltd. .. .. .. H.C. 71
Delay in the trial of a suit — Observations.
Amratlal Damodar Maltesar and Another t/a Zanzibar Silk Stores v. A.H. Jariwalla t/a Zanzibar Hotel .. .. C.A. 31
Rent restriction Act — Alternative accommodation — Visiting locus in quo — Procedure court to follow.
Nizar M.H. Ladak v. Gulamali Fazal Janmohamed .. .. C.A. 29
Succession of trial magistrates in the same case — Case partly heard by one magistrate and concluded by another — No reasons recorded for succession — Magistrate not recommencing the trial — Succeeding magistrate concluded trial with original assessors — One assessor had not been present while some witnesses gave evidence — Whether irregularities render the proceedings null and void — Magistrates' Courts Act, 1963 (Cap.537) s.8(3).
Arobogast Fundi v. Masudi Zaid .. .. H.C. 125
CONSTITUTIONAL LAW — **Construction of constitutional provisions — Rule.**
Attorney-General v. Lesinoi Ndeinai @ Joseph Saleyo Laizer and two others .. C.A. 214
S.8 of the Tanzania Constitution, 1977 — Absence from Tanzania by the President — Whether period of absence qualified or limited — Construction.
Attorney-General v. Lesinoi Ndeinai @ Joseph Saleyo Laizer and two Others .. C.A. 214
S.8 of the Tanzania Constitution, 1977 — Construction.
Attorney-General v. Lesinoi Ndeinai @ Joseph Saleyo Laizer and two Others .. C.A. 214
S.8(1) and s.8(3) of the Tanzania Constitution, 1977 — Devolution of powers — How

powers devolve in either case.
Attorney-General v. Lesinoi Ndeinai @ Joseph Saleyo Laizer and two Others .. C.A. **214**

CONTRACT — **Employment — Employee entitled to overtime when contract is silent.**
Saidi Mzungumwana v. The Manager SODECO, Songea .. .. H.C. **65**

Employment — Employee watchman and his family living on the premises of employer at employee's request and not because of exigencies of his employment — Not entitled to over-time during night unless he proves he was on duty.
Saidi Mzungumwana v. The Manager SODECO, Songea .. .. H.C. **65**

Karadha — Meaning.
Khalfan v. Kichwa .. .. H.C. **309**

Implied terms — Implying a term from custom or usage — Condition for.
Khalfan v. Kichwa .. .. H.C. **309**

Plea of non est factum — Scope.
Sluis Brothers (E.A.) Ltd. v. Mathias & Tawars Kitomari .. .. C.A. **294**

Terms reduced to the form of a document — Evidence of a separate oral agreement Admissibility — Evidence Act, 1967 ss. 100, 101.
Khalfan v. Kichwa .. .. H.C. **309**

Unconscionable agreements — "Catching bargains".
Sluis Brothers (E.A.) Ltd. v. Mathias & Tawars Kitomari .. .. C.A. **294**

COSTS — **Assessment — Principles governing assessment of.**
Arobogast Fundi v. Masudi Zaidi .. .. H.C. **125**

Taxation — Award of costs in respect of steps taken to rectify a party's own error of suing a wrong party.
George Mbuguzi and Another v. A.S. Maskini .. .. H.C. **53**

Taxation — Award of costs in respect of studying a report of the Labour Tribunal.
George Mbuguzi and Another v. A.S. Maskini .. .. H.C. **53**

Taxation — Costs of an application that was dismissed.
George Mbuguzi and Another v. A.S. Maskini .. .. H.C. **53**

Taxation — Instruction fee — Factors to be considered when taxing instruction fees.
George Mbuguzi and Another v. A.S. Maskini .. .. H.C. **53**

COURT MARTIAL — **S.104(1) National Defence Act — The President of a Standing Court – Martial must be an advocate — Defence Force Regulations — G.N. No.258 of 1967 — He must also be of a rank not lower than Captain, subject to exigencies of service.**
P.2367 Lt. Wencelaus Herman Dedan v. Judge Advocate General .. .. .. H.C. **318**

COURT OF APPEAL RULES — **Documents to be filed with an appeal under Rule 89 — Grant of extension of time under Rule 8 — Sufficient reason must be given by applicant.**
Administrator General v. Mwanaarabu Rajabu and Others .. .. C.A. **304**

CRIMINAL LAW — **Aiding and abetting — Sufficieny of presence at scene and of flight with principal and advice to principal to discard weapon.**
Damiano Petro and Jackson Abraham v. Republic .. .. C.A. **260**

Alibi – Failure of accused to call witness to support alibi.
Lusabanya Siyantemi v. Republic .. .. C.A. **275**

Attempt to commit an offence – What constitutes an attempt.
Kombo Abdurahaman v. Republic .. .. H.C **90**

Attempted murder – Suffciency of evidence.
Abdalla Amidu Kumbuka v. Republic .. .. C.A. **289**

Attempted murder – Whether s.211/(1) Tanzania Penal Code defines offence of attempted murder.
Abdalla Amidu Kumbuka v. Republic .. .. **C.A 289**

Attempted robbery — Ingredients of the offence — Penal Code, s.287 (T).
Francis Mwenda v. Republic .. .. H.C. **86**

Being in possession of property suspected to have been stolen or unlawfully obtained Accused must be found with such property by police officer of or above rank of Inspector — Administration of Justice (Misc. Amendment) Act, 1971 — S.312(1) (b) Penal Code.
— v. Mohamakutwa v. Republic .. .. H.C. **317**

Tunutu s/o Mnyasule v. Republic .. .. C.A. 204
Murder — Malice aforethought — Intoxication as circumstance to negate malice aforethought.
Joseph Marwa Chacha v. Republic .. .. C.A. 272
Murder — Provocation — Failure of judge to consider effect of.
Magdalena Sanga v. Republic .. .. C.A. 305
Murder — Provocation as defence — Effect of intoxication of accused.
Joseph Marwa Chacha v. Republic .. .. C.A. 272
Murder — Provocation as defence — Threat by deceased against accused as provocation.
Joseph Marwa Chacha v. Republic .. .. C.A. 272
Murder — Self-defence — Sufficiency of circumstances substantiating claim of defence.
Joseph Marwa Chacha v. Republic .. .. C.A. 272
Parties to an offence — Degree of participation required to make one a principal offender — S.23 Penal Code (Cap.16).
Mathias Mhyeni and Another v. Republic .. .. C.A. 290
Possession of property suspected of having been stolen — Accused arrested in connection with housebreaking and stealing — By a member of the peoples' militia — Goods suspected of having been stolen found in possession of first accused — All three accused convicted of storebreaking and stealing — Penal Code s.293(1) — Criminal Procedure Code, s.24 and s.287(1) (T) — Peoples' militia (Powers of Arrest) Act, 1975, s.3.
Ramadhani Maisoli and two Others v. Republic .. .. C.A. 118
Provocation — Deceased suspected of having an affair with accused's concubine — Whether sufficient to constitute provocation.
Mathias Mhyeni and Another v. Republic .. .. C.A. 290
Self-defence — Degree of force permissible.
Magdalena Sanga v. Republic .. .. C.A. 305
Stealing — Stealing from a motor vehicle — Whether includes stealing any part of the vehicle.
Jumbe s/o Hamisi v. Republic .. .. H.C. 146
Theft — Person employed in the public service — Conviction by circumstantial evidence.
Liberati Mtende v. Republic .. .. C.A. 301
Theft — Vehicle sold by appellant to complainant — Appellant removed vehicle from place of sale to another place — Whether theft in terms of s.265 Penal Code (Cap.16).
Sadru H. Saidi @ Sidi v. Republic .. .. C.A. 265
CRIMINAL PRACTICE AND PROCEDURE — **Accused acquitted of stealing — Subsequently charged with occasioning loss on the same set of facts — Whether autrefois acquit may be pleaded.**
D.P.P. v. Christopher Kikubwa and Another .. .. H.C. 162
Accused pleads guilty but in mitigation exculpates himself — Procedure trial court to follow.
Rajabu Ramadhani v. Republic .. .. H.C. 50
Appeal — Memorandum of appeal filed out of time — Discretion of the Court of Appeal.
Attorney-General v. Lesinoi Ndeinai @ Joseph Saleyo Laizer and two Others .. C.A. 214
Assessors — Judge indicating to assessors his assessment of the testimony of a witness.
Lusabanya Siyantemi v. Republic .. .. C.A. 275
Assessors — Substitution during trial — S.8 Magistrates' Courts Act, 1963.
Kabulofwa Mwakalile and 11 Others v. Republic .. .. H.C. 144
Assessors — Whether assessors must be from the same tribe as accused where accused asserts provocation as defence to murder.
Joseph Marwa Chacha v. Republic .. .. C.A. 272
Autrefois acquit — Accused acquitted of stealing — Trial magistrate finds no loss occasioned — Subsequently accused charged with occassioning loss — Whether court to entertain such charge.
D.P.P. v. Christopher Kikubwa and Another .. .. H.C. 162
Autrefois acquit — Trial by subordinate court — Governing provisions s.203(5) not s.264 Criminal Procedure Code (Cap.20).

Conspiracy to defraud — S.22 Penal Code — If conspiracy proved, all parties concerned should be convicted.
George Walter and 2 Others v. Republic .. .. H.C. 313
Corruption — Whether a CCM ward secretary is an agent of the Government — S.3(1) Prevention of Corruption Act, 1971.
D.P.P. v. Mustafa Peter .. .. H.C. 193
Criminal trespass — Entering into someone's land — Defence of honest claim of right over the land.
Kibwana Mohamed v. Republic .. .. H.C. 321
Evidence — Onus of proof — Excessive and lethal use of force — Onus rests throughout on the prosecution.
John Nyambanga Bisare v. Republic .. .. C.A. 6
Exchange control — Importing into Tanzania, Tanzanian currency — Exchange Control Ordinance (Cap.294), s.21 (1) (a) and para 1 (i) Part II of Fifth Schedule (T).
D.P.P. v. Noah Kipenya .. .. C.A. 212
False pretences — Knowledge of lack of funds in a bank account and that there would be no funds to meet cheques on presentation — Whether ingredient of false pretence.
Hussein T. Kabeke and three Others v. Republic .. .. C.A. 267
Forgery — Ingredients of offence.
George Walter and 2 Others v. Republic .. .. H.C. 313
Hoarding of goods — Meaning.
Tadjin D. Miwani v. Republic .. .. H.C. 139
Insanity — Mental stress — Whether constitutes insanity in law.
Republic v. Agnes Doris Liundi .. .. H.C. 38
Manslaughter — Causation — Meaning of — Penal Code (Cap.16) s.203.
Bombo Tomola v. Republic .. .. C.A. 254
Manslaughter — Common intent — Death caused by assault by two assailants — Court unable to say who struck the fatal blow — Penal Code (Cap.16) ss.22, 23.
Bombo Tomola v. Republic .. .. C.A. 254
Manslaughter — Identification of dead body — Failure to call persons to identify dead body to a doctor performing an autopsy — Whether an irregularity which renders doctor's identity of the dead body inadmissible.
Bombo Tomola v. Republic .. .. C.A. 254
Manslaughter — Manslaughter by criminal negligence — What constitutes criminal negligence
Republic v. Selemani Ramadhani .. .. H.C. 95
Manslaughter — Manslaughter by criminal neglegence — Whether contributory negligence of deceased can constitute defence to the charge.
Republic v. Selemani Ramadhani .. .. H.C. 95
Murder — Common intention — One party holding deceased to facilitate attack on him by another — A party to the offence.
Mathias Mhyeni and Another v. Republic .. .. C.A. 290
Murder — Malice aforethought — Can be proved by type of weapon used.
Tunutu s/o Mnyasule v. Republic .. .. C.A. 204
Murder — Malice aforethought — Circumstances establishing malice aforethought.
Joseph Marwa Chacha v. Republic .. .. C.A. 272
Murder — Plea of self-defence — Use of excessive force — Accused honestly and reasonably believed he was defending himself — Test of honest and reasonable belief — Subjective.
John Nyamhanga Bisare v. Republic .. .. C.A. 6
Murder — Plea of self-defence — Use of excessive force — Accused honestly and reasonably believed he was defending himself — Whether conviction of murder or manslaughter.
John Nyamhanga Bisare v. Republic .. .. C.A. 6
Murder — Malice aforethought — Effect of intoxication — Burden of proof as to malice aforethought where accused pleads intoxication.

D.P.P. v. Christopher Kikubwa and Another .. .. H.C. 162
Charge — Charge of attempting to commit an offence — Provisions to cite.

Kombo Abdurahaman v. Republic .. .. H.C. 90
Charge — Duplex — Defence clear what the case against appellant was — Whether defect curable — S.346 of Criminal Procedure Code (Cap.20).

Juma Thomas Zangira v. Republic .. .. H.C. Full Bench 73
Charge — Duplicity — Being in possession of property which is suspected to have been stolen or otherwise unlawfully acquired — Whether charge bad for duplicity — Test of duplicity — A failure of justice or prejudice to accused — Penal Code (Cap.16) s.312(1) (a) — Criminal Procedure Code (Cap.20) s.138(b) (i).

Kasmiri Joseph Aridai v. Republic .. .. C.A. 210
Charge — Series of acts constituting a series of same offence — Circumstances are such that the committing of the offence forms a single transaction — One count.

Nyanga Manyika v. Republic .. .. H.C. 141
Common intention — S.23 Penal Code (Cap.16) — Participants, aiders and abettors guilty.

Godfrey James Ihuya and Others v. Republic .. .. C.A. 197
Conviction of obtaining goods by false pretences substituted for that of stealing — Proper.

Mohamed Kaningo v. Republic .. .. C.A. 279
Court martial — S.104(1) National Defence Act — The President of a standing court Martial must be an advocate — Defence Forces Regulations — G.N. No.258 of 1967 He must also be of a rank not lower than Captain, subject to exigencies of service.

P.2367 Lt. Wencelaus Herman Dedan v. Judge Advocate General .. .. .. H.C. 318
Defective charge — No particulars of false pretences — Accused aware of particulars in the course of trial — No prejudice or injustice suffered — Defect curable — S.316 Criminal Procedure Code (Cap.20).

Dastan Kayanda and Others v. Republic .. .. C.A. 23
Defective charge — Role of those presiding over criminal trials.

Mohamed Kaningo v. Republic .. .. C.A. 279
Dismissal of charge by the court — Whether legal.

Republic v. Deemay Chrispin and Others .. .. H.C. 166
Disobeying lawful order — Order given by District Court — Whether Primary Court has jurisdiction to try the case — S.124 Penal Code (Cap.16) — First Schedule to Magistrates' Courts Act, 1963.

Republic v. Akutenda Mwaipopo and Others .. .. H.C. 152
First magistrate hearing of whole of prosecution case and accused's evidence — Second magistrate continuing with case to end — Accused not informed by second magistrate of right to re-summon and re-hear witnesses — Whether defect curable.

Republic v. Rajabu Lemu Selenge .. .. H.C. 116
Functus officio — When court becomes functus officio.

Rajabu Ramadhani v. Republic .. .. H.C. 50
Habeas corpus proceedings — Attorney-General not a party to proceedings in High Court — Whether he has locus standi in Court of Appeal.

Attorney-General v. Lesinoi Ndeinai @ Joseph Saleyo Laizer and two Others .. C.A. 214
Handwriting expert's report — S.154(c) (1 Criminal Procedure Code (Cap.20) Form required — Seventh Schedule.

Thobias Mbilinyi Ngasimula v. Republic .. .. H.C. ~~279~~ 264 129
Interpreter — Court interpreter also appearing as prosecution witness in a trial-within-a trial and in the main trial — Undesirable practice.

Noya Gumusha and Others v. Republic .. .. C.A. 19
Offence set out in statement of offence — Offence not disclosed in particulars of offence Evidence adduced discloses the offence as set out in the statement of offence — Conviction improper.

Mohamed Kaninga v. Republic .. .. C.A. 129
Pleas — A failure to call accused to plead in subsequent proceedings before another magistrate — Accused had pleaded not guilty in the same court before the first magistrate

Curable irregularity — Criminal Procedure Code (Cap.20) s.346 (T).
Kibori Ramadhani v. Republic .. .. H.C. 136
Preliminary inquiry — Accused convicted of manslaughter on their own plea on a charge of murder drawn up for a preliminary inquiry — No information filed in the High Court as required by Criminal Procedure Code (Cap.20) s.240(8) — Whether irregularity curable under Criminal Procedure Code (Cap.20) s.346.
D.P.P. v. Marwa Mwita and two Others .. .. C.A. 306
Prosecution — Led by a police sergeant major — Whether curable under s.136 Criminal Procedure Code (Cap.20).
Liberati Mtende v. Republic .. .. C.A. 301
Recalling and calling witnesses during appeal — Ss. 151 and 322(1) of the Criminal Procedure Code (Cap.20) — Circumstances under which can be exercised.
Sergeant Lawrence Mzava and two Others v. Republic .. .. C.A. 25
Retrial — Circumstances under which court to order retrial.
Rajabu Ramadhani v. Republic .. .. H.C. 50
Right of accused to be defended by advocate — Accused on bail for 5 months — No effort to get advocate — Accused's application on hearing day for adjournment to get advocate refused — Whether refusal proper.
Michael Mpembela v. Republic .. .. H.C. 322
Right of State Attorney to reply.
Ezekiel Sylvester v. Republic .. .. C.A. 302
Road traffic — Trial — Burden of proof — Burden shifted to defence — Irregular.
Germanus s/o Beda v. Republic .. .. H.C. 167
Sentence — Alternative verdict founded on same facts — Conviction of obtaining property by false pretences substituted for simple theft — Whether practice is proper — S.302 Penal Code (Cap.16) and s.187 Criminal Procedure Code (Cap.20).
Hussein T. Kabeke and three Others v. Republic .. .. C.A. 267
Sentence — Of death — To be passed on one count.
Agnes Doris Liundi v. Republic .. .. C.A. 46
Sentence — Whether appeal court can enhance sentence without an appeal by Director of Public Prosecutions (r.36 of the Tanzania Court of Appeal Rules).
Godfrey James Ihuya and Others v. Republic .. .. C.A. 197
Sentencing — Concurrent sentences — Meaning of.
Hussein T. Kadeke and three Others v. Republic .. .. C.A. 267
Sentencing — Co-operation with police — Conviction based on presumption only Extent of damage impossible to ascertain — Benefit to appellant.
Juma Thomas Zangira v. Republic .. .. H.C. Full Bench 73
Sentencing — No punishment provided for a statutory offence — Power and duty of trial magistrate.
Republic v. Emmanuel Timothy .. .. H.C. 115
Sentencing — Sentences impossed under convictions in separate trials — Whether can run concurrently — Criminal Procedure Code (Cap.20) s.136(1) (T).
Francis Mwenda v. Republic .. .. H.C. 86
Summing-up to assessors — No record of notes of summing-up — Irregular.
Haji Rashid Makunyila v. Republic .. .. C.A. 27
Trial — Accused no opportunity to defend himself — Irregular.
Romadi Mkini v. Republic .. .. H.C 148
Trial — Magistrate trying case of his subordinate — Accused objects — Objection overruled — Whether justice denied.
Ernest s/o Ndesangio v. Republic .. .. C.A. 332

ESTOPPEL — **Participation and acquiescence in irregular proceedings by state attorney Whether Director of Public Prosecutions estopped from complaining about the irregular proceedings on appeal.**
D.P.P. v. Marwa Mwita and two Others .. .. C.A. 306

EVIDENCE — **Admissibility — Admitting written report of witness — Witness not called to testify — Procedure improper.**

Kabulofwa Mwakalile and 11 Others v. Republic .. .. H.C. 144
Admissibility — Doctor's report — Doctor's personal attendance not possible — Admissibility of doctor's report under s.34(b) of Evidence Act, 1967.

Yahaya Hussein v. Ohan Transport Ltd. and Another .. .. H.C. 58
Admissibility — Handwritting expert's report — Condition for admissibility.

Thobias Mbilinyi Ngasimula v. Republic .. .. H.C. 129
Admissibility — Statement about identity of dead body examined by doctor — Statement not on purely medical or surgical matter — Whether admissible — S.11 Evidence Act, 1967.

Joram Ntabova and Another v. Republic .. .. C.A. 282
Admissibility — Statement made to a police officer — Appellant told justice of the peace the statement he made to the police was enough — Justice of the peace not shown the statement. Whether such statement can be incorporated in the statement made to the justice of the peace — Whether admissible as a confession — Whether admissible — Whether it amounts to an admission or not.

Juma Thomas Zangira v. Republic .. .. H.C. Full Bench 73
Alibi — Unsworn statement — No evidence to support alibi.

Ali Salehe Msutu v. Republic .. .. C.A. 1
Burden of proof — Unlawful possession of offensive weapons and materials — Whether burden on accused under the National security Act, 1970, s.8(1) (Act No.3 of 1970).

Francis Mwenda v. Republic .. .. H.C. 86
Confession — Repudiated confession — Admissibility of — Whether corroboration required.

Bombo Tomola v. Republic .. .. C.A. 254
Confession — Repudiated confession — Whether can support a conviction.

Ali Salehe Msutu v. Republic .. .. C.A. 1
Confession — Statement to police — Statement retracted during trial — Statement admissible.

D.P.P. v. Noah Kipenya .. .. C.A. 212
Contract — Terms reduced into the form of a document — Evidence of a separate oral agreement — Admissibility — Evidence Act, 1967, ss.100, 101.

Khalfan v. Kichwa .. .. H.C. 309
Conviction based solely on uncorroborated circumstantial evidence — Test to be applied before inferring guilt.

Abdul Muganyizi v. Republic .. .. C.A. 263
Corroboration — Requirement of corroboration of eyewitness identification made under unfavourable conditions.

Lusabanya Siyantemi v. Republic .. .. C.A. 275
Defence evidence advancing prosecution case further — Whether court entitled to take into account such evidence in deciding the guilt of the accused.

Ali s/o Mpaliko Kailu v. Republic .. .. H.C. 170
Defence of insanity — Burden and standard of proof.

Republic v. Agnes Doris Liundi .. .. H.C. 38
Doctor's report made on request from advocate — Whether report amounts to entry or memorandum in books or record kept in the ordinary course of business or kept in the discharge of professional duty — Construction.

Yahaya Hussein v. Ohan Transport Ltd. and Another .. .. H.C. 58
Doctor's statement in post-mortem examination report — So and so identified the body to him in the presence of so and so — Whether such statement is "upon a purely medical or surgical matter".

Joram Ntabora and Another v. Republic .. .. C.A. 282
Evidence Act — S.142 — Accomplice evidence — Conviction not necessarily illegal for lack of corroboration.

Godfrey James Ihuya and Others v. Republic .. .. C.A. 197
Evidence Act, 1967 ss.42—46 — Admissibility in a civil action of a judgment in a criminal case as evidence.

Geofrey Maleko v. Thomas Mwaikaja .. .. H.C. 112
Evidence Act, 1967 s.166 — Purpose of admitting a deposition in evidence.
Geofrey Maleko v. Thomas Mwaikaja .. .. H.C. 112
Evidence of accused's previous conduct — Admissibility.
Tadjin D. Miwani v. Republic .. .. H.C. 139
Evidence of children of about 15 years — Evidence not given under oath — Accused refused right to cross-examine — Irregularity.
Kabulofwa Mwakalile and 11 Others v. Republic .. .. H.C. 144
Evidence Act — Rules as to notice to produce — S.68 — Whether applicable in criminal cases.
Abdallah Musa Mkambara v. Republic .. .. C.A. 287
Expert evidence — Whether witchdoctor's covered — Evidence Act 1967, (T) s.47 and Magistrates' Courts (Rules of Evidence in Primary Courts) Regulations 1964, r.10 (30) (a).
Mwasegile Sarmuli v. Makanika Katatula .. .. H.C. 152
Extra-judicial statement made by accused but not produced at trial — Whether appellate court may consider it.
Tunutu s/o Mnyasule v. Republic .. .. C.A. 204
Extra-judicial statement made to a magistrate under oath — Admissible.
Kanganja Ally and Juma Ally v. Republic .. .. C.A. 270
Identification — Fingerprint expert's report — Whether fingerprint method of identification good in law.
Jumbe s/o Hamisi v. Republic .. .. H.C. 146
Identification — Eyewitness identification — Realiability.
Waziri Amani v. Republic .. .. C.A. 250
Identification — Eyewitness identification — Sufficiency.
Damiano Petro and Jackson Abraham v. Republic .. .. C.A. 260
Identification — Of body of deceased — No witness called during trial to testify he identified the dead body to the doctor — Whether body referred to in the doctor's report was that of the deceased.
Joram Ntabova and Another v. Republic .. .. C.A. 282
Identification by voice and sight — Sufficient evidence.
Kanganja Ally and Juma Ally v. Republic .. .. C.A. 270
Identification Parade — Strangers, including appellants seen by people in a village Appellants identified in an identification parade — Whether evidence of identification reliable and true.
Joram Ntabova and Another v. Republic .. .. C.A. 282
Insanity — Evidence of medical expert — Court not bound to accept it.
Republic v. Agnes Doris Liundi .. .. H.C. 38
Insanity — Mental stress — Letters imply innocence and punishment relating to the killings — Whether appellant did not know what she was doing was wrong.
Agnes Doris Liundi v. Republic .. .. C.A. 46
Murder — Weight of evidence to prove that accused committed murder.
Sylvester Fulgence v. Republic .. .. C.A. 208
Report of a ballistics expert — Opinion evidence albeit expert evidence — Judge to accept or reject it.
Haji Rashid Makunyila v. Republic .. .. C.A. 27
Repudiated confession — Exculpatory statements of co-accused — Cannot corroborate.
Ali Salehe Msutu v. Republic .. .. C.A. 1
Statement taken by a person not called as witness during trial — Whether admissible.
Magdalena Sanga v. Republic .. .. C.A. 305
Sufficiency to sustain conviction of murder.
Ezekiel Sylvester v. Republic .. .. C.A 302
Weight — Statement admitted in evidence about identity of dead body examined by doctor — Statement not upon a purely medical or surgical matter — Weight to be attached.

Joram Ntabova and Another v. Republic .. .. C.A. 282
Weight given to evidence by trial court — Interference in appeal — Duty of the appeal court.
Geofrey Maleko v. Thomas Mwaikaja .. .. H.C. 112
EXCHANGE CONTROL — **Importing into Tanzania Tanzanian currency — Exchange Control Ordinance (Cap.294), s.21(1) (a), and para.1 (i) Part II of 5th Schedule (T).**
D.P.P. v. Noah Kipenya .. .. C.A. 212
JURISDICTION — **Primary Court trying a case of disobeying lawful order — Order given by District Court — S.124 Penal Code (Cap.16) — First Schedule Magistrates' Courts Act, 1983.**
Republic v. Akutenda Mwaipopo and Others .. .. H.C. 152

LABOUR LAW — **Interpretation of words "Mfanyakazi arudishwe kazini" and "Malipo ya ujira yaanze atakapoanza kazi".**
General Marketing Co. Ltd. v. A.A. Shariff .. .. H.C. 61
Order of Minister to reinstate an employee — Order through court — Whether court to issue decree — Ss.27 and 41 of Security of Employment Act, 1964.
General Marketing Co. Ltd. v. A.A. Shariff .. .. H.C. 61
Whether reference of a labour dispute to a Labour Officer is a condition precedent to the order of court — S.48 of Security of Employment Act, 1964; s.130 of the Employment Ordinance and ss.131 and 132 of the Employment Ordinance as amended by Employment Ordinance, 1969.
General Marketing Co. Ltd. v. A.A. Shariff .. .. H.C. 61
LAND LAW — **Land Regulations, 1949, Reg.3 — Agreement to sell right of occupancy of land with buildings thereon — Regional and Development Officer not granting approval for proposed transfer — Effect.**
Rajper Ladak & Sons v. Remtulia Perbhai Ltd. .. .. H.C. 328
LANDLORD AND TENANT — **Notice to quit — Rent accepted after notice — Whether amounts to waiver.**
Amratlal Damodar Maltesar and Another t/a Zanzibar Silk Stores v. A.H. Jariwalla t/a Zanzibar Hotel .. .. C.A. 31
Sub-tenant partitioning and sub-letting portion of premises without consent of tenant Whether lawful sub-tenancy.
Amratilal Damodar Maltesar and Another t/a Zanzibar Silk Stores v. A.H. Jariwalla t/a Zanzibar Hotel .. .. C.A. 31
LEGAL PROFESSION — **Advocate conducts a case for litigant — Whether litigant has a share in the conduct of the case.**
Changoro Hamisi Mlezi v. The United Construction Co. Ltd. .. .. .. H.C. 71
Advocates Ordinance (Cap.341) — Contract for fees by advocate — Validity — Position of English Barrister — Suit in Firm Name — Maintainability — Costs.
Akena Adoko's Chambers v. Mohamed Maganga .. .. H.C. 134
LIMITATION — *Actio personalis moritus cum persona* **rule — Applicability.**
Paul S. Albert Itule v. Theresia Andrea and Another .. .. H.C. 98
Suit by buyer to recover price paid — Law of Limitation Act (No.10) 1971, ss.4, 5 and Schedule I, Part I, Article 24 — Bar of — Accrual of cause of action — Time of
Rajpar Ladak & Sons v. Remtulia Perbhai Ltd. .. .. H.C. 328
Suit for demages for adultery — Accrual of action — Local Customary Law (Declaration) Order, 1963, ss.125 126, 127.
Anjelo K. Mzali v. Alois M. Chalamila .. .. H.C. 83
MANDAMUS — **Conditions precedent to the issue of order of — Procedure — Leave to apply mandatory — Scope of order of mandamus — Effect of delay in seeking mandamus — Judicature and Application of Laws Ordinance (Cap.453), s.2(2).**
Alfred Lakaru v. Town Director (Arusha) .. .. H.C. 326
Order — Circumstances under which order may issue.
Moris Onyango v. The Senior Investigation Officer Customs Department — Mbeya H.C 150
MINIMUM SENTENCES ACT — **Compensation — Whether paying compensation in**

kind allowed.
Republic v. Raphael Gwetigo and Others .. .. H.C. 92
Whether stealing from Tanganyika Farmers' Association included.
Jumbe s/o Hamisi v. Republic .. .. H.C. 146
NATIONAL SECURITY — **Burden of proof — Unlawful possession of offensive weapons and materials — Whether burden on accused — National Security Act, 1970, s.8(1).**
Francis Mwenda v. Republic .. .. H.C. 86
Espionage — Appellant alleged to have communicated with foreign agent — Whether necessary to prove which particular State or States the alleged agent was working for
Juma Thomas Zangira v. Republic .. .. H.C. Full Bench 73
Espionage — When presumption under s.12(1) of the National Security Act, 1970, comes into play — Effect of the presumption.
Juma Thomas Zangira v. Republic .. .. H.C. Full Bench 73
Espionage and sabotage — National Security Act, 1970, — Foreign agent — Whether the person (John Wilson) with whom appellant was communicating was a "foreign agent" — S.2(1) National Security Act, 1970.
Juma Thomas Zangira v. Republic .. .. H.C. Full Bench 73
Spying on designated organization — Evidence of communication — No order of exact nature or type of information — Whether information for purposes prejudicial to the safety or interests of a designated organization.
Juma Thomas Zangira v. Republic .. .. H.C. Full Bench 73
Spying on designated organization — Presumption under s.9(3) of the National Security Act, 1970 — When it can come into play.
Juma Thomas Zangira v. Republic .. .. H.C. Full Bench 73
POLICE FORCE ORDINANCE — **Application to peoples' militia.**
John Nyamhanga Bisare v. Republic .. .. C.A. 6
POWER OF ATTORNEY — **Representation by attorney — Attorney conducting case where the party concerned present in court.**
Naiman Moiro v. Nailejlet K.J. Zablon .. .. C.A. 274
Representation by attorney — Party concerned resident in Tanzania — Tanzania Court of Appeal Rules, 1979, Rule 28(2).
Naiman Moiro v. Nailejlet K.J. Zablon .. .. C.A. 274
PREVENTIVE DETENTION — **Detention order — Right of detainee to see detention order at the time of arrest — S.4(1) Preventive Detention Act, 1962 (Cap.490).**
Order — Order bears hand of President — Order has no Public Seal affixed to it Effect of absence of Public Seal — S.2 Preventive Detention Act, 1962, (Cap.490).
Attorney-General v. Lesinoi Ndeinai @ Joseph Saleyo Laizer and two Others .. C.A. 214
RENT RESTRICTION ACT — **Alternative accommodation — Visiting locus in quo Circumstances under which court to inspect.**
N. ar M.H. Ladak v. Gulamali Fazal Janmohamed .. .. C.A. 29
Order for vacant possession — Whether trespasser protected — Rent Restriction Act, 1962, s.19(2).
Amratlal Damodar Maltesar and Another t/a Zanzibar Silk Stores v. A.H. Jariwalla t/a Zanzibar Hotel .. .. C.A. 31
Unlawful sub-tenancy — Whether sub-tenants protected — Rent Restriction Act, 1962.
Amratlal Damodar Maltesar and Another t/a Zanzibar Silk Stores v. A.H. Jariwalla t/a Zanzibar Hotel .. .. C.A. 31
ROAD TRAFFIC — **Causing death by reckless driving — Charge sheet silent on specific acts constituting the offence — Whether irregularity curable.**
Ali s/o Mpaliko Kailu v. Republic .. .. H.C. 170
Causing death by reckless driving — Not absolute offence — Fault must be proved.
Ali s/o Mpaliko Kailu v. Republic .. .. H.C. 170
Charge — Particulars to disclose in what manner using, parking or standing of the vehicle was careless or inconsiderate — S.50 Road Traffic Act, 1973.
Musa Asakwe v. Republic .. .. H.C. 324
Driving in a manner which is dangerous — Interpretation of s.40(1) of Traffic Act, 1973.

Malicious prosecution — Prosecution defined.
Hosia Lalata v. Gibson Zumba Mwasote.. .. .. H.C. **154**
Negligence — Accident due to negligent driving of motorvehicle — Damages for personal injury — Factors to be taken into account — Liability of owner of a motorvehicle for wrongs committed by his driver in the course of employment.
Hawa Abdul v. Murgian & Sons (T) Ltd. and Another .. .. H.C. **330**
Negligence — Damages — General and special — Method of assessment.
Elizabeth Jeremia v. Benedict Anthony and Amiri Ally Kishindo .. .. .. H.C. **68**
Negligence — Proof — Damages — Quantum.
Paul S. Albert Itule v. Theresia Andrea and Another .. .. H.C. **98**

Germanus s/o Beda v. Republic .. .. H.C. 167
Knocking stationary motor vehicle — Whether inconsiderate use of motor vehicle — S.50 of Road Traffic Act, 1973.
Musa Asakwe v. Republic .. .. H.C. 324
Inconsiderate use of motor vehicle — Whether synonymous with careless use of motor vehicle — S.50 Road Traffic Act, 1973.
Musa Asakwe v. Republic .. .. H.C. 324
SALE OF GOODS — **Passing of property — Unconditional contract for sale of specific goods in a deliverable state — Sale of Goods Ordinance (Cap.214) s.20 r.1.**
Sadru H. Saidi @ Sidi v. Republic .. .. C.A. 265
STATUTE — **Interpretation — ".. amekubali ubaba" — Meaning of — Local Customary Law (Declaration) Order, 1963, s.126.**
Anjelo K. Mzali v. Alois M. Chalamila .. .. H.C. 83
Statutory interpretation — Penal statutes - Whether to be strictly construed or not.
Ramadhani Maisoli and two Others v. Republic .. .. H.C 118
TENDER — **Meaning**
Amratlal Damodar Maltesar and Another t/a Zanzibar Silk Stores v. A.H. Jariwalla t/a Zanzibar Hotel .. .. C.A. 31
TORT — **Damages — General damages — Approach of assessment — Assessment of general damages under different heads of personal injuries unsatisfactory.**
Yahaya Hussein v. Ohan Transport Ltd: and Another .. .. H.C. 58
Damages — Quantum of damages in an action for adultery.
Anjelo K. Mzali v. Alois M. Chalamila .. .. H.C. 83
Damages — Whether categorization in Rookes v. Barnard for purposes of awarding exemplary damages suitable for Tanzanian circumstances.
P.M. Jonathan v. Athumani Khalfan .. .. H.C. 175
Defamation — Communication — Alleged defamatory letter copied to various people — No proof the copies reached the people — No proof of communication.
Naiman Moiro v. Nailejlet K.J. Zablon .. .. C.A. 274
Defamation — Publication to the Chief Justice — Whether defendant enjoys absolute privilege — Whether defendant enjoys qualified privilege.
P.M. Jonathan v. Athumani Khalfan .. .. H.C. 175
Defamation — Publication to the Permanent Commission of Inquiry — No names mentioned — Whether actionable publication.
P.M. Jonathan v. Athumani Khalfan .. .. H.C. 175
Defamation — Publication to the Regional Crimes Officer — Publication at invitation of plaintiff — Whether actionable publication.
P.M. Jonathan v. Athumani Khalfan .. .. H.C. 175
Defence — Qualified privilege — Destroyed where malice proved.
Naiman Moiro v. Nailejlet K.J. Zablon .. .. C.A. 274
Defence — Qualified privilege — Self-defence or repulsion of an attack.
Naiman Moiro v. Nailejlet K.J. Zablon .. .. C.A. 274
False allegations — Finding malice on basis of false allegations.
Naiman Moiro v. Nailejlet K.J. Zablon .. .. C.A. 274
False imprisonment — Restraint need not be lawful — Burden of proof on defendant.
Moris A. Sasawata v. Mathias Malieko .. .. H.C. 158
False imprisonment — Type of damages recoverable.
Moris A. Sasawata v. Mathias Malieko .. .. H.C 154
Malicious prosecution — Acquittal on appeal — Whether favourable termination of proceedings.
Hosia Lalata v. Gibson Zumba Mwasote.. .. .. H.C. 154
Malicious prosecution — Damages — Special damages need be specifically pleaded and proved.
Hosia Lalata v. Gibson Zumba Mwasote.. .. .. H.C. 154
Malicious prosecution — Essentials of the tort.
Hosia Lalata v. Gibson Zumba Mwasote.. .. .. H.C. 154

ALI SALEHE MSUTU v. REPUBLIC (NYALALI, C.J.)

ALI SALEHE MSUTU v. REPUBLIC

[COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM (NYALALI C.J.,

MUSTAFA AND MWAKASENDO, JJ.A.,]

CRIMINAL APPEAL 3 OF 1979

Evidence – Alibi – Unsworn statement – No evidence to support alibi
Evidence – Confession – Repudiated confession – Whether can support conviction
Evidence – Repudiated confession – Requires corroboration as a matter of prudence
Evidence – Repudiated confession – Exculpatory statements of co-accused – Cannot corroborate

The appellant was charged jointly with two other persons with the offence of murder. Appellant was convicted and sentenced to die by hanging. On appeal it was contended in favour of appellant that the trial judge erred in not making a finding regarding the defence of alibi. For the appellant it was also argued that since appellant at his trial denied making a statement sought to be admitted as a confession, such confession must be treated as repudiated, thus requiring corroboration to support a conviction.

Held: (i) as a matter of law, an accused person is not required to prove his alibi; it is sufficient for him if the alibi raises a reasonable doubt;

(ii) the unsworn and untested statement made by the first accused in his defence; unsupported by any other evidence which in this case could easily have been obtained if the alibi had any trace of truth, has no basis;

(iii) the extra-judicial statement made by the accused to P.W. 3, amounted to a confession;

(iv) since the accused at his trial in the High Court denied making it, it must be treated in law as repudiated confession;

(v) a repudiated confession, though as a matter of law may support a conviction, generally requires as a matter of prudence corroboration as is normally the case where a confession is retracted;

(vi) an exculpatory statement made by one accused cannot be used to incriminate another person.

Appeal allowed.

Cases referred to:

(1) **Tuwamoi v. Uganda** [1967] E.A. 91
(2) **Wilbald s/o Tibanyendela v. Rex** 15 E.A. C.A. 117
(3) **Mali Kiza s/o Lusota v. Rex** 8 E.A.C.A. 26
(4) **Anyangu v. R.** [1968] E.A. 209

M.A. Lakha, for Appellant
D.S. Meela, Director of Public Prosecutions, for the Respondent.

November 6, 1979. NYALALI, C.J., read the following considered judgement of the court: The appellant, Ali Salehe Msutu, was charged jointly with two other persons in the High Court with the offence of murder contrary to Section 196 of the Penal Code. He was convicted as charged and was sentenced to the only sentence allowed by law, that is, death by hanging. The other two persons were acquitted. At the trial the appellant appeared as the first accused and the others as the second and third accused. For purposes of clarity the same decriptions will be used in this appeal. The first accused is appealing to this Court against his conviction. Mr. Lakha, learned advocate, was assigned to represent him in this appeal. The learned Director of Public Prosecutions, that is, Mr. Meela appeared for the Republic in the appeal.

According to the proceedings in the High Court and in this Court it is apparent that the following material facts are not in dispute between the parties. During the night of the 5th April, 1976, an armoury at a

Game Reserve scouts camp in Kilombero area was broken into and five guns of various descriptions together with ammunition were stolen therefrom. A report was later made to the police station at Kilombero with the result that a group of policemen together with Game Reserve scouts mounted a search for the stolen guns and ammunition as well as the thieves. The policemen and game scouts divided themselves into two groups. The first group went to the armoury and the second went into the surrounding bush. This second group included P.W.1, P.W.2, P.W.9, P.W.10 and one Police Constable Zacharia. The first group included, and was led by, P.W.7 who was the officer-in-charge of Police Station Kilombero.

While the second search party was in the bush it stumbled upon some armed persons hiding therein. An exchange of fire occurred between the search party and those hiding. In the course of this exchange of fire the said Police Constable Zacharia was shot and he fell down. The persons hiding in the bush ran away leaving behind at one place a bicycle and a bag of ammunition and sundry articles, and at another place a second bicycle, and yet at another location, they left three guns. The search party called off their search leaving behind Police Constable Zacharia and went to report to the Police Station.

The following day, the police and game scouts reinforced by other policemen including P.W.7, returned to the scene in the bush and there they found Police Constable Zacharia dead. A further search led to the discovery of the two bicycles, the bag of ammunition, the three guns and other sundry articles. All of them were seized and taken away by the police. A post mortem examination was subsequently made by a doctor on the body of Police Constable Zacharia and the relevant report was tendered at the trial as Exhibit P. 17 under the provisions of Section 275 of the Criminal Procedure Code in the absence of the examining doctor who happened to be abroad. The report shows that the deceased, Police Constable Zacharia, died of severe bleeding from two bullet wounds.

Subsequent police investigations led to the discovery of a fourth gun buried in the ground by the second accused in Kikuyu village about 5 miles from Kilombero Police Station. The fifth gun was found in the house of one Mwanaisha Mohamed (P.W.4).

On the 16th April, 1976, the first accused who is the appellant in this case was apprehended by the police in Dar es Salaam, and was taken to Morogoro on the 17th April, 1976, and later to Kilombero on the 20th April, 1976; and finally back to Morogoro where he appeared before a Justice of the Peace (P.W.3) namely Rajabu Mkali on the 27th April, 1976, to make an extrajudicial statement. The second accused, who was acquitted at the trial, was apprehended by the police on or about the 7th April, 1976, at Police Station Kilombero where he had been brought by his ten-cell leader. He was later taken to Morogoro on the 10th April, 1976, and appeared before the same Justice of the Peace, on the 11th April, 1976, to make an extra-judicial statement. The third accused, who was also acquitted at the trial, was apprehended by the police on the 9th April, 1976, at Kilosa and was taken to Morogoro where he appeared before the same Justice of the Peace on the 11th April, 1976, to make an extra-judicial statement. All three accused persons were apprehended on suspicion of being the persons involved in the theft of firearms and ammunition and in the killing of Police Constable Zacharia.

It is apparent from the proceedings in the High Court and in this Court that the following material facts are in dispute between the parties. According to the prosecution, it is said that the first accused together with the second and third accused were involved in the breaking into and theft from the armoury at the game scouts camp during the night of the 5th April, 1976. Furthermore, it is said that the first accused was one of the persons found by the police search party hiding in the bush and that he was the person who fired and shot at Police Constable Zacharia. Furthermore, the prosecution maintains that when the first accused appeared before the Justice of the Peace on the 21st April, 1976, he voluntarily confessed about the store-breaking, theft and subsequent shooting. Again, the prosecution asserts that the second and third accused, who were together with the first accused, made extra-judicial statements implicating the first accused. Also, it is part of the prosecution case that after shooting Police Constable Zacharia the first accused ran away and eventually turned up at P.W.4's house with a gun. He stayed over-night at P.W.4's house, until the following day when he left leaving behind his gun. The gun was later retrieved by the police and was tendered at the trial as Exhibit P.4.

On the other hand, the first accused in his defence at the trial put forth an alibi to the effect that at the time of the breaking into and theft from the armoury and the subsequent shooting of Police Constable Zacharia, he was nowhere near the scene of crime, but was far away in Dar es Salaam where he had been from 1st April, 1976, until the day of his arrest on the 16th April, 1976. Furthermore, the first accused asserts that while under police custody in Dar es Salaam he was severely tortured by the police and compelled to make a statement. Later when the appellant was taken to Morogoro and brought before P.W.3, (Rajabu Mkali), he refused to make any statement but P.W.3 proceeded to copy from statements previously made

by the second and third accused.

The second accused in his unsworn statement made in his defence at the trial stated in effect that he was tortured by the police after his arrest and was thus forced to make a statement to the police. When he appeared before P.W.3, he refused to make a further statement and P.W.3 proceeded to copy from the statement previously made to the police.

The third accused in his unsworn statement also made allegations about being tortured by the police into making a police statement which he subsequently repeated to P.W. 3.

The first point for consideration and decision in this case concerns the alibi put forth by the first accused at his trial. The learned trial judge was aware of this alibi when he stated in his judgement:—

> Accused 1 boldly asserted that he does not know P.W.4 at all and put up an alibi regarding his whereabouts in the first week of April 1976.

Unfortunately, however, the learned trial judge did not specifically make a finding regarding the alibi.

Since this is a first appeal, we have considered the alibi and noted that the first accused raised his alibi in an unsworn statement made in his defence at the trial and for that reason he could not be cross-examined to test the alibi. In his untested alibi he testified in effect that he was in Dar es Salaam for over two weeks before he was arrested. Since it is highly unlikely that he could have stayed alone throughout that period in Dar es Salaam, one would have expected him to produce a witness to support the alibi. He did nothing of the sort and gave no explanation for not doing so. We are of course aware that as a matter of law an accused person is not required to prove his alibi and that it is sufficient for him if the alibi raises a reasonable doubt. We are, however, of the view that the unsworn and untested statement made by the first accused in his defence, unsupported as it is by any other evidence which in this case could easily have been obtained if the alibi had any trace of truth, has no basis in fact but is a fantasy of the appellant.

The second point for consideration and decision is whether the extra-judicial statement tendered at the trial as Exhibit P. 2 was made voluntarily by the first accused to P.W.3. The learned trial judge conducted a trial within a trial and came to the conclusion that Exhibit P.2 was made voluntarily by the first accused to P.W.3. This finding is the subject of the second ground of appeal submitted to this Court, where it is stated:—

> The learned trial judge ought to have believed appellant's version of the circumstances in which the extra-judicial statement was alleged to have been made and signed. The statement should have been ruled inadmissible.

Mr. Lakha submitted in this appeal in effect that P.W.3 was not a credible witness as the judge could not believe part of his evidence when he stated in his ruling made in the trial within a trial:—

> I am prepared to find, in favour of the accused, that it is most unlikely that Mkali was not aware of the connection between this accused with the other two. It is also unlikely that he would have forgotten the gist of what the other two had said, which is not to say he would necessarily have remembered the precise contents. Having said that, however, and having watched the accused, articulate ex-civil servant, and assessed him I am satisfied beyond doubt that he was told by Mkali what Mkali was and that he, on his own volition told his story to Mkali. I do not believe that the Justice of the Peace would have merely copied from some statement or notes allegedly taken to him by the Police.

It is apparent that the learned judge rejected part of the testimony given by P.W.3 in the trial within a trial, but it is apparent also that the learned trial judge took into account the evidence on both sides including the demeanour of the first accused and was of the view that the demeanour of the first accused was consistent with the part of P.W.3's evidence which the learned trial judge accepted. On that basis the learned trial judge came to the conclusion that the extra-judicial statement tendered at the trial as Exhibit P.2 was voluntarily made by the first accused to P.W.3.

We are of the view that the learned trial judge was not wrong in adopting this approach which took into account both the demeanour of the first accused and the testimony of P.W.3. We therefore find, like the learned trial judge, that Exhibit P.2 was voluntarily made by the first accused to P.W.3.

In Exhibit P.2 the first accused stated in effect that he, assisted by the second and third accused, broke into the armoury at the game reserve scouts camp and stole five guns therefrom. Subsequently, when the police search party confronted the first accused in the bush, the latter discharged his gun once towards his pursuers and then ran away, arriving eventually at the home of P.W.4, where he stayed overnight until the following day when he left for Dar es Salaam, leaving his gun and a number of ammunition behind at P.W.4's home.

It is apparent that this statement amounts to a confession but since the first accused at his trial in the High Court denied making it, it must be treated in law as a repudiated confession. What difference then does this repudiated confession make on the case against the first accused? It has long been an established rule of practice in East Africa, including this country, that a repudiated confession, though as a matter of law may support a conviction, generally requires as a matter of prudence corroboration as is normally the case where a confession is retracted.

In the case of **Tuwamoi v. Uganda** [1967] E.A. at p.91 it is stated:—

> The prosecution must first prove that this confession has been properly and legally made. The main essential for the validity of a confession is that it is voluntary, but the other legal requirements of each territory must also be established. Thus in Uganda if the confession is made to a police officer then it must have been made to an officer of the rank of corporal or upwards and also in accordance with the Evidence (Statement to Police Officers) Rules, 1961. If the court is satisfied that the statement is properly admissible and so admits it, then when the court is arriving at its judgment it will consider all the evidence before it and all the circumstances of the case, and in doing so will consider the weight to be placed on any confession that has been admitted. In assessing a confession the main consideration at this stage will be, is it true? And if the confession is the only evidence against an accused then the court must decide whether the accused has correctly related what happened and whether the statement establishes his guilt with that degree of certainty required in a criminal case. This applied to all confessions whether they have been retracted or repudiated or admitted, but when an accused person denies or retracts his statements at the trial then his is a part of the circumstances of the case which the court must consider in deciding whether the confession is true.
>
> The legislatures in these countries have recognized the very danger that exists of confessions being improperly obtained or indeed of being deliberately falsified and have laid down the standard required and the various safeguards applicable. The courts have also been alive to this danger and have by numerous decisions over the years stressed the caution to be exercised by trial courts, and it is from these decisions that the present rule of practice or prudence has evolved. But this rule does no more than stress the care with which a court should act in dealing with a confession.
>
> We would summarise the position thus – a trial court should accept any confession which has been retracted or repudiated with caution, and must before founding a conviction on such a confession be fully satisfied in all the circumstances of the case that the confession is true. The same standard of proof is required in all cases and usually a court will only act on the confession if corroborated in some material particular by independent evidence accepted by the court. But corroboration is not necessary in law and the court may act on a confession alone if it is fully satisfied after considering all the material points and surrounding circumstances that the confession cannot but be true.

In the present case the learned trial judge apparently was not fully satisfied about the truthfulness of the extra-judicial statement made by the first accused, as he felt that there were false parts in the statement when he stated in his judgement:—

> The extra-judicial statements were retracted/repudiated and I am aware of the danger of relying on them. I believe, however, that they were all voluntary and basically true, with false portion in the first Accused's which is severable. There are in any event pieces of corroborative evidence, as I shall proceed to show.

The learned trial judge subsequently treated the testimony of P.W.4 as corroborative evidence. This testimony however concerns only the arrival and overnight stay of the first accused at P.W. 4's house at Kilombero and concerns the gun and ammunition left behind by the first accused at P.W.4's house. The question arises whether the testimony of P.W.4 considered together with the gun and ammunition can be said to implicate or connect the first accused to the killing of Police Constable Zacharia.

It is apparent that there were many armed people at the scene where Police Constable Zacharia was shot and that many guns were discharged at the material time. Furthermore, it is apparent that the first accused made no statement to P.W.4 linking him with the shooting of Police Constable Zacharia. In that situation, in so far as this part of the evidence adduced by the prosecution is concerned, we have to consider whether the gun left by the first accused at P.W.4's house was the weapon used in shooting Police Constable Zacharia. This is the only way by which the first accused may be connected to the killing of Police Constable Zacharia.

It is the obvious line of investigation which the police were expected to pursue. Unfortunately, the police for incomprehensible reasons, did not do what they could have easily done, that is make arrangements for ballistic tests to establish the connection, if any, between the gun and the bullets retrieved from the body of the deceased as well as the catridges if any, found at the scene of the shooting. As matters stand, it is impossible to say that the gun left by the first accused at the home of P.W.4 was used in shooting Police Constable Zacharia. There were many armed persons at the scene at the material time and anyone could have either accidentally or deliberately shot the deceased. We are of the view therefore that this part of the evidence does not corroborate the repudiated confession.

We have tried to look for any other evidence to corroborate the repudiated confession and we are unable to find any. Undoubtedly, the second and third accused in the extra-judicial statements allegedly made by them to P.W.3 implicated the first accused in the shooting of the deceased. But these statements, which were tendered at the trial as Exhibits P1 and P3 do not amount to confessions. They are exculpatory statements in which each of the accused clears himself and shifts the blame to the first accused. It is dangerous to rely on such exculpatory statements, and for that matter, it has long been an established rule of law in East Africa, including in this country, that an exculpatory statement made by one accused cannot be used to incriminate another accused person.

In the case of **Wilbald s/o Tibanyendela v. Rex** 15 E.A.C.A. at p.117 the Court of Appeal for Eastern Africa, in a case originating from this country, stated as follows:—

> When therefore an accused person has made an exculpatory statement at an early date, evidence of that statement ought to be given in court. It is of course only evidence in favour of the maker, and cannot be used as evidence against anybody else, but as evidence in favour of the maker it will sometimes carry a good deal of weight with a trial Court.

The rule was re-stated by the same Court in the case originating from Uganda, namely, the case of **Mali Kiza s/o Lusota v. Rex** 8 E.A.C.A. at p. 26 where it was stated:—

> As to this we would observe that the confession in this case could never be used against the appellant's co-accused for the reason that the maker of the confession (which as we have said was not a confession of murder) not only exculpated himself but threw the whole blame for the death of Blasio on one of his co-accused.

The Rule has been repeated in many other cases including the case of **Anyangu v. R.** [1968] E.A. pp. 299—240 originating from Kenya, where the Court of Appeal for East Africa stated in effect that an exculpatory, statement is only evidence against the maker and cannot be used against his co-accused.

On the basis of this rule, the exculpatory statements made by the second and third accused cannot be treated as evidence corroborating the repudiated confession of the first accused.

In the absence of corroborating evidence, and since the learned trial judge was not fully satisfied with the truthfulness of the repudiated statement of the first accused, we are unable to uphold the conviction of the first accused. This means the appeal is allowed, the conviction is quashed, the sentenced is set aside with the direction that the appellant be released from custody forthwith unless otherwise detained therein for some lawful cause.

Appeal allowed.

JOHN NYAMHANGA BISARE v. REPUBLIC (NYALALI, C.J.)

JOHN NYAMHANGA BISARE v. REPUBLIC

[COURT OF APPEAL OF TANZANIA AT MWANZA (NYALALI, C.J.)

Mwakasendo and Makame, JJ.A.)]

CRIMINAL APPEAL 29 OF 1979

Criminal Law – Murder – Plea of self-defence – Use of excessive force – Accused honestly and reasonably believed he was defending himself – Whether coviction of murder or manslaughter.
Criminal Law – Murder – Plea of self-defence – Use of excessive force – Accused honestly and reasonably believed he was defending himself – Test of honest and reasonable belief – subjective.
Evidence – Onus of proof – Excessive and lethal use of force – Onus rests throughout on the prosecution.
Police Force Ordinance – Application to peoples' militia.

The appellant, a member of the peoples' militia, was convicted of the offence of murder. The appellant and another person were assigned to trap and arrest a policeman who had solicited for a bribe. After receiving the bribe the deceased and another policeman were ordered by the appellant, who was armed with a semi-automatic rifle, to put their hands up. The deceased, instead of obeying the order, with his hands in his pockets, advanced towards the appellant who, after the first warning shot, then shot the deceased causing his death.

The trial judge charged the assessors that if in their opinion the shooting was deliberate then they should find the appellant guilty of murder; but if the shooting was accidental then they should find the appellant not guilty and advise his acquittal.

On appeal it was argued for the appellant that the trial judge erred in law in not considering the defence of self-defence which, if accepted, might have reduced the appellant's conviction from murder to one of manslaughter if excessive force was used. It was further argued that the trial judge should have held on the evidence, that the appellant was in the circumstances of the case justified in apprehending a danger to his life necessitating the shooting of the deceased.

Held: (i) where an accused person honestly and reasonably saw himself as defending himself, but used exessive force, the issue is manslaughter or acquittal not murder or manslaughter or acquittal [The principle in **McKay** and **Howe** followed] ;

(ii) in determining whether the accused had honest and reasonable belief that he was defending himself he is to be judged not on the facts as they were but on the facts as he reasonably believed them to be [The principle in **Rose** (1884) 15 Cox C.C. 540, followed] ;

(iii) although the appellant was entitled to use force in excercise of his undoubted right of self-defence he used more force than was reasonably necessary in the circumstances;

(iv) if the prosecution have to get a murder conviction they must prove that the accused was not acting in self-defence or if they were to get a conviction of manslaughter, prove that the accused, though acting in self-defence, exceeded the limits of self-defence by using excessive force;

(v) the provisions of s.29 of the Police Force Ordinance applies to armed members of the peoples militia whenever they are engaged in police duties.

Conviction of murder reduced to one of manslaughter.

Cases referred to:

(1) **McKay** (1957) V.R. 560.
(2) **Howe** (1960) Crim. L.R. 468.
(3) **Bufalo** (1958) V.R. 363.
(4) **Haley** (1959) W.N. (N.S.W.) 550
(5) **Colin Chisam** 47 Cr. App. R. 130.
(6) **Biggin** [1920] 1 K.B. 213.
(7) **Weston** (1879) 14 Cox C.C. 346.

(8) **Symondson** (1896) 60 J.P. 645.
(9) **The State v. Marshall** 208 N.C. 127, 179 N.E. 427.
(10) **John v. The Queen** (1966) 10 W.I.R. 402.
(11) **Reg. v. Hamilton** (1967) 11 W.I.R. 309.
(12) **Palmer v. The Queen** [1971] A.C. 814.
(13) **R.v. McLnnes** [1971] 3 All E.R. 295.
(14) **R.v. Hassin** (1963) Crim. L.R. 853.
(15) **Packer v. Packer** (1954).
(16) **Nyali Ltd. v. Attorney General** [1955] 1 All E.R. 646.
(17) **Manani** [1935] A.C.462.

Rugarabamu for the appellant.
Loomu-Ojare for the respondent.

December 1, 1979. MWAKASENDO, J.A., read the following considered judgment of the Court The appellant, a member of the Peoples' Militia, was convicted by the High Court of Tanzania sitting at Musoma of the murder of one P.C. RASHIDI OMARI MTALIKA, a member of the Police Force. The appellant, on 10th August, 1976, together with P.W.7 MBELWA ATHUMANI MBELWA, a court clerk and also a member of the Peoples' Militia, acting on instructions from their Commanding Officer one Lt. MAKORI (P.W.3) proceeded to Kawawa Street near the shop of a local dukawala one MWITA SAA SITA and took positions outside the shop so that they could observe any one entering and leaving the shop without themselves being seen. They were instructed to observe particularly if P.C. George Kitanda and any other officer accompanying him entered the shop. The object of this exercise, as we are told, was to trap and arrest P.C. George Kitanda and any other officer accompanying him for soliciting and receiving a bribe from MWITA SAA SITA. In the evening of the same day P.C. George Kitanda and the deceased were seen entering the shop of MWITA SAA SITA and after a short time were observed leaving the shop walking away in the direction of Furaha Hotel. However, before the two suspects had gone far from the steps leading to the shop the appellant appeared running behind them. He had apparently been in the shop when the two suspects visited it. The appellant then ran in front of the two suspects and ordered them to put their hands up. He was armed with a semi-automatic rifle. After this, events appear to have moved exceedingly fast. P.W.7, P.W.13 and the appellant give differing versions of the events which led to the death of P.C. RASHIDI OMARI MTALIKA. To these accounts we will now turn. MBELWA ATHUMANI MBELWA (P.W.7) in what appears to be a fairly and evenly balanced account of the events preceding the shooting of the deceased by the appellant seems to suggest that the appellant shot the deceased because he was apprehensive that the deceased who was advancing towards him would grab the gun he was holding and shoot him. Presumably that would explain the appellant's "odd" behaviour of moving backwards as the deceased was advancing towards him. MBELWA's evidence in so far as it relates to the shootins is as follows:—

> Before I heard the gun shot I saw P.C. George standing behind the deceased. The deceased was moving towards the accused with both his hands in his coat pockets. He continued moving even after the first gun shot. After hearing the gun shot I blew my whistle again. When I arrived at the place where the men were, I ordered P.C. George to sit down and put up his hands. He obeyed but as he took out his hands from his pockets, some money dropped from his pockets, it was the left pocket. Then I heard a second gun shot, the deceased was about four paces from the accused. The accused was going backwards the two of them appeared to be moving in the same direction, the deceased towards the accused. The deceased's hands were still in his pockets. The deceased was dressed in Field Force trousers and police boots.

In cross-examination MBELWA gives what in his opinion must have prompted the appellant to shoot the deceased when he did. He says:—

> When I heard the first gun shot, I was about 20 paces from the accused and the deceased. About three minutes later I heard the second shot. The deceased was advancing towards the accused. I cannot tell with what motive as he had his hands in his pockets, but as he had not stopped as directed, he might have intended to take the gun from the accused.

P.C. GEORGE PETER KITANDA (P.W.13) also described the events leading to the deceased's death in some detail. His account runs as follows:—

> Along Kawawa Street as we were passing near the shop of Stephen Mwita Saa Sita, Saa Sita called the deceased and asked him to come into his shop. The deceased went into the shop, I climbed up and remained on the verandah. Then I heard the deceased say "Kwa heri" – good bye and that he would see him the following day. I did not hear any other piece of conversation apart from the parting words good-bye. I never myself went into the shop. The deceased then came out after bidding goodbye to Saa Sita. While the deceased was in the shop nobody else entered. Before the deceased reached up to where I was, I saw someone run out of the shop. This man came to us and rounding us he faced us. He ordered us to raise our hands up, in other words he gave the order 'hands up'. I immediately thereafter heard a gun shot. When this man faced us I knew and recognised him to be John the accused. I knew him before this. The accused came from behind me. When the accused shouted 'hands up' he was very near to us. Both of us were facing the accused. After hearing the first gun shot I raised my hands up and soon thereafter another shot rang out. The deceased did not put up his hands. They were in the pockets of his coat. The second gun shot went off while my hands were still up. After the second shot, with his hands still in his pockets, I saw the deceased leap and fall down. The deceased was about five or six paces from the accused. The deceased fell on his face. I kept my hands up. Then the accused ordered me to sit down but with my hands up and that I should not move. He was pointing the gun at me. I obeyed as directed. Then I saw Mwita Saa Sita standing at the door of his shop.

We may at this point remark in passing that we find it completely inexplicable why the prosecution did not deem it fit and their duty to call Stephen Mwita Saa Sita to give evidence at the trial. As he appears to be the prime mover of the events that resulted in the death of the deceased it is our view that a number of matters arising in this case that are now left to the imagination would have been clarified if Mwita Saa Sita had been called to give evidence.

Be that as it may, P.C. George in answer to questions put to him in cross-examination elaborated some of the points he had made in his examination-in-chief:—

> While I was sitting on the verandah on the steps I did not hear what Saa Sita and the deceased were talking. They must have been talking in low tones. I heard the deceased bid Saa Sita goodbye. The accused ordered me to sit down after killing the deceased. The second gun shot went off soon after the first. I do not know why the deceased did not obey the order to put his hands up. The deceased had his hands in his pockets all the time.

And then we turn to the appellant's version of the events leading to the deceased's death. His account runs as follows:—

> I remember on 18/8/76 we were detailed to perform some duties. This involved the arrest of policemen who were suspected of planning to receive a bribe. At about 12 noon, my colleague in the Militia namely Mbelwa Athumani, and I as well as Lt. Makori and Sgt. Twaha proceeded to the shop owned by one Stephen Mwita Saa Sita. The two of us, i.e., Mbelwa and myself were introduced to Mwita Saa Sita. We were told that Mwita Saa Sita is the shopkeeper who was scheduled to give a bribe. We were also introduced to him to be the people who will effect the arrests. Mwita told us that the currency notes involved had been noted down. He told us that the two policemen were scheduled to arrive at his shop at 5 p.m. We then parted.
>
> On 19th we were directed by Lt. Makori to proceed with the assignment given to us the previous day. That day at 4 p.m., we went and took our positions near the scene. My colleague Mbelwa positioned himself at a drift near the RTC shop. I positioned myself inside the shop. I hid myself behind a refrigerator. At 6.30

> p.m., two policemen entered the shop. Mwita Saa Sita told them that they had done well to arrive because he was about to close his shop. He told them that he would give them the money right away, all he wanted them to do was to help him so that this matter ended. At that point a customer entered who asked to buy a paper bag. He was told that they were not in stock. The customer asked for any kind of paper to wrap his things. This was given to him. Mwita Saa Sita then continued to say that as a person belonging to their age group of young people he expected assistance from them. If not he would blame them for he was giving out a lot of money. P.C. George then told him not to worry. Mwita Saa Sita then took out four one hundred currency notes and gave them to George who received the money with his right hand. His colleague was on his left just behind him. Then George said goodbye to the shopkeeper. They both turned to go out. Then I dashed from my hiding place to follow them. By the time I caught up with them they were in the middle of the road. I ordered them to put their hands up and sit down. They all turned upon me and started coming towards me. I ordered them to sit down. They did not, but continued coming towards me. I then fired one warning shot. Then George sat down. But the deceased came to me and attempted to take away the gun from me. I was at the time holding the gun at 45° position. The deceased hit the gun upwards while holding it, but I pulled it downwards. As I did so, a bullet came out and hit the deceased. At the time I did not know where the deceased had been hit. Then I saw Copl. Jackson with a lot of other policemen. George was at the time sitting down. At the place where the deceased had fallen down I saw currency notes. Copl. Jackson told me to remain as I was until the OCD was called. On that day Copl. Fabian was our section commander. He had told me that he would be staying at Kilimambogo Hotel with Jackson.

Mr. Rugarabamu, learned counsel for the appellant, in a brief and forceful argument urged us to hold that the learned trial judge erred in law in not charging the assessors and presumably addressing his own mind to one other possible defence to the charge of murder that the appellant could avail himself – that is self-defence, which if accepted by the trial tribunal might well have reduced the appellant's offence from murder to one of manslaughter if excessive force was used. Mr. Rugarabamu further submitted in this connection that the learned trial judge had a duty in law to consider if the evidence adduced by the appellant when considered in the light of the evidence given by MBELWA, was such as could entitle the Court to hold that the appellant was in the circumstances of the case justified in apprehending a danger to his life necessitating the shooting of the deceased. With respect, we think there is some validity and substance in this criticism. The learned trial judge ended his charge to the assessors in these words:—

> Gentlemen Assessors in these circumstances you may think it safe to consider only the evidence of Athumani Mbelwa and P.C. George Kitanda. If you accept the evidence of these witnesses that the deceased was shot while he was four to five paces from the accused so that there could not have been any struggle for the gun and the deceased knocking it out of the accused's possession, then you will find that the shooting of the deceased was deliberate and that his killing amounted to murder. You will then find the accused guilty as charged and advise his conviction. On the other hand, if you accept the defence version as narrated by the accused that the gun went off accidentally as the deceased tried to take it away from him, you will find the accused not guilty and advise his acquittal.

This direction is impeccable in so far as it relates to the defence of accident. However, the issues disclosed by the evidence on record were not as simple and straightforward as that. This was not, in our view, a case of either accident or murder with no half-way house defences available for the appellant's benefit. We think on a proper view of the evidence on record it was open to the appellant and incumbent upon the trial Court to determine if the appellant had any reasonable grounds for supposing or believing his life to be in danger thus necessitating his killing of the deceased. In this regard it seems to us on the authorities that the expression "reasonable grounds for believing" means no more than that an accused person must introduce some evidence of fact from which the Court can conclude that his belief was honestly formed.

With that said, we are still left to consider whether on the authorities as there are it is open to a Court to convict an accused person for manslaughter where the charge is murder and the accused has put forward a defence of self-defence or is the Court of trial left with only two courses open to it, either to convict for murder if not satisfied that he was acting in self-defence or to acquit him if so satisfied. Professor Norval Morris in an illuminating article published in (1960) Crim. L.R.. 468 discusses the questions under consideration with reference to Australian, Canadian and English authorities and concludes that where a person in the exercise of his right to self-defence uses excessive force he is liable to be convicted of manslaughter and not murder. Professor Norval Morris states the problem that confronts us in these words:

> Defined rights to protect himself by the use of force are accorded to one whose life or bodily safety is illegally threatened; otherwise, force may lawfully be used to prevent the commission of a violent or atrocious crime and probably of any felony, to arrest the felon, to protect the bodily safety of third persons, and to protect property. All these various rights are classified and described with some precision in the extensive case law of the common law of crime; but the criminal liability of one who exceeds the limits of justification or excuse and in doing so kills has until recently been largely ignored. Is he a murderer? Or is he guilty of only manslaughter? The answer to these questions is – on the Australian authority – that 'if the occasion warrants action in self-defence or for the prevention of felony or the apprehension of the felon but the person taking action acts beyond the necessity of the occasion and kills the offender the crime is manslaughter – not murder. See the judgement of Lowe J. in **McKay** (1957) V.R. 560 at 561.

The case of **McKay** to which Professor Norval Morris refers in the passage set out supra was tried before Mr. Justice Barry of the Victoria Supreme Court. McKay worked on his father's poultry farm. For some time there had been persistent thefts of poultry from the farm, evidence being given that in the preceding three years one thousand chickens had been stolen. McKay had diligently tried to prevent these thefts and once captured a chicken thief who, upon trial, was convicted and fined £10. Early one morning McKay was, in his own view, fortunate enough to discover a thief on the premises. McKay got his rifle, sneaked up on the thief,rested the rifle on the top strang of a wire fence, and fired five times, killing the thief. McKay told the police that he intended only to wound the intruder and offered the legally fascinating proposition that "I consider I am entitled to wound a man who was stealing fowls on my property, especially when we have notices up 'Trespassers Prosecuted'. These facts are to be found at page 469 of Professor Norval Morris' article Mr. Justice Barry in directing the jury told them that excessive force used in protecting property, or preventing a felony, or arresting a felon, or a combination of these rights, should lead to a conviction of manslaughter and not murder. His charge to the jury was accepted on appeal to the Victoria Court of Criminal Appeal and special leave to appeal was refused by the High Court of Australia.

Another Australian case in which the principle discussed by Professor Norval Morris has been held to be valid law is the case of **Howe.** Howe killed one Millard, who according to Howe, had made a homosexual attack on him. Howe said that he had pulled himself free from such an attack when they were standing in front of Howe's car, which was parked in a secluded spot, and that he then ran back to the car and upon opening the door saw protruding from under the front seat the butt of a loaded rifle which he had put there but had forgotten. He took the rifle and shot Millard, who was then standing about eight or nine yards away with his back to Howe. Howe gave evidence that he believed that the attack on him had been of a sodomitical character, that Millard was somewhat stronger than himself and that he doubted that he could keep him off with his hands, and that he fired intending to stop further attacks and not thinking at all whether he was likely to kill Millard. He said it did not occur to him to get into the car and drive off. The trial judge, Mr. Justice Ross of the South Australian Supreme Court, directed the jury that upon this evidence they could find manslaughter instead of murder on the ground of provocation but he gave no other direction about manslaughter. On the issue of self-defence, apart from provocation, he told the jury that if the force used was excessive then the evidence afforded no defence at all. On appeal from a conviction of murder, the High Court of Australia and the South Australian Court of Criminal Appeal were of the view that it was the trial judge's duty to direct the jury that if they believed Howe's story, but regarded the defensive force he had used as excessive, they should convict him of manslaughter – See (1960) Crim. L.R. 468 at 569 and 570 and (1958) S.A. S.R. 95; 32 A.L.J.R. 213 and See Professor Colin Howard's article "Two Problems in Excessive Defence" (1968) 84 L.Q.R. 343.

Dixon C.J. in his judgement at pp. 460 – 461 stated that the law on the subject was as follows:

> Had he used no more force than was proportionate to the danger in which he stood, or reasonably supposed he stood, although he thereby caused the death of his assailant he would not have been guilty either of murder or manslaughter. But assuming that he was not entitled to a complete defence to a charge of murder, for the reason only that the force or violence which he used against his assaillant or apprehended assaillant went beyond what was needed for his protection or with the circumstances could cause him reasonably to believe to be necessary for his protection, of what crime does he stand guilty? Is the consequences of the failure of his plea of self-defence on that ground that he is guilty of murder or does it operate to reduce the homicide to manslaughter? There is no clear and definite judicial decision providing an answer to this question but it seems reasonable in principle to regard such a homicide as reduced to manslaughter, and that view has the support of not a few judicial statement to be found in the reports.

Menzies J's view of the law was stated at p.477 as follows:—

> I have reached the conclusion that the law is that it is manslaughter and not murder if the accused would have been entitled to acquittal on the ground of self-defence except for the fact that in honestly defending himself he used greater force than was reasonably necessary for his protection and in doing so killed his assailant.

The doctrine in **Howe** has been accepted and followed in other Australian cases – See the **Bufalo** and **Haley** cases reported at (1958) V.R. 363 and (1959) W.N. (N.S.W.) 550, respectively. The decision in **Howe** is of course not new. There is, as Professor Norval Morris says, a wealth of supporting case law in England (See – *Colin Chisamn*, 47 Cr. App. R. 130, *Biggin* [1920] 1 K.B. 213; *Weston* (1879) 14 Cox C.C 346, *Symondson* (1896) 60 J.P. 645; Canada; the United States of America (See *The State v. Marshall.* 208 N.C. 127, 179 N.E. 427); Trinidad and Tobago (See *Johnson v. The Queen* (1966) 10 W.I.R. 402); and Jamaica (See *Reg. v. Hamilton* (1967) 11 W.I.R. 309). Although there are extensive English authorities on this subject which were referred to and considered in the four Australian cases, three recent cases decided by the Privy Council (See *Palmer* v. *The Queen* [1971] A.C. 814 on appeal from the Court of Appeal of Jamaica) and the Court of Appeal of England, Criminal Division (See **R.v. MacInnes** [1971] 3 ALL E.R. 295; and **R.v. Hassin** (1963) Crim. L.R. 853) show that the English Courts do not accept these old English authorities as laying down any doctrine or principle of the kind enunciated in **Howe.** While we have the greatest respect for the decisions of the two English tribunals we are not in the present case persuaded that the reasons given by the Privy Council and Court of Appeal of England, Criminal Division, for rejecting the doctrine in **Howe** that is on the ground of its "novelty at the present time" (See **R.v. Hassin**) or on the ground of it being "refinements of self-defence" – See **Palmer v. The Queen,** can be a profound reason for rejecting a doctrine which is a sound principle of justice and good sense supported by abundant persuasive authorities in other common law jurisdictions. Lord Denning, Master of the Rolls, in his characteristic style has warned us of the danger to the development of the law if judges refuse to adopt a new legal principle on account of its novelty.

> What is the argument on the other side? Only this, that no case has been found in which it has been done before. That argument does not appeal to me in the least. If we never do anything which has never been done before, we shall never get anywhere. The law will stand still whilst the rest of the world goes on: and that will be bad for both. See **Packer v. Packer** (1954) p. 15 at 22.

In 1955 in *Nyali Ltd. v. Attorney General* [1955] 1 ALL E.R. 646 p. 653 Lord Denning again warned judges especially those in ex-British African colonies of the danger of transplanting principles of the Common Law to foreign lands irrespective of their utility to those lands. We can but benefit immensely if we heed his forthright warning:

> This wise provision should, I think, be liberally construed. It is a recognition that the common law cannot be applied in a foreign land without considerable qualification. Just as with the English Oak, so with the English Common Law. You cannot transplant it to the African continent and expect it to retain the tough character which it has in England. It will flourish indeed but it needs careful tending. So with the

> common law. It has many principles of manifest justice and good sense which can be applied with advantage to peoples of every race and colour all the world over: but it has also many refinements, subtleties and technicalities which are not suited for other folk. These off-shoots must be cut away. In these far off lands the people must have a law which they understand and which they will respect. The common law cannot fulfil this role except with considerable qualifications. **The task of making these qualifications is entrusted to the judges of these lands. It is a great task. I trust that they will not fail therein.**

One of the problems that the Australian courts had to grapple with in the four cases montioned above was how to distinguish the decision of the House of Lords in the case of **Mancini** [1935] A.C. 462. Mr. Justice Menzies of the Australian High Court faced the problem squarely and resolved it by saying:—

> The trial judge (in Mancini) did not direct the jury that the use of excessive force in the course of self-defence would warrant or require a verdict of manslaughter and it is now said that the fact that this was not treated as an omission shows that such a direction was not necessary. I cannot accept this contention. The judgment of the Lord Chancellor was based upon the assumption that the jury rejected the prisoner's story that he was attacked with a knife and that this rejection left nothing beyond the possibility of an attack with hand or fist. It was not argued for the prisoner that he killed with his knife in defending himself against such an attack; what was argued and what was rejected was that such an attack could amount to provocation for the killing. It would, I think, be quite unsafe to regard **Mancini's** case in the way for which the Crown contended. The House of Lords was not dealing in any way with the problem that arises here.

Professor Norval Morris thinks that if the facts in **Mancini** were to recur and if the rule enunciated in **Howe** and **McKay** is good law, it will be open to the defence counsel to argue that:—

> Even if the accused was not justified on the grounds of self-defence (because he used a knife when the jury believed his assailants were not armed at all) and even if the accused's crime could not be reduced to manslaughter on the grounds of provocation (because the means he used were disproportionate to the provocation) yet he should be convicted only of manslaughter because he honestly and reasonably believed he was defending himself, even though he used disproportionate means in doing so. (ibid p. 472).

It should, however, be borne in mind that the principle enunciated in **McKay** and **Howe** is limited to cases where the accused bears no malice towards the person killed in self-defence. English law has always recognised this as the operative principle. In **Hawkins** (P.C. 8th ed. 79) we find the following statement of the operative principle:—

> There must be no malice coloured under pretence of necessity; for wherever a person who kills another acts in truth upon malice and takes occasion from the appearance of necessity to execute his own private revenge, he is guilty of murder.

For the principle to operate in favour of a party charged with murder, the party must in the words of **Foster** in his **Discourses of Homicide p. 289 (see (1958) Crim. L.R. 583 at 590) be:**

> ... entirely innocent, he hath gone no farther than nature leadeth, no further than duty, founded on the great law of self-preservation, will carry the wisest and the best men.

To summarise, it is clear from the foregoing discussion of the principle in **McKay** and **Howe** that Ausralian courts have applied the principle laid down in these cases to self-defence, the defence of others and the defence of property. The principle has also been applied to excessive and lethal force used in preventing

crime or arresting criminals. On the principle of **McKay** and **Howe** it seems clear to us that where an accused person honestly and reasonably saw himself as defending himself, the issue is manslaughter or acquittal, not murder or manslaughter or acquittal. The accused is judged not on the facts as they were but on the facts as he reasonably believed them to be – **See Rose (1884) 15 Cox C.C. 540.**

On whom, then, lies the onus and burden of proof in cases of excessive and lethal use of force. It seems to us well established on the authorities that the onus and burden of proof as in all criminal prosecutions lies on the prosecution to establish their case beyond reasonable doubt. If the prosecution has to get a murder conviction it is incumbent upon it to prove that the accused was not acting in self–defence or if it was to get a conviction of manslaughter, prove that the accused, though acting in self–defence, exceeded the limits of self–defence as regards the means of force he used.

Is the principle in **McKay** and **Howe** good law which is applicable to Tanzania Mainland? We think the principle enunciated in **McKay** and **Howe** is in the words of Lord Denning a principle of manifest justice and good sense which in our considered view should apply to Tanzania Mainland. It is, we feel, good law because, as Professor Norval Morris has suggested, it accords with our society's sense of justice. For as Group Captain J.T. Lowe has appropriately remarked:

> It is hardly worth remarking that to convict a man of murder, who did not possess the heart bent on mischief – mala mens ... regardless of social duty would be a melancholy state of affairs.

See article by Captain J.T. Lowe – Murder and the Reasonable Man (1958) Crim.L.R. 453 at p. 460.

Professor Norval Morris expresses the same idea in these words:—

> Finally, it is a mistake to assume that the existence of such a qualified defence will always favour accused persons. It may have the contrary effect. It may well be less of a 'Gangster's Charter' than a wise technique whereby wrongdoers, who would otherwise have been acquitted, are convicted of manslaughter, and thus may help to affirm in the criminal law that reverence for life which is the fundamental requirement of a civilised community. (ibid p. 477).

Before reverting to a further discussion of the submissions canvassed in this court on the appellant's behalf by Mr. Rugarabamu we wish to deal briefly with the reasons why we think the principle in **McKay** and **Howe** is part of the law of crime of Tanzania Mainland. Any discussion about this matter must, however, start with a consideration of the relevant provisions of our Penal Code, Cap. 16. A glance at our Penal Code discloses that ss. 18 and 19 of the said Code are the appropriate and relevant provisions for the purpose of our present inquiry. S. 18 of the Penal Code provides:—

> 18. Subject to any express provisions in this Code or any other law in operation in Tanganyika criminal responsiblity for the use of force in the defence of person or property shall be determined according to the principles of English law.

And s. 19 reads:—

> 19. Where any person is charged with a criminal offence arising out of the arrest, or attempted arrest, by him of a person who forcibly resists such arrest or attempts to evade being arrested, the court shall, in considering whether the means used were necessary or the degree of force used was reasonable for the apprehension of such person, have regard to the gravity of the offence which had been, or was being, committed by such person and the circumstances in which such offence had been, or was being, committed by such person.

This Court is of course aware that by the new amendment introduced by the Legislature to s. 4 of the Penal Code we are now to be guided by the principles of natural justice in interpreting the provisions of the Code. However, since this Court is not aware of any principles of natural justice which are concerned with rules of legal interpretation we think the intendment of Parliament in introducing the new amendment in s.4. of the Penal Code was no more than to underscore the need of our Courts to be free to adopt well recognised principles of the English Common Law to fit our own peculiar local environment. We

Chacha slashed his wife with a panga several times and that she died on the spot. The attack was severe and blood-chilling, involving, **inter alia,** the virtual severance of the throat and the cutting of the carotid arteries and the jugular veins. The trial Court rejected the appellant's plea that the admitted killing was not with malice aforethought. The appellant was accordingly condemned to death.

The spouses had been living in a house of which P.W.2 Ziada Mohamed was the caretaker and the killing took place in the spouses' bedroom around midnight when P.W.2 was the only other person inside the house. She testified to opening the door for the couple and to the appellant's enquiring after the other male tenants in the house. She told him that no other male was in the house. In fact there was only Felix, the son of the landlord, sleeping in a smaller back house. According to P.W.2, after the spouses had entered their room she only heard them conversing, and in their own language which she was unable to understand: from the tone of their voices they did not appear to be quarrelling. Later the witness was awakened by he appellant who told her "Mama mimi natoka". It is then that she went to the spouses' room and discovered the dead body of the deceased after she had failed to locate the appellant anywhere on the premises.

In his unsworn statement the appellant did not deny killing the deceased. He said, however, that the fatal assault followed a quarrel between him and the deceased. After they had entered their room he asked the deceased to cook the meat he had purchased earlier in the day, lest it went bad. She said she would not cook it because she was angry with him, and added that she had other men who were better than he was. Let the appellant now take up his own story:—

> I slapped her. She got out of the house and returned with a panga, saying she was going to kill me. She swore saying that if she does not do so, she had better go and sleep with her father. She was angry. I held her and took the panga from her. I was then angry and plus the pombe we had taken, cut her up. I saw her fall down, dead. I dropped the panga and left. I stayed out at a certain place and at 5 a.m. went to the police to surrender myself. That is all.

What emerged from the appellant's version therefore were defences of Provocation and Drunkenness. The learned trial Judge also considered self-defence and rejected it, quite rightly in our view.

Mr. Butambala, learned Counsel, appeared before us to advocate for the appellant. He argued that the trial Court erred in finding that there was no quarrel between the deceased and the appellant as asserted by the appellant, and that therefore there was no provocation. Mr. Mchora, learned State Attorney, supported the finding of the trial Court.

The only person who could possibly tell whether or not the couple quarralled in their room was P.W.2, that is apart from the appellant. On a careful reading of P.W.2's evidence we are respectfully inclined to agree with Mr.Butambala that there is no clearly convincing evidence showing that the possibility of a quarrel, some quarrel, preceding the killing, can necessarily be excluded. There are in fact some indications, if we are to go by the language employed by the witness, as we must, that P.W.2's eyes yielded to the weight of sleep between her opening the door for the couple and the appellant leaving the house. We say this because the witness said the appellant **woke her up** to announce to her that he was going out. One cannot say she was **awakened** unless she had been sleeping. The learned trial Judge must have understood the witness to mean this also, that was why he said the witness had **fallen back to sleep,** not merely that she had gone back to bed. That being the case, we find it difficult to assert as did the learned trial Judge, that the spouses had not been quarreling. There is no evidence as to the tone and course of the verbal exchange and so we cannot say for sure that it would necessarly have been such that would necessarly have jolted P.W.2 from her sleep.

Having said that however, we still have to consider whether there was provocation such as would rob a reasonable man of his power of self-control and make him do what the appellant did in the circumstances. We rely on the appellant's own version on this and assume in his favour that he has told the truth as to what took place. He was annoyed by the deceased's remarks that was why he slapped her. That was enough answer to the deceased's words. Besides, he should also have taken into account that both his wife and himself had pumped themselves with an alcoholic drink for some hours so he should have expected some drunken reactions from her. She went out and returned with a panga and threatened to kill him. Even if one argues that the threat also annoyed the appellant, the annoyance should have ended the moment he disarmed her. There was also certainly no legitimate self-defence because there was at that stage nothing for the appellant to defend himself from.

The defence suggested, in effect, that in determining whether or not there was provocation due regard should be paid to the fact that the appellant was drunk. We agree that the appellant had been drinking and

that in all probability he was not particularly sober. We do not, however, agree that he was so utterly and absolutely drunk as to be unable to form the specific intent of killing or causing grievous bodily harm. The appellant demonstrated a clear re-collection of events that night, some of which were also testified to by P.W.2 and P.W.5. He related how P.W.5 Police Constable Nicholaus left the pombe shop at 8 p.m. leaving them there, which P.W.5 also said. He remembers his preceding remark about their having to drink their last and his convincing explanation about it. He remembers getting home and asking P.W.2 to open the door for them, his enquiring after his male co-tenants and his conversation with P.W.2 on that; and he gives a clear sequence of events thereafter up to the time he left the house after killing the deceased. We are not convinced that he was so inebriated as not to be able to form the necessary malice aforethought. The learned trial Judge correctly directed himself on this aspect of the issue of intoxication and we respectfully agree with him. He also ably dealt with the second limb of that defence–that account should be taken of the appellant's drunken condition in determining whether there was provocation. The learned judge aptly quoted the case of **Justo Odima v. R.**, (1941) 8 E.A.C.A 29 [C.A.] in which it was quite rightly observed that was "a propo sition that would lead to dreadful results." This Court has recently dealt with the matter and held that "...an accused person who pleads provocation under the influence of alcohol must stand in the shoes of an ordinary person of the community to which the accused belongs and must thus be judged by the standard of such ordinary person...." **Alphonce Philibert v. R.** Criminal Appeal No. 27 of 1979 (unreported).

In his judgement the learned trial Judge looked for factors establishing the appellant's malice aforethought. He found that the appellant's conduct that evening was inconsistent with absence of malice aforethought. This included his enquiring after the male co-tenants to make sure the coast was clear, as well as the nature of the attack and the behaviour immediately after the killing: to which we would respectfully add the appellant's covering the deceased's dead body with clothes. The killing came four days after the appellant was made to return the deceased's Savings Pass Book and promise to return the Shs. 200/- he had forcibly relieved the deceased of. It was not unreasonable to opine that the money dispute provided the motive.

We now wish to turn to Mr. Butambala's last complaint, that the gentlemen assessors who assisted the learned Judge were not persons of the appellant's community and so the learned Judge denied himself the necessary assistance. Mr. Butambala referred us to the case of **Yovan v. Uganda** [1970] E.A.L.R. 405 (C.A.).

In the present case the appellant is a member of the **Kuria** tribe in Musoma Region and so was the deceased. Mr. Butambala argued that assessors from the appellant's home district, conversant with the Kuria customs and habits, should have sat with the learned Judge. We are unable to accept Mr. Butambala's argument and these are our reasons:–

1. We wish to state quite categorically that, in our view, members of a Tanzanian's community are fellow Tanzanians, and not one's tribesmen. The average Tanzanian would understand how another Tanzanian would reasonably react in a particular situation. There would be the odd situation which would call for special knowledge of a particular cultural norm but such situations would necessarilly be few and far between. In the present case the main defence was provocation allegedly because the deceased had refused to cook and had uttered some words amounting to confessing to adulterous behaviour. The reasonable reaction would not be peculiarly Kuria in the circumstances.
2. Increased physical mobility and heightened national awareness are now shrinking distances and lowering parochial barriers in Tanzania. It would not be in keeping with the spirit of the day to go along with Mr. Butambala, quite apart from the practical difficulties and great expense that would be involved in getting tribesmen from one corner of Tanzania to another to sit as assessors. Imagine getting tribesmen from the extreme Southern end of Tanzania to sit as assessors in Bukoba where an accused person from the Makua tribe is on a charge.
3. In this particular case the appellant had lived in Bukoba for at least fifteen years. If you like, he had therefore been exposed to another tribal culture for long enough to react like a Bukoba man. The gentlemen assessors were evidently people from that area and so the appellant was among his pears.
4. In any event, at the beginning of the hearing, on 15th October, 1979 Mr. Rweyemamu, learned Defence Counsel, said that he would raise the defence of provocation and was prepared to proceed without the aid of assessors from the Kuria tribe.

by the judgement and decree of the trial Court and hence this appeal to this Court. The appeal was conducted by Mr. Ngalo, learned advocate from a firm of M/S D'Souza, Ngalo & Company, advocates, of Arusha. The respondent who was duly served with notice of the appeal did not appear but wrote to this Court requesting permission of the Court for one C.J. Rengia to appear on the respondent's behalf under a power of attorney, or in the alternative the Court to proceed with the hearing of the appeal in the absence of the respondent. The respondent's request to be represented by a person holding a power of attorney cannot be entertained by virtue of r. 28 of the Tanzania Court of Appeal Rules, 1979, which provides under sub-rule 2 for appearance of authorised attorneys only where the party concerned is not resident in the United Republic. In the present case the party concerned, that is the respondent, is resident in the United Republic and cannot therefore be represented by an attorney.

While on this point, it is apparent that the said C.J. Rengia appeared on behalf of the respondent at the trial in the High Court, apparently in the exercise of a power of attorney. It is also apparent that in the course of the trial the respondent herself appeared to give evidence on her behalf, after an objection by the advocate for the appellant was over-ruled by the learned trial judge. I am not aware of any provision of law permitting the conduct of a case by a person holding the power of attorney where the party concerned is also present in court. The learned trial judge, undoubtedly, was wrong to permit the said C.J. Rengia to appear in the case.

I am also aware that this particular person has made various appearances in various other cases in the subordinate courts at Moshi and the High Court at Arusha. He appears to be presenting himself to the public as an advocate. It is, therefore, not out of place to point out to the courts below of the need to put to a stop to the unlawful activities of this person, should occasion to do so arise.

To come back to the facts of the case, it is evident from the proceedings in the High Court that the following primary facts are not in dispute between the parties: that the appellant is a brother-in-law of the respondent, who got married to the appellant's brother, who later died on the 6th November, 1970; that the respondent is the second wife of the deceased who was also survived by his first wife and a number of children; that the deceased husband of the respondent died intestate and left behind various properties and business in Moshi and Arusha; that the respondent was resident in Moshi whereas the first wife of the deceased was resident in Arusha at the time of the death of the deceased; that after the death of the deceased a meeting of clan members was held on the 16th November, 1970, to discuss the estate of the deceased and related matters, with the result that D.W.3, that is, Jackson Moiro, was appointed to look after the deceased's estate as well as the children and wives of the deceased as required under the customary law of the parties concerned.

Furthermore, there is no dispute that neither D.W.3 nor any one else took out any letters of Administration of the deceased's estate; and that the respondent and her co-wife refused to be inherited by D.W.3; that a second clan meeting was thereafter called to consider the problem concerning the deceased's estate; that the problem was not finally resolved but the appellant went to live with the respondent at Moshi; that subsequently the respondent wrote a letter tendered at the trial as Exhibit D1 to the appellant in which she made a number of allegations against him and required him to vacate the house in which she was living at Moshi; that the appellant in reply to Exhibit D1 wrote a letter to the respondent and which was tendered at the trial as Exhibit P2 in which he made various allegations against the respondent. Both the letters by the respondent and that by the appellant were copied to the Area Commissioner, Moshi District, the Chairman of TANU, Moshi District, the Ward Secretary of Hai South and a Ten-cell leader of the locality concerned.

It is apparent from the proceedings in the High Court that the respondents' case is that certain words used by the appellant in the letter tendered at the trial as Exhibit P2 were defamatory. On the other hand, the defence case of the appellant is a denial of the respondent's case and, in the alternative, is to the effect that the words complained of were written by the appellant on an occasion protected by a qualified privilege.

The trial court framed the following issues for consideration and decision:

(1) Whether the words complained of are capable of any actionable or libellous meaning;
(2) Whether the words, if so capable, were written falsely and maliciously;
(3) Whether the words were written on an occasion of qualified privilege; and
(4) To what relief, if any, are the parties entitled on the claim and on the counter-claim?

As already mentioned the trial court gave judgment for the respondent.

Seven grounds of appeal were submitted to this Court by the appellant but in arguing the appeal Mr. Ngalo, learned advocate, dealt with the appeal on four general grounds. Firstly, that the words complained of were not capable of having a defamatory meaning; secondly, that there was no evidence of publication

of the alleged defamatory words; thirdly, that in the alternative, the words complained of were made on an occasion of qualified privilege without any malice on the part of the appellant and fourthly, that in any case the damages awarded to the respondent were manifestly excessive.

In the course of his arguments and in the light of responses and queries raised by members of this Court, Mr. Ngalo conceded that the words complained of, if false, are defamatory to the respondent. Learned advocate, however, submitted that the words were made by the appellant on an occasion of qualified privilege, in that the appellant, in writing the letter dated 10th March, 1974, (Exhibit P2) was exercising a moral and social duty in so far as he was replying to the matters raised by the respondent's letter dated 4th March, 1975, (Exhibit D1).

In Exhibit D1 the respondent had raised matters concerning the estate of the deceased brother of the appellant which had been a subject of discussions at meetings of clan members of the deceased. The respondent had alleged in effect that the estate of the deceased was saddled with a lot of debts and that the responsibility for discharging these debts had fallen solely on herself without any assistance being given to her by any relative of the deceased, including the appellant; and that the appellant instead of assisting her in discharging the debt burden went to live with her and was exploiting her by depending on her fully for his maintenance; that the estate left by the deceased at Moshi was for the benefit of the respondent and her child and that she was terminating the appellant's exploitation of her by requiring him to vacate the house in which he was living with the respondent at Moshi.

In his letter tendered at the trial as Exhibit P2 the appellant wrote in rebuttal of the respondent's allegations by stating in affect that she was benefiting from the estate of the deceased at Moshi at the expense of the Arusha family of the deceased; that the appellant had endeavoured to advise the respondent in matters concerning the estate of the deceased but the respondent for ulterior motives had not acted on the advice and that the respondent had fabricated allegations against the appellant so that she could continue to exploit the estate of the deceased without let or hindrance from any person.

I agree that an occasion under which a person is under a moral or social duty to make certain statements would be an occasion of qualified privilege and that if the statements so made are defamatory the defence of qualified privilege would be available to such person if such statements are made without malice. Mr. Ngalo very helpfully cited the case of **Adam v. Ward** [1917] A.C. at page 309 which is a case decided by the House of Lords in Britain. In that case one Major Adam had made a violent speech in Parliament against the character of one Major General Scobell, a member of the army. Major General Scobell asked the army to make inquiries concerning the allegations made in the speech of Major Adam. The army made inquiries which brought to light matters rebutting the speech made by Major Adam and disclosed, matters which were defamatory to the said Major Adam. The outcome of the inquiries made by the army was widely published, the effect of which led Major Adam to sue for defamation. The House of Lords in that case held in effect that the occasion was one of qualified privilege and the plaintiff could not succeed in the absence of malice on the part of the defendant.

I am of the view that in the light of the contents of the letter written by the respondent and tendered at the trial as Exhibit D1 the appellant was under a moral and social duty to reply to it in the manner he did by writing Exhibit P2 and that the defence of qualified privilege is available to the appellant and thus the respondent cannot succeed unless there is malice on the part of the appellant in writing Exhibit P2. Was there then malice in this case? Before I answer this question, I must consider the other limb of Mr Ngalo's submission in support of an occasion of qualified privilege.

Mr. Ngalo submitted in effect that the appellant in writing Exhibit P2 was defending himself or repelling an attack in respect of allegations made by the respondent in Exhibit D1. I agree that the allegations made by the respondent amounted to a verbal attack against the character of the appellant and that the allegations made by the appellant in Exhibit P2 and which the respondent complains of are aimed at countering the attack made by the respondent. The learned trial judge considered this aspect and came to a contrary conclusion by stating in his judgment:—

> The offending words in the defendant's letter in my view were unrelated to the allegations contained in the plaintiff's letter. At best they are in the nature of counter-allegations. They do not however turn upon the allegations levied against him. Instead, they seem calculated to revenge.

I have carefully examined and compared the allegations in the letter written by the respondent and those in the letter written by the appellant, and I find that all the allegations complained of by the respo-

and she felt pain; she had not lost her senses. P.W.1 had stated that both her intruders had caps on — except that the accused's cap had not covered his face. Though P.W.1, as I said, is a truthful witness and had known the second accused from childhood which fact has been admitted by the accused himself, the inherent danger of the possibility of mistaken identity by her is to be kept in mind by this Court. P.W.1 had seen the accused for the first time in a different attire from the one she normally used to see him in and the defence has submitted that this change of attire coupled with her fright and the fact that it was night time are factors that could have led P.W.1 to have mistaken the identity of the accused. As was observed in the case of **Abdallah bin Wendo and Another v. R.,** (1953) 20 E.A.C.A. 166, 168 that:

> 'a witness may be honest yet mistaken, and may make erroneous assumptions particularly if he believes that what he thinks is likely to be true must be true.'

This means therefore that this Court must handle the evidence on the identification of the accused with extreme care and caution. As was stated in **Abdu Ludova v. Uganda,** E.A.C.A. Criminal Appeal No. 68 of 1975 that

> 'the principles applicable are well settled, and were stated in **Wendo v. R.,** [1953] 20 E.A.C.A. 166 and approved in **Roria v. Rep.** (1967) E.A. 583. Before evidence of identification by a single witness can safely be accepted as free of the possibility of error, where conditions favouring a correct identification are difficult, there should be some other evidence, be it circumstantial or direct, point to guilt.'

We agree with the view of the learned trial Judge that the conditions at the material time of the robbery and the killing were unfavourable to a correct identification of the gangsters. The rule of practice relied on by the learned trial Judge requiring corroboration of the evidence of a single witness of identification in cases where the conditions are unfavourable has been considered and accepted by this Court in the case of **Magongwa Busagala v. The Republic** Criminal Appeal No. 31 of 1979 (unreported). The rule is one of practice and not of law and does not preclude a trial Court from convicting an accused person on the evidence of a single witness of identification if the Court is fully satisfied that the witness is telling the truth and after warning itself of the dangers of convicting on such uncorroborated evidence.

In the present case the trial Court rightly found that the conditions were unfavourable to a correct identification of the gangsters. From the evidence, it is apparent that P.W.1 was not in a position to recognise any of the gangsters until one of the gangsters flashed his torch-light towards a curtain on the window. This will appear to be a short span of time and bearing in mind that the gangsters were disguised, there is need to look for corroboration. The learned trial Judge looked for corroborative evidence and stated as follows:-

> I accept the prosecution evidence that the accused had left his home very soon after the killing of the deceased only to be arrested a year later. It is unfortunate that the police were not more specific on the issue of how long exactly the accused was arrested following the release of the 10 suspects but I accept their evidence that it was immediately following the release of these 10 suspects. The accused's conduct in leaving his house and disappearing for several months, knowing of the attack on the deceased and knowing that the police had gone to his house asking for him and his reappearance following the release of ten suspects when the accused, as was submitted by the prosecution, must have thought the heat was off the case, was indicative of his guilt and corroborative of the truth of P.W.1's evidence of accused's identification that he (the accused) was among the men who had attacked her and the deceased on the night of 24/8/77. There is sufficient corroboration of P.W.1's evidence of identification of the accused by conduct.

Mr. Matemba, learned Advocate for the appellant, attacked this finding of the learned trial Judge regarding the existence of corroborative evidence, and Mr. Loomu-Ojare, learned State Attorney, has conceded that on the record there is no evidence to support the finding that the appellant disappeared from his village after the death of the deceased. There is some evidence to the effect that the police visited the appellant's home on the 25th and the following day and did not find the appellant at home. There is, however, no evidence to suggest that the appellant could not be traced somewhere else in the village on these two occasions when the police visited his home. Moreover, the evidence regarding the date when the

ellant was arrested is conflicting. According to P.W.4, Detective Constable Francis, it would seem the appellant was arrested on the 4th August, 1978, but according to the evidence of P.W.1 the appellant have been arrested much earlier since P.W.1 claims to have been summoned to go to the police station entify the appellant a month after the incident.

As to the learned trial judge's finding that the appellant was arrested a year later, there is no credible dence on the record to support it. This means therefore that there is no evidence to suggest that the ellant disappeared from his village after the death of the deceased. We have searched in the record of trial Court to see if there is any other evidence to corroborate that of P.W.1 and we have found none.

The learned trial judge appears to have been prepared to convict the appellant on the uncorroborated idence of P.W.1 alone when he stated in his judgment:—

> The witness' evidence therefore on identification leaves me in no doubt, even without any other corroborative, direct or circumstantial evidence that P.W.1 had indeed identified the accused on the night of the attack as one of her attackers.

We agree, as mentioned earlier on in this judgment, that a trial Court can convict on the uncorroborated evidence of a single witness of identification if it is fully satisfied that such witness is telling the truth and after warning itself of the dangers of convicting on such uncorroborated evidence. The question which arises therefore is whether P.W.1 can safely be taken to be a witness who was telling the whole truth and nothing but the truth.

The learned trial judge appears to have been very impressed by this witness and went to the extent of making his impression known to the assessors. With due respect, we are of the view that the learned trial judge erred in making his impression known to the assessors, since such conduct was likely to improperly influence the gentlemen assessors. We are aware that in his summing up the learned trial judge told the assessors that they were free to ignore his own impressions. But we do not think that such warning is a sufficient safeguard against a judge's influence on assessors. We have carefully examined the evidence of P.W.1 and we are unable to see how this witness could be relied on without reservations. Her evidence was in conflict with that of P.W.3 in so far as she claimed to have met P.W.3 at the house of the deceased, whereas P.W.3 claimed to have gone to P.W.1's house after the departure of the gangsters and thereafter the two of them proceeded to deceased's house.

Furthermore, P.W.1 claims to have heard the robbers demanding money from the deceased when P.W.1 was still inside her own house. There is evidence to the effect that the distance between the deceased's house and that of P.W.1 was fifty–five paces. We are in great doubt whether P.W.1 was in a position clearly to hear the robbers making their demands in the house of the deceased. In short, therefore, we are of the view that P.W.1 cannot, without reservations, be taken to be a witness of truth and the trial Court would have been wrong to convict solely on her own evidence of identification when conditions of identification were unfavourable. In other words, this is a case where corroborative evidence is required as a matter of prudence. In the absence of such evidence, the conviction of the appellant cannot be sustained.

In the final analysis, therefore, this appeal succeeds and we quash the conviction, set aside the sentence and direct that the appellant be released from jail forthwith unless detained therein for some other lawful cause.

Appeal Allowed.

NOYA GUMUSHA AND OTHERS v. REPUBLIC

[COURT OF APPEAL (Mustafa, Ag. C.J. Mwakasendo and Makame, JJ.A.)]

CRIMINAL APPEAL 91 OF 1979

Criminal Practice and Procedure—Interpreter—Court interpreter also appearing as prosecution witness in a trial-within-a-trial and in the main trial—Undesirable practice.

A group of Barbaigs in a surprise attack massacred a number of Wanyaturu of Kikonda village, Iramba District. Earlier on two Wanyaturus had been killed, believed to be by the Barbaigs and as a consequence

the Wanyaturu were alleged to have killed a Barbaig woman with her two children; and the massacre in issue was a reprisal by the Barbaigs on the Wanyaturu. Twenty-three Barbaigs were arrested for the murders, and fourteen were convicted of murder and appealed. One of the issues raised an appeal was whether it was proper for the Barbaig court interpreter also to appear as a prosecution witness.

Held: (i) it is an undesirable practice for a court interpreter to appear also as a prosecution witness;
(ii) it is not desirable for an interpreter to interpret for the police and the Justices of the Peace.

Appeals of 13 appellants dismissed.
Appeal of 1 appellant allowed.

No cases referred to.

Mwamasika for the appellants.

May 26, 1980. The following considered judgement of the Court was read by MUSTAFA, Ag. C.J.

On the 6th January, 1976, a group of Barbaigs in a surprise attack massacred a number of Wanyaturu of Kikonda village, Iramba District who were carrying bags of flour brought to them by the Government to relieve food shortage in the area. Twenty-one dead bodies were found after the attack–all of them of the Wanyaturu tribe. It appears that earlier on in January 1976 two Wanyaturu had been killed, believed to be by the Barbaigs and as a consequence the Wanyaturu were alleged to have killed a Barbaig woman with her two children; and this attack which took place on the 6th January, 1976, was a reprisal by the Barbaigs on the Wanyaturu.

Twenty-three Barbaigs were arrested for the murders, five of them died in custody while awaiting trial and eighteen were tried. Four accused persons—that is—Accused 1, Accused 12, Accused 7, and Accused 5 were acquitted and fourteen were convicted of murder and these fourteen are now appealing.

In order to avoid any confusion, we will continue to refer to these appellants and those who were acquitted as they were described at the trial, that is, accused 1 Bakida Kilanghu, accused 2 Noya Gumusha, accused 3 Bali Shomari, accused 4 Bwali Gadi, accused 5 Singa Guduru, accused 6 Kirangu Momoya, accused 7 Kidalimu Muheta, accused 8 Kidamarisenda Hadeda, accused 9 Mwalimu Henga, accused 10 Gwiyayi Kidangashi, accused 11 Karani Modia, accused 12 Gebangi Ghadi, accused 13 Kidamarochi Bayonga, accused 14 Gasiri Malijenda, accused 15 Susa Shabaghuti, accused 16 Gidi Gidibota, accused 17 Kambewa Washita and accused 18 Gisiwehida Henga. As we have stated earlier, accused 1 Bukida, accused 5 Singa, accused 7 Kidalimu, and accused 12 Gebangi were acquitted.

The conviction of all the fourteen appellants is based primarily on the extra-judicial statements they had made to the Justice of the Peace. Three magistrates acting as Justices of the Peace took these extra-judicial statements from the appellants. As regards accused 2 Noya, in his extra-judicial statement he said that when he came back from safari he found his mother and two of her children had been killed. He understood that they were killed by Wanyaturu. He raised an alarm, collected a number of Barbaigs, went towards Kikonda village where the Wanyaturu were, and attacked them on the material day from an ambush and he himself killed two male Wanyaturu. He gave the names of four other Barbaigs who had taken part and who were eventually arrested.

Accused 3, Bali Shomari, in his extra-judicial statement said that in answer to an alarm he was informed that Barbaigs had been killed and he joined the raiding party and he himself had killed; and also named other Barbaigs who had killed. Accused 4, Bwali Gadi, similarly said that he had killed in the raid and named other Barbaigs who had killed. Accused 6, Kirangu Momoya, stated in his extra-judicial statement that he was informed that certain Barbaigs had been killed and he went to Kisiriri and joined the raiding party on the material day and he killed a woman as well as a child on her back during the raid. Accused 8, Kidamarisenda Hadeda, made a similar statement and said he killed in the raid and named other Barbaigs as well. Accused 9, Mwalimu Henga, said he had joined the raid and killed a woman. Accused 10 Gwiyayi Kidangashi in his statement said on being informed that Barbaigs had been killed he joined the raid but he missed finding a victim and therefore could not kill. Accused 13, Kidamarochi Bayonga, stated that he also went to Kisiriri and joined the group which raided the Wanyaturu but he did not kill although he wanted to because he found no opportunity to do so. Accused 14, Gasiri Malijenda, made a statement similar to that of accused 13; he also did not kill because he missed out owing to the confusion. Accused 15, Susa Shebaghuti, also stated that he was informed that Barbaigs had been killed, and he joined the group on the raid. He said he did not kill because when he went there and saw the killing he was terrified and ran away. Accused 16, Gidibota, also joined in the raid and he killed. Accused 17, Kambewa Wahita, stated

In the afternoon of the same day he presented again at the same petrol station another recquisition voucher No. 190523 for a furher 45 litres of petrol and received the petrol. The latter recquisition voucher, however, bore a forged signature of Mary Wambura. These findings of fact were amply supported by the evidence.

As mentioned earlier the appellant was acquitted on the count of forgery but was convicted on the count of uttering a false document. The learned judge of the High Court, however, granted leave to appeal on the ground that it was not clear which offence was charged in this particular count The charge as laid reads as follows:

> **2nd Count:**
> Uttering c/s 335(b) 337 of the Penal Code Cap.16 Vol.I of the Laws.
> **Particulars of the Offence:**
> The same person charged on 14th day of September, 1976, at Blue Star Petrol Station with intent to deceive did alter a false document which the alteration brought the effect of the document to wit he received 45 litres of Petrol valued at shs. 152/10 which in fact he was not

Quite clearly the charge is both confused and confusing. In the statement of offence it purports to charge the offence of uttering a false document. But that offence is not created under ss. 335(b) and 337 of the Penal Code as the charge alleges. The offence of uttering a false document is created under s.342 of the Penal Code. Yet to make matters worse, the particulars of the offence as set out did not disclose or even suggest the offence of uttering a false document. Indeed the wording of the particulars is so hopelessly clumsy that it is not at all apparent what offence it was intended to charge. Now, the crucial question that arises is, what offence was the appellant charged with? Certainly it cannot be that of uttering a false document because as already noted, although the statement of offence sets out that offence, the particulars do not disclose or suggest it. And as indicated above it is not apparent from the wording of the particulars what offence it was intended to charge. But the matter is further complicated by the fact that the evidence as adduced disclosed the offence of uttering a false document. And the question is whether the appellant could properly be convicted of this latter offence. As stated earlier, although the offence was set out in the statement of offence, it was not disclosed in the particulars. So that the appellant cannot have known clearly or at all that he was being charged with that offence. Thus to convict him of that offence offended against the basic principle of our criminal practice that the accused person must know clearly what the charge against him is so that he can prepare his defence accordingly. Therefore the purported conviction for uttering false document was untenable and indeed the learned State Attorney appearing for the Republic rightly conceded to this view. That conviction is accordingly quashed and the sentence imposed in respect of it is set aside.

It seems desirable to make one general observation here before leaving this matter. It is obvious that this unfortunate consequence of having to upset the conviction has arisen from the fact that the charge was defective. The defect was so fundamental that it was incurable under s.346 of the Criminal Procedure Code. It should be pointed out that while it is the duty of the prosecution to file the charges correctly, those presiding over criminal trials should, at the commencement of the hearing, make it a habit of perusing the charge as a matter of routine to satisfy themselves that the charge is laid correctly, and if it is not to require that it be amended accordingly. This is a simple process which does not take much of the trial court's time but failure to observe it may produce undesirable results. In this particular case there was a failure of justice in that the appellant has had to be acquitted and hence escape punishment while there was ample evidence to support his conviction for uttering a false document. In other words it resulted in acquitting the guilty which is not proper or just because the guilty ought to be punished.

Coming now to the conviction for obtaining goods by false pretences. As stated before, this was a substituted conviction upon the original charge of stealing which read as follows:—

> **3rd Count:**
> Stealing c/s 265 of the Penal Code Cap.16 of the Laws.
> **Particulars of the Offence:**
> The same person, at the same date and place after false alteration did steal 45 litres of petrol valued at shs. 152/10 from Blue Star Petrol Station property of M/S TANESCO

The learned judge granted leave to appeal on the ground that the offence of obtaining goods by false pretences was wrongly substituted for that of stealing. This is what he said in his ruling when dealing with this point:—

Last in Count 3 the applicant was charged with Stealing 45 litres of Petrol contrary to s.265 of the Penal Code. But the trial Magistrate convicted him of the substituted offence of obtaining goods by false pretences contrary to s.302 of the Penal Code using no doubt the provisions of s.187(1) of the Criminal Procedure Code although he did not say so. But in my view the charge of theft was the correct one for the victim of the offence were his employers TANESCO to whom he never delivered the 45 litres of petrol he allegedly collected on their behalf from the Petrol Station. He did not intend to defraud the Petrol Station but his employers TANESCO whom he wanted to pay for goods they did not receive.

It is clear from the evidence that the recquisition voucher No. 190523 on the strength of which the appellant received 45 litres of petrol was forged. The first question that arises is who has the property in the petrol obtained on the strength of this forged recquisition voucher? If the property passed to TANESCO then the learned judge would be correct in taking the view that the appellant stole the petrol from TANESCO, his employers. If property in the petrol did not pass, however, then it seems that the petrol could not be said to have been stolen from TANESCO because TANESCO did not have any property in it. For it seems that a person can steal from another only if that other has the property in the thing stolen. In the context of this case, if property did not pass then the petrol could not be stolen from TANESCO which did not own or have it.

It is fairly apparent that the attendant at the Caltex Petrol Station parted with the 45 litres of petrol in question only because of the representation that the signature appearing on the recquisition voucher was that of Mary Wambura which representation was in fact false. If the attendant knew that Mary's purported signature was in fact forged, he would not have parted with the petrol. In those circumstances it seems that although the document purports to be a requisition for petrol by TANESCO the property in the petrol did not pass to TANESCO because the misrepresentation operated to negative any intention to supply the petrol. Thus, for instance, if upon detecting the misrepresentation, Caltex were to sue for the petrol in question, the claim could not be resisted by TANESCO. The property would still be in Caltex and if at the time of such suit the appellant had not disposed of the petrol, the court could properly order that the petrol be restored to Caltex but not to TANESCO.

In the light of the foregoing it seems that the appellant cannot have stolen the petrol from TANESCO as the learned judge would appear to think for the simple reason that TANESCO did not at any time have any property in the petrol in question. It seems also that where a person obtains goods on the strength of a forged document the offence committed is not theft but one of obtaining goods by false pretences. In the case of theft the owner of the property does not consent to the thief taking the goods. But in the case of obtaining goods by false pretences the owner voluntarily parts with the goods because of a fraudulent inducement offered to him by the offender. Where the offender obtains goods on the strength of a forged document within the meaning of s.333 of the Penal Code, he necessarily does so by fraudulently inducing the owner into believing that some fact or facts as appearing on the document in question are true while in fact they are not. In those circumstances it seems that the proper charge to be preferred is one of obtaining goods by false pretences.

In the final analysis there seems to be no ground for interfering with the alternative conviction for obtaining goods by false pretences as entered by the trial magistrate. In law such alternative conviction was sanctioned under the provisions of s.187(1) of the Criminal Procedure Code, and there was ample evidence to support such conviction. That conviction is therefore affirmed and the appeal on that count is accordingly dismissed.

Appeal allowed in part.

DASTAN KAYANDA AND OTHERS v. REPUBLIC (MUSTAFA, J.A.)

DASTAN KAYANDA AND OTHERS v. REPUBLIC

[COURT OF APPEAL OF TANZANIA AT MBEYA (Mustafa, Mwakasendo and Kisanga, JJJ.A.)]

CRIMINAL APPEAL 47 OF 1979

Construction – Money – Cheque included – S.5 of Penal Code.
Criminal Practice and Procedure – Defective charge – No particulars of false pretences – accused aware of particulars in the course of trial – No prejudice or injustice suffered – Defect curable – S.316 Criminal Procedure Code.

The appellants were charged with, **inter alia,** "by false pretences and with intent to deraud did obtain a sum of shs. 25,000/- the property of the Government of Tanzania." Advocate for the appellants raised two objections in respect of this count. First that the charge was defective in that no particulars of false pretences were given and, secondly, that since the subject matter allegedly defrauded was a cheque for shs. 25,000/-, and not cash, the charge against the appellants was not proved as laid.

Held: (i) since in the course of the trial appellants were made fully aware of what particulars of the charge were, they suffered no prejudice or injustice and the defect was curable under s. 346 of the Criminal Procedure Code;

(ii) in Tanzania, under s. 5 of the Penal Code money includes cheques.

Appeal dismissed.

Case referred to:

(1) **Menzour Ahmed v. R.** [1957] E.A.386

September 8, 1980. MUSTAFA, J.A., read the following considered judgment of the court: The four appellants were charged in the District Court of Mbeya on a number of counts. They were all jointly charged on a count of conspiracy to defraud, the first and second appellants were jointly charged on a count of fraudulent false accounting, the second appellant was charged on a count of fraudulent false accounting, all four appellants were jointly charged on a count of procuring the execution of a document by false pretence, the first appellant was charged on a count of giving false information to a person employed in the public service, and all the appellants were jointly charged with obtaining money by false pretences. The Resident Magistrate convicted all the four appellants as charged, and sentenced them as follows: on the first count twelve months' imprisonment, on the second, third and fourth counts, two years' imprisonment on each count, on the fifth count, a fine of shs. 400/- or six months' imprisonment in lieu, and on the sixth count five years' imprisonment; all sentences, except that for the fifth count, were concurrent. The magistrate also made a compensation order against all the appellants in the sum of shs. 19,125/-.

On first appeal the first appellant succeeded on counts two, four and five; the second appellant succeeded on counts four and five, the third appellant on count four and the fourth appellant on count four. The first appellate judge confirmed the sentences passed and the compensation order.

The charges laid against the appellants arose out of the following transaction. The first appellant was at the material time a building foreman of Comworks at Mbeya, and the second appellant was a store-keeper at the same place. The third appellant was a director of a firm known as Usangu Timber Supply Company, and the fourth appellant was one of the partners of the said Timber Company. The first appellant as building foreman signed an L.P.O. as purchasing officer for 1,000 bags of lime at shs. 25/- each in favour of Usangu Timber Supply Company. The L.P.O. is dated 24th January, 1978, and was issued from the R.D.D.'s office Mbeya. Usangu Timber Supply Company issued an invoice in reference to the said L.P.O., bearing No. 79 and dated 28th January, 1978, in respect of the sum of shs. 25, 000/- for the lime, and the R.D.D issued a cheque for shs. 25,000/- in payment of the lime in favour of Usangu Timber Supply Company on 4th February, 1978. The cheque was endorsed by Kalolo, the fourth appellant, into his personal account as sole proprietor of Usangu Timber Supply Company, and the cheque was paid on 6th February, 1978. The said L.P.O. was prepared by the second appellant, the store-keeper, and the second appellant had also

endorsed on the L.P.O. that 1,000 bags of lime had been received by 31st Janunary, 1978 and that such receipt was entered in ledger 6 folio 153. The L.P.O. was received by the third appellant who showed it to the fourth appellant, presumably before the preparation and issue of the involved invoice by Usangu Timber Supply Company.

P.W.2, a Regional Stock Verifier, in a routine audit of the stock of Comworks Mbeya on or about 21st February, 1978, discovered the L.P.O. for 1,000 bags of lime for building Kyela T.P.D.F. He found that the ledger book did not contain any entry showing that 1,000 bags had been received by Comworks on 31st January, 1978, as the endorsement in the L.P.O. indicated. The only receipt by Comworks was 95 bags of lime on 8th February, 1978. P.W.2 also stated that he was a member of the Regional Tender Board, and that Government would buy goods from Government Stores, failing which would purchase goods from institutions and firms approved by the Tender Board. He said Usangu Timber Supply Company was not among those firms approved by the Regional Tender Board to supply lime to Comworks. He sent for the first appellant and informed him about the absence of the bags of lime allegedly purchased and which had been paid for, but which were non-existent, and gave the first appellant some time to produce the bags of lime. As on 7th June, 1978, when the case came before the court, no bags of lime had been produced.

In evidence it emerged that Usangu Timber Supply Company alleged that one Festo Mangenyi at Songwe was its lime supplier. Both P.W.2 the stock verifier and P.W.5 Willbard, a police officer had visited Festo Mangenyi, P.W.5 on or about 6th April, 1978, and both stated that there was no lime at Songwe; of course there was no lime at Kyela either. The prosecution case in brief was that the L.P.O. was in fact made for a fictitious purchase and the cheque for shs. 25, 000/- was obtained by false pretences and that all the four appellants were involved in this illegal transaction.

The first appellant, in evidence, stated that he had placed the order for the 1,000 bags of lime, and that all the lime was taken to Kyela, that his duties included seeing that the goods ordered were received or delivered. He had seen the 1,000 bags of lime at the site at Kyela which he had checked.

The second appellant also testified and stated that the bags of lime, 980 in number, were sent directly for use at Kyela and that he actually saw the bags of lime at the time of the invoice, that is, 28th January, 1978. The third appellant stated in evidence that he had handed over at the site at Songwe to the second appellant 1,000 bags of lime on receipt of the L.P.O., that is, on or about 24th January, 1978. The fourth appellant testified to the effect that he handed over 1,000 bags of lime before he received the cheque, that is, 4th February, 1978. According to the appellants the 1,000 bags of lime were physically present either at Kyela or Songwe at the latest by 4th February, 1978, although the first appellant could not say when he actually saw and checked the bags of lime at Kyela.

Both the courts below examined and analysed the evidence adduced by the prosecution and defence witnesses and came to concurrent findings of fact that there was no lime when P.W.2, the stock verifier, took up the matter with the first appellant. By 8th February, 1978, only 95 bags of underweight lime had been received by Comworks. Both the courts below rejected the evidence of the four appellants that there were 980 or 1,000 bags of lime at either Kyela or Songwe, even as on 31st March, 1978, or 6th April, 1978. It is perfectly clear that no bags of lime were supplied to Comworks by Usangu Timber Supply Company on the L.P.O. when payment for 1,000 bags of lime was made on 4th February, 1978. In view of what the four appellants had stated, it is clear that they were all involved in the plot to obtain money from the R.D.D. for bags of lime which did not exist. They all insisted that the bags of lime were there, and the courts below, on good credible evidence, found that they all told lies on this score. We are satisfied that they were properly convicted on the first count of conspiracy to defraud.

We will now deal with the sixth count which charged all four appellants "by false pretences and with intent to defraud did obtain a sum of shs. 25,000/- the property of the Government of Tanzania." Two objections against this count have been put forward by counsel for the appellants. The first is that the charge is defective in that no particulars of the false pretences were given. No objection had been taken to the charge in the courts below, and it is too late now for such an objection to be taken. In the course of the trial the appellants were made fully aware of what the particulars of the charge were, and they knew what the prosecution was alleging against them. They thus suffered no prejudice or injustice. In any case, here the provisions of s. 346 of the Criminal Procedure Code are applicable. The other objection was that since the subject matter allegedly defrauded was a cheque for shs. 25,000/-, the charge against the appellants was not proved as laid. It would seem that in England proof that a cheque has been embezzled or stolen does not satisfy an allegation in a charge that money has been stolen or embezzled. But in Tanzania, money

has been defined in s. 5 of the Penal Code as including, among other things, cheques. There is authority in East Africa for the proposition that tne description "a sum of shs. 3,000/-," by virtue of the definition of "money" in the Penal Code, is a sufficient description of "a cheque for the sum of shs. 3.000/-," see **Menzour Ahmed v. R.** [1957] E.A. p. 386. The charge as laid is in order and the appellants were properly convicted on this count as charged.

The second appellant was convicted on the second count of fraudulent false accounting and on the third count of fraudulent false accounting. The second count relates to the false entry in the L.P.O. that the 1,000 bags of lime had been received, and the third count relates to the entry in the same L.P.O. that the 1,000 bags of lime received had been entered in ledger 6 folio 153. Both entries were false and made with the intent to defraud. The convictions of the second appellant on these counts were proper.

We accordingly dismiss the appeals of all appellants. However, we wish to make an amendment to the compensation order made by the trial court and confirmed by the first appellate judge. The order was for payment of shs. 19,125/- being shs. 25,000/- less the cost of 95 and 140 bags of lime supplied. It seems that the magistrate overlooked another lot of 160 bags. Since he was making allowances for the bags entered in the ledger he should include this lot of 160 bags as well. We therefore amend the order of compensation to shs.15,125/- (being the sum of shs. 25,000/- less 95 + 140 + 160 bags at 25/- each). Apart from this amendment the sentences and compensation order remain.

Before we close, there is an observation we would like to make. The appellants applied to High Court for leave to file this second appeal. We note that the judge in giving leave to appeal merely stated "the applications are granted as prayed." We would refer to r. 120 of the Court of Appeal Rules in respect of appeals, especially (1)(a), '...that the appeal raises one or more questions of law proper for determination by the Court" and to s. 5(7)(a) of the Appellate Jurisdiction Act where it is provided that second appeals should be only on questions of law. The judge admitting the appeals did not state what were the questions of law raised, nor indeed why he granted leave. A judge in dealing with applications for such leave should observe the provisions and regulations we have mentioned above.

Appeal dismissed.

SGT. LAWRENCE MZAVA AND TWO OTHERS v. REPUBLIC (MUSTAFA, J.A.)

SGT. LAWRENCE MZAVA AND TWO OTHERS v. REPUBLIC

[COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM (Mustafa, Mwakasendo, and Makame, JJJ.A.)]

CRIMINAL APPEAL 69 OF 1979

Criminal practice and procedure – Recalling and calling witnesses during appeal – ss. 151 and 322 (1) of the Criminal Proccedure Code – Circumstances under which can be exercised.

The appellants together with another accused were charged with two counts: stealing by public servant of forty pistols and fourteen rounds of ammunition; and being in unlawful possession of offensive weapons. The trial magistrate held that the appellants had no case to answer because of non-production of the book or register in which the numbers of the pistols had been recorded and as such ownership of the pistols was not established; also that the appellants were not found in possession of the pistols.

The first appellate judge invoked powers under ss. 151 and 322(1) of the Criminal Procedure Code, recalled five prosecution witnessess to give further evidence and called three new court witnesses in order "to perform the duties of the trial court, which the magistrate so miserably failed to perform" The judge held that the appellants had a case to answer in respect of both counts.

On appeal to the Court of Appeal of Tanzania the main argument by appellants was that the judge was wrong in recalling or calling new witnesses to fill the gaps in the prosecution case.

Held: (i) since there was ineptness on the part of the trial magistrate and incompetence on the part of the prosecution, the appellate court was justified in invoking the provisions of s. 151 and s. 322(1) of the Criminal Procedure Code;

(ii) the additional evidence required was available as was apparent from the record, and such evidence was not for filling up gaps in the prosecution case or for making a new case against the accused but was for the just decision of the case.

Appeal dismissed.

No case referred to.

March 6, 1981. MUSTAFA, J.A., read the following considered judgment of the court: The three appellants, together with another accused, were originally charged at a District Court on two counts: (1) Stealing by Public Servant of forty pistols and fourteen rounds of ammunition – contrary to ss. 265 and 270 of the Penal Code; and (2) Being in unlawful possession of offensive weapons – contrary to s. 8(1) of the National Security Act, 1970. The trial magistrate held that the three appellants had no case to answer in respect of the two counts, but that their co-accused had a case to answer in respect of the second count. The Republic appealed against the acquittal of the three appellants to the High Court which set aside the order of acquittal and held that the appellants had a case to answer in respect of both the counts and returned the proceedings to the District Court with an order that the trial was to proceed from the stage it was terminated. The appellants are now appealing from the judge's order.

In the first appeal the judge recalled five prosecution witnesses to give further evidence and called three new court witnesses because, as the judge said in his judgment, and in reference to s.151 of the Criminal Procedure Code:

> ...I had to recall witnesses who had given evidence and call witnesses who had not, as will hereinafter appear, in order to perform the duties of the trial court, which the magistrate so miserably failed to perform.

The judge purported to exercise his powers of recall of witnesses and the calling of new ones in terms of s.322(1) of the Criminal Procedure Code.

The appeal was argued on two main grounds. It was submitted that the magistrate was right in holding that there was no case to answer as no **prima facie** case against the three appellants had been established, and that the judge was wrong in recalling or calling new witnesses to fill the gaps in the prosecution case.

The trial magistrate had held that because of the non-production of the book or register in which the numbers of the pistols had been recorded, evidence of ownership of the pistols was not established and no case against the appellants was made out of the first count. As regards the second count only the appellants' co-accused was found in possession of the pistols, not the appellants.

Like the first appellate judge, we are disconcerted at the magistrate's reason for holding that the appellants had no case to answer. The magistrate was clearly construing far too narrowly the evidence necessary to establish ownership in defiance of equity and a sense of reality. There was evidence that forty pistols were missing from the T.P.D.F., and two army officers identified the pistols as T.P.D.F. property. Pistols are in a special category, not ordinary common place objects.

In answer to the magistrate P.W.9, Joseph, an army Commander, said that he could not remember where the book or register was or if it could be found, but that the book was in the custody of the appellants – Accused 4 at the trial. The magistrate did not proceed with his enquiry and used the evidence given by P.W.9 on this matter as the basis for his finding that the book or register was not produced in court and therefore no evidence of ownership of the pistols was established. In our view it was the duty of the magistrate at that stage, in view of the provisions of s.151 of the Criminal Procedure Code which reads:

> S.151 – Any court may, at any stage of a trial or other proceeding under this Code, summon any person as a witness, or examine any person in attendance, though not summoned as a witness, or recall and re-examine any person already examined; and the court shall summon and examine or recall and re-examine any such person if his evidence appears to it essential to the just decision of the case.

to have proceeded to discover who has the book and in the words of the first appellate judge "if it was not available why it has not,.. and if lost consequently who is responsible for such loss."

The first appellate judge decided to recall five witnesses and call three new ones, in order, as he said, "to perform the duties of the trial court which the trial magistrate so miserably failed to perform." Since the main thrust of the appeal is against this action we shall examine it.

The first appellate judge acted in terms of s.322(1) of the Criminal Procedure Code which reads:

> 322(1) – In dealing with an appeal from a subordinate court the High Court if it thinks additional evidence is necessary, shall record its reasons and may either take such evidence itself or direct it to be taken by a subordinate court. Before the appeal commenced, the first appellate judge said: Before I start hearing the appeal I want recalling Abdul Nguzo (P.W.6) and I also want the production of the armoury book ... or if lost who is responsible.

The provisions in s.151 and s.322(1) in our Criminal Procedure Code are clearly derived from s.540 and s.428 of the India Code of Criminal Procedure, and are in **pari materia** with them. In India it has been held by the Supreme Court (See A.I.R. Commentaries on the Code of Criminal Procedure, Chitaley and Rao, 6th Ed. p. 2871) that these powers are to be exercised in suitable cases and shall not be misused for a re-trial or to change the nature of the case against an accused. But once the action is justified there is no restriction to the kind of evidence which may be received. We find ourselves in agreement with this view. On a persual of the record of the trial, we find ineptness on the part of the trial magistrate and incompetence on the part of the prosecution. It was iminently an occasion when a first appellate court was justified in invoking the provisions of s.151 and s322(1) of the Criminal Procedure Code and re-call and call witnesses in order to arrive at a just decision of the case. That the additional evidence required was available was apparent from the record, and such evidence was not for filling up gaps in the prosecution case or for making a new case against the accused but was for the just decision of the case.

It is clear that the appellants have a case to answer on both the counts. The appeal is without merit and is hereby dismissed.

Appeal dismissed.

HAJI RASHID MAKUNYILA v. REPUBLIC (MUSTAFA, J.A.)

HAJI RASHID MAKUNYILA v. REPUBLIC

[COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM (Mustafa, Mwakasendo and Makame, JJJ.A.)]

CRIMINAL APPEAL 71 OF 1979

Evidence – Report of a ballistics expert – Opinion evidence albeit expert evidence – Judge to accept or reject it.

Criminal Practice and Procedure – Summing-up to assessors- No record of notes of summing-up – Irregularity.

The appellant was convicted of attempted murder. On appeal it was contended that the trial judge did not have on record the notes of his summing-up to the assessors and that he failed to either reject or accept the report of the ballistics expert.

Held: (i) it is irregular for a trial judge not to have on record notes of his summing-up to the assessors;

(ii) a report of a ballistics expert is only opinion evidence, albeit expert opinion, and it is for a judge to accept or reject it;

(iii) failure by a judge to either accept or reject a report of a ballistics expert creates irregularity;

(iv) in this case the two irregularities do not affect the outcome of the case.

Appeal dismissed.

No case referred to.

M.A. Lakha for the appellant.

March 6, 1981, MUSTAFA, J.A., read the following considered judgement of the court: The appellant was charged with and convicted of attempted murder and was sentenced to nine years' imprisonment He is appealing.

P.W.1, the complainant, testified that he was a neighbour of the appellant and on the day in question he had a quarrel with the appellant. He said that P.W.2 and P.W.3 separated him and the appellant, and the quarrel subsided. A short while later as he was reaching the door of his house he was shot by the appellant. He was hit on his elbow and he fell down. The appellant went into his house, got out with his belongings and disappeared. It happened at about 7 p.m. P.W2 and P.W.3 corroborated the evidence of P.W.1 about the quarrel and their part in separating P.W.1 and the appellant and that shortly thereafter they heard what appeared to be a gun shot and found that P.W.1 had been shot. P.W.1 said to them that he was shot by the appellant, who disappeared from that time from the village. P.W.4, on receiving news of the shooting incident, went to the house of the appellant the following day and discovered a spent bullet shell outside the appellant's house. There was plenty of evidence that the appellant disappeared from the village immediately after the shooting incident until he reported to the police about ten days later. There was also evidence that the appellant was the possessor of the only rifle in the village and the spent bullet was fired from a rifle.

The appellant denied the whole story. He put forward a plea of alibi – that he was not there at all. He stated that all the witnesses have conspired against him and have given false testimony. He said that P.W.2 lied because he was a friend of P.W.1, that P.W.3 lied because the appellant had refused to sell him paddy, that P.W.5 lied because the appellant had refused to give him a cap; he did not say why P.W.4 lied. The trial judge saw and heard the witnesses – he believed the prosecution witnesses and rejected the appellant's plea of alibi. On our assessment of the evidence we also reject the plea of alibi as completely worthless.

Mr. Lakha for the appellant has submitted that as the appellant was only identified by P.W.1 and nobody else as the man who had fired the shot, great care should have been taken as to the identification of the attacker. The appellant here has put forward a plea of alibi – that he was not there at all – a patent untruth. The evidence of P.W.1 was perfectly clear and straightfoward, he knew the appellant, and was only about ten paces or so away when he was shot and he saw the appellant go into his house and get out with his belongings after he was shot. The circumstances favoured clear and good identification. This submission has no merit.

There are certain criticisms by Mr. Lakha of the judgment which have merit. He submitted that the trial judge failed to direct his mind to the question of intent in the offence charged, that he failed to have any notes or record concerning his summing-up to the assessors, and that he failed to direct his mind to the evidence of the ballistics expert.

We have failed to find any notes of the address to the assessors by the judge. A trial judge should have on record the notes of his summing-up to the assessors. It is true that the trial judge appeared to have impliedly accepted the report of the ballistics expert to the effect that the spent bullet was fired from the rifle which was in the possession of the appellant, without in his judgment referring to the report or directing his mind to its significance. A report of a ballistics expert is only opinion evidence, albeit expert opinion, and it is for a judge to accept or reject it, after directing his mind to the issue. However, we are satisfied that in this case the two irregularities do not affect the outcome of the case because there was clear evidence that the shot was fired by the appellant from his rifle and this evidence was corroborated by the ballistics expert's examination of the spent bullet and the rifle. The notes of the summing-up would, most probably, be on the lines of the judgment delivered.

As rightly remarked by Mr. Lakha, the trial judge appeared to have failed to direct his mind to the question of intent in the offence of attempted murder. In his judgment he has said "Since the shooting was completely unjustified it was unlawful and consequently the offence of attempted murder was established." However, earlier, on in the same paragraph he has said "It is most lucky that the bullet landed on the upper arm of the complainant; had it landed on the chest or in the stomach the complainant would have died at once."

We believe the trial judge meant that it was purely fortuitous that the appellant was not hit in a vulnerable spot, that the appellant had intended to kill, but that fortunately P.W.1 had a lucky escape. In our view, the trial judge had in effect found that the appellant had intended to kill.

On a review of all the evidence we are satisfied that the conviction was justified and we dismiss the appeal.

Appeal dismissed.

NIZAR M.H. LADAK v. GULAMALI FAZAL JANMOHAMED

[COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM (Mustafa, Mwakasendo and Makame, JJJ.A.)]

CIVIL APPEAL 9 OF 1980

Civil Practice and Procedure – Rent Restriction Act – Alternative accommodation – Visiting locus in quo – Procedure Court to follow.

Rent Restriction Act – Alternative accommodation – Visiting locus in quo – Circumstances under which court to inspect.

Respondent filed a suit against the appellant in the Resident Magistrate's Court seeking an order of eviction and other consequential reliefs. On request by the respondent landlord, the Court visited certain premises which he alleged could provide alternative accommodation to the tenant as required by s.19 of the Rent Restriction Act, Cap. 479. The trial Court found for the appellant. On appeal by the respondent to the High Court, the appellate Court visited premises alleged to provide alternative accommodation. The High Court decided in favour of respondent. The appellant appealed to the Court of Appeal of Tanzania.

Held: (i) it is only in exceptional circumstances that a court should inspect a **locus in quo,** as by doing so a Court may unconsciously take the role of a witness rather than an adjudicator;

(ii) where it is necessary or appropriate to visit a **locus in quo** the court should attend with the parties and their advocates, if any, and with such witnesses as may have to testify in that particular matter;

(iii) both the trial magistrate and the first appellate judge were in effect witnesses, as both of them relied on their own impressions and in what they had seen in coming to their conclusions, not on evidence adduced in Court.

Both the judgments and orders of the trial and appellate Courts set aside.

Trial de novo ordered.

No cases referred to.

M.J. Raithatha for the Appellant.

M.A. Lakha for the Respondent.

May 6, 1981. MUSTAFA, J.A., delivered the following considered judgment of the court: The respondent in this appeal (hereinafter called the landlord) filed an action in a Resident Magistrate's Court at Dodoma against the appellant (hereinafter called the tenant) seeking an order of eviction and other consequential reliefs. The premises in question involved a shop, that is, business premises, being part of a building belonging to the landlord. The premises were protected under the provisions of s. 19 of the Rent Restriction Act, Cap. 479 of the Laws.

In the course of the trial the landlord requested the Court to visit certain premises which the landlord alleged could provide alternative accommodation to the tenant.

Thereupon the Court made this order:

> **Orders:** Plaintiff's request is granted and the Court together with plaintiff, defendant and the Advocate for defendant I move to view all of these premises.
>
> **Observation:** The shop in dispute is viewed. Plot No. 21 Block 4 is viewed and parents of the defendant live in and it is situated along Sido Street. Also Plot No. 9 Block M is viewed and it is a store where breads are kept after being baked and it is in a remote Mashariki Street.

The trial continued and evidence was taken. No witnesses gave evidence as to the **locus in quo** visited by the trial magistrate. However, in his judgment he referred to the premises he visited and decided certain issues, for example, reasonable alternative accommodation, on the basis of what he had seen. He found for the tenant.

The landlord appealed to the High Court. Before the appeal actually opened there was this entry:

30.1.79: **Coram:** B.D. Chipeta, Judge
Mr. Lakha for appellant
Mr. Chambakare for respondent.

On visiting the premises in question –

1. Plot No. 21 Block 4 has the following:
   1. One large sitting room
   2. One dinning room adjoining No. (1) above
   3. Further on is a kitchen
   4. Two bed rooms
   5. Small store room adjoining No. 1 above
   6. A shop in an adjoining building.

Plot No. 1 Block P

1. Ground floor –
1. 4 small stores room/adjoining shop
2. One large store room/of appellant
3. Front side one large room used as a store. It is as large as disputed premises (18'x15')
4. Of the stores, the shop room has more room than the remaining store rooms.

Plot No. 9 Block M.

Flour room	Room for Storing Bread	Factory

In factory are (Timber Mixed factory garages)

In court for arguments.

And thereafter the advocates proceeded to argue the appeal.

In his judgment the first appellate judge referred to the notes made by the trial magistrate on his visit to the relevant premises, and later on in his judgment referred to his own viewing of the same premises, "with the consent of both learned counsel." In coming to his decision as to the availability of suitable alternative accommodation the first appellate judge relied on his own observation of the premises, as to what rooms are suitable for what, the distances of premises from each other and who was or who was not in control of certain premises. He reversed the trial court's decision and found for the landlord.

The tenant now appeals.

We are of the view that both the courts below have erred. It is only in exceptional circumstances that a court inspects a **locus in quo**, as by doing so a court may unconsciously take on the role of a witness rather than an adjudicator. At the trial, we ourselves can see no reason why the magistrate thought it was necessary to make such a visit. Witnesses could have given evidence easily as to the state, size, location and so on of the premises in question. Such evidence could, if necessary, be challenged in cross-examination. But at least the magistrate made his visit on the application of a party to the trial. We completely fail to see why the first appellate judge thought it was necessary for him to visit the premises. He was dealing with an appeal. Here we have the absurd situation where a trial magistrate visited and viewed certain premises and

on such viewing came to one conclusion, and a first appellate judge, for reasons which escape us, visiting and viewing the same premises, and on such viewing coming to a diametrically opposite conclusion. Both the trial magistrate and the first appellate judge were in effect witnesses, as both of them relied on their own impressions and on what they had seen in coming to their conclusions, not on evidence adduced in court.

When a visit to a **locus in quo** is necessary or appropriate, and as we have said this should only be necessary in exceptional cases, the court should attend with the parties and their advocates, if any, and with such witnesses as may have to testify in that particular matter, and for instance if the size of a room or width of road is a matter in issue, have the room or road measured in the presence of the parties, and a note made thereof. When the court re-assembles in the court room, all such notes should be read out to the parties and their advocates, and comments, amendments or objections called for and if necessary incorporated. Witnesses then have to give evidence of all those facts, if they are relevant, and the court only refers to the notes in order to understand or relate to the evidence in court given by the witnesses. We trust that this procedure will be adopted by the courts in future.

We have deliberately refrained from dealing with the merits of the case at the trial or the arguments on first appeal, as we are satisfied that both the trial and the first appeal were vitiated by the roles played by the trial magistrate and the first appellate judge. Neither of these two decisions can stand. We regret to set aside both the judgments and orders of the trial court and the first appellate court and order that, should the landlord propose to continue with his action, the case should be tried **de novo** before a court of competent jurisdiction. In that event the costs thrown away will abide the result of the trial.

Should the landlord propose not to proceed with his action, we order that each party will bear its own costs here and in the courts below.

AMRATLAL DAMODAR MALTASER AND ANOTHER T/A ZANZIBAR SILK STORES v. A.H. JARIWALLA T/A ZANZIBAR HOTEL

[COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM (Mustafa, Mwakasendo and Makame, JJJ.A.)]

CIVIL APPEAL 5 OF 1979

Civil Practice and Procedure—Delay in the trial of a suit — Observations.
Civil Practice and Procedure — Concurrent findings of facts by two courts — What appeal court to do — Rule of practice.
Landlord and Tenant — Sub-tenant partitioning and subletting portion of premises without consent of tenant — Whether lawful sub-tenancy created.
Rent Restriction — Unlawful sub-tenancy — Whether sub-tenant protected — Rent Restriction Act, 1962.
Rent Restriction — Order for vacant possession — Whether trespasser protected — Rent Restriction Act 1962, s. 19(2).
Acquisition of Buildings — Registrar stepping into the shoes of the owner — Whether trespasser sub-tenants may be accepted as lawful tenants by Registrar.
Landlord and Tenant — Notice to quit — Rent accepted after notice — Whether amounts to waiver.
Tender — Meaning — Effect.

This case dragged for many years before its final adjudication. There was no good cause for the delay

The appellants were sub-tenants to whom the tenant, unauthorized by the owner partitioned a restaurant and without the consent of the owner sublet a portion of it. The respondent owner of the premises filed a suit in a Resident Magistrate's Court claiming vacant possession of the ground floor and mesne profits. Judgment was given in his favour. On appeal to the High Court the appeallants' appeal was dismissed Aggrieved by the decisions of both lower courts the appeallants further appealed to the Court of Appeal of Tanzania.

In the Court of Appeal of Tanzania counsel for the appeallants attacked the decision of the High Court on the following main grounds. First, that the lower courts erred in their assessment and evaluation of facts. Secondly, that the appellants were lawful sub-tenants of the respondent; in the alternative that they were protected by s. 19(6) of the Rent Restriction Act, 1962. Thirdly, that the High Court judge erred in law in treating the appellants as trespassers and that the provisions of s.19(2) of the

Rent Restriction Act did not apply to avail them. Fourthly, that the High Court judge erred in law by not taking into account that the Registrar of Buildings had accepted the appellants as tenants, received rent from them, and that the respondent acquiesced to this. Fifthly, counsel for appellants argued that the first appellate judge was wrong in law in confirming the order of costs on mesne-profits since the appellants had already tendered a cheque as payment for rent due to the respondent and therefore should have been exonerated from liability to pay.

Observations: (i) a court of trial has a duty not only to follow the rules of procedure but also to exercise some firm control over the proceedings before it and, if need be, to impose and enforce a timetable for litigation;

(ii) however agreeable parties might be to adjournments, there comes a time when the court of trial is forced to say that in the interest of justice it cannot extend to the parties any more indulgences to adjourn the trial of a suit.

Held: (i) where there are concurrent findings of facts by two courts, the Court of Appeal, as a wise rule of practice, should not disturb them unless it is clearly shown that there has been a misapprehension of evidence, a miscarriage of justice or violation of some principle of law or procedure;

(ii) the two appellants were not lawful sub-tenants of the respondent because both the partitioning and subsequent sub-letting of the premises were without the consent of the respondent;

(iii) a person who enters upon the premises of another without his consent, express or implied, is a trespasser;

(iv) a trespasser cannot claim the benefits flowing from the operation of the provisions of s.19(2) of the Rent Restriction Act, 1962;

(v) since there is no privity of contract between the owner of the premises and a sub-tenant,the Registrar of Buildings by stepping into the shoes of the owner does not change the relationship between the lessee and sublessee;

(vi) when a landlord has brought a tenancy to an end by means of a notice to quit, a payment of rent after that date will only operate in favour of the tenant if it can be shown that the parties intend that there should be a new tenancy;

(vii) if a debtor has made a tender and continues ready to pay, he is exonerated from liability for the non-payment, but the debt is not discharged.

Appeal dismissed.

Cases referred to:

1) **Allen v. Sir Alfred McAlpine and Sons Ltd.** [1968] 2 Q.B. 229.
(2) **Towli v. Fourth River Property Co. Ltd.** (The Times Law Report, November 23, 1976).
(3) **Michaelides v. Cormican Properties Ltd.** (The Times Law Report, November 23, 1976).
(4) **Central Asbestos Co. Ltd. v. Dodd** [1972] 2 All E.R. 1153.
(5) **Onorato Dolla Santa and Others v. Peera** [1970] H.C.D. No. 22.
(6) **Gregory Mtafya v. Zainabu Lyimo** [1976] L.R.T. No. 3
(7) **Addie v. Dumbreck** [1929] A.C. 358.
(8) **Habib Yusufali v. Abdulasattar Riaziddin** [1972] L.R.T. n. 64.
(9) **Clark v. Grant and Another** [1950] 1 K.B. 104.
(10) **Carter v. Green** [1950] 2 K.B. 76.

M.A. Lakha for the appellants.
M.J. Raithatha for the respondent.

March 10,1980. MWAKASENDO, J.A.: Manilal Mulji and Company Limited was until 1971 the owner of a three-storey building known as Zanzibar Hotel situated along Zanaki Street on Plot No. 917/24 in Dar es Salaam. On 24th February, 1964, Manilal Mulji and Company Limited let the whole of the building to A.H. Jariwalla, the present respondent and original plaintiff in the Resident Magistrate's Court. To obviate confusion I shall hereafter refer to the parties involved in this appeal either by their personal names or by the description that they bear in the Resident Magistrate's Court record. Jariwalla with the consent of Manilal Mulji and Company Limited sublet the ground floor of the demised premises,

excluding the office room and stores, to one Demello, retaining possession of the first, second and third floors for his hotel business. In terms of the underlease Exhibit P1, Demello agreed to use and occupy the front and rear parts of the ground floor as a restaurant and bar respectively. And on 21st February, 1967, Demello in turn after obtaining the permission of Jariwalla sublet the restaurant part of the ground floor to Ebrahim Yusufali Ebrahimji, the first defendant, for a term of one year expiring on 31st August, 1967, but subsequently extended to 31st August, 1968—See Exhibit P2.

On expiry of the term of the underlease Ebrahimji without the consent of the plaintiff and in breach of the covenants contained in the underlease handed the portion of the premises he was occupying to Murtaza A. Darugar, the second defendant and Mohasin Salehbhai, the third defendant. However, following upon this unlawful entry on the restaurant premises Darugar and Salehbhai pleaded with Jariwalla to regularise their tenancy. Jariwalla did so by allowing them to occupy and use the restaurant premises for a period of one year up to the end of August 1969 on condition that they would adhere to the existing covenants contained in the lease and underlease. Jariwalla's testimony about this is at p.95 of the record of proceedings. It reads:

> After this notice the defendants did not vacate but the second and third defendants came to me and admitted that they had entered the premises illegally and they requested me to allow them to use the premises on regular payment of rent of Shs. 500/- per month and they would adhere to the covenants. I gave them extension of time up to August 1969. I accepted them (the second and third defendants) as my tenants up to August 1969.

This statement of what took place between Jariwalla, Darugar and Salehbhai was not impeached at the trial by either Darugar or Salehbhai. Be that as it may, in March 1969 Darugar and Salehbhai approached Jariwalla requesting to be allowed to partition and sublet a portion of the restaurant to one Alibhai A. Girnary who, as it subsequently turned out, was acting for Amratlal Damodar Maisatar and Musaffer Alibhai Girnary, the present appellants and fifth and sixth defendants at the trial respectively. Jariwalla refused his consent to the proposed partition and subletting. However, despite this refusal Darugar and Salebhai went ahead with the proposed partition and subletting of part of the restaurant (one-third of the ground floor) to the present appellants who then proceeded to set up a shop under the name and style of 'Zanzibar Silk store'. Jariwalla knew of this unauthorised partitioning and subletting sometime before filing a suit in May 1969. In his suit Jariwalla claimed vacant possession of the whole of the ground floor and mesne profits against seven defendants, namely, in the order they appear in the plaint, Ebrahim Yusufali Ebrahimji, Murtazar A. Darugar, Mohasin salehbhai, Alibhai A. Girnary, Amratlal Damodar Maisatar, Musaffer Alibhai Girnary and The Registrar of Buildings.

Although the plaint in this case was filed in the Resident Magistrate's Court in May 1969 I note with grave concern the dilatory nature of the interlocutory proceedings which did not come to an end until October, 1975, that is, a little over six years after the plaintiff had filed his plaint in court. I cannot see any good ground on the face of the record of proceedings to justify this deplorable state affairs. Indeed, what the record reveals is a complete lack of any concern for dispatch on the part of the court as well as counsel for the parties. Time and again people have complained at the law's delay and to use Lord Denning's eloquent words: "counted it as a grievous wrong, hard to bear. Shakespeare ranks it among the whips and scorns of time. Dickens tells how it exhausts finances, patience, courage, hope." See **Allen v. Sir Alfred McAlpine and Sons Limited** [1968] 2 Q.B. 229 at p. 245. It would appear to me plain from the record of this case that the trial Resident Magistrate's Court was of the view that its role was limited to umpiring a 'game' between counsel of the various parties to the suit no matter how long it took to settle the score between them. That is clearly not what a court of law should be or do. If the law is not to be an ass, a court of trial has a duty not only to follow the rules of procedure but also to exercise some firm control over the proceedings before it and, if need be, to impose and enforce a time table for litigation. This course will of course not find favour with everyone but as Mr. Justice Templeman has said: "the argument against that course has always been that litigation was a game which litigants or their advisers were at liberty to play at their own pace and that the only duty of a judge was to decide a proportion of those few cases which survived to the last round and then to hand down lofty judgments which enured for the benefit of posterity until they were reversed by an appellate tribunal." That, as Mr. Justice Templeman was quick to observe, is an erroneous view of the role of a court trying a civil case. See **Towli v. Fourth River Property Co. Ltd.** and **Michaelides v. Cormican Properties Limited,** The Times Law Report November 23, 1976. The English Court of Appeal has repeatedly dealt with cases in which the suggestion that the parties can by mutual cordiality prolong the trial of actions by agreeing to adjournments in the interlocutory stage has been made but

ruled to be utterly misconceived. All in all, it seems to me, quite clear that however agreeable parties might be to adjournments, there comes a time when the court of trial is forced to say that in the interests of justice it cannot extend to the parties any more indulgences to adjourn the trial of a suit. To end my protest at the way this case has been handled in the Resident Magistrates court I should like to refer to a passage from the judgment of Lord Simon of Glaisdale in **Central Asbestors Co. Ltd. v. Dodd** [1972] 2 All E.R. at p. 1153 where he deals with the question of expedition in civil litigation thus:

> Litigation is the resolution of civil contention by methods preferable to violence. But that does not mean that it is otherwise an inherently desirable activity. The rule of law is not to be equated with a reign of litigiousness. Litigation involves a call on scarce resources, and it is apt to set up emotional and social strains of its own; no one with experience of litigation would suppose that Miss Flite was a purely fanciful creation. Hence the desirability of forensic dispatch. There can be few circumstances in which contentions within a society can be prolonged unresolved without risk to the fabric of society. Moreover dilatory procedures may defeat the very purpose of the judicial process, namely to vouch-safe justice, since if litigation is prolonged, not only is there waste of time and money and moral energy, but circumstances may change in such a way that what would have been at the outset a just conclusion is in the end no longer so. Finally, delay will make it more difficult for the legal procedures themselves to vouch-safe a just conclusion—evidence may have disappeared and recollections become increasingly unreliable. Speedy rough justice will, therefore, generally be better justice, that justice worn smooth and fragile with the passage of years.

Now to revert to the trial of the Plaintiff's suit before the Resident Magistrate's Court. The suit came for hearing before the Principal Resident Magistrate on 28th November, 1975, and the issues on which the learned trial Magistrate had to decide were:

(1) Whether the fourth defendant was rightly joined in the suit;
(2) Whether the partition of the restaurant and the setting up of the shop in a partition of it were made with the full knowledge and consent of the plaintiff;
(3) Whether the plaintiff is entitled to vacant possession of the suit premises; and
(4) Whether the plaintiff is entitled to mesne profits.

The learned Principal Resident Magistrate in a considered judgment entered judgment against the fifth and sixth defendants and ordered them to vacate and hand over to the plaintiff the premises of the shop known as 'Zanzibar Silk Store' and pay mesne profits to him. The appellants appealed unsuccessfully to the High Court hence this appeal before this Court. In their memorandum of appeal the appellants set out seven grounds of complaint against the decision of the two courts below. Their grounds of complaint read as follows:

1. The learned High Court judge erred in law and on the facts:
   (a) in accepting, as he did, the evidence of the respondent as truthful and in taking the view that the evidence showed that Amratlal was not in the picture on the question of consent;
   (b) in acting on the evidence of the second and third defendants to support the evidence of the respondent and to reject the evidence of Amratlal;
   (c) in regarding as strange that the question of partitioning the restaurant was made subject to the consent of the second defendant and in taking the view that it had the effect of increasing the rent accruing therefrom;
   (d) in allowing himself to be influenced considerably by his finding that the suit for possession was filed by the respondent promptly;
   (e) in being influenced by the fact that Amratlal was not made a party to the suit initially;
   (f) in failing to take into account the overwhelming evidence of the conduct of the appeallants consistent with their entry with the consent of the respondent;
   (g) in failing to consider the various contradictions which are apparent in the respondent's case;
   (h) in failing to consider the contradictions in the evidence of the respondent, second and third defendants;
   (i) in failing to consider the conduct of the respondent which evinced his honesty.

2. . The learned High Court judge erred in law in holding that the refusal of the respondent to grant

consent was not unreasonable.

3. The learned High Court judge erred in law in holding, as he did, that s.19(6) of the Rent Restriction Act did not accord any protection to the appellants.
4. The learned High Court judge erred in holding, as he did, that underletting to the appellants was unlawful.
5. The learned High Court judge erred in law-
   (a) in holding that the respondent did not waive the breach of the appellants (which is denied) by acceptance of rent only because he continued with his suit, and ought on the evidence to have held the appellants were impliedly accepted as the tenants of the respondent;
   (b) in failing to take into account the fact that the Registrar of Buildings had accepted the appellants as tenants and received rents from them;
   (c) in failing to consider the conduct of the respondent in his acquiesence of the Registrar of Buildings treating the appellants as lawful tenants.
6. The learned High Court judge erred in law in treating the appellants as trespassers and holding that the provisions of s.19(2) of the Rent Restriction Act had no application in the case of a trespasser.
7. The learned High Court judge erred in law in confirming the order of costs on mesne profits.

Messrs Lakha and Raithatha learned counsel appeared before us on behalf of the appellants and respondent, respectively. To take the appellants' first ground of appeal — while I found Mr. Lakha's long submissions on the various matters raised in this ground of complaint compellingly refreshing, I am afraid to say that he totally failed to persuade me that the two courts below erred as vigorously urged upon us by him. In any case, there appears to me to be no ground shown why this Court should interfere on concurrent findings of facts by the two courts below. In my respectful view, where, as in the instant case, there are concurrent findings of facts by two courts, this Court should as a wise rule of practice follow the long established rule repeatedly laid down by the Court of Appeal for East Africa, that is, that an appellate court in such circumstances should not disturb concurrent findings of facts unless it is clearly shown that there has been a misapprehension of the evidence, a miscarriage of justice or violation of some principle of law or procedure. As already indicated, the appellants in this case have failed to show any gro und at all to justify this Court to interfere with the concurrent findings of facts by the two courts below. In my view, this ground of appeal therefore fails.

Grounds 2, 3, 4 and 6 are closely interrelated and it is proper that they should be considered together. Mr. Lakha throughout the progress of this case, from the Resident Magistrate's Court to this Court, has consistently maintained the stand that the two appellants were at all material times the lawful tenants of the second and third defendants and, through them, the lawful subtenants of the plaintiff. Mr. Lakha has forcefully canvassed this stand because according to his contention both the partitioning and subletting of the suit premises were with the knowledge and consent of the plaintiff. I can find no valid basis for this claim. The learned first appellate judge after an impeccably fair and thorough evaluation of evidence adduced at the trial came to the same conclusion as the learned trial Principal Resident Magistrate that the two appellants were not lawful subtenants of the plaintiff because both the partitioning and subsequent subletting of the shop premises known as 'Zanzibar Silk Store' were without the knowledge or consent of the plaintiff and therefore in breach of the convenants to which the second and third defendants had willingly agreed to adhere. I do not think on the evidence on record, properly construed, the two courts below could have reached any different conclusion in the case. But Mr. Lakha has a second limb to his main argument and this runs briefly thus: that even in the face of the two courts' irreproachable finding that the two appellants were not lawful subtenants of the plaintiff it was wrong for the appellate court and the Resident Magistrate's Court to hold that his clients were not entitled to the protection of the provisions of the Rent Restriction Act, 1962. Although Mr. Lakha has referred us to an array of authorities as supporting his main and secondary argument, I am unable to see how any of the decided cases cited to us can have any bearing on the facts as found established in this case. Indeed a number of the authorities cited to us affirm the legal position of the plaintiff. One of the authorities referred to by Mr. Lakha as supporting the stand taken by the two appellants is section 19(6) of the Rent Restriction Act, 1962, which provides:

> An order against a tenant for the recovery of possession of any premises or ejectment therefrom under the provisions of this section shall not affect the right of any subtenant, to whom the premises

> or any part thereof have been lawfully sublet before proceedings for recovery of possession or ejectment were commenced, to retain possession under the provisions of this section, or be in any way operative against any such subtenant but such subtenant shall subject to the provisions of this Act, be deemed to become the tenant of the landlord on the same terms as he would have held from the tenant if the tenancy had continued.

The first appellate judge dealt with the question whether or not the provisions of sub-section (6) of s.19 of the Rent Restriction Act, 1962, protected the two appellants from an order for vacant possession and his answer is clearly in accordance with accepted authorities. This is what the learned first appellate judge said (p.186 of the proceedings):

> It is at once apparent that the operative words of this subsection are, '.... to whom the premises or any part thereof have been lawfully sublet.... It seems that in order to seek protection under this subsection it must be shown as a condition precedent that the premises in question were lawfully sublet to the person seeking such protection.

The first appellate judge's view on this point is firmly supported by case law—see **Onorato Della Santa and Others v. Peera** [1970] H.C.D. n.22 p.23; and **Gregory Mtafya v. Zainabu Lyimo,** [1976] L.R. T.n.3. It is clear from those two cases and the English cases considered there that a person who enters upon the premises of another without that other person's consent, express or implied, is in unlawful occupation of the premises. He cannot claim the rights that are due to lawful tenants and subtenants for he is a mere trespasser. I am of course conscious of the fact that Mr. Lakha has throughout vehemently protested at the use of the word "trespassers" which has an accepted legal meaning and as defined by Viscount Dunedin in **Addie v. Dumbreck** [1929] A.C. 358 at p.371 the trespasser is "he who goes on the land of another without invitation of any sort and whose presence is either unknown to the proprietor or, if known, is practically objected to."

In view of the evidence on record I do not think it can be seriously argued that the present appellants were anything other than trespassers. They entered upon the suit premises without the knowledge or consent of the plaintiff and when the plaintiff became aware of their unlawful presence he sued for their eviction. They may no doubt have been unaware of the niceties of the law of tenancy but that is none of the concern of this Court for as was said by Lord Shaw of Dumfermline in **Addie v. Dumbreck** [1929] A. C. 358 at p.379 of the child "who could know nothing of the law of trespass or licence, was in fact a trespasser." This disposes off grounds of appeal numbers 2, 3, and 4.

As regards ground of appeal number 6, I think a brief comment will suffice. Looking at all the decided cases including the **Onorato** and **Mtafya** cases it is clear beyond any dispute that a trespasser cannot claim the benefits flowing from the operation of the provisions of subsection (2) of s.19 of the Rent Restriction Act, 1962. The question whether it is reasonable to issue an order for vacant possession under the Rent Restriction Act, 1962, only arises where the person seeking to avail himself of the protection of the law is in lawful occupation of the premises either as a tenant or subtenant as defined under the Act. In the result I am unable to agree with Mr. Lakha that the point he has raised regarding the operation of the provisions of subsection (2) of s.19 of the Rent Restriction Act, 1962, with regard to a trespasser, has any validity whatsoever.

I now turn to consider grounds of appeal numbers 5 and 7. I will take ground of appeal number 5 first. The first question that arises is whether the Registrar of Buildings had accepted the appellants as the tenants of the respondent as contended by the appellants in paragraph (a) of the fifth ground of appeal or not. On the evidence found established in the case I cannot see how the Registrar of Buildings could have accepted the appellants as his tenants. How could the Registrar of Buildings do that since as between him (the Registrar of Buildings) and the lawful subtenants of the plaintiff, which the two appellants were not, there was no privity of contract and, therefore, in terms of the provisions of s.4(2), 11(1) and 11(2)(a) and (b) of the Acquisition of Buildings Act, 1971, Act No. 13 of 1971, the Registrar of Buildings could not step into the shoes of the owner of the acquired premises, leaving the relationship of leasee and sublessee unchanged? This question was in my respectful opinion fully dealt with and decided by the Court of Appeal for East Africa in the case of **Habib Yusufali v. Abdulasattar Riaziaddin,** [1972] L.R.T. n.64 at p.277. The submissions made by counsel in that case, who incidentally is the same counsel who has represented the two appellants in the instant case, were more or less similar to those now canvassed before us. In rejecting Mr. Lakha's submissions in the **Habib Yusufali** case, Mr. Justice Law, learned Acting Vice President, in a judgment in which the other members of the Court concurred, said at p.279:

> To whom does a subtenant of part of an acquired building pay the rent reserved by the sublease? As I have already pointed out, the owner is not, so far as I am aware, usually a party to the sublease, and he was not a party to the sublease the subject of this appeal, so that the sublease in this case was not a document in relation to which the Registrar was substituted for the owner 'as a party thereto'. The rent reserved under the sublease therefore continued to be payable, in my opinion, to the tenant by the subtenant. The tenant, who by virtue of his lease entered into with the owner as a party, must pay the rent reserved by the lease to the Registrar, who has been substituted by the Act for the owner.

The learned Acting Vice-President concluded his judgment thus:

> It follows that I cannot accept the submissions made by Mr. M.A. Lakha for the appellant that the Registrar becomes substituted for the owner in relation to every person in occupation of an acquired building, i.e., the tenant or subtenant or—presumably—licensee or trespasser. If the Act had intended this to be so, it could so easily have said so. Instead, the Act only substitutes the Registrar for the owner in respect of instruments to which the owner was a party.

The other point Mr. Lakha has raised in the fifth ground of appeal is whether the learned first appellate judge erred in law "in holding that the respondent did not waive the breach of the appellants (which is denied) by acceptance of rent only because he continued with his suit, and ought on the evidence to have held that the appellants were impliedly accepted as the tenants of the respondent." I do not think there is any basis for this particular complaint. The learned first appellate judge quite properly dealt with Mr. Lakha's complaint on the question of waiver at a considerable length from the last paragraph of p.187 to the end of p.189 of the record of proceedings. There is no doubt in my mind that the learned first appellate judge was right in rejecting Mr. Lakha's submissions on the question of waiver. Counsel's arguments, attractive as they are, have no foundation in law. Apart from the cases to which the learned first appellate judge has referred in his judgment, support for the first appellate judge's view may be found in two decisions of the English Court of Appeal; See **Clarke v. Grant and Another** [1950] 1 K.B. 104 pp. 105 and 106; and **Carter v. Green** [1950] 2 K.B. 76. In the former case Lord Goddard, C.J. discusses the principles to which a court must have regard in deciding whether an acceptance of rent after a notice to quit has been given by a landlord amounts to a waiver or not. He deals with this question as follows:

> ...if a notice to quit has been given in respect of a periodic tenancy such as a yearly tenancy the result is to bring the tenancy to an end just as effectually as if there had been a term which had expired. Therefore, when a landlord has brought a tenancy to an end by means of a notice to quit, a payment of rent after that date will only operate in favour of the tenant if it can be shown that the parties intend that there should be a new tenancy. A new tenancy must be created. That has been the law ever since it was laid down by the Court of King's Bench, presided over by Lord Mansfield, in **Doe d. Cheny v. Batten** (1775) 1 Cowp. 243. I need not read the judgments in extenso, but Lord Mansfied said (at p.245): 'the question therefore is, **quo animo** the rent was received, and what the real intention of both parties was.'
>
> It is impossible to find that the parties here intended there should be a new tenancy. The landlord was all the time desiring to have possession of the premises: that is why he had given his notice to quit. The mistake of his agent in accepting as rent which had already accrued, rent which was in fact payable, if it was payable at all, in advance, cannot be used to establish that the landlord was agreeing to a new tenancy.

He that as it may, there can be no doubt on the evidence on the record of this case that the plaintiff's acceptance of the refund of rent from the Registrar of Buildings was not an unequivocal act of affirmance of the two appellants as the tenants of the plaintiff. In fact, as Mr. Raithatha, counsel for the respondent has correctly stated: the money refunded to the plaintiff by the Registrar of Buildings is properly to be regarded as mesne profits which the plaintiff was entitled to claim from the two appellants. With that said, I hold that the fifth ground of complaint is without any substance and it is rejected.

Finally, the seventh ground of appeal. Mr. Lakha has submitted on this ground of appeal that the learned first appellate judge was wrong in law in confirming the order of costs on mesne profits because according to counsel the two appellants in this case tendered a cheque as payment for rent due to the plaintiff. I am unable to agree that the position in law is as urged upon us by learned Counsel. In Osborn, The Concise Law Dictionary, Fourth Edition p.329 the word 'Tender' is defined as "an offer; e.g., by a debtor to his creditor of the exact amount of the debt; the offer must be in money, which must be actually produced to the creditor, unless by words or acts he waives production. If a debtor has made a tender and continues to be ready to pay, he is exonerated from liability for the non-payment, but the debt is not discharged. Therefore if he is sued he should plead the tender and pay the money into court." In this respect see also the provisions of the Civil Procedure Code 1966 relating to Payment into Court, Order XXIV, r.1. As in this case the two appellants made no payment into Court in full satisfaction of the respondent's claim for mesne profits, the learned first appellate judge was perfectly entitled to affirm the trial Court's order of costs on mesne profits. Thus this ground of appeal also fails.

I would accordingly dismiss the appeal.

Appeal dismissed.

REPUBLIC v. AGNES DORIS LIUNDI (MAKAME, J.)

REPUBLIC v. AGNES DORIS LIUNDI

[HIGH COURT OF TANZANIA AT DAR ES SALAAM (MAKAME, J.)]

CRIMINAL CASE 46 OF 1978

Evidence—Defence of Insanity—Burden and Standard of proof.
Evidence—Insanity—Evidence of medical expert—Court not bound to accept it.
Insanity—Mental stress—Whether constitutes insanity in law.

The accused was charged with three counts of murder. Due to grave matrimonial disharmony and threats by husband to throw the accused out of the matrimonial home, the accused decided to and did administer poison to her four children and took some herself together with some ground pieces of glass. Three of the children died. The accused and one of her children were saved by doctors. Before the accused administered the poison she wrote four letters explaining why she made that decision and that her husband was innocent and should not be punished. During the trial the accused raised the defence of insanity. It was argued on her behalf that she was so mentally stressed that although she knew what she was doing she was not capable of knowing what she was doing was wrong. The prosecution argued that the evidence before the court proved that the accused knew what she was doing and her letters showed that she knew what she was doing was wrong.

Held: (i) where an accused raises the defence of insanity it must be shown on all the evidence, that insanity is more likely than sanity, though it may be ever so little more likely;

(ii) the burden of proving insanity is on the accused on a balance of probability;

(iii) the court is not bound to accept a medical expert's evidence if there is good reason for doing so;

(iv) in this case the accused wrote the four letters and administered the poison when she was mentally stressed, but was legally sane; she knew what she was doing and that what she was doing was wrong.

Accused found guilty of murder on each of the three counts.

Cases referred to:

(1) **Nyinge Siwato v. R.** [1959] E.A. 974.
(2) **Mbelukie v. R.** [1971] E.A. 479.
(3) **Regina v. Walden** [1951] 1 W.L.R. 1008.

F.H. Uzanda for the Republic.
P.J. Jadeja for the Accused.

February 28, 1979. MAKAME, J.: The accused Agnes Doris Liundi is charged on three counts of murder. She is alleged to have murdered her three children Lona, Pili, and Iweni Liundi at their house at Kijitonyama Juu in Dar es Salaam on 21st February, 1978. She has on each count pleaded Not Guilty.

It is contended by the Republic, and controverted by the accused, that, on the date aforementioned the accused gave some poison to all her four children, the other one being Taji, the eldest, who survived, and that her intention in doing so was so that they might die or suffer grievous bodily harm.

I am convinced that it is true the three children Lona, Pili, and Iweni are dead. I am persuaded to believe this because of the evidence of three people: P.W.4 George Liundi who told the court that the three children were his and the accused's and that he identified their dead bodies to a Dr. Kombe; P.W.10—Ali Kombe who says it is true and that the identification was done to him in the presence of a policeman called Marola; and P.W.9 Narcis Sakayo, a police constable, who told this court that he was present at the mortuary, Muhimbili Hospital, when on 23rd February, 1978 the accused's husband identified to Dr. Kombe the dead bodies of his three children.

The chain of evidence satisfies me that the three bodies Dr. Kombe performed postmortem examination on are the same ones from which were obtained portions and materials which were examined at the Government Chemist's by P.W.6 Felicia Luiza Dias who wrote her findings in three reports, Exhibits 6, 7 and 8 one for each child. These three exhibits and the three postmortem examination reports composed by Dr. Kombe, as well as the oral testimony of the said doctor and that of P.W.6 Dias, the chemist, cause me to believe that the findings related were indeed made and to accept the opinion that the three children died of poisoning. According to Dr. Kombe on examining each body, he found that the stomach had a liquid with a distinct unsual smell, rather like that of an insecticide or burnt mosquito coil; and he formed the opinion that death was because of poisoning. He sent the stomach, the contents of the stomach, the liver and the kidneys of each child for toxicological investigation. P.W.9 told this court that he personally took to the Government Chemist the internal organs Dr. Kombe gave him in sealed boxes, and I have no doubt it was these things P.W.6 examined. According to Dias, she found in each lot organic sulphur, and organic phosphorous. For Pili and Lona there were also traces of Chloroquine and organic nitrogen. The three chemicals found are all chemical substances not naturally found in that form in the human body. A combination of these substances is normally used in the preparation of such insecticides as Diazone and Parathion. Large quantities of such insecticides, depending on the quantitative constitution of the particular insecticide, are fatal.

The alleged events at the house of the Liundis on the material day before the accused and her four, children were taken to Muhimbili Hospital are testified to by four people; P.W.1 Rashidi Mlowola, a domestic servant of the Liundis; P.W.2 Bibie Liundi, who said she is the daughter of George Liundi's full sister; P. W. 3 Anna Chisenga, the accused's maternal cousin, once removed; and P. W. 4 George Liundi himself, the husband of the accused.

P.W. 1 said that he arrived at the house at 6.15 that morning and that, when he did, he found all the ten people in the household, at home. These were the two Liundis and their four children to make six; two other children, Kapinga and Andrew; Bibie; and Anna. At 11 a.m. the accused went away with three of her own four children: Taji, Pili and Iweni. Mr. Liundi had left at 8.30 a.m. after P.W.1 had already made tea and was going on with other domestic chores. The accused and the three children returned about half an hour later, and the accused had with her a bottle of orange squash which the witness put in the refrigerator. At about half an hour past midday P.W.1 got ready some sour milk to give to the children but the accused prevented this. It is contended by the Republic that this action by the accused had pregnant significance in that, knowing that she was going to administer poison to her children, the accused did not wish them to drink the milk lest it reduced the potency of the poison. After the accused had prevented the children from drinking the milk she called into her bedroom only her own four children, not Kapinga and Andrew, and closed the door, but not until she had fetched the bottle of orange squash and got some cups. A while later P.W.1 heard Baby Iweni crying and these cries were joined by those of the other children in the bedroom. At the request of the accused, Bibie took Iweni, now purging and vomiting, and went to wash him. The baby continued to purge and vomit even after it had been washed. P.W.1 and Bibie made to telephone Mr. Liundi to inform him what was happening but Bibie had to go and make the call from the house of a neighbour because the accused would not let them. The accused left her own bedroom, the one with the four children, and went to the bedroom ordinarily used by Bibie and Anna, and this was after she had returned empty—handed to her bedroom after she had gone into the toilet with some cups. The accused going to the other bedroom afforded P.W.1 the opportunity to go into the accused's bedroom to see what had happended to the children. There the witness found them in a sorry condition, vomiting and purging,

with the bedsheets soiled. The witness decided to go out to seek neighbours' assistance and when he returned he went to the Anna—Bibie bedroom, hereinafter referred to as the second bedroom, to ask the accused what was up. He asked the accused; whose reply was "Rashidi, leave me to die with my children because Baba Taji does not like me". Now using the house telephone, P.W.1 rang up Mr. Liundi as well as the Police. In a motor vehicle P.W.1, Bibie, and neighbour by the name of Mama Hellena, took the four children to hospital via the Police Station Chang'ombe, and the Temeke Dispensary. Iweni had already expired by then and, on arrival at Muhimbili Hospital, two more children, Lona and Pili, were pronounced dead. A Police vehicle arrived shortly afterwards, carrying the accused and her husband.

Bibie too says that after her uncle had left, the accused drove off taking with her three of her children and that when she returned she was carrying a bottle of orange squash. She says also that when P.W.1 offered sour milk to the children she, the witness, heard them say that their mother had told them not to take it. She adds also that she asked Lona to undo her hair so that she might plat it but Lona said mother had said she would herself do it. She corroborates Rashidi about Iweni crying, purging, and vomiting while the four children were inside the bedroom with their mother and about the accused saying that they should not telephone Mr. Liundi and so she, Bibie, had to go to a neighbour's house to telephone her uncle. When she returned from telephoning is when the witness noticed that the other children were also in a bad condition. By the time they reached Muhimbili three of the children were dead.

Anna told a similar story, basically, but she did not mention the bit about the accused preventing the children from taking sour milk.

The last of the four witnesses was the accused's husband, who told the court of how he got out of bed late that morning, at about 7.30 a.m., and started cursing people. Rashid was unusually late and had not yet arrived; and neither his wife, who was unwell, nor any of the two big girls, Anna and Bibie, had made tea for him to take with him to work. He went off at 8.30 a.m. in a raging temper, leaving his sickly wife crying after he had threatened to throw out the wife, Bibie and Anna, if they persisted in not serving him. Later while at work he got two telephone calls, one from Bibie and the other from Rashidi both telling him about the children's condition at home and urging him to go thither. He eventually got there in the company of two women, Zoe Rebello and Mrs. Suleiman from Dr. Khalif Khan's dispensary, who gave first aid to his wife who was lying on the floor in the second bedroom and who appeared to be on the throes of death. He learned that the children had already been taken away and when he reached Muhimbili with the accused he found Taji in an awful condition. He was also shown the dead bodies of the other three children.

Two policemen, P.W.5 Christopher Tenga and P.W.9 say that they went to the scene of the alleged crimes. They went there together and, according to P.W.5, before getting there they became aware that all the people who had allegedly taken poison had already been carried away. When they got to the house they were shown round by Anna. P.W.5 says that in the second bedroom he found some vomit which he put in a bottle and in the other bedroom he found four letters, and these are Exhibits 1—4. Exhibit 1 is addressed to 'Ndugu'. Exhibit 2 to 'CCM', Exhibit 3 to 'Usalama', while Exhibit 4 was addressed to Sizya. The contents of these letters were read out in court. According to Exhibit 1 the writer was saying that the decision the writer had taken was permanent. Because the writer was referring to 'My husband' I suppose it can safely be assumed that the writer was a woman. The letter was pleading that no action should be taken against George, the writer's husband, and that she was taking the children with her because she did not want them to suffer like she had done. It is purportedly signed by "Mrs. A.D. Liundi." The second letter, the one in an envelope to 'CCM' is very much in the same vein as the first, and it too is purportedly signed by 'Mrs. A.D. Liundi'. Exhibit3, the one to 'Usalama', is substantially similar to the first two and, like those first two and Exhibit 4, it is dated 21st February, 1978, the day of the alleged murders. The writer's address in the first three letters is 'c/o Box 9050 Dar es Salaam.' I take judicial notice of the fact Box 9050 is the letter box number for the Ministry of Justice where P.W.4. the accused's husband, is employed.

The letter Exhibit 4, the one addressed to 'Mrs. M.F. Sizya' on the cover, is addressed to Mama Gaudensia and the writer's address is Keko No. 60. I note that this is the number of the house where the accused is alleged to have committed the offences. It says that Mama Gaudensia was one of the writer's few friends indeed, and asks the addressee to pray for the writer 'just in case the way I have taken is never a short cut....Pray for the kids....Pray for your shemeji, he was my husband. You witnessed my wedding and I loved him (?) the cost of my own life." It goes on "Don't cry dada, please pray. The horizon is closing on me very fast—now with all my kids to make maintenance (sic) problems easy for anyone concerned." This one purports to be signed by 'Mama Taji', 'Agnes' and the actual signature legend is, in my view, similar to those in the other three letters.

P.W.5 went on to tell this court that he also found in the toilet a bottle labelled 'iodine', a tumbler,and

of broken glass. These, together with the vomit, the witness sent to the Government Chemist by hand ...tive Narcis who is, I am satisfied, P.W.9 Narcis Sakayo. P.W.9 too talked of the same thing P.W.5 ...ay found in the toilet but, according to this witness, there were in fact two sets of vomit, one in each ...m, and the letters were six, not four. We shall return to the letters later. For the time being, both ...s say the other things were sent to the Government Chemist, which takes us to another witness, ...io Mascarenhas, P.W.7. He told the court that he is a chemist at the Government Chemist's and ...been there for some thirteen years now. His evidence, taken together with that of P.W.5 and P.W.9, ...me in no doubt that Exhibit 5, the report Mascarenhas says he wrote, relates to the same things, other ...the letters which both P.W.5 and P.W.9 say they collected from the house.

According to Exhibit 5, the bottle labelled 'iodine' had no poison while the tumbler had some iodine. ...vomit had organic sulphur, organic nitrogen and organic phosphorus which, he said, like the other ...mist Dias said, are chemicals used in the preparation of **insecticides.** Examination of the pieces of glass ...vealed the presence of camoquine.

P.W.8 Andrew Nali told the court that he is a Primary Court Magistrate and he testified to recording ...extrajudicial statement made to him by the accused in April 1978. This is a longish statement in which ...accused tells of the death of her mother soon after her own birth and relates her unhappy childhood. ...got married early, at the age of 20, in February, 1967, having finished Form IV only the previous year. ...made that decision so as to get herself some security for she felt she would otherwise have no one to turn ...to in the event of her father's death. The first two years or so of marriage were happy, but trouble started ...in 1969 when she went to train as a teacher at a Teacher's College at Morogoro. She was raped by someone ...there and apparently contracted a venereal disease which in turn she passed on to her husband when she ...came to Dar es Salaam on a weekend. Soon after the rape she decided not to tell anyone about it, not ...even her husband, because she felt that no one would believe her as her ravisher had managed to lure her ...to his house. She therefore had no explanation to offer to her husband who kept on nagging her about ...the infection she had given him. Her husband returned to this matter every-time they quarrelled, so ...eventually, in 1973, some four years after the event, she decided to spill the beans. The husband was not ...impressed and he said that the alleged rapist must have been the accused's boyfriend. Sometimes when ...the couple quarrelled the husband would chase away the accused with the children and as recently as ...1977 she had to recruit the counsel of the husband's two uncles to resolve the on-going dispute.

That appeared to contain the husband somewhat. One week before the children's deaths the accused ...and her husband went to a party thrown by the Chairman of the Board of Directors, Posts and Telecommu-...nications, where an incident, the details of which it is not immediately necessary to delve into, sparked off ...a quarrel between the spouses and during the course of this the rape story was resurrected. The following ...day the husband told the accused that he, the husband, would write a memorandum which she, the accused, ...would have to sign. He wrote that he, Liundi, had lived in the shadow of the rapist for seven years and was ...now fed up so he was leaving the matrimonial home. When he asked her to sign she asked him for time to ...digest the contents of the document but when he pleaded with her to sign she wrote that she was signing ...under duress, then she signed and dated the document which she then returned to Liundi. When Liundi ...read what the accused had written he tore up the document into pieces and said that as she had not properly ...signed the document he would not leave the house; instead she would. He told her to pack and take away ...from the house anything she wanted. He repeatedly told her, in extreme anger, that if he found her still at ...home upon his return from work he would whip her and throw her out naked. The husband left and the ...accused's mind was thrown into a whirl. She remembered her unhappy childhood and how lonesome she ...was as her father had died in 1972. She cried very much and did not know where to go. There was no one ...to rely on among her parents' people, and, on her husband's side there was only a younger brother who was a ...drunkard and in bad terms with the accused's husband. She drove into town with the children so as to ...calm herself. She went to a Chemist and bought three bottles of insecticide and went back home where she ...unsuccessfully tried to get some sleep. She made a mixture of drops of the insecticide and some orange ...squash and decided to take her life.

She felt that if she left the children behind they would suffer like she had done in her childhood. She took her children into her bedroom, closed the door, and told them that they were setting off for an unknown destination. She and the children kissed one another, and shook hands. She gave the mixture to each child, in a cup, and she drank her share from a glass. They vomited. For good measure she drank some iodine and swallowed some pieces of ground glass. She went to shut herself up in another bedroom and when she came round she found herself at Muhimbili Hospital and she was told that three of her children had died. She concludes the statement by saying that she did not intend to kill her children but she did so so that they

might not suffer in future.

In her defence the accused made an unsown statement, which she was of course entitled to do, and she called three witnesses on her behalf: These were D.W.3 Johnson Haule, a Specialist Psychiatrist; a family friend Dr. Conrad Mmuni D.W.1; and D.W.2 Sylevester Kaweni, a distant nephew of the accused's husband. We shall start with the accused's own brief story from the dock.

In court the accused told of her lonesome childhood and of her unhappy married life preceded by only two or three years of happiness in marriage. During their quarrels her husband would chase her and the children away and this made her anxious. Besides, she was not keeping good health: Amongst other ailments she had constant headaches, blood pressure, and heart trouble. On 21/2/78, that is the day she is alleged to have murdered her children, she and the husband quarrelled and he chased her. She became anxious and felt lonesome. What happened she does not know but she later found herself at Muhimbili Hospital where she was told that three of her children had died. Sometime after that, while at the Chang'ombe Police Station, she asked to be taken to a doctor, which was done, and at the doctor's she was asked some questions about her problems. She is now surprised to hear that she was taken to a magistrate. If I understood the accused correctly, and I think I did, but of course I could not check with her because she was not testifying on oath, I think the accused is suggesting that if she did make the statement produced in court she thought she was doing so in the presence of a doctor.

The essence of Dr. Mmuni's evidence was that he is a close family friend of the Liundis and that he had occasion to reconcile the couple. This was in 1975 when the accused appealed to him to prevail on her husband not to chase her as she had nowhere to go to. After a long conference Liundi withdrew his intention to chase away the wife and it seemed to the witness that the husband had made a hasty decision in the first place.

Kaweni, D.W.2, told the court that one day in 1977 he and a person called Mohamed Amiri Mtau had a discussion with the accused and her husband, and tried to sort out their marital misunderstanding. This touched on the venereal disease story and the two men counselled the husband to be more tolerant and the wife more faithful.

There was also the testimony of the Psychiatrist Dr. Haule whose sojourn in the witness box was not very short. He expressed the opinion that at the material time, the time of the alleged offences, the accused was insane. He started treating the accused in February, 1978, that is the same month she is alleged to have killed her children, and, at first, talking to the accused was, to use the Specialist's own words, "as if I was talking to a tree." It was the doctor's view that the accused knew what she was doing but she did not know she was doing any wrong, legally or morally. This witness was subjected to some vigorous questioning by Mr. Uzanda, learned Prosecution Counsel. He said that the decision the accused made was that of a mentally sick person and after admission the accused showed symptoms of depression. Among other things, she was bad tempered, not sleeping or eating well, and was complaining of tiredness and pains. Both in his report, Exh. 17, and here in court, the witness expressed the view that the accused believed that her husband was ordering her to kill herself and the children.

I am most grateful to both learned Counsel, Mr. Uzanda for the Prosecution and Mr. Jadeja for the Defence, for their useful help throughout the trial, including their erudite and lucid addresses at the end.

I promised that we would return to the letters which I now turn to. Mr. Liundi, the accused's husband, was asked various questions about these letters. His answers were to the effect that, in his opinion, the letters were written and signed by his wife. Martha Sizya, P.W. 11, a friend of the accused, who was at Secondary School with the accused for four years, from Form I to Form IV, and who told the court that she used to receive letters from the accused, told this court that the accused's hand writing keeps on changing and that she did not have the faintest idea as to who wrote Exhibit 4, the letter apparently to her. The same witness told this court that she did not remember what she said to the two police officers who visited her at home on 12th March, 1978, that is less than three weeks after the alleged murders were committed, and who accosted her with Exhibit 4. Well, it cannot be too often that the witness has been visited by policemen on such a mission and she would need to have an unsually bad memory to forget what transpired, if at all she was telling the truth. I am satisfied, beyond any doubt, that Martha Sizya furnished this court with deliberate untruths and that she is an unblushing and unabashed liar. Watching her performing in the witness box left me in no doubt that she was quite familiar with the accused's handwriting and that she recognized the handwriting Exhibit 4 as that of her friend and former class-mate, the accused. The only important little truths she conceded to, I am satisfied, are that she would ordinarily refer to the accused's husband as 'Shemeji' and that her first daughter is called Gaudensia. These little concessions on the part of the witness are important in the import, contents, and alleged authorship of Exhibit 4 and they buttress me in the view

that Exhibit 4 was addressed to, and intended for, Martha Sizya.

I am positively impressed by the testimony of P.W.4, the accused's husband, on the question of the authorship of the four letters. I find that they were all written by the accused, and on the very fateful day, and that they were intended to communicate the contents to the various addressees. P.W.9 said that the letters found in the house were six, whereas Tenga P.W.5, the superior police officer P.W.9 accompanied and who took custody of the letters, said that they were merely four. I am satisfied that P.W.9's recollection on this was faulty and that the letters were in fact only four, the ones produced in court, as P.W. 5 said. I do not place much significance on the disharmony regarding the number of vomits.

Substantially, Rashidi, Bibie, and Anna told the same story about what allegedly happened at the house before the accused and her children were carted away to hospital. One wants to appreciate that this was at first just one other morning at Keko Juu, when no one in the Liundi household had any particular reason to make meticulous note of all the comings and goings, not until the children started purging and vomiting, as I am satisfied they did. I am convinced it is true that the accused went away with three of the children sometime after her husband had gone off to work and that when she returned she had a bottle of orange squash with her as alleged. Although Anna does not say so, I am persuaded to believe that the accused did say the children should not take the sour milk and that soon after that, leaving out the other two children who were not hers, Kapinga and Andrew, she closed herself in with her off-spring, and the sequence of events leaves me in no doubt that what caused the children to vomit and purge shortly afterwards happened to them while inside the accused's bedroom. Nothing untoward about them had been noticed before they were taken in by the accused. The three children died of poisoning and it is in my view eminently reasonable to hold as I do, that they took the poison while they were inside their mother's bedroom, with the accused. The accused did move to the second bedroom, I am satisfied it is true, and that her husband found her there when he arrived. This shifting from the first bedroom to the second one when the children were already in a bad condition is not a usual thing for a mother to do and, in my opinion, such conduct is pregnant with significance.

The Defence objected to the alleged extrajudicial statement, first because, Mr. Jadeja said it was made by a person whose mind was not sound; and secondly on the ground that, on the face of it, the usual formalities had not been complied with. For reasons I gave, I said that the issue of insanity could be brought up as a general defence; and on the second score I was satisfied that even though the Justice of the Peace might not have expressed himself very precisely and elegantly, he sufficiently complied with the necessary formalities. I am satisfied that he did tell the maker he would record what the maker had to say and that this did not create in the mind of the maker of that statement the impression that that person had no choice but to make a statement. Nali says he told the maker she did not have to make a statement if she did not wish to do so, and I am satisfied that this is true.

I have no doubt in my mind that the person who made that statement is the accused in the dock. I believe that she knew who she was before and I am unable to accept her invitation to believe that she thought she was relating things to a doctor. I agree she might have had sessions with doctors, including the Psychiatrist, but I feel certain that this one was different and that she knew it.

That the accused was at all material times insane is very central to the accused's defence. D.W.3, the Psychiatrist, supports this contention, which did not positively impress the first gentleman assessor who opined that the accused is guilty of murder, but it did find favour with the second gentleman assessor. Dr. Haule appears to me to be an experienced and highly qualified Psychiatrist. He is, among other things, a Member of Royal College of Psychiatrists and has a Diploma in Psychiatric Medicine (England). I would therefore pay due respect to his professional views and would accordingly be slow to reject his evidence. I am also live to the fact that even though it is for an accused person to show that he was at the material time insane it is enough if he shows this on a mere balance of probability. The accused must show, on all the evidence, that insanity is more likely than sanity, though it may be ever so little more likely. The settled authority for this is the oft quoted case of **Nyinge Siwato v.R.** [1959] E.A. 974, followed so many times, including in **Mbelukie v.R.** [1971] E.A 479. That said however, I have also to keep in mind that, as WINDHAM, J.A., as he then was, said in **Siwato's case,** "The Court is not bound to accept medical testimony if there is good reason for not doing so." At the end of the day, that is, it remains the duty of the trial court to make a finding and, in doing so, it is incumbent upon it to look at, and assess, the totality of the evidence before it, including that of medical experts.

I regard Dr. Haule's testimony as an important input but I must warn myself, as I do, that it would be wrong and most improper to feel bound by Dr. Haule's evidence, and wrong also, to consider it in isolation.

Mr. Uzanda has suggested that Dr. Haule's report, Exhibit 17, was in effect contributed to by some other

person. I was myself at first intrigued by the gulf of difference between Exhibit 17 and an earlier document Dr. Haule wrote regarding the accused. I pointed this out to the witness and he conceded that the earlier document was not so elegantly composed and he gave some explanation. Whatever might have crossed my mind at that stage was only for a fleeting moment and I must confess that it failed to crystalize in the crucible of certitude. It would appear that, for his part, Mr. Uzanda felt more positively and he urged the view quite seriously. Speaking for myself, upon further reflection, I came to the view that it is not necessarily impossible that Exhibit 17 is entirely the workmanship of Dr. Haule who, as a Specialist Psychiatrist, can safely be presumed to be familiar with not only the medical definition of insanity but also with the legal definition of the said affliction. If one may go further, Dr. Haule was perhaps no more than conforming to the idea Prof. Eric Lucas has of an educated man: a person who has not only travelled an appreciable distance in his chosen field of learning but who can also demonstrate respectable familiarity with some of the intelectual highways of other people. ('WHAT IS A MAN?' — A Symposium from Makerere, 1962).

Although the Defence has suggested that the possibility that the accused did not kill her children as alleged cannot be ruled out, I am satisfied beyond reasonable doubt that she, it was, who gave the children some poison, which she herself also took, and that it is this poison which caused three of her children to die. The letters and her reply to P.W.1 "Rashidi, leave me to die with my children because Baba Taji does not like me", her preparation of the mixture, and her preventing people from reaching her husband on the telephone, are among the factors which reinforce my view that the accused contemplated and intended her children's death.

I have to consider the defence of alleged insanity at three different stages: At the time she wrote the letters as I am satisfied she did, at the time she administered some poison to the children and took some herself as I feel certain is true, and at the time she made the extrajudicial statement to Nali as I have no doubt she did. The letters, all in clear hand, are sensible and understandable as far as they go, and they seek to explain why the accused was going to do what she was about to do. The reason given for killing the children is altruistic and, in the background of the grave marital discord, it is not necessarily surprising. They show a keen appreciation of the consequences even to the accused's husband, and in the one to her friend, Martha Sizya, the accused even mentions the possibility of failure — just in case what she is about to do is not short cut. As it turned out, the accused's life was saved by doctors. She therefore did not go, the short cut she had in mind. She merely peeled an onion — she removed one leaf, only to find another.

I have carefully searched the letters, and even tried to read between the lines, but I have not been able to glean wherein one could reasonably come out with the view held by Dr. Haule that the accused was not only over-dependent on her husband but she also was under the delusion that the husband was ordering her to kill herself and the children. On all the evidence I am satisfied that the accused was **Compos mentis,** of sound mind, when she wrote the four letters, which letters she intended should communicate what she had decided to do. The writing of the four letters and her administering the poison to her children are very much related in point of time and I might just as well pause here to say this, what is at the moment foremost in my mind. The accused did these things when she was mentally stressed, I agree, but was she **insane** — in the sense that she either did not know what she was doing, or that if she did know what she was doing she did not know that what she was doing was legally wrong? The facts speak for themselves: The preparation and premeditation were there, the malice aforethought was evident, and the desire that help should not reach the children was shown. I am of course here using 'Malice Aforethought' as a term of art — I am not talking of the accused's acts being wicked, 'badhearted', or spiteful. The decisions might have been irrational or abnormal, but what murder, I ask, is ever rational or normal? By definition it is not, and murders have been known to be committed by desperate, despondent people who have abandoned hope. The accused did kill her three children, and the background to the event attract pity and sympathy, rather than condemnation, one may say. Witness for example the heart-rending farewell episode in which trusting children asked where they and mother were going to, and mother's reply. T kissing and the hand shaking. For a mother to snuff off the lives she gave could not have been an easy and happy decision and, as I have said the accused's reasons might have been altruistic, in her own mind, but not every mental abnormality constitutes insanity, and in the present case I am of the carefully considered view that the accused was legally **sane.** I respectfully share the opinion of the first gentleman assessor who found that the accused was legally sane at the material time. This necessary finding causes me personal anguish, but my powers and my interpretative role are circumscribed by the law. I have to take the law as it is, not as I might personally wish it to be. I have my legal training and professional ethics to be true to, my oath of office to be faithful to, and, at the end of the day my conscience to live with. As William Shakespeare puts it, "So does conscience make cowards of us all."

This problem judges have in this regard, and one can quite properly argue that it is in the interest of society that judges should be confronted with this problem, for Justice must be, and continue to be, according to law, and judges must never feel free to act on whims, is expressed with characteristic clarity and contemplative depth by Mr. Justice CARDOZO in "The Nature of Judicial Process" (1921) when he says:

> The Judge, even when free, is still not wholly free. He is not to innovate at pleasure. He is not a knight-errant roaming at will in pursuit of his own ideal of beauty or goodness. He is to draw his inspiration from consecrated principles. He is not to yield to spasmodic sentiment, to vague and unregulated benevolence.

I think Sir GARFIELD BARWICK (Lionel Cohen Lecture: Precedent in The Southern Hemisphere, 1970) had the same thing exercising his mind when he said that.... [The] judge is [not] at liberty to give effect to his own personal view of what is right and just in the particular circumstance. His decision must be according to the principles of the law which, it must be conceded, can at times work less than justice.

The defence has urged that the accused was also insane when she made the statement. I am convinced that this is not true and I do not propose to dwell long on this one. The coherence and detail of the contents, and the fact that the relevant portions give credence to the accounts given by P.Ws.1, 2, 3 and 4 leaves me in no doubt that the accused voluntarily made the statement while she was sane. I am also satisfied that she told the truth in the basic relevant essentials. My answer in conclusion is that the accused was legally sane at all the material times, that is when she composed the letters; when she gave the poisonous substance to the children after deliberately excluding Kapinga and Andrew; as well as when she made the extrajudicial statement to the Justice of the Peace. I accept Dr. Haule's evidence that at first he found the accused not so communicative but I do not agree that, that was because the accused was legally insane. I would say rather, that was because the accused was stunned by her own failure to die and by the consequent anticipated ordeal of having to answer the charges, the remorse at what she had succeeded to do, and the disconcert at realizing that Taji's eyes would always tax her with, and accuse her of, the killing of her siblings.

Liundi, the accused's husband, told the court of how, in effect, he had been harsh and inconsiderate to his wife. I am not qualified to pass moral judgment on him, for one thing because he was not in the dock, and for another because this is not a forum for moral judgment. He is probably in a better position than this court is, to say how much of this tragedy could be attributed to him. I say in a better position for it seems very likely that not all the details of their marital vicissitudes had to be brought out or were brought out in this case. Looking back he may perhaps wish to say with NGUGI WA THING'O ('PETALS OF BLOOD', at p. 45):

> Perhaps... perhaps this or that.... What I might have done or might not have done... these things we always turn in our minds at the post-mortem of a deed which cannot now be undone. Peace my soul.

I think it was La ROCHEFOUCAULD who said; "We pardon in proportion as we love" and, according to GEORGE SIMS, in his book 'SLEEP NO MORE', "Love is a gradual accumulation of sympathetic detail about another person with the mutual acceptance of faults." As Mr. Liundi emerges from the tunnel he will no doubt increasingly realize that the canvas of life is large enough to contain man in his divers and diverse dimensions.

One is tempted to add, before going back to the accused, that in his professional position, Mr. Liundi hardly needed to be guided by legal advice to be able to appreciate that there were such other avenues as judicial separation and divorce open to him. But then I am digressing.

The accused had an unhappy and unstable childhood and that perhaps has contributed to her particular 'underlying personality' which I believe has something to do with one's degree of conflict-and-stress tolerance. Otherwise one possible way of looking at her situation could have been this: "For all practical purposes I never had a mother and I did not enjoy the advantage of a happy and carefree childhood. All the same, despite heavy odds, I survived, got education up to Form IV, and managed to find myself a husband. There is this marital problem and my husband is being impossible. It is not the happiest thing to do but I shall go off on my own, continue with my teaching job, rear my little kids the best I can, and give them a chance." I am saying that could have been the accused's reaction, the reaction of many a woman in the accused's sorry situation, but it was not the accused's reaction. She chose the reaction she chose and, however pitiable it is, the hard fact still remains that she committed three crimes, three crimes proved beyond

reasonable doubt. Incidentlally the rape-venereal disease issue seems to have loomed large and dominated the couple's domestic scene. If it is true that the accused infected her husband with the disease she would know the real truth as to how she herself contracted it.

I am now thinking aloud: I am interpreting the law as it currently is, but there is my that other role–the role His Excellency SHRIDATH S. RAMPHAL, the Commonwealth Secretary General, himself a lawyer I am told, calls a lawyer's **Creative social role** ('To Deserve To Be Wanted: Opportunities And Challenges for Commonwealth Lawyers', Edinburgh, July 1977), which one would argue involves also the task of identifying and pointing out to Society, such areas in the law as 'The People' in their great wisdom, might wish to introduce appropriate changes in, without necessarily opening the flood – gates. In the instant case I have in mind 'Diminished Responsibility'. To borrow from Paull, J. in **Regina v. Walden** (See [1951] 1 W.L.R. 1008), "There are some cases, you may think, where a man has nearly got to that condition where he is wandering on the border–line between being insane and sane, where you can say to yourself 'well, really, it may be he is not insane, but he is on the borderline poor fellow. He is not really fully responsible for what he has done,....!"

I am not saying that the present case is necessarily one such case. I am merely illustrating a point in the above theme. They sorted out this problem in England twenty two years ago when they passed the Homicide Act 1957 which, under s.2, recognised Diminished Responsibility as a defence to a charge of murder.

One is reminded of the recent case of **Julia Overton** at Cambridge. Mrs. Overton, 27, the wife of a Cambridge University Lecturer, killed their two small sons, Mathew 3, and Jonathan 2, by putting a plastic bag over their heads after her husband had told her that he wanted a separation. She told the court that she killed them because she did not see any future for them and did not want them to turn out like most fatherless children do. In her case Diminished Responsibiliy was found and she was placed on probation for three years. In Tanzania we do not as yet, have such a law. It would be dishonest, unprofessional and presumptious on my part to go beyond my proper role. If at any other stage in the system my opinion is required in this case that will be in a different role which role I shall play accordingly. In the meantime I have this job to do.

The second gentleman assessor expressed the view, not shared by the first gentleman assessor, that the accused was at the material time insane. I do not accept this view and I am also unable to agree with the Psychiatrist on this. For reasons I have explained I respectfully agree with the first genleman assessor and with equal respect I disagree with the second one. I find the accused guilty of murder on each of the three counts and accordingly convict her.

Accused found guilty of murder.

AGNES DORIS LIUNDI v. REPUBLIC (MUSTAFA, J.A.)

AGNES DORIS LIUNDI v. REPUBLIC

[COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM (Mustafa, Mwakasendo and Kisanga, JJJ,A.)]

CRIMINAL APPEAL 82 OF 1979

Evidence—Insanity—Mental stress—Letters imply innocence and punishment relating to the killings—Whether appellant did not know what she was doing was wrong.

Sentence—Of death—To be passed on one count

The appellant was charged with and convicted of the murder of three of her children by the High Court. On appeal it was argued on her behalf that the trial judge did not give adequate consideration to the point raised by the defence that the appellant did not know that what she was doing was wrong although she knew what she was doing.

Held: (i) the plea in the four letters left behind by Accused that the police should not take action against her husband, that he should not be punished and was innocent clearly implied that the appellant knew what she was doing was wrong, and she wanted to make clear that her husband had nothing to do with her wrongful act, which was hers alone;

(ii) sentence of death should only have been passed on one count, the convictions on the other two counts being allowed to remain in the record.

Appeal dismissed.

Cases referred to:

(1) **Nyinge Siwato v. R** [1959] E.A. 974.
(2) **Mbelukie v. R** [1971] E.A. 479

Jadeja for the appellant.

March 10, 1980. MUSTAFA, J.A., read the following considered judgment of the court: This is a tragic case. The appellant was charged with and convicted of the murder of her three children by the High Court at Dar es Salaam and is now appealing against the conviction.

The facts, briefly, and they are not now in dispute, are as follows. The appellant was married to George Liundi in February, 1967, and after about two years of happy married life, their mutual relationship deteriorated and there was constant acrimonious bickering. One reason for the bickering was the obsessional belief by her husband that the appellant had perhaps been unfaithful to him. During such domestic strife the appellant had been chased out of the matrimonial home. The appellant had an unhappy and insecure childhood as her mother died when she was very young, and she developed a high sense of insecurity from a very early age. About a week before the killing there was a party which was attended by both the appellant and her husband. At that party the husband met an individual whom he suspected had been the appellant's lover. The old antagonisms were revived and serious quarrel erupted between the appellant and her husband. The result was that on the morning of 21st February, 1978, the husband told the appellant to leave the matrimonial home, and that if on his return from work she was still there, he would throw her out naked. Her four children were with her at the house. After her husband's departure she drove to town and purchased some bottles of insecticide. She called her four children into her bed room and administered to each of them a drink made up of orange squash and insecticide. She had closed her bed room door. Her domestic helper P.W.1 Ramadhani and another person Bibie, heard the children crying. Shortly thereafter the appellant opened the bed room door, and she asked Bibie to wash the youngest child who was vomiting, retching and purging. The appellant refused permission to P.W.1 and Bibie to use the house telephone to inform her husband of the situation. P.W.1 then saw the other three children vomiting and purging and in a bad way. The appellant in the meantime had gone off to another room. When neighbours came in response to P.W.1's call for assistance, P.W.1 went to the room where the appellant was and asked the appellant what had happened. She said "Ramadhani, leave me to die with my children because Baba Taji [her husband] does not like me." It transpired that she had also drunk the poisonous concoction she had given to her children. They were all rushed to hospital, and three of her children died, but she and her eldest child were saved by the doctors. It was medically established that the three children had died of poisoning, as a result of the drink administered to them by the appellant.

The appellant had written four letters all dated 21st February, 1978, and left them in the house, clearly just before or at the time she administered the poison to her children. These letters were recovered by the police and exhibited in court. Three letters were worded identically and addressed "To whom it may concern" and one was to one Mama Gaudensia, a friend of the appellant. We think it will be convenient to set out a letter (one of the identical three) in full. It reads:—

c/o Box 9050,
DAR ES SALAAM
21/2/1978

TO WHOM IT MAY CONCERN

The decision I had taken is a permanent one, George my husband should not be disturbed or tortured, or confronted in any way because I loved him. I had taken

the children because I didn't want them to suffer like I had suffered. Solitariness frightens. George my husband you didn't know how much I loved you when I was alive. But now you understand.

TO POLICE OFFICER

Please don't take any action against my husband because he is innocent.

After her arrest the appellant was under the medical care of Dr. Haule, a well qualified medical psychiatrist attached to the Muhimbili Hospital. He submitted a medical report on the appellant's condition and testified in court. In brief his opinion was that at the time of the act the appellant knew what she was doing, that is, that she knew she was killing her children by administering poison, but that she did not know that she was doing wrong.

It will be convenient at this stage to set out the provisions of ss. 12 and 13 of the Penal Code which relate to the issue of insanity. They read as follows:—

> **S. 12.** Every person is presumed to be of sound mind, and to have been of sound mind at any time which comes in question, until the contrary is proved.
>
> **S. 13.** A person is not criminally responsible for an act or omission if at the time of doing the act or making the omission he is through any disease affecting his mind incapable of understanding what he is doing, or of knowing that he ought not to do the act or make the omission.
>
> But a person may be criminally responsible for an act or omission although his mind is affected by disease, if such disease does not in fact produce upon his mind one or other of the effects above mentioned in reference to that act or omission.

Dr. Haule in his evidence and medical report, made the following points. When he first saw the appellant shortly after the incident, the appellant was abnormal and did not seem to care. "It was as if I was talking to a tree", Dr. Haule said. In his opinion it was possible that the appellant was abnormal two weeks or so before the incident, and that the appellant knew what she was doing when she administered poison to her children, but did not know she was doing wrong. He referred to the marital strife she went through, the sort of person she was and her upbringing and her almost pathological dependency on and obedience to her husband. He was of the view that when she took action to kill herself and her children she believed she was ordered to do so by her husband. He said he had read the letters she had left behind, but they did not change his views on this score. At one stage he said she was not suffering from delusion, but later on he said she was in that, he said "She was deluded, that is she felt what she was doing was morally acceptable". He said that at the time of the trial in the High Court, about a year after the event, the appellant's condition had improved, in that she would know what she did was wrong, but that she was still under psychiatric treatment.

The appellant had made a long extra-judicial statement which was admitted at the trial. It was made on 3rd April, 1978, about two months after the event. In it she gave a history of her childhood, the difficulties she went through as a result of the death of her mother and the bad treatment metted out to her by her step-mother and the loneliness she experienced. She talked of the two-year period of happiness of her marriage and of the later trouble. She said the trouble started after she alleged she had been raped by a brother of one of her friends, resulting apparently in her infecting her husband with V.D. She dared not tell her husband of the rape incident for a long time but eventually did so. She recounted the resulting domestic bickering culminating in the flare up on 21st February, 1978. When her husband left that morning she got confused and started thinking of her childhood and felt she had nowhere to go. She saw her husband as her mother, father, brother and sister and that she felt her whole life depended on him. She went out and bought some insecticide and returned home. She tried to sleep but failed, and still could not find a solution to her problem. She then decided to drink the insecticide. She said, **inter alia**:—

> I was angry and anxious about the problems between me and my husband. Indeed I thought whether these problems were mere threats as he had even reached a stage of chasing me out. A thought came to me that I should finish (kill) myself and leave the children alive. But again I tried to remember how I got problems during my childhood where I led lonesome life and questioned myself whether my children were

> again going to lead such life staying with a step mother. Since my husband said if I left I should not leave the children I took them to my bedroom and locked the door. And I told them **'We are leaving'.** They asked 'Where are we going'? I answered them 'We are travelling but where we are going we do not know'. I kissed them and they also kissed me, shook hands and bid good-bye to everyone. I gave to each child that mixture, each in his own cup, and I took mine from a glass. We then vomited. Because of that I decided to take (drink) some iodine, I took also some ground bottles and locked myself in another bedroom. From that time I became unconscious, knew nothing about what happened immediately thereafter.

The trial Judge dealt with the defence of insanity put forward at the trial. He analysed the evidence adduced for the prosecution and the defence, especially the evidence of Dr. Haule. He came to the conclusion that the appellant, when she committed the offence, although under great stress, was of sound mind and legally sane, that is, she knew what she was doing and knew that she ought not to have done the act.

Mr. Jadeja for the appellant, has attacked the trial Judge's conclusion. He concedes that at the time of the commission of the act, the appellant knew what she was doing. He submitted that at that time she did not know she was doing wrong. He relies primarily on the opinion of Dr. Haule. He submitted that the trial Judge over-emphasized one aspect of the issue of insanity—that the appellant knew what she was doing, but gave no or no sufficient consideration to the other aspect, whether she knew she was doing wrong. He submitted that an insane person can rationally carry out all the steps to cause death as the appellant had done, and yet would not know that the act was wrong. He contended that the trial Judge was only directing his mind to the question of malice aforethought, preparation and premeditation and awareness on the part of the appellant that the administration of poison to the children would cause death. All these factors go to show the aspect that the appellant knew what she was doing, not necessarily that she knew was doing wrong.

However the trial Judge was clearly influenced by the contents of the four letters left behind by the appellant, and which were written contemporaneously with the action she took on 21st February, 1978. The letters clearly indicate that she knew she was doing wrong, doing something she ought not to do. In the letter we have quoted earlier in the judgment, she pleaded that her husband should not be punished or tortured for what she did; indeed there was a plea to the police not to take action against her husband because he was innocent. The idea of punishment and innocence in the letter clearly implies that she knew what she was doing was wrong, and she wanted to make clear that her husband had nothing to do with her wrongful act, which was hers alone. She knew that if her husband was associated with her action, he would suffer punishment, punishment for doing a wrongful act.

It is true that Dr. Haule had stated that despite the letters he was of the view that the appellant did not know she was doing wrong. He testified that the letters indicated to him that the appellant was over-dependent on her husband, an almost pathological relationship. If we understand Dr. Haule correctly he was perhaps saying that the letters had some connection with the appellant's belief that she was being ordered to kill herself and her children by the husband. Incidentally the appellant never said she had that belief; it was a deduction made by Dr. Haule. Even if the letters indicate over-dependence on her husband, they still show knowledge on the part of the appellant that the action was wrong, as inviting punishment. Like the trial Judge, we however are unable to connect the letters with the belief or delusion that Dr. Haule said the appellant had of being ordered by her husband to kill herself and her children.

The trial Judge in his judgment, stated **inter alia:—**

> Dr. Haule appears to me to be an experienced and highly qualified psychiatrist. He is, among other things, a Member of Royal College of Psychiatrists and has a Diploma in Psychiatric Medicine (England). I would therefore pay due respect to his professional views and would accordingly be slow to reject his evidence. I am also live to the fact that even though it is for an accused person to show that he was at the material time insane it is enough if he shows this on a mere balance of probability. The accused must show, on all the evidence, that insanity is more likely than sanity, though it may be ever so little more likely. The settled authority for this is the oft—quoted case of **Nyinge Siwato v. R.,** [1959] E.A. 974, followed so many times, including

in **Mbeluke v. R.** [1971] E.A. 479. That said however, I have also to keep in mind that, as Windham J.A., as he then was, said in **Siwato's** case, 'The Court is not bound to accept medical testimony if there is good reason for not doing so'. At the end of the day, that is, it remains the duty of the trial Court to make a finding and, in doing so, it is incumbent upon it to look at, and assess, the totality of the evidence before it, including that of medical experts.

With respect, we are in agreement with the views expressed in that passage. The trial Judge then analysed the evidence and concluded that the appellant was sane.

It is possible, indeed likely, that our law on the issue of insanity is antiquated and out of date. Dr. Haule in evidence said that in modern psychiatry the distinction between insanity and diminished responsibility is under controversy because it is imprecise. Parliament, in its wisdom, may wish to amend this particular branch of the law and bring it into line with modern medical knowledge on the subject. Other jurisdictions, including one at least in East Africa, have done so. But as the law now stands, we are of opinion that the trial Judge has come to the right conclusion.

The appellant was convicted on three counts of murder. Sentence of death should only have been passed on one count, the convictions on the other two counts being allowed to remain in the record.

We accordingly amend the sentence to refer to the conviction on the first count only.

Apart from the above correction, we dismiss the appeal.

Appeal dismissed

RAJABU RAMADHANI v. REPUBLIC

[HIGH COURT OF TANZANIA AT DODOMA (Chipeta, J.)]

CRIMINAL APPEAL 81 OF 1978

Criminal Practice and Procedure—Accused pleads guilty but in mitigation exculpates himself—Procedure trial court to follow.

Criminal Practice and Procedure—When court becomes functus officio.

Criminal Practice and Procedure—Circumstances under which court to order re-trial.

The appellant was convicted on a purported plea of guilty to a charge of cattle theft. When called upon to plead he pleaded guilty and after the facts were read over to him he said they were correct. However, in mitigation he said, "I was invited by some people who told me that the cow was theirs".

On appeal the appellant complained that he did not in fact plead guilty to the charge.

Held: (i) where an accused person pleads guilty to a charge but in mitigation exculpates himself that amounts to a recantation of his earlier plea. **Kamundi v. R.** [1973] E.A. 540 overruling **Maumba v. R.** [1966] E.A. 167, followed;

(ii) a court becomes **functus officio** when it has disposed of a case by a verdict of not guilty or by passing sentence or making some orders finally disposing of the case;

(iii) in general a retrial will be ordered when the original trial was illegal or defective and should only be made where the interests of justice require it; it should not be ordered where (it is likely to cause an injustice to the accused person) the accused had already served a substantial portion of the sentence;

(iv) it was in the interest of justice in this case that, since the appellant had served only 10 months out of a minimum sentence of 5 years, there be a retrial.

Proceedings before trial Court set aside, a retrial ordered.

Cases referred to:

(1) **Kamundi v. R.** [1973] E.A. 540.
(2) **Maumba v. R.** [1966] E.A. 167.
(3) **Joseph Ogola v. R.** 20 E.A.C.A. 171.

(4) **Manji v. Republic** [1966] E.A. 343.
(5) **Francis s/o Pastory v. Republic** [1973] L.R.T. n.25
(6) **Manchester City Recorder** (?)

ellant absent and unrepresented.
.D. Lyimo for the Republic.

November 23, 1978. CHIPETA, J.: The appellant, Rajabu Ramadhani, was convicted on a purported a of "guilty" to a charge of cattle theft c/ss 268 and 265 of the Penal Code, and was sentenced to five (5) rs imprisonment under the Minimum Sentences Act, 1972. He now appeals.

What transpired is clearly brought out by the proceedings in the trial court, the relevant part of which uoto:

> Charge read over and explained to Accused who is asked to plead.
> **Accused plea:** "I admit I stole the head of cattle. "Entered as a plea of guilty.
> Sgd. ???—District Magistrate
> 1/2/78
>
> **FTS**
> The accused is a resident of Utahe village in Singida.
> On 30/11/78 at night the accused went to the cattle boma of Mohamed Mtunduu and opened the kraal. Mohamed was awakened by some noises and found out that the gate to the kraal was open. He noticed that four head of cattle were missing. He raised an alarm and in response many villagers came and helped to look for the cattle. They managed to get three who (sic) had escaped the driver leaving one cow. They further followed the footmarks of the missing cow till the morning when they met the accused with a slaughtered cow. He was then skinning it. They caught him and reported to the police and P.C. Shabani visited the scene. The accused had confessed to the villagers to have stolen the cow. He was taken to police station with the slaughtered cow which is now being skinned and examined by veterinary authorities. The accused was then charged.
>
> **Accused:** The facts are correct.
> **Court:** Accused is convicted on own plea of guilty.
> Sgd. ???—District Magistrate
> 1/2/78
>
> **"Record:** First offender
> **Accused in mitigation:** I was invited by some people who told me that the cow was theirs".

Thereafter the court sentenced the appellant to five (5) years imprisonment.

As soon as the sentence was passed the public prosecutor informed the trial court that efforts were ing made to track down more culprits.

In his memorandum of appeal, the appellant complains that he did not, in fact, plead guilty to the charge.

It is certainly true that the facts as narrated by the public prosecutor and admitted by the appellant thout qualification did, **prima facie**, and all things being equal constitute the offence charged and justified tering a conviction against the appellant at the stage. But what the appellant said in mitigation clearly anged the situation. His statement in mitigation was a clear indication that he had not committed the fence but merely and innocently lent assistance to the real culprits who had claimed the cow to be their operty.

In those circumstances, what should the learned trial district magistrate have done? In my view, the oper course for the learned magistrate to have taken at that stage would have been to take the statement the appellant in mitigation as a recantation of his earlier admission, and then record a plea of "not guilty" the charge. Thereafter the case would have proceeded to a full trial in the usual way.

I am reinforced in this view by a recent decision of the Court of Appeal for East Africa in the case of **mundi v. R.** [1973] E.A. 540. The facts there were that the appellant and others were convicted of robbery th violence on purported pleas of guilty. After conviciting, the magistrate adjourned to allow the secution to produce the criminal records of the accused persons. On resumption of the trial,

the appellant was represented by an advocate who submitted that the pleas of guilty were ambiguous. The magistrate held that the pleas were unequivocal and that the court had no power to quash its own conviction and refused to allow the appellant to change his plea.

After considering several English and East African decisions, among them the Court's own decisions in the cases of **Maumba v.R.** [1966] E.A. 167, and **Joseph Ogola v. R.** 2 E.A.C.A. 171, the Court held that a trial court cannot accept a change of plea once it has entered a conviction and passed sentence because such court then becomes **functus officio**; but that a court is not **functus officio** until it has made an order finally disposing of the matter. In other words, a trial court may allow an accused to change his plea of "guilty" to that of "not guilty" at any time before sentence is passed. Overruling its own decision in **Maumba's** case, the Court stated, at page 545:

> The whole purpose and intention of the Criminal Procedure Code is to lay down provisions and procedure to see that justice is done, and justice cannot be effected if a plea of guilty is entered as a result of ignorance or misunderstanding. The court must have a judicial discretion to allow a change of plea before it has finally disposed of the case. It is common practice to allow the accused person during the course of trial to change his plea of not guilty to one of guilty and we can see no reason why the court should not have similar power to change a plea of guilty to one of not guilty.

The Court went on:

> A further question arises, when does a magistrate's court become functus offcio and we agree with the reasoning in the **Manchester City Recorder** case that **this can only be when the court disposes of a case by a verdict of not guilty or by passing sentence or making some orders finally disposing of the case.** (The underscoring is mine).

In the instant case, since the trial court had not yet passed sentence, it was not **functus oficio** at the time the appellant made his recantation of his plea of guilty. Was this, then, one of those cases justifying the judicial exercicse of the court's discretion to allow an accused to change his plea? In the circumstances of this case, and bearing in mind the projected defence of the appellant as indicated in his statement, and the remarks by the public prosecutor that other suspects are still at large, thus suggesting that the offence was committed by more than one culprit, I am inclined to the view that this was a fit and proper case for the trial court to exercise its power to allow the appellant to change his plea of "guilty" to one of "not guilty".

The question that now presents itself is: what should be done? The learned state attorney suggested that an order of retrial would meet the justice of the case.

The principles upon which a retrial should be ordered were clearly restated by the Court of Appeal for East Africa in the case of **Manji v. Republic** [1966] E.A. 343 in which the Court stated, at page 344:

> The question for decision in this appeal is whether the order for retrial was justified or not. Section 319(1) (a) (i) of the Criminal Procecure Code of Tanganyika, under which the order for retrial must have been made, appears to give the High Court on appeal an unlimited discretion as to ordering a retrial....

The Court went on:

> ...in general a retrial will be ordered only when the original trial was **illegal or defective;** it will not be ordered where the conviction is set aside because of insufficiency of the evidence or for the purpose of enabling the prosecution to fill up gaps in its evidence at the first trial; even where a conviction is vitiated by a mistake of the trial court for which the prosecution is not to blame, it does not necessarily follow that a retrial should be ordered; each case must depend on its own particular facts and circumstances and an order for retrial should only be made where the interests of justice require it and should not be ordered where it is likely to cause an injustice to the accused person.

This court has on several occasions held that the length of the period of the appellant's sentence so far served should be taken into account. In the case of **Francis s/o Pastory v. Republic** [1973] L.R.T. n. 25,

this court held that where an accused person has been in prison for nearly a year, it is not appropriate to order a retrial. In that case, the trial was declared null after the appellant had served nearly a year of a two year custodial sentence and twenty four strokes of corporal punishment.

The rationale of this principle is not far to seek. Where a substantial part of the sentence has already been served by an appellant by the time a retrial is ordered, a conviction on a retrial may well result in the appellant serving a total sentence that is much too excessive to meet the justice of the case.

However, I do not understand **Pastory's** case, and other decided cases on this point, to be laying down a mathematical rule of thumb. What those cases really decided, in my humble view, is that a retrial ought not be ordered where the appellant has already served a substantial part of the sentence imposed on him at the first trial because in such an event a retrial would be likely to cause an injustice to the person.

What will amount to a substantial part of a sentence will largely depend on the substantive sentence itself which was imposed at the first trial, the seriousness of the offence and the maximum sentence the offence attracts and, in the case of offences falling within the ambit of the Minimum Sentences Act, 1972, the minimum sentence that would have to be imposed on conviction after retrial weighed against that part of the sentence which the accused has already served.

To take an extreme example, if a man sentenced to nine months imprisonment at a trial that has been declared null on appeal has already served six months of that sentence, it would not be appropriate to order a retrial.

In the instant case, the appellant was sentenced to five years imprisonment. That is the statutory minimum. He has now served only about ten months of that sentence. Prior to his incarceration, he had been in police custody for hardly a day. In the circumstances, therefore, it cannot be said that the appellant has already served a substantial part of the sentence.

Now, considering the seriousness of the offence and the minimum sentence that can be imposed; bearing in mind the nature of the error that has led to the vitiation of the first trial; and further considering the circumstances surrounding the case I am of the view that it is as much in the interests of justice that the appellant be afforded a chance to clear himself as it is in the interests of justice that the Republic be given an opportunity to try to bring the culprits to book at a full trial.

In all the circumstances, therefore, I am of the considered view that the interests of justice demand that there be a retrial.

For the foregoing reasons, the proceedings before the trial court are hereby set aside, and it is ordered that the case be re-tried, preferably before another magistrate of competent jurisdiction.

Order accordingly

GEORGE MBUGUZI AND ANOTHER v. A.S. MASKINI (SAMATTA, J.)

[HIGH COURT OF TANZANIA AT DAR ES SALAAM (Samatta, J.)]

CIVIL REFERENCE 2 OF 1976

Costs—Taxation—Instruction fee—Factors to be considered when taxing instruction fees.
Costs—Taxation—Award of costs in respect of steps taken to rectify a party's error of suing a wrong party.
Costs—Taxation—Award of costs in respect of studying a report of the Labour Tribunal.
Costs—Taxation—Costs of an application that was dismissed.

The applicants referred to the High Court the decision of the Taxing Officer so far as it related to certain items in the bill of costs. In respect of instruction fee the applicant argued that the Taxing Officer misdirected himself in keeping the amount of the suit in view instead of regarding the amount as one of the decisive factors in the determination of the said issue before him. It was also contended for the applicants that the respondent could not rightly be awarded costs in respect of steps he took to rectify his own error of suing a wrong party. The decision of the Taxing Officer was also attacked because he allowed costs of an application that was dismissed and costs claimed in respect of a report of the Labour Tribunal which the advocate of the respondent had to study during the preparation of the hearing of the case.

Held: (i) a decision of a taxing officer or master will be interfered with by a court only when the court is satisfied that the decision was arrived at upon an application of a wrong principle or a wrong consideration;

(ii) the amount of the suit is only one of the factors which a taxing officer has to take into account in determining what is a fair and reasonable brief fee;

(iii) the taxing officer erred in principle in allowing claims of the respondent in respect of steps he took to rectify his own error of suing a wrong party;

(iv) the taxing officer erred in principle in allowing costs of an application that was dismissed;

(v) the costs of the work involved in studying the report of the Labour Tribunal were costs incurred in the preparation of the hearing of the case, and they were, therefore, covered in the instruction fee.

Application allowed in part.

Cases referred to:

(1) **Estate of Ogilvey v. Moss,** 103 L.T. Rep. 154.
(2) **Rahim Hasham v. Alibai Kaderbhai,** 1 T.L.R.(R) 677.
(3) **Theocharides v. Joannou** [1955] 1 ALL E.R. 615.
(4) **TajDeen v. Dobrosklonsky and others** [1957] E.A. 379.
(5) **Arthur v. Nyeri Electricity Undertaking** [1961] E.A. 492.
(6) **Premchand Raichand Ltd. and another v. Quarry Services of East Africa Ltd. and others** [1972] E.A. 162.
(7) **Haider Bin Mohamed Elmandry and others v. Khadija Binti Ali Bin Salem** (1956) 23 E.A.C.A. 313.
(8) **Sianga v. Elias** [1972] H.C.D. n. 66.
(9) **In the Matter of the Stamp Ordinance, 1931 and the Buhemba Mines, Ltd.** Misc. App. 1 of 1940.

F.H. Uzanda for Applicants.
T.J.R. Tarimo for the Respondent.

March, 1978. SAMATTA, J.: This is a reference by the defendants from a decision of the Deputy Registrar, sitting in his capacity as Taxing Officer, whereby he taxed the respondent's bill of costs which amounted to Shs. 17,485/25 at Shs. 11,712/95. On behalf of the applicants, Mr. Uzanda has uncompromisingly attacked the decision in so far as it relates to certain items in the bill of costs. With his usual industry, Mr. Tarimo, for the respondent, has endeavoured to demonstrate that the applicants' complaints against the decision of the taxing officer are without substance. But what is the background to the reference? This I will tell, although briefly.

The respondent sued the applicants before this Court claiming damages in respect of a letter which was published in the applicant's newspaper, by which letter, the respondent claimed, he had been defamed. At the end of the trial, which, in all, took six days, the suit was dismissed, the learned trial judge holding that "the letter complained of did not by name or description refer to the Plaintiff. Dealing with the last substantive issue in the case, the learned judge said:

> It is my considered view that malice as understood in the Law of libel has not been established in this case and I find that the Defendants have not lost the qualified privilege to which they are entitled in publishing the letter.

The respondent appealed against that decision to the Court of Appeal for East Africa. The appeal was allowed and the respondent was awarded damages in the sum of Shs. 10,000/-. Delivering his judgment, Mustafa, J.A. said, in part:

> I have very little to add to what has been said in those judgments the judgments of Law, V.P., and Musoke, J.A. In my view the letter complained of was defamatory in its natural and ordinary meaning. Did it refer to the appellant? On the evidence adduced, I have no doubt that it did. I incline to the view that the letter was published on an occasion of qualified privilege, as it concerned matters of general public interest which the respondents had a duty to communicate to the public. However I think that there was evidence of malice on the part of the respondents which destroyed such qualified privilege. They did not care to verify the truth or otherwise of the matters contained in the letter they published; they published it recklessly, not caring whether it was true or not. Indeed on the evidence it appeared likely that the respondents knew that the letter contained false allegations against the appellant. In my opinion the trial judge erred in dismissing the appellant's claim.

That, in a nutshell, is the background to the matter now before me.

Before I proceed further, I should, I think, indicate the main principle which is going to be my guide star in the determination of this reference. It is now a well-rooted principle of law—the change of which requires the intervention of the Parliament—that a decision of a taxing officer or master will be interfered with by a court only when the court is satisfied that the decision was arrived at upon an application of a wrong principle or a wrong consideration—see **Estate of Ogilvey v. Moss** 103 L.T. Rep. 154; **Rahim Hasham v. Alibai Kaderbhai,** I.T.L.R. (R) 677; **Theocharides v. Joannou,** [1967] E.A. 379; **Arthur v. Nyeri Electricity Undertaking,** [1961] E.A. 492; and **Premchand Raichand Ltd. and another v. Quarry Services of East Africa Ltd. and Others** [1972] E.A. 162. In the course of delivering the judgment of the court (which consisted of himself, Sir Alastair Forbes, V.P., and Mayers, J.) in the case of **Nyeri Electricity Undertaking,** Gould, J.A., said, at pp. 492—493:

> Where there has been an error in principle the court will interfere, but questions soley of quantum are regarded as matters with which the taxing officers are particularly fitted to deal and the court will intervene only in exceptional cases. An example of such an exceptional case is that of **Haider Bin Mohamed Elmandry and Others v. Khadija Binti Ali Bin Salem,** (1956) 23 E.A.C.A. 313, in which an instructions fee of Shs. 9,000/- was considered so excessive as to indicate that it must have been arrived at unjudicially or on erroneous principles, and was reduced to Shs. 2,000/-.

With the principle I have indicated in mind, I proceed now to consider the arguments that were raised in this reference. For the sake of orderliness, if not for convenience also, I propose to deal with the items in dispute in the same order they were dealt with by the opposing counsel during the hearing of the reference.

1. **ITEM 2: INSTRUCTIONS FEE**

In the bill of costs, the respondent claimed, in respect of this item, the sum of Shs. 12,000/-. The Deputy Registrar taxed this at Shs. 8,000/-. What was the path which led him to this figure? He said:

> In considering the question of fees for instruction, I think the amount involved in the actions must be kept in view. Admittedly the amount involved in the suit is not a safe criterion of the amount of work that is necessary to be done by advocates concerned. But there must be some proportion between the two.
>
> Although the amount awarded in a number of suits may range between 5% and 7% of the amount involved, each suit must be separately considered on its merits.
>
> I have carefully considered Mr. Tarimo's arguments in favour of the instruction fee and defendant's advocate arguments, also perused the proceedings. I am of the opinion that the suit had some complex issues and hearing occupied considerable amount of time.

He then went on to conclude, thus:

> In the circumstances of the present bill, having said the above I am of the opinion that an instruction fee of 8,000/- would be justified.

Attacking the reasoning in those passages, Mr. Uzanda submitted, quite forcefully, that the Taxing Officer misdirected himself in keeping the amount of the suit in view instead of regarding the amount as one of the decisive factors in the determination of the issue before him. To support his argument, Mr. Uzanda referred me to the case of **Haider Bin Mohamed Elmandry,** a case I cited a few minutes ago in this ruling. To counter that argument, Mr. Tarimo contended, with his usual energy, if I may respectfully say so, that there was no rule of law which required that the amount of instruction fee in a suit must be proportionate to the amount claimed or awarded. Before dealing with these arguments it is logical, I venture to think, that one has to have a clear mind as to what makes up an instruction fee. Happily, on this point I am not sailing on an uncharted sea. In the case of **Haider Bin Mohamed Elmandry,** Briggs, J.A., with whose judgement the other members of the court agreed, mentioned, at least by implication, three of the factors which a Taxing Officer must consider in arriving at a figure on the question of fee for instructions. In that case the court considered, among other things, whether the taxing officer had directed himself judicially in determining

the instruction fee which the successful party was entitled to claim. In the course of his judgment, Briggs, J.A., said:

> I do not wish to be critical of the taxing officer, particularly since he was almost wholly without experience of taxations, when he taxed this bill; but I think he must have failed entirely to consider the relevant factors, such as the small sum involved; the comparatively short time occupied in hearing, and the very modest amount of research required to examine the issue of law.

In a fairly recent case, **Sianga v. Elias** [1972] H.C.D. n. 66, Bramble, J., as he then was, quoted and approved the following passage from the judgment of Webb, C.J. (as he then was) **In The Matter of the Stamp Ordinance, 1931 and the Buhemba Mines Limited** Misc. App. 1 of 1940:

> In my opinion the word "instructions" in our rules should not be construed as if it were a term of art, but should be construed in relation to the conditions and circumstance of the country in which those rules are to be operated. Here an advocate is both solicitor and barrister, and the meaning that has been given and in my judgment rightly given, to the words "Fees for instructions" was that they are intended to cover, not merely the attendance of a solicitor when he takes his client's instructions, but all his work, other than that which is elsewhere specially provided for, in looking up the law and preparing the case for trial; in other words they correspond rightly to the fee marked on counsel's brief.

In the **Premchand Raichand's** case, decided one and a half months before Bramble, J., delivered his judgment in **Sianga's** case, the Court of Appeal said, **inter alia:**

> ....The brief fee is based on the amount of work involved in preparing for the hearing, the difficulty and importance of the case and the amount involved.

In the light of those three passages, can it rightly be said that the taxing officer in the case now before me approached his task wrongly in arriving at the figure of Shs. 8,000/-? With unfeigned respect to Mr. Uzanda, I do not see, in the context of the taxing officer's ruling, any substantial distinction between keeping the amount of the suit in view and regarding the amount as one of the decisive factors. With due respect, I am inclined to think that Mr. Uzanda's argument was hooked on semantics. I refuse to be bewitched by words. I think the words complained of in the taxing officer's ruling must be understood within their context. What the taxing officer must have had in mind in using the words which Mr. Uzanda has, ingeniously but unconvincingly, attacked is that he was required to consider the question of the amount of the suit as one of the most relevant factors. On the whole that was quite a satisfactory approach. As for Mr. Tarimo's argument, I would agree that a determination of what is a fair brief fee is not a mathematical exercise, but I think there ought to be a fairly reasonable proportion between the amount of the suit and the amount of the fee that a taxing officer ultimately allows. Of course it requires no emphasis of mine to observe that the amount of the suit is only one of the factors which a taxing officer has to take into account in determining what is a fair and reasonable brief fee. Having said that, I must now proceed to consider whether the taxing officer's taxation of the fee in the present case was on the whole sound. I agree with Mr. Uzanda that, contrary to what the taxing officer observed in his ruling, there were no legal issues in the case which could be described as complex. Basically, the case was an ordinary libel case. The issues that were framed at the commencement of the trial were the subject of a great number of judicial decisions, both in East Africa and other common law jurisdictions. There was no area of the case, as the judgments delivered in the Court of Appeal clearly demonstrate, if I may respectfully say so, that raised a legal issue that was not covered by authority. It is not surprising, therefore, that in his ruling the taxing officer does not mention even a single legal issue which, in his opinion was of a complex nature. Neither, in my view, were the factual issues any more complicated. The task which was involved in preparing for the hearing could not, therefore, if logic is to prevail, as I think it should, have been an onerous one. It follows, as night follows day, that the taxing officer misdirected himself in regarding the case as having been a difficult one. The fact that the Court of Appeal reached a conclusion different from that reached by the learned trial judge does not impeach the validity of that view.

In approaching the question as to what would have been a fair and reasonable instructions fee in the

present case, I am guided by, among other things, what was said by the Court of Appeal in **Premchand Raichand's** case, at pp. 163—164:

> There was no fundamental disagreement on the relevant principle. Mr. Gautama argued, and Mr. J.J. Patel, for the respondent company, conceded, that we owe a duty to the public to see that costs are not allowed to rise to such a level as to deprive of access to the courts all but the wealthy. On the other hand, Mr. Patel argued, and Mr. Gautama conceded that a successful litigant ought fairly to be re-imbursed the costs he had to incur. We would add two other considerations. First, the general level of the remuneration of the advocates must be such as to attract worthy recruits to an honourable profession. Secondly, there must, so far as is practicable, be consistency in the awards made, both to do justice between one person and another and so that a person contemplating litigation can be advised by his advocates very approximately what, for the kind of case contemplated, is likely to be his potential liability for costs.

Having given the matter the most anxious and, I hope, careful consideration, I have reached the settled view that in the circumstances of the case between the parties, instruction fee in the sum of Shs. 4,000/- would have been fair and reasonable. I reduce the instruction fee accordingly.

2. **ITEMS 13, 14 AND 15.**

These items related to an oral application, under 0.1, r.10(2) of the Civil Procedure Code, 1966, by the respondent for the name of the original first defendant, one Mr. Joe Rodriques, to be struck out and to bring in the present first applicant as the first defendant. The application was allowed and Mr. Joe Rodriques was awarded his costs. It was contended by Mr. Uzanda that the respondent could not rightly be awarded costs in respect of steps he took to rectify his own error of suing a wrong party. Mr. Tarimo, on the other hand, submitted that the respondent was entitled to be awarded the costs because, as he put it, the plaintiff wrongly joined Mr. Rodriques in the suit as a result of being misled by the officials of the second applicant. Neither before the taxing officer nor before me did Mr. Tarimo substantiate his claim. I am of the view that the taxing officer erred in principle in allowing the claims on the three items when there was no proof that the applicants were instrumental in Mr. Rodriques being sued by the respondent. He should have disallowed the claims on the three items.

3. **ITEM 17**

On March 29, 1972, Mr. Tarimo, on behalf of the respondent, made an oral application before my brother Biron for leave to serve summons on the applicants by substituted service. The application was refused, the learned judge holding, in effect, that it was incompetent in law as it was not supported by an affidavit. Item 17 in the bill of costs related to the costs of that application. Was the taxing officer right in law in allowing that claim? I think not. I am as sure in my mind as I am that 99 precedes 100 that the taxing officer erred in principle in allowing costs of an application that was dismissed. Neither logic nor commonsense supports the taxing officer's decision on this item. The ancient maxim that costs follow the event does not authorise a taxing officer to allow claims for costs which a 'a party incurred in arguing applications which ended up by being refused on the ground that they were incompetent in law.

4. **ITEMS 32, 33 AND 34.**

These items related to costs claimed in respect of a report of the Labour Tribunal which Mr. Tarimo had to study during the preparation of the hearing of the case and which was extensively referred to by both counsel during the trial. In my opinion the taxing officer erred in principle in allowing the claims for costs in respect of Item 33. The costs of the work involved in studying the same were costs incurred in the preparation of the hearing of the case, and they were, therefore, covered in the instruction fee, as the passages I have quoted from the judgments in **Sianga** and **Premchand Raichand** cases in my view plainly show. As for the other two items, I can see no ground for faulting the decision of the taxing officer. The costs claimed in those two items are separate and distinct from the instruction fee.

For the reasons I have endeavoured to give, I have arrived at the settled conclusion that the taxed bill of costs must be reduced by the sum of Shs. 4,486/-. That means that the respondent is entitled to costs in the sum of Shs. 7,226/95 only. The application is, therefore allowed to that extent.

The applicants will have their costs of this reference.

Application allowed in part.

YAHAYA HUSSEIN v. OHAN TRANSPORT LTD. AND ANOTHER

[HIGH COURT OF TANZANIA AT DAR ES SALAAM (NYALALI, C.J.)]

CIVIL CASE 52 OF 1977

Evidence—Admissibility—Doctor's report—Doctor's personal attendance not possible—Admissibility of doctor's report under s. 34(b) of Evidence Act.

Evidence—Doctor's report made on request from advocate—Whether report amounts to entry or memorandum in books or record kept in the ordinary course of business or kept in the discharge of professional duty—Construction.

Tort—Damages—General damages—Approach of assessment—Assessment of general damages under different heads of personal injuries unsatisfactory.

In this case, in which an ex-parte judgment was given, the plaintiff sued the defendants for damages in respect of personal injuries and loss arising out of a motor vehicle accident. In proving his case the plaintiff sought to admit a doctor's report made on request by the plaintiff's advocate to prove facts stated therein under section 34(b) of the Evidence Act.

With respect to general damages the plaintiff sought damages to be paid for each of the various heads of personal injuries.

Held: (i) s. 34(b) of the Evidence Act deals with four kinds of statements, one of which is note or memorandum in records kept in discharge of professional duty;

(ii) where a doctor makes reports on request from the advocate of the plaintiff such reports cannot be entries or memoranda in books or records kept in the ordinary course of business or kept in the discharge of the doctor's professional duty envisaged in s. 34(b) of the Evidence Act and the doctor's report was excluded;

(iii) the proper approach in assessing general damages is to take into account all the various heads of personal injuries and place a total sum of money as compensation for the totality of personal injuries involved.

Judgment for the plaintiff.

Cases referred to:

(1) **Republic v. Masahi** [1967] E.A. 355.
(2) **Gichunge v. Republic** [1972] E.A. 546.
(3) **Dick v. Piller** [1943] 1 A.E.R. 627.
(4) **Eastern Bus Co. v. Bibi** [1971] E.A. 374.

F.H. Uzanda for the plaintiff.

May 29, 1978. NYALALI, C.J.: This is an ex parte judgment in a case in which the plaintiff, namely, Yahaya Hussein, sues the first and second defendants, namely, Ohan Transport Ltd., and Abdu K. Ahmad respectively, for damages in respect of personal injuries and loss arising out of a motor vehicle accident. Personal service of summons upon the second defendant proved unsuccessful with the result that this court allowed the plaintiff to serve the second defendant with summons by substituted service by way of publication of the summons in the Daily News. The summons were duly published in the Daily News dated 5th September, 1977. The first defendant, however, was duly served with summons in the normal way. None of the defendants made an appearance in Court as directed by the summons for settlement of issues. Consequently, the Court gave leave to the plaintiff to prove the claim ex parte. The plaintiff was the only person who gave evidence in support of the claim. In the course of giving evidence he tendered various documentary exhibits including a medical report (exhibit P.2) as part of the plaintiff's evidence. An unsuccessful attempt was made to secure the attendance of Professor P.M. Sarungi, Consultant Surgeon of Muhimbili Medical Centre to give evidence for the plaintiff. Mr. Uzanda, learned Advocate for the plantiff then produced from the Bar a medical report dated 3rd May, 1978 as part of plantiff's evidence.

The plaintiff's evidence is to the effect that on the 12th August, 1975 he was riding his motor cycle along Morogoro Road when he came to traffic lights where he stopped in response to the traffic lights which happened to have turned red. He was then knocked down from the rear by a motor vehicle belonging to

the first defendant and driven by the second defendant, as a result of the second defendant's failure to stop at the traffic lights as he should have done. The plaintiff was knocked unconscious and suffered injuries involving a fracture on the right thigh and on the left and right hips as well as at the pubic area. He was rushed to Muhimbili Medical Centre where he regained consciousness and found himself in great pain. He was hospitalized for two months during which period he underwent a surgical operation and received treatment with drugs and injections. Thereafter the plaintiff was discharged from hospital after his injured thigh had been put under Plaster of Paris. He went home in that state where he remained with the Plaster of Paris for three months and used clutches to move about in his home.

At the end of the three months period the Plaster of Paris was removed at Muhimbili Medical Centre but the plaintiff continued to report at the Medical Centre for a period of one month and half for purposes of getting physiotherapeutic exercises. At the end of all his treatment plaintiff found himself with a shortened right limb, very weak sexual potency and persistent pain especially during the rains. With regard to the motor cycle which the plaintiff was riding at the time of the accident, the evidence is to the effect that the motor cycle was badly damaged and had to be extensively repaired at great cost amounting to Shs. 1,300/-.

The plaintiff's evidence is also to the effect that while hospitalised at Muhimbili Medical Centre he incurred expenses amounting to Shs. 1,000/- for his food. His trips to and from Muhimbili Medical Centre for physiotherapeutic exercises cost him a total of Shs. 5,500/- during the period of one month and half. The plaintiff had also to pay a sum of Shs. 10/40 being fees for obtaining a police report on the accident. He thus incurred expenses amounting to Shs. 7,810/40 arising out of the damage to his motorcycle, food at the hospital, transport charges as well as the cost of the police report. Finally, the plaintiff claimed in his evidence that he was entitled to another sum of Shs. 120,000/- by way of general damages and was also entitled to costs and interests as prayed in his plaint.

The first point for consideration and decision in this case is whether the plaintiff is entitled to the sum of Shs. 7,810/40 by way of special damages. On the evidence adduced by the plaintiff I would say that he is entitled to be paid that sum by way of special damages.

The next point for consideration and decision is whether the plaintiff is entitled to be paid the sum of Shs. 120,000/- by way of general damages. To be able to answer this point the plaintiff has to adduce evidence regarding the nature of the injuries sustained as a result of the accident. According to the testimony of the plaintiff himself, he became unconscious and sustained a fracture on the right thigh, the left and right hips and the pubic area, as a result of the accident. Naturally, the plaintiff did not testify about the extent of the fractures he suffered. He however testified that he felt great pain when he came to in the hospital.

Mr. Uzanda, learned Advocate, seeks to rely on exhibit p.2 (a medical report made by Professor Sarungi) and on another medical report made by the same Professor dated 3rd May, 1978, to establish the extent of the fractures and other injuries sustained by the plaintiff as a result of the accident. After I had admitted these reports as part of the evidence for the plaintiff, and when I was considering my judgment, it appeared to me that there was a vital point which had to be considered in connection with the reports and in respect of which learned Advocate for the plaintiff had not addressed the Court. I therefore decided to give learned advocate for the plaintiff a further opportunity to address me on that point before giving my judgment. The point is whether the reports can be used as evidence of the facts which they purport to state. Mr. Uzanda has submitted that the reports are admissible under Section 34 of the Evidence Act, 1967 as statements by persons who cannot be called as witnesses. The particular provisions which Mr. Uzanda relies on appear under Section 34(b) of the Act which states:

> 34. Statements, written or oral, of relevant facts made by a person who is dead, or who cannot be found, or who has become incapable of giving evidence, or whose attendance cannot be procured without an amount of delay or expense which in the circumstances of the case appears to the court unreasonable, are themselves admissible in the following cases:—
>
> (b) when the statement was made by such person in the ordinary course of business, and in particular when it consists of an entry or memorandum made by him in books or records kept in the ordinary course of business or in the discharge of professional duty; or of an acknowledgement written or signed by him of the receipt of money, goods, securities or property of any kind; or of a document used in commerce, written or signed by him; or of the date of a letter or other document usually dated, written or signed by him.

Mr. Uzanda cited a number of authorities in support of his contention and which are listed in his list No. 2 submitted to this court. These are:

1. **Halsbury's Laws of England** 3rd Edition Vo. 15, p.315, paragraph 573.
2. **Republic v. Masalu** [1967] E.A. 355.
3. **Gichunge v. Republic** [1972] E.A. 546.
4. **Dick v. Piller** [1943] 1 A.L.E.R. 627 at 629 admissibility of a medical certificate.

I have examined paragraph 573 of Halsbury's Laws of England, 3rd Edition on page 315 and it does not appear clear whether the relevant provisions of the Evidence Act, 1938 of the United Kingdom are similar to the provisions of Section 34 of our Law of Evidence Act. Nevertheless it is certainly stated under paragraph 573 to the effect that the statement of a person who cannot be called as a witness is admissible as evidence only when prescribed conditions are satisfied.

Mr. Uzanda has argued that the prescribed conditions for purposes of this case are two, that is, the statement must be made by a person in discharge of professional duty, and there must be delay or expense which in the opinion of the Court makes it unreasonable to insist on the attendance of the maker of the statement.

Since I have been unable to find in the Court Library the actual provisions of the Evidence Act, 1938 of the United Kingdom, I have found no assistance in the English authority cited by Mr. Uzanda.

Mr. Uzanda has submitted that since attempts to secure the personal attendance of Professor Sarungi have proved unsuccessful, his report can be admitted as evidence of the facts in question under paragraph 34(b) of our Law on Evidence Act, 1967 because the statements were made by the Professor in the discharge of professional duty. But the Professor acted in response to a written request by learned Advocate for plaintiff although indisputably, the plaintiff was under the care and treatment of the Professor at Muhimbili Medical Centre. It is obvious that the Professor must have made these reports as a doctor who attended and treated the plaintiff. The question arises whether this is sufficient to render the reports admissible under S. 34(b) when the maker of the reports cannot be procured without undue delay or expense.

A closer examination of paragraph (b) of S. 34 discloses that a number of commas and semicolons are used at various places in paragraph (b). These punctuations are not put there for mere decorative purposes but for purposes of proper construction and understanding of the paragraph. The first comma is put after the expression 'ordinary course of business' and is followed by a semicolon after the expression 'professional duty', thereafter there is a comma after the words 'money' and 'goods' followed by semicolon after the expression 'any kind'. Other commas and semicolons can be seen at various points thereafter in the paragraph. Now, what do all these punctuations mean? It seems to me quite clear that paragraph (b) deals with four kinds of statements. Firstly, statements made in the ordinary course of business; secondly, written acknowledgments for receipts of money, goods, securities or other property; thirdly, commercial documents, and fourthly and lastly, dates in letters or documents which are usually dated. It is also clear to me that one instance of a statement made in the ordinary course of business is particularized and this is an entry or memorandum in books or records kept in the ordinary course of business or kept in the discharge of professional duty.

The question arises whether Professor Sarungi's reports amount to entries or memoranda in books or records kept in the ordinary course of business or kept in the discharge of professional duty.

As I have said, the Professor made his reports by request from learned Advocate for the plaintiff. The reports cannot therefore be entries or memoranda in books or records kept in the ordinary course of the business of Muhimbili Medical Centre or kept in the discharge of the Professor's professional duty as a Consultant Surgeon.

I am firmly convinced that this is the proper construction that must be placed on S. 34(b). This construction is in line with the safeguards embodied under S. 34 which seek to ensure that statements are admitted only under circumstances where, to paraphrase Mr. Justice Platt, J. as he then was, in the case of **Republic v. Masalu [1967]** E.A. 356: the normal way of things would make it unlikely that mistakes would occur in the contents of the statements and there would be no reason why the maker of the statement would state anything but the truth.

It must follow, therefore, from my views that exhibit P.2 and the report dated 3rd May, 1978 cannot be used as evidence of the facts stated therein.

This leaves us, therefore, with the oral testimony of the plaintiff himself regarding the injuries he suffered as a result of the accident. Mr. Uzanda, learned Advocate, has divided the general damages

under various headings. He has sought damages to be paid in respect of pain and suffering for the period up to the date of judgment, and also he has sought general damages in respect of pain and suffering for the rest of the plaintiff's life. Again he has sought damages as a separate sum in respect of the rupture of the urethra and consequential impotence of the plaintiff. Finally, he has also sought general damages to be assessed as a separate sum in respect of the shortening of the plaintiff's right limb. There is no evidence before this Court in respect of the extent of the shortening of the right limb and no evidence regarding the extent of rupture of the plaintiff's urethra, although the plaintiff testified that his sexual powers have become impaired as a result of the accident to the extent that he is currently capable of having sexual intercourse only once a month while previously he was capable of having it every other or two days. On the question of pain and suffering the plaintiff testified that he was still suffering pain particularly during rainy days.

What then are the proper general damages to which the plaintiff is entitled in the light of the available evidence? As remarked in the Court of Appeal in the case of **Eastern Bus Co. v. Bibi** [1971] E.A. 374 by Spry, V.P. as he then was, the approach of assessing general damages under different heads of personal injuries is unsatisfactory. It is unsatisfactory because, in my view, the human body is an organic whole and under current knowledge it is impossible to evaluate separately one aspect of the body or human life as against another aspect of the body or life. The proper approach advocated by Spry, V.P., is to take into account all the various heads of personal injuries and place a total sum of money as compensation for the totality of personal injuries involved. This is the approach that I am adopting in the present case. On the evidence, I would award a total sum of Shs. 40,000/- as general damages for the personal injuries sustained by the plaintiff.

As to the prayer for costs and interest at 9% per annum from the date of the suit to the date of the judgment and at Court rate on the decree to be counted from the date of judgment till full payment, the plaintiff is clearly entitled to it.

In the final analysis, judgment is therefore given for the plaintiff for the sum of Shs. 7,810/40 in special damages plus Shs. 40,000/- by way of general damages plus costs and interests as prayed.

Judgment for Plaintiff

GENERAL MARKETING CO. LTD., v. A.A. SHARIFF (BIRON, J.)

-HIGH COURT OF TANZANIA AT DAR ES SALAAM (BIRON, J.)-

CIVIL REVISION 8 OF 1977

Labour Law—Order of Minister to reinstate an employee—Order through court—Whether court to issue decree—ss. 27 and 41 of Security of Employment Act, 1964.

Labour Law—Whether reference of a labour dispute to a Labour Officer is a condition precedent to the order of Court—s. 48 of Security of Employment Act, 1964; s. 130 of the Employment Ordinance and ss. 131 and 132 of the Employment Ordinance as amended by Employment Ordinance, 1969.

Labour Law—Interpretation of words, "Mfanyakazi arudishwe kazini" and "Malipo ya Ujira yaanze atakapoanza kazi".

The respondent was employed by the applicant Company. On his refusal to accept a transfer his employment was terminated. The respondent complained to appropriate authorities and the dispute between the parties went to the Conciliatory Board and the Minister made an order that "Mfanyakazi arudishwe kazini" and that "Malipo ya ujira yaanze atakapoanza kazi". Following the order of the Minister the Company offered to re-employ the respondent. The respondent contended that the order of the Minister was that he be re-instated in his employment.

Held: (i) ss. 27 and 41 of the Security of Employment Act do not require a Court to issue a decree in order to enforce a decision of the Minister;

(ii) failure to refer a dispute to a Labour Officer is not fatal to the order of the Court;

(iii) the interpretation of the words "Mfanyakazi arudishwe kazini" is that "The employee is to be reinstated in his employment" and not re-employed;

(iv) the expression "Malipo ya ujira yaanze atakapoanza kazi" means that the "salary of the employee shall commence as from the date he starts work."

Application dismissed.

Cases referred to:

Fatu Nyirenda v. Asia Abdallah [1973] L.R.T. n. 65.

F.H. Uzanda for the Appellant.
M.A. Lakha for the Respondent.

November 16, 1977. BIRON, J.: This is an application brought by the applicant Company for the making of the following orders:

1. That the Decree passed against the Applicant herein in the District Court be set aside;
2. The Ruling made by the learned Resident Magistrate on the 27th July, 1977, be revised and set aside and the dispute between the parties be remitted to a Labour Officer for enquiry and report under the provisions of the "Employment Ordinance" (Cap. 366);
3. That the costs of this application be provided for.

In his address Mr. Uzanda stated that the application was brought under ss. 79 and 95 of the Civil Procedure Code, 1966, and s. 39(b) of the Magistrates' Courts Act (Cap. 537) for revision of the exparte decree passed by the district court, and the order of the district court made on the 27th July, 1977. This case has run, if that is the right expression for its mode of locomotion, a long and arduous course beset with obstacles and hurdles, and finally has reached this Court. I am possibly using the word finally, somewhat too optimistically.

I do not consider it necessary to set out all the facts of the case, but confining myself to the material determining ones.

The respondent was employed by the applicant Company as a Depot Manager and on his refusal to accept a transfer his employment was terminated. He thereupon complained to the appropriate authorities and the dispute between the parties eventually found its way to the Conciliatory Board, and the Minister made an order which reads:—

> Baada ya kufikiria rufani iliyoletwa kwangu kuhusu uamuzi wa Baraza la Usuluhishi la Dar es Salaam katika shauri la mfanyakazi aliyetajwa hapo juu, mimi nimeamua kama ifuatavyo:—
>
> > Kwa mujibu wa kifungu cha 41 cha Sheria ya Usalama Kazini 1964, nauthibitisha uamuzi wa Baraza la Usuluhishi kuwa mfanyakazi arudishwe kazini, Uamuzi wa waajiri kumpa uhamisho unasimama pale pale, ila tu kwa vile haikuelezwa wazi kuwa uhamisho huo utapunguza maslahi ya mfanyakazi vipi, itafaa waajiri wamfahamishe kwa maandishi kuwa uhamisho hautampunguzia maslahi yake. Malipo ya ujira yaanze atakapoanza kazi.

Following this order of the Minister the company offered to re-employ the respondent, but the respondent contended that the order of the Minister was that he be re-instated in his employment.

After the Minister had made his order, it duly found its way to the District Court of Dar es Salaam, and the District Court made an order, though it is submitted by Mr. Uzanda for the applicant company that a decree was drawn up and issued, it does not appear to me that there was, in fact, a decree; and whether the order was made under s. 27 of the Security of Employment Act; or whether according to Mr. Uzanda it should have ben made under s. 41 of the Act, in either case there is no requirement on the court, in my view, to pass a decree, because all s. 27 and s. 41 of the Act say, to quote the former section first, the decision of the Minister:—

(a) shall be final and conclusive; and
(b) shall be binding on the parties to the reference, and the relationship between the parties in consequence of the matter in respect of which the reference was

made shall be determined accordingly; and

(c) may be enforced in any court of competent jurisdiction as if it were a decree.

And the second section, s. 41, reads:

> 41. The decision of the Minister on a reference to him under s. 40 or s. 40A and, subject to any decision on a further reference to the Minister therefrom the decision of a Board under s. 39 shall be final and conclusive and shall be binding on the parties to the reference, and, subject as aforesaid, such decision may be enforced in any court of competent jurisdiction as if it were a decree.

So, in my view, I have no hesitation in holding that it was not necessary for the court to issue a decree; nor as remarked, does the court appear to have issued a decree.

Mr. Uzanda's main objection to the order of the court was that according to s. 48 of the Security of Employment Act. 1964:

> 48. Subject to the provisions of this Act which exclude the jurisdiction of the courts, the provisions of Part XI of the Employment Ordinance shall apply **mutatis mutandis** in relation to any question, difference or dispute between an employer and an employee arising out of the decision of the Minister or a Board under this Act as they apply in relation to the questions, differences or disputes

By s. 130 of the Employment Ordinance, (Cap. 366—Supp. 56):

> 130. Whenever an employer or employee shall neglect or refuse to fulfil the terms of any contract of service, or whenever any question, difference or dispute shall arise as to the rights or liabilities of either party to a contract of service, or touching any misconduct neglect or ill-treatment of or by such party, the party aggrieved may report the matter to a Labour Officer who shall thereupon take such steps as may seem to him to be expedient to effect a settlement between the parties.

And by ss. 131 and 132 of the said Ordinance, as amended by the Employment Ordinance, 1969:-

S. 131 reads:

> 131. Where, upon receipt of a report under s. 130 or otherwise, a labour officer is of the opinion that an offence under the provisions of this Ordinance has been committed by an employer, employee or any other person, he may himself take such steps as may be necessary by making the facts known to the Police or otherwise, to bring the employer, employee or such other person before the court.

S. 132 reads:

> 132. Where, on receipt of a report under s. 130, a labour officer does not act in accordance with the provisions of s. 131 and is unable to effect a settlement between the parties, he may, at the request of either party or on his own motion, submit a written report to a magistrate setting out the facts of the case.

Mr. Uzanda submits that the failure to refer the dispute between the parties to a Labour Officer is fatal to the court's order. This actually was considered by the magistrate in his ruling, and he stated:

> I do not think that Cap. 366 can be called in aid in this case. The jurisdiction of the court has been expressly taken away by s. 28 of the Security of Employment Act and even had the Labour Officer filed a written report that would not confer jurisdiction on the court.

Mr. Uzanda has challenged this ruling of the court relying on the case of **Fatu Nyirenda v. Asia Abdallah,** [1973] L.R.T. n. 65 on p. 282, wherein Onyiuke, J., dealt with a case wherein there was a dispute. But like Mr. Lakha, I really do not see the relevance of that case; as in that case there was a reference to a Labour Officer. Onyiuke, J. never at any stage or part of his judgment stated that a reference to a Labour Officer was a condition precedent to the district court making an order. And I am not satisfied that the failure to refer the dispute to a Labour Officer is in any way fatal to the order of the district court.

As for the submission of Mr. Uzanda that the order should have been made under s. 41 of the Security of Employment Act, and not as it was, under s. 27, that to my mind is merely a matter of **de minimis non curat lex.** As remarked earlier, Mr. Uzanda specifically stated that he was making the application under s. 79 and s. 95 of the Civil Procedure Code, 1966. The first section referred to reads:-

> 79.(1) The High Court may call for the record of any case which has been decided by any court subordinate to the High Court and in which no appeal lies thereto, and if such subordinate court appears:
> (a) to have exercised a jurisdiction not vested in it by law; or
> (b) to have failed to exercise a jurisdiction so vested; or
> (c) to have acted in the exercise of its jurisdiction illegally or with material irregularity.
> the High Court may make such order in the case as it thinks fit.
> (2) Nothing in this section shall be construed as limiting the High Court's power to exercise revisional jurisdiction under the Magistrates' Courts Act, 1963.

And s. 95 of the same Act reads:

> Nothing in this Code shall be deemed to limit or otherwise affect the inherent power of the court to make such orders as may be necessary for the ends of justice or to prevent abuse of the process of the court.

Mr. Uzanda further relied on s. 39 of the Magistrates' Courts Act, Cap. 537 which reads:

> 39.(1) In addition to any other powers in that behalf conferred upon the High Court, the High Court:
> (a) shall exercise general powers of supervison over all district courts and courts of a resident magistrate and may, at any time, call for and inspect or direct the inspection of the records of such courts and give such directions as it considers may be necessary in the interests of justice; and all such courts shall comply with such directions without undue delay;
> (b) may, in any proceeding of a civil nature determined in a district court or a court of a resident magistrate, on application being made in that behalf by any party or of its own motion, if it appears that there has been an error material to the merits of the case involving injustice, revise the proceedings and make such decision or order therein as it sees fit.

Trying as hard as I can to follow Mr. Uzanda's reasoning, I fail to see how the failure to refer the dispute to a Labour Officer could constitute an error material to the merits of the case involving injustice, in the words of s. 39(b) of the Magistrates' Courts Act. And further by s. 73 of the Civil Procedure Code, 1966:

> No decree shall be reversed or substantially varied, nor shall any case be remanded, in appeal, on account of any misjoinder of parties or causes of action or any error, defect or irregularity in any proceedings in the suit, not affecting the merits of the case or the jurisdiction of the court.

For the life of me, I fail to see how the absence of a reference to a Labour Officer could in any way affect the merits of any case let alone this case, because the Labour Officer does not have to make decision, all he does is to make a report of the facts to the court. And all the case before Onyiuke, J. laid down, was that the court should not have made the order it did because the facts of the case were not before it, as expressly

in the headnote at paragraph (h).

ve remarked more than once that I am a firm believer in the dictum of Sir Newnham Worley when President of the Court of Appeal for East Africa, that the rules of procedure are the handmaidens of and should not be used to defeat justice. I am also a firm believer in the dictum that **interest reipu-t sit finis litium.** Or to put it in popular parlance in relation to this particular case, that the buck me to rest in this Court although it is not the White House.

ow propose to deal with the core of the dispute, and as Mr. Uzanda has agreed, the dispute is on the retation to be put on the order of the Minister. I have already set out the wording of the order. To nd, the interpretation of the words "Mfanyakazi arudishwe kazini", despite my not being an expert ahili, cannot be other than: "The employee is to be **re-instated** in his employment", and not mployed". Likewise, the expression that Mr. Uzanda relies on, that is, the last sentence of the order: lpo ya ujira yaanze atakapoanza kazi", means that "The salary of the employee shall commence as the date he starts work." To my mind, the word "work" is not synonymous with, nor can be equated ithout outrage on the English language, a "contract".

I therefore have not the slightest hesitation in dismissing this application with all costs to date to the ondent employee.

Application dismissed.

SAIDI MZUNGUMWANA v. THE MANAGER OF SODECO—SONGEA (KISANGA, J.)

SAIDI MZUNGUMWANA v. THE MANAGER OF SODECO—SONGEA

[HIGH COURT OF TANZANIA AT MTWARA (KISANGA, J.)]

(PC) CIVIL APPEAL 1 OF 1976

ontract—Employment—Employee entitled to overtime when contract is silent.

ontract—Employment—Employee watchman and his family living on the premises of employer at employee's request and not because of exigencies of his employment—Not entitled to overtime during night unless he proves he was on duty.

The appellant sued his former employer for Shs. 10,956.35 being overtime payment owing to him. The lower court disallowed the claim. On appeal the appellant failed to prove that he worked overtime on week-days and nights because he was residing on premises on his own request, but satisfied the Court that he worked on public holidays and Sundays. The respondent contended that the appellant was not entitled to payment of overtime because the appellant's written contract of service made no mention of payment of overtime, that the appellant could work overtime and claim payment only if he was instructed to work overtime.

Held: (i) the appellant's entitlement to overtime payment is provided for by paragraph 9(3) of the Regulation of Wages and Terms of Employment Ordinance (Cap. 300) made under s. 10(3C) of Cap. 300 and published as G.N. 152 of 1972;

(ii) the appellant cannot contract out of the statute which expressly provides for payment of overtime in respect of such days;

(iii) where a contract of employment makes no reference to services on rest day or holiday the appellant upon proof that he worked on such days becomes entitled to a remedy under the general law of contract under s. 70 of the Contract Ordinance (Cap. 433) or the rate prescribed in the Regulation mentioned—(i) above;

(iv) the appellant's claim fell within the provisions of s. 70 of Cap 433.

Appeal allowed in part.

Case referred to:

(1) **Lalii Naran v. United Construction Co. Ltd.** [1968] H.C.D. n. 403.

November 15, 1977. KISANGA, J.: The appellant sued the Songea Development Corporation (which I shall refer to as the Corporation) for Shs. 10,956.35 being overtime payment owing to him. The Resident Magistrate Court at Songea disallowed the claim, and the appellant now appeals against that decision.

The facts of the case were as follows: The appellant was employed by the Corporation as a watchman as from 1.1.73 and on 15.5.74 he had his services terminated because he caused a fire at his place of work. He appealed, under the Security of Employment Act, to the labour conciliation board but his dismissal was upheld by the board. During the proceedings before the board, the appellant also raised a claim of overtime payment in respect of extra hours he worked on normal working days of the week and the hours he worked on Sundays and public holidays which amounted to a total of Shs. 10,956.35. The board purported to entertain the claim but, considering the poor financial position of the Corporation, directed that the Corporation should pay Shs. 2,257/- only in full settlement of the appellant's claim. The Corporation failed to pay that sum and criminal proceedings were instituted against it in respect of such failure but it was acquitted. The appellant, however, was advised to proceed by way of civil claim which he did, thus leading to this suit.

The Corporation employed two watchmen, i.e., the appellant and one Philip Hiyera. These two worked alternately during the day but at night they were both on duty. This procedure applied also on Sundays and public holidays. The appellant also had secured permission from the Corporation for himself and his family to live on the premises of the Corporation. On four occasions the appellant completed overtime claim forms and submitted them to the Corporation and he was duly paid an aggregate sum of Shs. 312.60. He claims that subsequently he submitted similar claims verbally but they were turned down.

In his defence, the Corporation's General Manager, one Mr. Julius Ngahyoma, vehemently denied the claim. He contended that the appellant's written contract of service which was put in evidence as Exhibit D.1 made no mention of payment of overtime. He said that the appellant could work overtime and claim payment only if he was instructed to work overtime. According to him the appellant was so instructed to work overtime only on the four occasions mentioned earlier for which he was duly paid the aggregate sum of Shs. 312.60. He added that the appellant was not asked to work, and he did not work, overtime on any other occasions because otherwise he would have submitted his overtime claim forms as he did in respect of the four occasions.

The learned Resident Magistrate found that the appellant failed to establish that he was asked or authorized to work overtime, or that he did in fact work overtime. The magistrate therefore held that the appellant's claim was not proved on the evidence and accordingly he dismissed it.

It would seem to me that the conclusion of the learned resident magistrate was justified as regards the appellant's claim in respect of overtime during the normal working days of the week. It was asserted that the appellant worked overtime at the rate of 63 hours per week and that for the entire period in question he clocked in a total of 4032 hours for which he claims Shs. 7,443/70. But there is no reliable evidence to show how this figure was arrived at.

According to the appellant he worked from 7.30 a.m. to 1.30 p.m. and then from 6.00 p.m. to 6.00 a.m. But according to his witness and a co-watchman Philip Hiyera (P.W.1) the appellant worked from 7.00 to 6.00 p.m. in alternate days and then from 6.00 p.m. to 6.00 a.m. each day. The evidence here is so inconsistent and conflicting that I am unable to get any clear notion whether the appellant did work overtime and if so for how many hours. The position is made even more complicated by the fact that the appellant and his family were living on the premises of the Corporation at his (appellant's) own request and not because of the exigencies of his employment. Considering the claim of overtime during the night, for example, it is not clear whether the appellant remained on the premises at night because he was on duty or because he was residing there. In these circumstances I share the view of the learned trial magistrate that the claim of overtime under this head was not proved and should be disallowed.

However, I hold different views as regards the claim for overtime in respect of Sundays and public holidays. The finding by the trial magistrate that it was not established that the appellant did work on Sundays and public holidays is unsupportable. On the contrary there was ample evidence in support of the appellant's allegation. The appellant and his witness Philip (W.1) clearly stated that the appellant was working on Sundays and public holidays. The learned trial magistrate took the view that if the appellant had thus worked overtime, he would have lodged his claim in writing for payment of overtime as he did in the four instances. The appellant said that he lodged his claim only verbally but it was rejected. Even if I do not accept that the appellant did lodge a claim as he asserts, I find no good reason for disbelieving him and his witness (P.W.1) when they say that he (appellant) worked on Sundays and on public holidays.

this point seems to be put beyond doubt by the Corporation's General Manager himself, ahyoma. He said in his evidence that the appellant was bound to work for eight hours a day from m. to 2.30 p.m. It should be pointed out, however, that from 7.30 a.m. to 2.30 p.m. is seven hours eight hours. Then he went on to say that the appellant was bound to work for eight hours on holidays as well. He did not say anything expressly about working on Sundays but his stand must to be the same that the appellant was bound to work for eight hours also. Because he was replying appellant's claim for overtime in respect of Sundays and public holidays and I could find no ground ing or thinking that what he has said about working hours on public holidays is or would be different hat he would say about working hours on Sundays because public holidays and Sundays were both days for the appellant. Thus according to him the appellant was bound to work for eight hours ublic holidays and on Sundays as well. In other words he expected the appellant to work for eight hours ublic holidays and on Sundays and he clearly knew that the appellant was so working. So that appellant ained on the premises for eight hours on public holidays and Sundays not just because he was residing the premises of the Corporation but because he was bound to do so as a matter of duty and as expected his employer.

Now, once it was thus established by evidence that the appellant did work on Sundays and on public holidays then he is entitled to claim payment for it. It is true that for one reason or another he failed to submit his written claim for such payment as he did in the four instances. But this is immaterial. So long the claim is not time barred (as indeed it is not) there is nothing to prevent him from recovering his dues at a later date. His entitlement to overtime payment is provided for by the Regulation of Wages and Terms of Employment Ordinance (Cap. 300). Paragraph 9(3) of the Regulation of Wages and Terms of Employment Order made under s. 10(3C) of Cap. 300 and published as G.N. 152 of 1973 reads:

> where any employee is employed on the Statutory weekly rest day or on a public holiday other than Sundays (save where Sunday is the weekly rest day for such employee), he shall be paid in respect of every hour or part of an hour during which he is employed on such day:
> (a) in the case of a domestic employee, one hundred tenth of his monthly wages;
> (b) in any other case, one ninetieth of his monthly wages.

The appellant fell under category (b). It is quite clear therefore that if he was working eight hours on public holidays and on Sundays he was entitled under the Statute to be paid overtime. As I said before, the Corporation's General Manager contended that the appellant was bound to work for eight hours on public holidays and on Sundays. But such argument is both misconceived and untenable for the simple reason that he cannot contract out of the Statute which expressly provides for payment of overtime in respect of such days.

The General Manager also contended on behalf of the Corporation that since the appellant's written contract was silent on the question of overtime, the appellant could only work and claim overtime if he was so asked or authorised to work overtime, which he was not. Indeed on the whole the respondent Corporation did not seem to seek to challenge seriously the point that the appellant worked on Sundays and on public holidays, rather it was more concerned with showing that the appellant was not asked or authorised to work on those days. A similar question arose in the case of **Lalji Naran v. United Construction Co. Ltd.** [1968] H.C.D. n. 403. In that case the appellant filed a claim against his employer to recover, **inter alia,** Shs. 2,560/- in respect of work done overtime on Sundays and public holidays. The trial court dismissed the claim on the ground that the appellant's contract of employment made no reference to additional services. On appeal to the High Court, however, it was held (per Saidi, J.) that he appellant was entitled to a remedy under the general law of contract and that s. 70 of the Contract Ordinance (Cap. 433) clearly entitled the appellant to overtime payment if the appellant's contract of employment was silent. The claim, however, failed only because the appellant failed to prove that he actually worked overtime. S. 70 of the Law of Contract on which the decision was based reads:

> 70. Where a person lawfully does anything for another person, or delivers anything to him, not intending to do so gratuitously, and such other person enjoys the benefit thereof, the latter is bound to make compensation to the former in respect of, or to restore, the thing so done or delivered. Provided that no compensation shall be made in any case in which the person sought to be charged had no opportunity of accepting or rejecting the benefit.

In order to sustain a claim under this section the party bringing the suit has to prove four assential matters, namely, that:

1. he did render the service or services for which he is claiming compensation.
2. he did not intend to render such services gratuituously,
3. the party being sued did enjoy the benefit of those services and
4. had the opportunity of accepting or rejecting the benefit of those services.

I have already made a finding that the appellant did work overtime on Sundays and on public holidays. and it necessarily follows that the respondent Corporation did enjoy the benefit of the appellant's services because he was working overtime for the Corporation. The appellant in his evidence makes it clear that he did not intend to work overtime gratuituously and that he did claim payment orally but he was refused. This contention would appear to be supported by the Corporation's General Manager himself when he said that the appellant was bound to work on public holidays, in other words according to the Corporation's General Manager, working on Sundays and on public holidays was part of the appellant's schedule of work for which he was paid a monthly wage. This statement of the Corporation's General Manager also makes it abundantly clear that the Corporation knew that the appellant was working for it on Sundays and on public holidays and therefore had the opportunity of asking him to stop but it did not. I am therefore of the view that the appellant's claim fell within the provisions of s. 70 of Cap. 433 as quoted above, and that it satisfied all the assentials required to sustain a claim for compensation under the section.

It was clearly stated in the evidence that the appellant worked for 20 days on public holidays and 68 days on weekly rest days, i.e. (Sundays). This makes a total of 88 days. Since according to the Corporation's General Manager the appellant worked for 8 hours each day, this makes a total of (88 × 8) hours = 704 hours. According to the rates which were in force at the time as set out in paragraph 9(3) of G.N. No. 152 of 1972 quoted above the appellant was entitled to a payment of $\frac{1}{90}$ of his monthly wage (Shs. 240/-) per hour. Therefore for a total of 704 hours he was entitled to receive Shs. $240 \times \frac{704}{90}$ = Shs. 1,877/-

This is payment for the hours which he worked overtime during daytime only. I could not award any payment in respect of overtime at night because, as I said earlier in this judgment, it is not certain whether the appellant remained on the Corporation's premises at night by reason of his duty or because he was having his home there. Since the appellant had received overtime payments on four occasions amounting to Shs. 312.60, this sum should be deducted from his total dues. His net claim therefore is Shs. (1,877.00 312.60) = Shs. 1,564.40. Accordingly he is entitled to recover that sum from the respondent Corporation.

In the result the appeal is allowed to the extent as indicated and the appellant is to recover his costs in this court and in the court below.

Appeal allowed in part

ELIZABETH JEREMIA v. BENEDICT ANTHONY AND AMIRI ALLY KISHINDO (NYALALI, C.J.)

ELIZABETH JEREMIA v. BENEDICT ANOTHY AND AMIRI ALLY KISHINDO

[HIGH COURT OF TANZANIA AT DAR ES SALAAM (NYALALI, C.J.)]

CIVIL CASE 115 OF 1975

Negligence—Damages—General and special—Method of assessement.

The plaintiff claimed damages on account of loss sustained from a motor accident due to the defendant's negligence. The only issue was on the quantum of damages.

Held: (i) the quantum of general damages in personal injury cases is upon the court to assess;

(ii) loss of wages is an item of special damages.

Judgment for plaintiff.

Cases referred to:

(i) **Di Caprio v. Argo Films (E.A.) Ltd.** [1971] E.A. 483.
(ii) **Sargent v. Lane and Another,** in Kemp and Kemp, Quantum of Damages, Vol. 1 p. 543.
(iii) **Beeston v. Hardland and Wolff Ltd.** in Kemp and Kemp, Quantum of Damages Vol. 1 p. 301.

F.H. Uzanda for the plaintiff.
M.A. Lakha for the defendants.

June 28, 1977. NYALALI, C.J.—This is a suit filed by the plaintiff, namely Elizabeth Jeremia, for the recovery of Shs. 30,000/- in general damages and Shs. 5,010/40 in special damages; plus interest and costs of the suit which is based on Tort. On the pleadings and the evidence in this case there is total agreement that on the 30th July, 1972, the plaintiff was involved in a motor accident, and she suffered bodily injuries as a result of the negligence of the second defendant committed in the course of his duty as a driver employed by the first defendant.

When the case came before my predeccessor on the 11th November, 1976, two issues were agreed upon by the parties, and these issues are.

1. What is the nature of injuries sustained by the plantiff;
2. What damages is the plaintiff entitled to?

Only the plaintiff gave evidence before my predecessor, and when the case came up for continuation of hearing before me on the 22nd March, 1977, I directed the hearing to start afresh.

The plaintiff and two witnesses, that is, P.W.2 and P.W.3, gave evidence in support of the plaintiff's case. The only witness that the defence sought to call was not present when the plantiff's case was closed. Mr. Lobulu, learned defence counsel, applied for the case to be adjourned to another date to enable him to call the prospective defence witness. The prospective defence witness is, apparently, an official of the National Insurance Corporation, and it is the Corporation which had insured the defendant's motor vehicle which was involved in the accident. Learned defence counsel informed this court that the witness would testify about the amount of compensation which learned counsel for the plaintiff had sought to be paid out of Court before these proceedings were instituted. Learned defence counsel contended that in assessing the quantum of damages, the Court should take into account such claims made between the parties out of Court.

Mr. Uzanda, learned counsel for the plaintiff, objected to the application for adjournment on the ground that the evidence of the prospective witness was irrelevant, since the quantum of general damages in personal injury cases is entirely a matter for the Court's discretion. I agreed with learned counsel for the plaintiff. Although it is correct to say that the learned opinion of an advocate made on the issue of quantum of damages is always relevant when properly given in Court in the course of proceedings, for instance, when counsel is addressing the Court in summing-up, I am of the view that such opinion when given out of Court is irrelevant and ought not be considered by the Court in the assessment of damages.

The case of **Ally Kongo v. Alois Manyoto,** Dar es Salaam Registry, High Court Civil Case No. 11 of 1973, (not reported), was cited by learned counsel for the defence, but it does not lay down any rule which permits extra-judicial opinions of counsel to be adduced as evidence in Court.

I, therefore, refused the application for adjournment since such prospective witness would have been a useless witness for the issues in this case and no other witness was called for the defence. This case, therefore, would succeed or fail only on the evidence adduced for the plaintiff.

According to the medical evidence, which consists of Exhibit P1 and P2, and the testimony of the plaintiff supported by P.W. 2, the plaintiff sustained Fracture Condyle Rt. Tibia involving the knee. She was admitted and treated at Government Hospital Muhimbili and discharged early in August 1972, but continued with out-patient treatment. When she was later examined by P.W.2 early in July 1976, she was found with signs of osteoanthritis in the knee which had sustained the fracture. She was also complaining of pain. P.W.2 was of the opinion that osteoanthritis may get worse with time and may lead to a stiff joint. According to the evidence, the plaintiff's leg had to be encased in plaster of paris for some time as part of her treatment.

When the plaintiff appeared to give evidence before me, she was using crutches and appeared to be moving with pain. This is in spite of the fact that over four years had elapsed since she was involved in the accident.

I accept all this evidence and, therefore, find on the first issue that the plaintiff sustained a fracture condyle Rt. Tibia involving the knee and suffered, and continued to suffer, pain and discomfort.

According to the testimony of the plaintiff, which is supported by Exhibit P.1, the plaintiff continued with out-patient treatment after she was discharged from hospital. On her testimony and that of P.W.3, she was unable to resume work where she had been employed previously until 1st June, 1973. Her monthly salary was Shs. 264/- at the time of the accident. She was paid full salary up to August 1972, thereafter she was paid only half her salary to October 1972, though she was not working. Henceforth, she could not be paid any salary and had to apply for, and was granted, leave without pay until she resumed work on 1st June, 1973. She continued to work until she was declared, together with other workers, redundant in January 1977. Undoubtedly, she was therefore entitled to receive compensation for the half salary she missed for September and October and the full salary she missed for November and December 1972, since all this was in consequence of the accident in which she was involved.

The plantiff also testified that after she was discharged from hospital she visited the hospital as an out-patient practically twice every week. This means eight times a month. On the first four occasions she had to hire a tax for a charge of Shs. 40/-, return fare, per trip. Thereafter, in order to mitigate the damages, she began to travel by an auto-bus at Shs. 1/- return trip. There are, of course, some inconsistencies and ambiguities in her testimony but these can be explained or attributed to the pain which she was obviously feeling when giving evidence in Court. I accept her evidence as being essentially true.

With regard to the second issue, both sides have cited authorities for the guidance of this Court regarding general damages. Mr. Uzanda submitted a list of three authorities, that is:

1. **Sargent v. Lane / Another;** Quantum of Damages—by KEMP & KEMP, Vol. 1 P. 543;
2. **Beeston v. Harland and Woff Ltd.,** Quantum of Damages—Vol. 1 p. 301 (589)
3. **Di Caprio v. Argo Films (E.A.) Ltd., and another:** [1971] E.A. 483. at 484 and 485.

In the the first case of **Sargent v. Lane / another** the plaintiff broke his left leg and was left with a permanently stiff knee. The trial judge awarded him £4,000 general damages. The Court of Appeal reduced the award for general damages to £2,000. In the second case, that is, the case of **Beeston v. Harland and Wolff Ltd.,** the plaintiff sustained a joint fracture of the Tibia and Fibula of the left leg. He was awarded £2,250 damages including £720 special damages. In the third case, that is the case of **Di Caprio v. Argo Films (E.A.) Ltd. / Another** the plaintiff sustained a commute fracture of the right femur including the hip joint. He was awarded £4,950 in general damages.

The first two cases are English cases, and although English cases are of great guidance in this country whose legal system is similar to that of Engtand, these cases are, in my view, to be used with great caution in personal injury cases, because the economic-socio circumstances in our country are very different from those prevailing in England. It is generally accepted that the average standard of living in England is much higher than it is in this country. And claims for damages and compensation cannot be completely divorced from the accepted life styles of a country. I will, therefore, bear in mind that if those English cases had been decided in this country, the amount of damages awarded would have been on the lower side.

The third case is an East African case but arising and decided in Kenya, which is in the neighbourhood of our country. Unfortunately, the Kenya High Court did not state whether it took into account the local circumstances in assessing damages. The plaintiff was an Italian who had a permit to visit Kenya when he met the unfortunate accident and had to be taken to Italy for treatment. However, the injuries sustained by the plaintiff in that case appear to be much more serious than those sustained by the plaintiff in the present case. It follows, therefore, that the proper general damages to be warded in the present case should be lower than those awarded in the case decided by the Kenya High Court.

Bearing these points in mind, I would say the sum of Shs. 20,000/- would be a fair assessment of general damages; and so I assess it accordingly.

With regard to special damages, Mr. Lobulu, learned counsel for the defence, submitted that the plaintiff cannot recover without pleading for it. Mr. Uzanda, learned advocate for the plaintiff, replied that special damages are sufficiently pleaded in paragraph '6' of the plaint. Since the format used in the plaint is in accordance with what is stated in **Odger's on Pleadings and Practices,** 19th Edition, on p. 448, in a suit of this kind, I accept the stand taken by learned counsel for the plaintiff as correct. This means the plaintiff is entitled to recover the half salary she missed for the period of September to October 1972, that is, Shs. 132 × 2 = totalling Shs. 264/-; and is entitled to recover the full salary she missed for the period November to December 1972, that is, Shs. 264 × 2 = totalling Shs. 528/-. This comes to a total sum o Shs. 792/- in salaries.

She is also entitled to recover the expenses she incurred in hiring a taxi and also in travelling by an auto-bus, that is, Shs. 40 × 4 = totalling Shs. 160/-; together with a sum equivalent to the fare of Shs. 1/- twice weekly for September, October, November and December, which is Shs. 8/- for each of those months, totalling Shs. 32/

The plaintiff's claim for interest at 9% per annum from the day of the suit to the day of judgment and thereafter at Court rate on the decretal amount has not been challenged. That being the case, the plaintiff is equally entitled to recover it.

This means, in the last analysis, the plaintiff is entitled to get judgment for Shs. 20,000/- general damages; plus Shs. 984/- special damages; plus interest on the principal and decretal amount and costs as prayed. And I order accordingly.

Judgment for plaintiff

CHANGORO HAMISI MLEZI v. THE UNITED CONSTRUCTION COMPANY, LTD., (BIRON, J.)

CHANGORO HAMISI MLEZI v. THE UNITED CONSTRUCTION COMPANY LTD.

[HIGH COURT OF TANZANIA AT DAR ES SALAAM (BIRON, J.)]

MISCELLANEOUS CIVIL APPEAL 17 OF 1976

Civil Procedure—Consent order—Whether appellable

Civil Procedure —Consent order —Advocate alleged not to have authority or right to consent to such order - Whether consent order proper.

Legal Profession—Advocate conducts a case for litigant—Whether litigant has a share in the conduct of the case.

The appellant filed a suit against the respondent company claiming damages. On failure of the respondent company to appear an ex parte judgment was entered in favour of the appellant. The respondent company applied to set aside the ex parte judgment contending that it never received any summons, nor was it aware of the proceedings until execution was levied against it. The appellant's advocate who appeared at the hearing of the application to set aside the ex parte judgment, on the ground that summons had not been served on the respondent company, consented to setting aside of the ex parte judgment. The appellant then applied to the District Court to set aside the consent order setting aside the ex parte judgment on the ground that his advocate had acted without his authority in consenting to the setting aside of the ex parte judgment entered in his favour. The Court refused his application. The appellant appealed.

On appeal it was argued for the respondent that the last order of the Court was not appeallable from in that it was a consent order. For the appellant it was argued that the consent order was not proper in that the advocate was not authorized by the appellant to consent to setting aside the ex parte judgment.

Held: (i) since the appellant had not withdrawn his instructions from the advocate who retained full control over the conduct of the case and had apparent authority to compromise all matters connected with the action, the advocate had the necessary authority in consenting to the setting aside of the ex parte judgment entered in the appellant's favour. **(Hansraj Ramal Shah v. Westlands General Stores Properties, Ltd and Another [1965] E.A. 641 followed;**

(ii) the consent order made by the resident magistrate was a proper consent order and is not appeallable from (s. 70(3) of the Civil Procedure Code).

Appeal dismissed.

Cases referred to:

1. **Gedge v. Independent Schools Tribunal;** The Times, 7th October, 1959.
2. **Hansraj Rammal Shah v. Westlands General Stores Propertiesl Ltd , and Another** [1965] E.A. 642

S.A. Machano for the Appellant.

R.C. Kesaria for the Respondent Company.

June 4, 1977. BIRON J.: This is an appeal from the judgment and order of the District Court of Dar es Salaam dismissing an application to set aside an order made by the court setting aside an ex parte judgment entered in favour of the appellant, and for restoring the original ex parte order made in favour of the appellant.

The appellant had filed a suit against the respondent, the United Construction Company Ltd., claiming damages for the destruction by the company of a partially constructed house of his, when the company was constructing a road in the vicinity.

On the failure of the respondent company to appear, ex parte judgment was entered against the respondent company in favour of the appellant. The respondent company applied to set aside ex parte judgment contending that it never received any summons, nor was it aware of the proceedings until execution was levied against the company.

Mr. Chirwa who appeared for the appellant at the hearing of the application to set aside the ex parte judgment on the ground that the summons had not been served on the defendant company, consented to the setting aside of the ex parte judgment, agreeing that the summons had not been properly served on the respondent company, and the Court naturally set aside the ex parte judgment by consent.

The appellant applied to the district court to set aside its order setting aside the ex parte judgment on the ground that Mr. Chirwa who was his advocate at the time, had acted without his authority in consenting to the setting aside of the ex parte judgment entered in his favour.

Mr. Kesaria who appeared for the respondent company, reiterated his case that the summons had never been served on the respondent company, and further submitted that as Mr. Chirwa had consented to the setting aside of the ex parte judgment, no appeal lay from such order, and that the appellant was bound by his advocate's conduct. The court upheld Mr. Kesaria's submission and refused to set aside its order setting aside its previous order. It is from this last order refusing to set aside its previous order setting aside the ex parte judgment that the appellant is now appealing to this Court.

In its first order setting aside the ex parte judgment, the court accepted the respondent company's case that the summons had never been served on the company. For it was pointed out that the summons was signed at the bottom by someone calling himlsef 'Athumani' and according to the respondent company there was no employee of such a name in their company. It is further noticed that the affidavit of the process server is to the effect that the summons which was given to him for service on 'the United' was served by him on the 'defendant'. In his memorandum of appeal the appellant avers that:

2. That the learned Resident Magistrate erred in accepting the summons was served upon a fictitious person.
3. That from the court records the learned Resident Magistrate should have held that the summons was properly served to the company.

In arguing this appeal, Mr. Machano who appeared for the appellant, submitted that the summons had been properly served and prayed that the last order of the resident magistrate should be set aside. Mr. Kesaria who appeared for the respondent company as he had done at the previous proceedings, submitted **inter alia,** that the last order of the court was not appeallable from in that it was a consent order. And by s. 70(3) of the Civil Procedure Code, 1966:

> No appeal shall lie from a decree passed by the court with the consent of (the) parties.

To deal with first things first: like the learned magistrate in the first order setting aside the exparte judgment, I agree that it is abundantly clear that there was no proper service on the defendant company, and the order made setting aside the ex parte judgment was with respect, perfectly proper.

With regard to the issue whether the order setting aside the ex parte judgment was a proper consent order in that it was alleged by the appellant that his advocate Mr. Chirwa had no authority or right to consent to such order, and therefore it was not a proper consent order, this raises the question whether a litigant conducts his case or whether the conduct of his case is in the hands of his advocate, whose actions are binding on his principal.

I was aware of a case of an English Court wherein Lord Parker, C.J., stated:

> But any litigant who was represented by counsel should not share the conduct of the case with him.

The source of the case is given in my note as:

Gedge v. Independent Schools Tribunal;
The Times, 7 October, 1959.

All that research in the High Court Library has unearthed, is a reference in the 1959 Current Law Year Book, at para 1109:

> 1109. Teachers-fitness. In **GEDGE v. INDEPENDENT SCHOOLS TRIBUNAL** (October 7, 1959) G. appealed under the Tribunals and Inquiries Act, 1958, from a dismissal by the Independent Schools Tribunal of his appeal against a complaint by the Minister of Education that he was not a proper person to be a teacher in any school. The Divisional Court (Lord Parker, C.J., Ashworth and Hinchcliffe JJ.), dismissing the appeal, held that G. had no shred of complaint in law. (Reported by David Calcutt, Esq. Barrister-at-law) See also the Times, October 7, 1959.

However, Mr. Machano who like myself had a recollection of a case to the point, has been much more fortunate than I, and he has very properly, and I am indebted to him for such kindness, brought to my notice a case very much nearer home, that of **HANSRAJ RANMAL SHAH v. WESTLANDS GENERAL STORES PROPERTIES, LTD, AND ANOTHER,** [1965] E.A. 642 from which it is sufficient to quote the headnote, which reads:—

> Held: (i) the appellant had not withdrawn his instructions from the advocate who retained full control over the conduct of the case and had apparent authority to compromise all matters connected with the action; accordingly the advocate had the necessary authority to agree to the fixing of the mesne profits as appellant's counsel and agent;
> (ii) the consent order made before the Deputy Registrar fixing the amount of the mesne profits was binding and there was no need for the judge to hold or order any further enquiry to be held as to the amount of the mesne profits, the judge correctly ordered mesne profits to be paid in accordance with the consent order. Appeal dismissed.

I therefore have not the slightest hesitation in holding that the consent order made by the learned resident magistrate was a proper consent order, and it is not appealable from as laid down in s. 70(3) of the Civil Procedure Code, 1966 above set out.

The appeal therefore must be both in justice and in law, unfortunately not invariably an indivisible combination, and is accordingly dismissed, with costs to the respondent company.

Appeal dismissed.

JUMA THOMAS ZANGIRA v. REPUBLIC (KISANGA, J.)

JUMA THOMAS ZANGIRA v. REPUBLIC

[FULL BECH OF THE HIGH COURT OF TANZANIA AT DAR ES SALAAM (Kisanga, Lugakingira and Samatta, JJJ.)]

CRIMINAL APPEAL 1 OF 1978

'Evidence—Admissibility—Statement made to a police officer—Appellant told justice of the peace the statement he made to the police was enough—Justice of the Peace not shown the statement—Whether such statement can be incorporated in the statement made to justice of the peace—Whether admissible as a confession—Whether admissible—Whether it amounts to an admission or not.

Criminal Practice and Procedure—Charge —Duplex—Defence clear what the case against appellant was—Whether defect curable—S. 346 of the Criminal Procedure Code.

National Security—Espionage and Sabotage—National Security Act—Foreign agent—Whether the person (John Wilson) with whom appellant was communicating was a "foreign agent"—S.2(1) and s.12(1) of the

National Security Act.

National Security—Espionage—Appellant alleged to have communicated with foreign agent—Whether necessary to prove which particular state or states the alleged agent was working for.

National Security—Espionage—When presumption under s.12(1) of the National Security Act comes into play—Effect of the presumption.

National Security—Spying on designated organization—Evidence of communication—No order of exact nature or type of information—Whether information for purposes prejudicial to the safety or interests of a designated organization.

National Security — Spying on a designated organization—Presumption under s.9(3) of the National Security Act—When it can come into play.

Criminal Practice and Procedure—Sentencing—Co-operation with police—Conviction based on presumption only—Extent of damage impossible to ascertain—Benefit to appellant.

The appellant was charged with and convicted of three counts of espionage and sabotage, spying on designated organizations and spying on designated agency. He was sentenced to 20 years' imprisonment on the first count and 15 years' imprisonment on each of the remaining two counts; the sentences were made to run concurrently. He appealed against both conviction and sentence.

Evidence adduced in support of the charge was wholly documentary. Letters written by one John Wilson of England addressed to the appellant were found in the possession of the appellant. Together with information touching on business interests, John Wilson requested for information on such matters as the Chinese and their influence in Tanzania, Tanzania's policy towards Mozambique and campaign against Rhodesia, whether President Nyerere was going to retire....the activities of the Liberation Committee and the Liberation groups based in Tanzania.... No exact nature or type of information given by the appellant to John Wilson was known. John Wilson paid the appellant various sums of money on various occasions for the information duly supplied and received.

On appeal, the Full Bench of the High Court of Tanzania considered the merits of the appeal on each count. As a preliminary issue the Court considered admissibility in evidence of a statement made to a police officer by the appellant which was sought to be incorporated in the statement which the appellant made to the justice of the peace.

Held: (i) since the justice of the peace did not see the statement alleged to have been made to the police then such a statement could not be said to be incorporated in the statement which the appellant made to the justice of the peace and was, therefore, inadmissible as a confession;

(ii) a statement made by an accused person to a police officer but which does not amount to a confession is admissible in evidence whether it amounts to an admission or not, provided it was made voluntarily;

(iii) since the defence was clear what the case against the appellant was the duplicity of the charge occasioned no failure of justice and was therefore, curable under the provisions of s.346 of the Criminal Procedure Code;

(iv) judging from the type of information which John Wilson was requesting he was a foreign agent;

(v) where it is alleged that an accused communicated with a foreign agent it is not necessary for the prosecution to prove which particular state or states the alleged agent was working for;

(vi) once it is established that John Wilson was a foreign agent and that the appellant did communicate with him then the presumption under s.12(1) of the National Security Act would operate to the effect that the appellant has, for a purpose prejudicial to the safety or interests of the United Republic, obtained the information which might be or was intended to be directly or indirectly useful to a foreign power;

(vii) as a consequence of presumption under s.12(1) of the National Security Act coming into play the burden of proof shifts onto the accused to establish, on a balance of probabilities, that he did not obtain the information so communicated for a purpose prejudicial to the interest of the United Republic;

(viii) the appellant failed to discharge the burden cast on him by the statute;

(ix) although there was evidence of communication between the appellant and John Wilson there is no indication at all as to the exact nature or type of information thus communicated; as such it was not established that the appellant obtained, collected or communicated information for purposes prejudicial to the safety or interests of a designated organization;

(x) since it was not established that the appellant communicated any matter relating to a designated organization there can be no basis for invoking the presumption under s.9(3) of the National Security Act;

(xi) since the appellant, a first offender, co-operated with the police in their investigations, since the

appellant's conviction could only be based on the presumption that he communicated with a foreign agent for purposes prejudicial to the safety or interests of the United Republic, and since the extent of damage to the country cannot be ascertained, in the circumstances we consider the sentence to be manifestly excessive.

Appeal on first count dismissed, on second and third counts allowed. Sentence reduced to one of 12 years' imprisonment.

Cases referred to:

(1) **Jeremiah Mhindi v. R.** [1968] H.C.D. 273.
(2) **Mustafa Msumi v. R.** [1970] H.C.D. 178.
(3) **Andrew Kileo v. R.** [1972] H.C.D. 239.
(4) **Anyangu and Others v. R.** [1968] E.A. 239.

T.L. Mkude for the appellant.
D.S. Meela, D.P.P. for the Republic.

March 20, 1978. KISANGA, LUGAKINGIRA and SAMATTA, JJJ.: The appellant, Juma Thomas Zangira, was charged with and convicted on three counts of espionage and sabotage, spying on designated organizations and spying on designated agency, contrary to ss.3(c), 9(2)(a) and 9(2)(b) respectively, of the National Security Act, 1970. He was sentenced to twenty (20) years' imprisonment on the first count and fifteen (15) years' imprisonment on each of the remaining two counts; and the sentences were made to run concurrently. He has now appealed against both conviction and sentence. The case was tried by the learned Chief Justice, and both at the trial and in this appeal the appellant was represented by Mr. Mkude while the Republic was represented by Mr. Meela, the Director of Public Prosecutions.

The evidence adduced in support of the charges was wholly documentary. It consisted of some thirty three letters found in the appellant's possession and addressed to him by one John Wilson of England. In some of those letters the said John Wilson stated that he was acting for large business concerns or companies which had large-scale investments in East and Central Africa, and that he was asking the appellant to supply him with business information which might have some bearing on investment projects and prospects in this part of Africa. Thus, he requested for information touching on such matters as the Chinese and their influence on Tanzania, Tanzania's policy towards Mozambique and campaign against Rhodesia, whether President Nyerere was going to retire and if so who was the likely successor, the activities of the Liberation Committee and the liberation groups based in Tanzania, and so forth and so forth. John Wilson paid to the appellant various sums of money on various occasions for information duly supplied and received. The case for the Republic was that in the course of such communications the appellant supplied to John Wilson information which might be or which was intended to be directly or indirectly useful to a foreign power or disaffected person for purposes prejudicial to the safety or interests of the United Republic of Tanzania, the Liberation Committee and the various liberation groups based in the United Republic of Tanzania.

The appellant in his unsworn statement of defence denied the charges. He stated that he was communicating with John Wilson as a part time news reporter and that John Wilson paid him for this. However, he claimed that the information he supplied was that which he got from the local papers and radio. He added that when John Wilson asked him for news which could not be obtained from newspapers or radio he (the appellant) was not replying. That is a very brief summary of the evidence for both sides.

Before we proceed to consider the merits of the appeal on each count we would like to say a few words about the issue which arose at the trial regarding the admissibility of a statement made by the appellant to a police officer. The background story to this issue was as follows: The prosecution sought to put in evidence what they considered to be an extra-judicial statement made by the appellant to a justice of the peace, one Mr. D.J. Gumbo. In that statement the appellant merely said:

> I agree with all that I am charged with. I was sent to court, charges were read to me I admitted. I gave statement to police station in details—I was not beaten or threatened—It was on my free will. I do not think that there is necessity of making any other statement. The one I made to Police is enough.

The prosecution sought to put in evidence the police statement referred to in the above extract on the ground that statement was incorporated in the statement which the appellant made to the justice of the peace. The

said police statement was not shown to the justice of the peace. The learned Chief Justice disallowed the application on the ground that since the justice of the peace did not see the statement alleged to have been made to the police, then such a statement could not be said to be incorporated in the statement which the appellant made to the justice of the peace. We think that the learned Chief Justice was right in coming to that conclusion.

In the alternative, the prosecution took the view that if the statement did not amount to a confession then it should be admissible in evidence even though it was made to a police officer. The learned Chief Justice found that the statement did not amount to a confession. But he held that it was not admissible in evidence because there was no provision under the Evidence Act or any other law which permitted its admissibility. The learned Chief Justice referred to the decisions of the High Court in the cases of **Jeremiah Mhindi v. R.** [1968] H.C.D. n.273, **Mustafa Msumi v. R.** [1970] H.C.D. n.178 and **Andrew Kileo v. R.** [1972] H.C.D. n.239; and also to the decision of the Court of Appeal in the case of **Anyangu and Others v. R.** [1968] E.A. 239 which decisions were to the effect that a statement made by an accused person to a police officer is admissible in evidence if it does not amount to a confession. However, he took the view that those cases were decided **per incuriam** and, in the upshot, he declined to follow them. Indeed, in his interlocutory ruling on the matter he stated that he was aware of decisions of the High Court which held that such statements were inadmissible in evidence and he promised to cite and refer to them in detail in his judgment. Unfortunately, however, he made no mention of them in his judgment. We have not been able to find, and counsel did not refer us to, any decisions which say that a statement of an accused person to a police officer which does not amount to a confession is inadmissible in evidence. On the contrary, we think that there are provisions in the Evidence Act which permit admissibility of such a statement in evidence. S.2 of the Evidence Act says:

> evidence, denotes the means by which an alleged matter of fact, the truth of which is submitted to investigation, is proved or disproved; and without prejudice to the foregoing generality, includes statements by accused persons, admissions and observations by the court in its judicial capacity.

The provision does not qualify the statements of accused persons which constitute evidence; in other words there is nothing in the provision to suggest that statements other than confessions to police officers are excluded. We think that under this provision a statement by an accused person to a police officer is admissible in evidence if it does not amount to a confession and if it is voluntary. If the statement amounts to an admission, this is admissible against the accused under the provisions of s.23 of the Evidence Act. The relevant part of that section reads:-

> 23. Admissions are relevant and may be proved as against the person who makes them or his representative in interest, but they cannot be proved by or on behalf of the person who makes them or by his representative in interest, except in the following cases:
> (a) ....
> (b) ....
> (c) ....

It is clear from reading this section that admissions may always be proved as against the persons who make them, but may not be proved by the persons who make them except in the limited instances as set out in paragraphs (a), and (b) and (c). In the present case the prosecution was seeking to prove the statement against the appellant. Therefore if that statement amounted to an admission, then it would have been admissible under the first part of the provisions of s.23, set out above.

Once again those provisions do not qualify the admissions which may be proved against their makers, and we think that an admission by an accused to a police officer is admissible provided that it is voluntary. In the instant case, the learned Chief Justice found, as stated earlier, that the statement of the appellant did not amount to a confession. Again, glancing through the proceedings there is no suggestion or indication whatever that the appellant's statement to the police was not voluntary. In those circumstances, we think that the statement was wrongly excluded from the evidence. In other words, once it was found not to amount to a confession and since it was common ground that it was made voluntarily, then it ought to have been

received in evidence, whether it amounted to an admission or not. Therefore although in the cases cited above, the learned Judges did not make reference to ss.2 and 23 of the Evidence Act, we are satisfied, for the reasons we have given, that they arrived at the right conclusion on the issue of admissibility of a statement made by an accused person to a police officer.

We now proceed to consider the appeal on its merits, starting with the first count. The charge in that count states:

> Juma Thomas Zangira, on divers days between 1971 and 29th July, 1977, in the City of Dar es Salaam, Dar es Salaam Region, for purposes prejudicial to the safety or interests of the United Republic of Tanzania did obtain or collect information and did communicate the same to a person by the name of John Wilson, particulars of which are as reflected in annexure A which is an extract from letters to be tendered as Exhibits in the case, and in particular letters listed as annexure B which information might be or was intended to be directly or indirectly useful to foreign power or disaffected person.

The charge is duplex in that in the statement of offence it purports to charge two distinct offences, that is, espionage and sabotage. However, we are satisfied that the error was harmless because the particulars of offence charge only the offence of espionage and therefore the appellant could not have been prejudiced or embarassed in his defence. But that is not all. The charge was bad for duplicity again in that in the particulars of offence the appellant was charged with obtaining or collecting **and** communicating information. This was clearly wrong and the offence of communicating ought to have been charged in a separate count. However, we are again satisfied that the error occasioned no failure of justice because the defence was very clear what the case against the appellant was, so that the appellant was able to prepare his defence accordingly. The error was therefore curable under the provisions of s.346 of the Criminal Procedure Code.

Coming now to consider the evidence in support of the charge on count one, it was undisputed that the appellant was communicating with John Wilson, but the question that arises is whether in the course of doing so the appellant communicated information to John Wilson for purposes prejudicial to the safety or interests of the United Republic. The learned Chief Justice considered this question and appears to have made a positive finding to the effect that the appellant did communicate information to John Wilson for purposes prejudicial to the safety or interests of the United Republic. This is what he said in his judgment:

> For the accused to be convicted as charged in the first count, the evidence adduced must prove beyond reasonable doubt the ingredients of that offence which are, firstly, that the accused must have either obtained, collected, recorded, published or communicated to any person the things which are stated under s.3(c). Secondly, that the accused must have done so for purposes prejudicial to the safety or interests of the United Republic, and thirdly, that the things so done by the accused and which are stated under sub-section (c), must be of a nature that might be or are intended to be directly or indirectly useful to a foreign power or disaffected person. On the evidence adduced by the prosecution, it would appear that the three essential ingredients of the offence are fully established.

Upon reading this extract the learned Chief Justice appears to be saying, **inter alia,** that there was evidence to establish that the appellant communicated information for purposes prejudicial to the safety or interests of the United Republic. With respect to the learned Chief Justice, however, we are of the opinion that there was no evidence on which such a positive finding of fact could be based. For, the prosecution did not produce a single letter coming from the appellant to John Wilson, and there is not the slightest clue what information exactly the appellant supplied to John Wilson. It is true that John Wilson in his letters to the appellant requested the appellant to supply information which, if supplied, could be said to be for purposes prejudicial to the safety or interests of the United Republic. But he also requested for information which, if sent could not be said to be for purposes prejudicial to the safety or interests of the United Republic. But we do not know what information exactly was sent. In other words, if one were to ask, "What particular information did the appellant send to John Wilson about Tanzania?" One cannot answer that question. In these circumstances, therefore, it is impossible to find as a fact that the appellant did communicate information to John Wilson for purposes prejudicial to the safety or interests of the

United Republic.

Nevertheless, under s.12(1) of the National Security Act, if it is proved that an accused person communicated with a foreign agent, then a presumption arises that the accused has, for a purpose prejudicial to the safety or interests of the United Republic, obtained information which might or was intended to be directly or indirectly useful to a foreign power. The subsection provides:-

> 12(1) If in any prosecution against any person for an offence under s.3 it is proved that he has been in communication with, or attempted to communicate with, a foreign agent in the United Republic or elsewhere it shall, unless the contrary is proved, be presumed that he has, for a purpose prejudicial to the safety or interests of the United Republic, obtained or attempted to obtain information which might be or is intended to be directly or indirectly useful to a foreign power.

The immediate question that arises is whether John Wilson was a foreign agent. The term "foreign agent" is defined under s.2(1) of the National Security Act to include:

> any person who is or has been or is reasonably suspected of being or having been directly or indirectly employed by a state other than the United Republic for the purpose of doing in the United Republic or elsewhere any act prejudicial to the safety or interests of the United Republic, or who has or is reasonably suspected of having done or attempted to do such an act in the United Republic or elsewhere in the interests of a state other than the United Republic.

In order to bring the appellant within the purview of s.12(1) of the Act it is necessary to show that John Wilson, with whom he was communicating, was a foreign agent within the meaning of s.2(1) of the Act, and in order to do that it is necessary to show that John Wilson was or was reasonably suspected of being directly or indirectly employed by a state other than the United Republic for purposes of doing acts prejudicial to the safety or interests of the United Republic. The learned Chief Justice dealt with this aspect of the case and held that John Wilson was not acting for investors as he claimed but that he was acting directly or indirectly for the government of either South Africa or Southern Rhodesia. Judging from the type of information which John Wilson was asking for we are of the view that he was acting for a state or states rather than investors. For instance, he sought to know the number and names of Tanzanian army commanders in Mozambique; the list of camps in Tanzania where the Zimbabweans are located, with numbers in each; the names of Zimbabwean leaders in what he called terrorist camps, with the exact location of the camps. It is difficult to see what relevance this type of information would have to an investor. On the other hand, that information would clearly be of great interest and use to those states which are not well disposed towards Tanzania and her policy towards the liberation of Africa.

We therefore agree with the learned Chief Justice that the information which John Wilson requested could not be, and was not being, sought by investors but that it was being sought by some foreign states. We do not go so far, as the Chief Justice did, to say that it was South Africa or Southern Rhodesia which sought that information, nor do we think that we are called upon to do so. We think that where it is alleged that an accused communicated with a foreign agent it is not necessary for the prosecution to prove which particular state or states the alleged agent was working for, and it is sufficient to show that the agent is or is reasonably suspected of being directly or indirectly employed by a state other than the United Republic to do any act which is prejudicial to the safety or interests of the United Republic.

Once it is established that John Wilson was a foreign agent and that the appellant did communicate with him then the presumption under s.12(1) of the National Security Act would operate to the effect that the appellant has, for a purpose prejudicial to the safety or interests of the United Republic, obtained the information which might be or was intended to be directly or indirectly useful to a foreign power. The learned Chief Justice appears to have been disposed to apply the provisions of this section but in the course of his judgment he went on to make a positive finding of fact to the effect that the information communicated by the appellant to John Wilson was prejudicial to the safety and interests of the United Republic. Once again, we think that there was no evidence to support such a positive finding of fact. Because, as we observed earlier on, although communication was proved, there is no indication whatever as to the exact nature or kind of information so communicated.

The learned Chief Justice, having rightly found that John Wilson was a foreign agent and that the

appellant communicated with him, should have held that the presumption under s.12(1) of the National Security Act came into play and, as a consequence thereof, the burden had shifted on to the appellant to establish, on a balance of probabilities, that he did not obtain the information so communicated for a purpose prejudicial to the interests of the United Republic.

Now the question that immediately falls for consideration is whether had the learned-Chief Justice directed himself along these lines he would have found that the appellant did discharge the onus cast on him by the Statute. In attempting to answer this question, we have to turn to the evidence to see, first of all, what points are there which could give rise to the presumption under s.12(1) of the National Security Act. John Wilson in his letters to the appellant requested for information which people would try to keep secret, that is, which newspapers do not publish. He requested for the number and names of Tanzanian army commanders in Mozambique, and the names of the Zimbabwean leaders in the freedom fighters' camps and the exact location of such camps. If the appellant obtained this information and passed it on to John Wilson we are clearly of the view the appellant can properly be presumed to have done so for purposes which were prejudicial to the safety or interests of the United Repbulic. Then there was evidence that there was continued correspondence between the appellant and John Wilson extending over a period of about six years, and on some occasions these two did meet in person although it is not clear from the evidence in which towns exactly the meetings took place. John Wilson used to pay the appellant for the information supplied and he made an undertaking to provide funds for the purchase of a house by the appellant.

To our minds, all these factors lead to a strong presumption that the information which John Wilson sought from the appellant was duly communicated to him.

It should be noted also that the presumption arising under s.12(1) of the National Security Act is further re-inforced by the provisions of subsection (4) of that sedtion. That sub-section provides that.

> If in a prosecution under this Act it is alleged that the accused acted for a purpose prejudicial to the safety or interests of the United Republic he shall, unless the contrary is proved, be deemed so to have acted if, from the circumstances of the case or his character or general conduct as proved, it appears that he acted for such purpose.

Once again we are of the opinion that considering the points we have referred to in the preceding paragraph and having regard to the circumstances of the case as a whole, the appellant may properly be deemed to have obtained, collected or communicated information for purposes prejudicial to the safety or interests of the United Republic.

As stated before, the appellant in his defence merely denied the charge, stating that he sent to John Wilson information which he acquired from the local press and radio. We are clearly of the opinion that such a bare assertion was not sufficient to discharge the burden cast on him by the statute, for the simple reason that anyone in his position could say that. We are also satisfied that had the learned Chief Justice directed himself along the lines we have indicated, he would inevitably have come to the same conclusions. Consequently, we agree with the learned Chief Justice, although for different reasons as sufficiently indicated that the guilt of the appellant on the first count was established beyond a resonable doubt. We would accordingly uphold the conviction on that count.

We now come to consider the second count. As we do so, we must point out at once that the charge on this count also was defective. S.9(2)(a) of the National Security Act under which the charge was brought provides:

> (2) Any person who:
>
> (a) for any purpose prejudicial to the safety or interests of a designated organization, obtains, collects, records, publishes or communicates to any other person any secret code word or pass word, or any sketch, plan, model, article, note or other document or information which is calculated to be or might be or is intended to be directly or indirectly useful to the Government of any territoty in Africa which is not independent State, or to the Government of the Republic of South Africa, or to any person or group of persons purporting to exercise or exercising the powers of government in Southern Rhodesia; or
>
> (b) ...shall be guilty of an offence....

The particulars of offence as set out in the charge read:-

> Juma Thomas Zangira, on divers dates between 1971 and 1977, in the City of Dar es-Salaam, Dar es Salaam Region, for a purpose prejudicial to the safety or interests of designated organizations to wit, ZANU, ZAPU, ANC (SA), PAC (SA) and SWAPO did obtain or collect information and did communicate the same to a person known as John Wilson, particulars of which are as reflected in annexture A which contains facts extracted from letters received from the said John Wilson and in particular the letters listed as annextur B and which list is deposited with this charge and which letters will be tendered as Exhibits in this case, the information which might be directly or indirectly useful to a foreign power or disaffected person.

It is at once apparent that there is a serious flaw in the charge. In the first place, the provisions of the section do not make it an offence to communicate the kind of information specified therein to a disaffected person. Secondly, it does not make it an offence to communicate such information to a foreign power other than the Republic of South Africa. So that, to the extent that the charge alleged communication of information to disaffected person it disclosed no offence under s.9(2)(a) of the Act.

To the extent that it alleged communication of information to a foreign power, it was bad for vagueness. It is unfortunate that these flaws escaped the attention of the learned Chief Justice and counsel for both sides. We gave anxious thought to this matter, our pre-occupation being that such vagueness in the charge might have embarassed the appellant in his defence. But we were greatly relieved when Mr. Mkude, counsel for the appellant, stated, in unequivocal terms, that throughout the trial the defence was very clear what the case against the appellant was. In these circumstances, we are satisfied that the defect arising out of the vagueness in the charge occasioned no miscarriage of justice, and it is curable under s.346 of the Criminal Procedure Code. Accordingly, we proceed to consider the merits of the appeal on this count.

Having indicated sufficiently clearly that the reference in this count to the expression "disaffected person" was utterly irrelevant, it follows that the charge related solely to information which allegedly might have been directly or indirectly useful to a foreign power. Under s.9(2)(a) of the Act it is only the Republic of South Africa which qualifies as a foreign power. We hold this view because the subsection otherwise refers to Governments of dependent territories in Africa. So that in order to establish the charge under the section it is necessary to prove beyond a reasonable doubt the following ingredients:

(1) that the accused obtained, collected or communicated information to any person;
(2) that he did so for purposes prejudicial to the safety or interests of a designated organization, and
(3) that such information was calculated to be or might have been or was intended to be directly or indirectly useful to the Government of the Republic of South Africa.

It is necessary to prove all the three ingredients, and proof of one or two ingredients only cannot suffice. The question therefore is whether there was evidence to prove these ingredients. As stated earlier on in this judgment, the prosecution did not produce a single letter written by the appellant to John Wilson. And although there was evidence of a communication between the appellant and John Wilson there is no indication at all as to the exact nature or type of information thus communicated. In the circumstances, therefore, we cannot say with any degree of certainty that the appellant must have obtained, collected or communicated information for purposes prejudicial to the safety or interests of a designated organization.

The learned Director of Public Prosecutions strenuously contended that having regard to the type of information sought by John Wilson and the sustained correspondence beween John Wilson and the appellant extending over a period of six years, the conclusion that the appellant did obtain, collect or communicate the information sought from him was inescapable. With respect, we disagree. It is apparent that not all the information requested by John Wilson, if obtained, collected or communicated, would have been for a purpose prejudicial to the safety or interests of designated organizations. Yet it is not known what information exactly the appellant sent to John Wilson about any designated organization. It will be recalled that a similar problem arose in relation to the first count but it was overcome by invoking the presumption provided for under s.12(1) of the National Security Act. But we hasten to point out that the presumption under s.12(1) does not apply to offences created under s.9 of the Act. The presumption applicable to offences under s.9 is provided for under subsection (3) thereof. That subsection provides:

> where, in any proceedings against a person for an offence under this section, it is

> proved that such person has communicated, or attempted to communicate, any such matter referred to in subsection (2) relating to a designated organization, or prepared for or by or forming part of the records of a designated agency, as the case may be, to any person employed by a Government having responsibility for, or jurisdiction, any territory in Africa which is not an independent State, or by the Government of the Republic of South Africa or by any person or group of persons purporting to exercise or exercising the powers of government in Southern Rhodesia, he shall be presumed to have communicated, or attempted to communicate, such matter for a purpose prejudicial to the safety or interests of such designated organization or of a state which is a member of or represented on such designated agency.

For a presumption under this subsection to arise, two conditions precedent must be satisfied, namely, (1) that the accused communicated or attempted to communicate any matter referred to in subsection (2) relating to designated organizations, and (2) that the person to whom he communicated such matter was employed by a government having responsibility for, or jurisdiction in, any territory in Africa which is not an independent state, or by the Government of the Republic of South Africa or by any person or group of persons purporting to exercise or exercising the powers of government in Southern Rhodesia. It will be noted that the presumption under this subsection relates to the purpose for which communication is made, unlike the presumption under s.12(1) of the Act which is much wider and which covers the act itself of obtaining or attempting to obtain information.

Once again we pose the question whether these two conditions precedent have been satisfied before the presumption under s.9(3) of the Act can arise. We have already held that it was not established that the appellant communicated any matter relating to a designated organization. That being so, there can be no basis for invoking the presumption under the subsection. Having come to that conclusion, we find it unnecessary to consider whether or not the learned Chief Justice was right in holding, as he did, that John Wilson was an employee of either the Government of the Republic of South Africa or the regime in Southern Rhodesia.

For the foregoing reasons, we are constrained to hold that there was no evidence to prove the appellant's guilt beyond a reasonable doubt and consequently, we are unable to uphold the conviction on this count.

We now go to the third count. The charge in this count was based under s.9(2)(b) which provides that:-

> (2) Any person who:
>
> (a) ....
>
> (b) for any purpose prejudicial to the safety or interests of a State which is a member of or represented on a designated agency, collects, records, publishes or communicates to any other person any secret code word or pass-word, or any sketch, plan, model, article, note or other document or information which:—
>
> (i) is prepared for the confidential use of, or in confidence by, such designated agency, or forms part of any record or its confidential proceedings; and
>
> (ii) is calculated to be or might be or is intended to be directly or indirectly useful to the Government of any territory in Africa which is not an independent State, or to the Government of the Republic of South Africa, or to any person or group of persons purporting to exercise or exercising the powers of government in Southern Rhodesia;
>
> shall be guilty of an offence and shall be liable on conviction to a term of imprisonment not exceeding twenty years.

The particular of the offence as set out in the charge read:—

> Juma Thomas Zangira, on divers dates between 1971 and 1977, in the City of Dar es-Salaam, Dar es Salaam Region, for the purpose prejudicial to the safety and or interests of a designated agency to wit, the Co-ordinating Committee for the Libe-

> ration of Africa did obtain or collect information and did communicate the same to a person known as John Wilson, particulars of which are as reflected in Annexure A which contains facts extracted from letters received from the said John Wilson and in particular letters listed as Annexure B which list is deposited with this charge and the letters to be tendered as Exhibits in this case, the information which might be directly or indirectly useful to a foreign power or disaffected person.

Now, as it can clearly be seen, the particulars do not disclose the offience created under s.9(2)(b) or, if we may add, under any law of the land. The charge properly drafted under this subsection should allege, **inter alia,** that the accused obtained, collected, recorded, published or communicated any classified matter as specified in the subsection for a purpose prejudicial to the safety or interests of a State which is a member of or represented on a designated agency. We would like to emphasize that the information collected etc., etc., must be classified, not just any information as was implied in the charge. Secondly, the purpose for which the information is collected etc., etc., must be prejudicial to the safety or interests of a State which is a member of or represented on a designated agency, and not for a purpose prejudicial to the safety or interests of a designated agency itself as was alleged in the charge. On finding that the charge was thus hopeless, we turned to see if the evidence as adduced would support any charge under s.9(2)(b) but, unhappily, we found it would not.

When, at the hearing of the appeal, we pointed out these glaring defects in the charge to the learned Director of Public Prosecutions, he conceded that the conviction on that count could not be sustained in law. This concession we approve and we say no more on that aspect of the matter.

For the foregoing reasons, we dismiss the appeal against conviction on the first count, and allow the appeal on the second and third counts. Accordingly, we quash the convictions on the second and third counts and set aside the sentences imposed thereon.

We now proceed to consider the appeal against sentence on the first count. It will be recalled that the appellant was sentenced to twenty (20) years' imprisonment on this count. In imposing that sentence, the learned Chief Justice took into account that the offence committed by the appellant was of a very serious nature, amounting "almost to treasonable conduct," and the need to deter others from committing a similar offence. But in favour of the appellant he also took into account that the appellant was a first offender. While we agree that the offence was undoubtedly of a serious nature, we nevertheless hold the view that the sentence imposed here was manifestly excessive. In saying so we take into account, as did the learned Chief Justice, that the appellant was a first offender. Also from the evidence on record it would appear that the appellant co-operated with the police in their investigations of the case. But above all, it will be remembered that the appellant's conviction could only be based on the presumption that he communicated with a foreign agent for purposes prejudicial to the safety or interests of the United Republic. But since this could not be proved as a fact, it is impossible to ascertain the extent of the damage to the country occasioned by the appellant's conduct. For, the damage done, if at all, may have been very little, nobody knows. The appellant is entitled to the benefit of this doubt. It is in these circumstances that we consider the sentence to be manifestly exessive. Indeed, the learned Director of Public Prosecutions conceded before us that the sentence was on the high side.

After giving anxious consideration to this matter, we think that a sentence of twelve (12) years' imprisonment would have adequately met the justice of the case.

We reduce the sentence accordingly.

Appeal on first count dismissed.
Appeal on second and third counts allowed.
Sentence varied.

ANJELO K. MZALI v. ALOIS M. CHALAMILA

[HIGH COURT OF TANZANIA AT MBEYA, (SAMATTA, J.)]

CIVIL APPEAL 23 OF 1978

Limitation—Suit for damages for adultery—Accrual of action—Local Customary Law (Declaration) Order *1963*, ss. *125*, *125*, *127*.

Tort—Damages—Quantum of damages in an action for adultery.

Statute—Interpretation—"... amekubali ubaba" Meaning of—Local Customary law (Declaration) Order *1963*, s.*126*.

The appellant who was working as a teacher was transferred from his working station. He left behind his wife and children. While he was away, his wife committed adultery and gave birth to a child. The appellant continued to live with his wife and fathered the child for over 10 years when he discovered the identity of the adulterer. He sued the adulterer for damages. It was contended that the action was time barred in terms of s. 127 of the Local Customary Law (Declaration) Order 1963; and that by fathering the child the appellant had accepted paternity in terms of s.126 Local Customary Law (Declaration) Order, 1963.

Held: (i) in construing a statute the court ought not to put a construction that would work injustice, or even hardship, or inconvenience, unless it is clear that such was the intention of the legislature;.

(ii) in a suit for adultery the cause of action arises when the fact of adultery is disclosed;.

(iii) the words "..amekubali ubaba" in s.126 of the Local Customary Law (Declaration) Order, 1963 mean the husband is deemed to have agreed to treat the offspring of the adultery as his own child.

Appeal allowed.

Cases referred to:

(1) **Candler v. Crane Christmas and Co.** [1951] 1 All E.R. 426.
(2) **Slim v. Croucher** (1860) 1 De G.F. and J.518.
(3) **Tiverton and North Devon Railway Co. v. Loosemore** (1884) 9 App. Cas. n.480.

....SAMATTA, J.: I own that this case has exercised my mind quite considerably, but, in the end, I have reached the settled opinion that the appeal must succeed. The appellant impugns a decision of the district court of Mufindi District whereby the respondent's appeal against a decision of the primary court of Malangali was allowed. By the decision of the latter court the appellant had been awarded damages in the sum of Shs. 3,500/- against the respondent. The appellant believes that the decision of the district court was not a victory for justice.

The facts of the case can, I venture to think, be adumbrated this way. In 1963 the appellant was stationed at Malangali as a teacher. In January 1964 he was transferred to Tosamaganga. He left his wife and children behind. On December 23, 1964, his wife gave birth to a child. The appellant believed that the child was an offspring of adultery, but his wife insisted that he had sired the child. The spouses resumed cohabitation. As the child grew, the appellant detected more and more physical resemblance between it and the respondent. By 1977 he had no doubt that he had not sired the child and that his wife had committed adultery with the respondent. His (the appellant's) wife admitted before church elders that the child was an offspring of adultery she had committed with the respondent. The church elders summoned the respondent before them. The respondent made no pretence to challenge the appellant's wife's admission. On the contrary, he sought to unburden his soul by confirming the truthfulness of the admission, which he did. The appellant then demanded Shs. 2,500/- as compensation. The figure included Shs. 2,000/- which he had allegedly spent towards the maintenance of the child. The respondent agreed to pay the money. After a reasonable time had expired without any payment being made, the appellant decided to summon the law to his aid; he commenced civil proceedings in the primary court against the respondent. He claimed compensation in the sum of Shs. 5,180/-. In his testimony the respondent did not deny liability; he merely challenged the quantum of damages claimed.

The primary court magistrate and the assessors who sat with him in hearing the case were of the unanimous opinion that the appellant had established his case and proceeded to award him damages in the sum of Shs. 3,500/-. The district court was unable to share that opinion. It was of the view that s.126 and 127 of the First Schedule to the Local Customary Law (Declaration) Order, 1963, as read together with s.125 of the same schedule, stood in the way of the appellant's claim. With unfeigned respect, I disagree. By the three sections it is provided as follows, in Swahili:

S.*125*

> Kama mume akirudi na kumkuta mke wake kabeba mimba au amezaa mtoto ambaye hawezi kuwa wake kwa sababu ya kutokuwako kwake, njia nyingi anaweza kuzifuata
>
> A. Anaweza kudai fidia ya ugoni, akakataa kumpokea mtoto yule kama wake na kumsamehe mke wake; kwa hiyo yule mtoto anakuwa ni wa ujombani.
> B. Anaweza kudai fidia ya ugoni, kumkubali mtoto kuwa kwake na kumsamehe mke wake.
> C. Anaweza kudai fidia ya ugoni akamwacha mke wake. Yule mtoto wa ugoni anakuwa wa ujombani.

S. *126*

> Mume akirudi hana budi kukata shauri moja juu ya mimba au juu ya mtoto yule wa mke wake. Ikiwa mume baada ya kurudi hakati shauri na anazidi kuendelea na maisha ya ndoa kama desturi, inafahamika kwamba amemsamehe mke wake na amekubali ubaba.

S. *127*

> Kama wakati mume anaporudi, anapata ushahidi kwamba mke wake amefanya zinaa, au alikaa na mtu mwingine wakati yeye alipokuwa hayupo, lakini yule mke akavunja urafiki kabla mume wake kurudi, basi yule mume hawezi kudai fidia ila anaweza kudai kuachana.

in coming to hold that the three sections were fatal to the claim in this case, the learned district magistrate said:

> In this case the respondent had this (the fact that his wife had committed adultery) into his knowledge on 23, 12, 64 on the birthday of the child. He never decided at once. This means he forgave his wife who are living together up to now. The respondent had no right to claim damages for maintenance for the 13 years, for if he did not accept the child, then the child belongs to its maternal family. Returning to the claim for damages for adultery, there is no evidence on record that the connection between the appellant and wife of respondent was still going on in 1977. Here the law reads: S.127, If a husband after his return obtains proof that his wife has had sexual intercourse or has lived with another man during his absence, but has broken off the connection before he returned, he cannot claim compensation for adultery, but he can claim for divorce.

With genuine respect to the learned District Magistrate, I am inclined to hold the view that he strayed into an error in holding that the provisions quoted above were fatal to the appellant's case. But why am I of that opinion? That I will tell. In approaching the task of construeing the provisions of the three sections, I find the observation of Lord Blackburn in **Tiverton and Devon Railway Co. v. Loosemore** (1884) 9 Cas. n.480 at p.497 a safe and reliable guiding star. The observation is in the following language:

> In construeing [a legislation], we ought not to put a construction on it that would work injustice, or even hardship, or inconvenience, unless it is clear that such was the intention of the legislature.

It appears to me that to construe the three sections of the Local Customary Law (Declaration) Order, 1963, in the manner the learned District Magistrate did would cause injustice to a husband who believes

or reasonably suspects that his wife has committed adultery but is unable (not for lack of diligence) for a fairly long time to discover the identity of the adulterer. In the case in hand how could the appellant make a choice under s. 125 soon after he had returned to Malangali when he did not know the identity of the adulterer. How could the appellant commence proceedings for recovery of damages for adultery before he had discovered the identity of the adulterer? As soon as he made that discovery the appellant initiated proceedings with a view of recovering damages from the respondent. It is true, of course, that it took the appellant slightly more than ten years to discover the identity of the adulterer. Bearing in mind the evidence on record, I find it difficult to entertain the view that the appellant had not exercised sufficient diligence in his efforts to discover the identity of the adulterer. Accordingly, I hold that the appellant did not sleep on his rights and that the right of action in this case accrued when the appellant's wife admitted having committed adultery with the respondent. The suit was not, therefore, time-barred.

The words "amekubali ubaba" in s.126 of the Local Customary Law (Declaration) Order, 1963, cannot be construed to mean paternity, for so to do would make the words "amemsamehe mke wake" in the same section meaningless. The only reasonable meaning which can, in the context of the provision, be attached to the words "amekubali ubaba" is that the husband is deemed to have agreed to treat the offspring of the adultery as his own child.

Both before the church elders and the trial court the respondent admitted to have committed adultery with the appellant's wife. Making a statement before the latter tribunal, the respondent said, in Swahili:

> Ninakubaliana na dai la mdai kufanya ugoni na mkewe aliyetajwa, hata matokeo ya ugoni ni mke wa mdai kuzaa mtoto wangu.

If the respondent's victory in the district court were to be sustained, it is almost certain that the man on the UDA omnibus would ask himself: Why has the law and justice parted company? I think that even a Roman jurist would not succeed to provide a satisfactory answer to that question. I confess that I am happy that I have not found myself constrained by the law to dismiss the appeal. Citing the language of KNIGHT BRUCE, L.J., **in Slim v. Croucher** (1860) I De G.F. & J. 518 at p.527, in **Candler v. Crane Christmas & Co.** [1951] 1 All E.R. 426, 431, DENNING, L.J., said:

> A country whose administration of justice did not afford redress in a case of the present description would not be in a state of civilisation.

I adopt that observation in the case before me.

The appeal is allowed, the decision of the district court is recalled and the decision of the primary court is restored. The appellant will have his costs in this court as well as in the two courts below.

Appeal allowed.

FRANCIS MWENDA v. THE REPUBLIC (MAPIGANO, J).

FRANCIS MWENDA v. THE REPUBLIC

[HIGH COURT OF TANZANIA AT DAR ES SALAAM (Mapigano, J.)]

CRIMINAL APPEAL 40 OF 1979

Evidence—Burden of Proof—Unlawful possession of offensive weapons and materials—Whether burden on accused under the National Security Act 1970, s.8(1) (Act No. 3 of 1970).
Criminal Law—Attempted robbery—Ingredients of the offence—Penal Code, s.287 (T).
Criminal Practice and Procedure—Sentencing—Sentences imposed under convictions in separate trials Whether can run concurrently—Criminal Procedure Code (Cap.20) s. 136 (1) (T).

The appellant was convicted of three offences:
(1) unlawful possession of offensive weapon contrary to s.8(1) of the National Security Act, 1970;
(2) attempted robbery contrary to s. 287 of the Penal Code; and
(3) unauthorised wearing of uniform contrary to s.99(1)(a) of the National Defence Act 1966.
The sentences were to run concurrently.

On appeal to the High Court it was argued by the appellant that the burden of proof had not been discharged by the prosecution under s.8(1) of the National Security Act 1970 that on the facts the offence of attempted robbery had not been committed; and that the sentences imposed by trial magistrate should run concurrently with those imposed upon the appellant by another court on similar charges.

Held: (i) it was immaterial that it was not proved that the pistol particularised in the charge sheet was the same used by the appellant during the commission of the offence. The subject matter of the charge need not be produced in every case.

(ii) the burden of proving a lawful possession of offensive weapons under the National Security Act 1970 is upon the accused;

(iii) an attempt to commit a criminal offence is constituted where there is an intention and an overt act sufficiently proximate to the intended offence;

(iv) the intention in an attempted crime can be inferred where the act is of such a character as to be incompatible with any other reasonable explanation;

(v) sentences under convictions in separate trials may be directed to be served concurrently where the offences are founded on same facts, or form or are part of a series of offences of the same or similar nature such that they could have been charged together in a single charge sheet or heard in a single trial.

Appeal dismissed.

Cases referred to:

(1) **Musa Saidi v. R.** [1962] E.A. 454.
(2) **R. v. Loibori** (1949) 16 E.A. 86.
(3) **R. v. Laitwood** 4 Cr. App. R. 248.

A. Huka for the Republic.

January, 17, 1980. MAPIGANO, J.: This is an appeal by Francis Mwenda against the decision of the District Court of Dar es Salaam at Kivukoni Front, convicting him of three offences (1) unlawful possession of offensive weapon contrary to s.8(1) of the National Security Act, 1970 (Act No. 3/70); (2) attempted robbery contrary to s.287 of the Penal Code; and (3) unauthorised wearing of uniform contrary to s.99(1)(a) of the National Defence Act, 1966 (Act No. 24 of 1966); and sentencing him to concurrent prison terms—five years, eight years and three months, respectively.

The particulars of the charges alleged as follows (with suitable and innocuous alterations):

1st Count— Unlawful possession of offensive weapon:
on or about 22/12/75 in the Coast Region he was, without lawful authority or excuse in possession of one pistol No. 16015169—66—69.

2nd Count attempted robbery:
on the same day and place he (and four others with whom he was jointly charged and tried but who were eventually acquitted) assaulted Corporal Nephitus, Constable Juma and one Mangara with intent to steal the salaries of the employees of the East African Railways Corporation and immediately before the assault used actual violence in order to obtain the money.

3rd Count— unauthorised wearing of uniform:
on the same day and place he wore the uniform of the Defence Forces without lawful authority.

The substance of the case laid against him, which the trial magistrate accepted, showed that on 22/12/75 in the morning six employees of the Railway Corporation left Dar es Salaam for Pugu Railway Station. They were accompanied by an armed police escort comprising of two policemen....Corporal Nephitus and Constable Juma. They were going to Pugu for the purpose of paying salaries to some labourers. The amount of money they carried there for that purpose was not disclosed. They travelled by a trolley and on arrival some of them saw the appellant dawdling around the place at which the trolley pulled. The appellant was dressed in a TPDF uniform and talking with another man who was in civilian. The party started paying the salaries in the trolley and in the course of doing so some noticed the appellant coming nearer the trolley then drawing out a pistol and discharging the weapon. Of course the appellant knew how to handle the weapon, for it was not in dispute that previously he had been a soldier with the TPDF. He had been dismissed in August, 1975 and it would seem that he had maladjusted himslef to civilian life and has in fact embarked on a destructive life.

The hails of the gunfire broke the calm and there was a general tumult, screeches and screamings, There were some casualties. The shots inflicted severe wounds on Corporal Nephitus and Mangara. One bullet hit and damaged the corporal's gun rendering him incapable of returning fire. However, his colleague Constable Juma reacted by firing in the air and in the face of it the appellant chickened and took to his heels, at the same time firing his pistol into the air **in terrorem** and presumably to cover his flight. Next, he was seen jumping into a waiting car which drove off swiftly and disappeared.

But acting on information received the police tracked him down and arrested him at Magomeni in Dar es Salaam at 11.30 p.m. on the same day. And what he told the police a few hours later during the interrogations led to the discovery of a pistol exhibit A as well as a TPDF combat uniform exhibit P in a bush at Ukonga. The learned Magistrate was of the view that there was no convincing evidence that exhibit A was the pistol with which the appellant had attacked the party at Pugu. But he added that, that lacuna did not materially detract from the strength of the prosecution case. As regards the appellant's allegation that he had been subjected to extreme torture while in police custody, which the appellant had somberly described in the following terms:

> they hung me by the arms for a whole minute. They kicked and punched me. Then they burnt and hit my genitals,

the magistrate observed that though there was always the possibility that the appellant had exaggerated the torture he experienced, it was probably true that some torture had been applied in eliciting the information regarding the whereabouts of the gun and the uniform; and he deprecated such conduct as unlawful and inhuman.

It was upon the above facts that the magistrate acted and convicted the appellant of the three offences. It seems from the petition of appeal and from his oral submissions before this court that the appellant is not seeking to impugn the factual findings reached by the trial magistrate, and in light of the material on record that is understandable. Rather, as I understood him, he is putting forth the argument that the facts as found by the magistrate did not necessarily give rise to the inferences of guilty drawn by the magistrate.

There are, as far as I can discern, four material grounds on which the appeal from the convictions is based. The first concerns the first count. It is contended that the conviction is incompatible with the

factual findings, in particular with the magistrate's expression of doubt that the pistol described in the charge was the very weapon that the appellant carried and used to shoot at the crowd at Pugu Railway Station, and that, therefore, the conviction on that count was bad and should be quashed.

The second ground is in respect of the third count and is virtually in similar lines: that in view of the absence of any proof that the uniform tendered in court as exhibit B was the same as that which the appellant was wearing at Pugu Railway Station, the conviction thereof was unawarranted and should be quashed

The third ground which touches on both the first and third counts is that the convictions on those two counts were unfair and bad in law since the appellant had been convicted of similar offences in other cases tried by the same court.

The fourth ground concerns the second count. It is submitted that the magistrate erred in finding that the violence mounted by the appellant at the scene manifested an intention to steal the money. The decision in **Mussa Saidi v. R.** [1962] E.A. 454 is cited in support. The appellant urges that the conviction be quashed too.

I will now proceed and address myself to the merits and demerits of those four arguments. With regard to the first submission, I entirely agree with the magistrate that it was immaterial in this case that there was no satisfactory and positive proof that the pistol particularised in the charge sheet was exactly the same as that which the appellant possessed at Pugu Railway Station. I think that what was important and sufficient were the fact that the appellant was in possession of a pistol, which undeniably is an offensive weapon, and that he in effect failed to establish that his possession was lawful—the burden to prove that point was, by virtue of the section, saddled on him. The contention put forward by the appellant amounts to a suggestion that in every case of this nature the subject matter of the charge must be produced in court. I cannot accept that. If that were a correct statement of the law, then by parity of reasoning, it would be that where a person is charged with, say, stealing a sum of money and it happens that there is proof beyond reasonable doubt that he did so, but for one reason or another the money is not recovered and tendered in evidence, an acquittal should be recorded. With respect, that preposterous proposition is unknown to our law. It should be noted that in this case the charge as worded did not expressly aver that exhibit A was the same weapon which the appellant used at Pugu Railway Station. It merely stated, in rather broad terms, that on or about the 22/12/1975, **in the Coast Region,** the appellant was in unlawful possession of one pistol No. 16015169–66–69. It is plain, therefore, that the charge neither specified the actual time the incident took place nor stated the actual place in the Coast Region where the offence was committed.

I would like to make it clear though that whenever possible the charge should state the time and the **locus in quo** much more specifically, for the accused is entitled to such full particulars. In that regard I would echo the words of the Court of Appeal in **R. v. Loibori** (1949) 16 E.A.C.A. 86.

In that case the charge gave no particulars as to the place of the offence except to state that it took place in the Northern Province of Tanganyika. The Court of Appeal observed that:

> it can hardly be said, we think, that a reference to what may be a vast territorial area can indicate to a person accused, with reasonable clearness, the place at which it is alleged he has committed the offence.

That said, I think, in my opinion, that there is no force in the appellant's argument. And I think that what I have said in regard to the first ground can, **mutatis mutandis** and with even greater force, be repeated in regard to the second ground which concerns the wearing of uniform. I adopt it as my answer to that argument.

Turning to the contention that the convictions on the first and third counts were bad in that the appellant had been convicted of similar offences at other trials in the same court, I have to observe first that the appellant had not raised a plea of **autrefois convict** in the lower court. Secondly and more importantly, there is no doubt that such a plea was not available for him. I have learned and I am satisfied that the convictions in those other cases, of which the magistrate who tried this case was apparently unaware, were in respect of similar offences committed on different occasions and related to different weapons and uniforms. Consequently, I dismiss the appellant's contention.

I now turn to consider the appellant's submission regarding the conviction on the second count—attempted robbery. As we have seen, his line of argument is that whatever he did at Pugu Railway Station on that occasion did not amount to the offence charged. S. 287 of the Penal Code defines attempted robbery as an assault, with intent to steal anything, and, at or immediately after the time of the assault, the assailant uses or threatens to use actual violence to any person or property, in order to obtain the thing intended to

be stolen, or to prevent or overcome resistance to its being stolen. And s.380 of the same statute defines "attempt" and is a very well known provision.

I think it is beyond serious argument that the appellant's act of shooting at the group was an assault and a vicious one at that. He seriously wounded two people. The prosecution presented it as the **actus reus** of the offence charged and as an act which manifested the necessary intent. The Magistrate observed in his judgment that the attack was apparently premeditated and that it was a prosecution of an evil design. And that the raiding of the party at the stage when the payment of salaries was in process was a striking demonstration of an intent to steal the money.

In fine, the appellant is now contending that his act of shooting at the party was not sufficiently proximate to the offence charged. As shown, he is relying on the decision in the case of **Mussa Saidi v. R. (Supra).** The question before me is whether the trial magistrate's finding that the act was sufficiently proximate is reasonable and sustainable.

I am grateful to the appellant for the authority to which he has referred me. **Mussa Saidi v. R.** was a case of attempted stealing from a motor vehicle. But the principle restated by Spry J. (as he then was) are applicable to the instant case. Briefly, the facts of that case were that Mussa Saidi was seen by police officers loitering for about an hour at a car park near Kunduchi beach. He then approached a stationary car and unlocked it. He opened the door and entered. After looking around he got out with nothing. But he was arrested by the police and charged with the offence, under ss.381, 269(c) and 265 of the Penal Code. He was convicted of the offence, the magistrate holding that there was no reasonably probable explanation of his conduct other than that he intended to steal from the car anything he might find in it worth stealing. He appealed to the High Court and the question which posed was whether those facts constituted the offence charged. In the course of his judgment the learned judge pointed out that the burden on the prosecution was two fold: first to prove the intention and secondly to prove an overt act sufficiently proximate to the intended offence. He then observed and his observation bears repeating here:

> The intention will, in the majority of cases, only be capable of proof by inference and it follows in such cases that the act must be of such a character as to be incompatible with any other reasonable explanation. Secondly, even if the intention is established, the act itself must not be too remote from the alleged intended offence.

The learned judge was of the view that both elements had been proved to the necessary degree and thus dismissed the appeal.

I have carefully considered the present matter with those principles in mind and I must say that in substance the views of the learned magistrate agree with mine. As may have been appreciated, there is no longer any dispute in this case that the action of the appellant of shooting at the party amounted to an overt act. The only points at issue are in regard to his intention and the proximity of that act to the alleged intended offence. As it were, the appellant was a complete stranger to that party and there was no suggestion that he bore any grievance to any of those people. He was hanging about the place posing as a soldier and armed with a lethal weapon. In another moment, when the payment of salaries was in progress, he charged into the party and opened fire, critically wounding one man. Fortunately he lost stomach and fled and climbed into what must have been a getaway car, which whisked him away. Those were the circumstances from which the magistrate concluded that the appellant intended to steal the money and that the act of shooting was sufficiently proximate to the intended offence. I think, in my judgment, the magistrate cannot be faulted. As observed, inferences drawn from an accused's conduct may be evidence of his state of mind. Now it is difficult to perceive that the shooting was directed towards any other objective. Indeed, perhaps nothing else could have better demonstrated an intention to steal than that act. I think it will be unrealistic to think, as the appellant would have me, that the act was remote. As was stated in the English case of **R.v. Laitwood** 4 Cr. App. R. 248, the test for a proximate act is an act done to commit an offence which forms part of a series which would have constituted the offence intended if not interrupted. In my opinion, the act of the appellant met that standard. I will uphold the decision of the learned magistrate.

Consequently, the appeal from the convictions will be dismissed.

The only other matter which now remains to be considered is the punishment he received. As pointed out at the start, the magistrate imposed a five-year term on the first count. That, I think, was not excessive, regard being had to the seriousness of the offence and the fact that it carries a maximum sentence of imprisonment for ten years. Likewise the sentence of three months in respect of the third count. On the second count the magistrate imposed a term of eight years, remarking that though the amount he attempted to,

steal was not indicated, the offence was grave and prevalent and that a stiff penalty was called for if for no other reason than that it should serve to discourage other potential robbers. I think the magistrate was right. In fact the lengths of the sentences is not, individually, the subject of any criticism on this appeal. The only point which the appellant has taken is that the sentences should have been made to run concurrently with those in the other cases. Much as I sympathise with the appellant, I think, however, that the magistrate was not in a position to do so. In the first place and as already remarked, it does not seem that the magistrate was aware of the convictions in those other cases. No mention was made about them in the sentencing proceeding. Secondly, I do not think that the law would have permitted him to do so. Because, while it is true that the court has discretion under s.35 of the Penal Code to order a sentence passed upon a person to be executed concurrently with another sentence under a previous conviction, the prevailing judicial view is that sentences under convictions in separate trials may only be directed to be served concurrently where the offences are founded on the same facts, or form or are part of a series of offences of the same or similar nature, such that they could have been charged together in a single charge sheet and heard in a single trial, in terms of s.136(1) Criminal Procedure Code. It seems that these conditions did not obtain here, especially as regards the offence charged under the second count. It seems to me that that offence bore no relation to the previous offences, both in point of character and in point of time. The appeal against the sentences will, accordingly, also fail.

In the end result, I dismiss the appeal in its entirety and duly confirm the sentences on the first and second counts.

Appeal dismissed.

KOMBO ABDARAHAMAN V. REPUBLIC

[HIGH COURT OF TANZANIA AT DODOMA (LUGAKINGIRA, J.)]

CRIMINAL APPEAL 13 OF 1978

Criminal Practice and Procedure—Charge—Charge of attempting to commit an offence—Provisions to cite. Criminal law—Attempt to commit an offence—What constitutes an attempt.

The appellant was convicted of attempted pickpocketing. The appellant with another person pushed one Zefania Mmasi while the appellant unsuccessfully tried to force his hands into Zefania's pockets and both fled when Zefania became inquisitive. The charge cited s.381 of the Penal Code and no more.

The appeal was admitted to hearing to consider whether on the facts as given the offence of attempted theft was proved.

Held: (i) where it is desired to charge a person with attempting to commit an offence, it is imperative to cite the provision creating the offence in addition to s.381 of the Penal Code;

(ii) in order to constitute an attempt the acts of the accused must be such that if not interrupted they would end in the commission of a particular offence;

(iii) when the appellant tried to force his hands into the complainant's pockets, he had clearly put his intention into execution by means adapted to its fulfilment.

Appeal dismissed.

Case referred to:

R. v. Andrew Avarity [1973] L.R.T. n.92.

November 23, 1979. LUGAKINGIRA, J.: In this appeal the appellant had expressed a wish to appear at the hearing. It now transpires that he has since been released from prison and his whereabouts are unknown. We decided to proceed with the hearing in his absence.

It was a case of attempted pickpocketing It had been alleged that on 11/7/77, in the township of Dodoma, the appellant and another youth attempted to steal from the person of one Zefania Mmasi. The facts, briefly, were that the two, finding Zefania among group of persons waiting for a bus, started to push him about while the appellant unsuccessfully tried to force his hands into Zefania's pockets, and both fled when Zefania became inquisitive. They were later apprehended, charged and sentenced to 12 month's imprisonment each upon conviction.

Before getting further I would wish to make one observation. The charge was not properly set out. It cited s.381 of the Penal Code and no more. But the section is a general provision for punishment of all attempts and is not restricted to stealing alone. I think that where it is desired to charge a person with attempting to commit an offence it is imperative to cite the provision creating that offence in addition to s.381. I am certain, however, that the error occasioned no failure of justice and I proceed to consider the appeal on its merits.

The judge who admitted this appeal to hearing did so in order for the court "to consider if on the facts as given by P.W.1 and P.W.2 the offence of attempted theft were proved." He suggested that it could "be argued the accused had only been preparing themselves to steal as distinct from attempting to do so." The facts as found by the learned trial Magistrate are as set out above. I would only add that it is true as pointed out in the appellant's memorandum of appeal that P.W.2 did not see him force his hands into Zefania's pockets. But that is not the same thing as saying he did not force them there. The appellant and his colleague started the operation by jostling the complainant who was with others. I imagine this was intended to create and did actually create a state of confusion. In that state of affairs it is not surprising that P.W.2 could not see all that transpired. But I believe, like the trial magistrate, that Zefania was a witness of truth. He did not know the appellant before; he had no business with him; he had no cause to lie against him. I uphold the finding that the appellant tried to force his hands into Zefania's pockets.

What constitutes an attempt in our criminal law has long been settled. I think the totality of the authorities is to the effect that in order to constitute an attempt the acts of the accused must be such that if not interrupted they would end in the commission of a particular offence. And it is immaterial that the interruption is external, self-willed or arises from an inherent impossibility. In that light the courts have endeavoured to distinguish between mere preparations and acts regarded as proximate to the commission of the offence. But this approach was criticised in **R. v. Andrew Avarity** (1973) L.R.T. n.92 where the judge, after reference to s.380 of the Penal Code, held that once overt acts are established it is not required to classify them further into preparatory and non-preparatory, proximate and remote. I think that this criticism should not be taken lightly and I propose to give it a brief consideration.

When Parliament enacts a law it does not and cannot provide for each and everything that ought to go into it. In the rules of statutory interpretation certain matters may be inferred in a statute by necessary implication. In the case cited above the learned judge was of the view that s.380 does not require (that is provide for) the classification of overt acts. I have felt bound to revert to this provision and, in so doing, I have come to doubt the accuracy of this view. Under s.380, a person intending to commit an offence is said to attempt to do so if he:

> ...begins to put his intention into execution **by means adapted to its fulfilment,** and manifests his intention by some overt act, but does not fulfil his intention to such an extent as to commit the offence. (my emphasis).

I think that the emphasized phrase provides the answer. When Parliament decided to speak of **means adapted** to the fulfilment of an intention it must have been aware, and must have considered, that in the commission of an offence there is a legion of acts that may be done but not all of which would be necessary steps towards the commission of that offence. The present case is a ready example. There was a deliberate jostling of the complainant, Zefania. That, undoubtedly, was an overt act. But jostling is not necessarily adapted to and will not necessarily end in stealing from the person of another if left uninterrupted. Supposing the appellant had not gone beyond jostling: who could tell what his object might have been? It could have been stealing; it could have been starting a fight; or it could have been just making a nuisance of himself. Supposing a man were found crouching near another man's house in the dead of the night: who could say what his object might have been? It might have been burglary; it might have been arson; or it might have been murder. In neither of these two examples would it be safe to say that the overt act was an attempt on any particular offence. With respect, therefore, there is justification, based on s.380 itself, in saying that certain acts in relation to certain offences are just too remote or at best preparatory only. But

while holding that view I acknowledge that the judge in the **Andrew Avarity** case makes deserving criticism of certain decisions. For instance in **R. v. Haruna Ibrahim** [1967] H.C.D. n.76 and **Omari v. R.** [1971] H.C.D. n.362, it makes painful reading indeed to think that the accused were cleared of attempted rape just because, after achieving everything else—including stripping of and lying on their victims—they had not managed to or were prevented from unbuttoning their own trousers! That, with respect, was taking the concept of preparation almost to ridiculous brink.

The position as I see it, therefore, is that what amounts to an attempt in any particular case is a matter for decision from the peculiar circumstances of the offence. Hence, while I concede that some decisions have been in conflict with reality, I am equally of the view that an attempt would not be constituted by every overt act. In this case there was jostling. I am satisfied that that was a mere preparation. But when the appellant tried to force his hands into the complainant's pockets, he had clearly put his intention into execution by means adapted to its fulfilment as manifested by that act. Had he not found the going difficult the logical consequence would have been theft. In these circumstances I agree with the trial magistrate that there was an attempt. I uphold the conviction and sentence and dismiss the appeal in its entirety.

Appeal dismissed

REPUBLIC v. RAPHAEL GWETIGO AND OTHERS

[HIGH COURT OF TANZANIA AT ARUSHA (JONATHAN, J)]

CRIMINAL REVISION 4 OF 1976

Minimum Sentences Act—Compensation—Whether paying compensation in kind allowed.

This case was admitted for revision by the High Court to consider the propriety and legality of a compensation order under the Minimum Sentences Act, 1972. The trial Magistrate allowed compensation to be paid either in kind or in cash.

Held: Compensation under the Minimum Sentences Act must be in monetary terms only.

Order accordingly.

Cases referred to:

(1) **Wanyangura Matoja v. R.** [1968] H.C.D. n.507.
(2) **Mutito v. R.** [1972] H.C.D. n.97.
(3) **Francis (Aoko) Onyango v. R.** (1967) H.C.D. n. 309.

...JONATHAN, J.: The case was admitted in revision to consider the propriety, and even the legality, of a compensation ordered by the District Court under the Minimum Sentences Act, 1972 whereby the learned District Magistrate demanded of the two accused, whom he had convicted of robbery, to pay the complainant "ten cows or Shs. 3,000/- each for the cattle they (had) robbed".

I would say firstly, that the order being made, as it is, both in kind and in money, was bad for vagueness. It is ambiguous and potentially disputable between the convicted accused on the one hand and the complainant on the other. An order for compensation, whether under the M.S.A. or under s 176 of the C.P.C., ought to be couched in such form as excludes or minimises the possibility of any future dispute as to its correct interpretation. In the present case, the complainant finding that the value of cattle has gone up considerably and that he would not find adequate relief in the compensation of Shs. 600/- per a head of cattle, would probably insist on payment in kind. That might be resisted by the accused arguing that they are entitled to choose between the two forms of compensation and in the event, they have opted to pay in cash. And if they do not resist, they might benefit from their crime by paying him skinny and half-dying animals and still be heard to claim compliance with the order. That would be most undesirable and to ensure such a situation does not arise it ought to be made clear whether payment should be in kind or in money.

Apart from this difficulty, there is the more important question of whether the alternative order ofthe district court to pay in kind is proper and conforms to the law. The learned State Attorney cited to me two conflicting decisions of this court, both reached in the days of the Minimum Sentences Act, 1963. The first one is that in **Wanyangura Matoja v. R.** reported in the [1968] H.C.D. as case n.507. In that case the district court acting under the provisions of s.6(1) had ordered the convicted accused to pay compensation in kind, that is, to pay the complainant the same number of cattle as had been stolen and had not been recovered. On appeal Seaton, J. had this to say:

> It is to be observed that the order for compensation is bad for vagueness. Individual cattle may so vary in size and condition that the value of six heard of cattle may be Shs. 600/- or 1,200/-. The object of s.6(1) of the Minimum Sentences Act is to ensure that the convicted person receives no material benefit from his crime. Therefore, the trial Court is required to assess the value of the property the convicted person has obtained as the result of the commission of the offence and to order the convict to pay the owner of the property compensation equal to its value. It follows that the trial Court should have assessed the value of the...cattle stolen.

He accordingly set aside the order for compensation and substituted therefor an order that the accused should pay the complainant Shs. 600/- as compensation.

The second decision is that in **Mutito v. R.**, as reported in the [1972] H.C.D. as case n:97. That, too, was a case of cattle theft in which the convict had been ordered by the trial Court to pay a compensation of the 4 heard of cattle that had not been recovered. Upon the convict appealing, the Republic while urging in support of the conviction viewed the order of compensation as being improper in view of the provisions of s.6(1) of the M.S.A. (1963), under which, it was the submission of the learned State Attorney, the court should have made an order for monetary compensation. Makame, J. in his judgment disagreeing with such interpretation of the Act had this to say:

> With genuine respect I do not share this restrictive view. Compensation is not confined to monetary compesation. It is a broad term and the purpose of compensation is to ensure that the offender gets no material benefit from his crime. If compensation meant monetary compensation only, s.176 of the Criminal Procedure Code would not have talked of compensation in money or in kind, which implies that compensation may be in money or in kind. If compensation was to be understood to mean monetary compensation only there would have been another term if compensation was payable in kind. S.6(2) of the Minimum Sentences Act talks of such compensation being recoverable as a civil debt. A person against whom such a debt is ordered to be recovered is a 'judgment debtor' and the definitions of judgment debtor' of a 'decree' in the Civil Procedure Code do not support the implied proposition that a debt can only be a monetary debt. In a society like ours in which barter is still the order of the day there seems to be no justification for being so narrow and unrealistic in our definition. I respectfully agree with what Seaton, J., as he then was, said in Wanyangura Matoja...that 'a compensation order expressed in terms of cattle is (often–the qualification is mine) (sic) bad for vagueness because individual cattle may so vary in size and condition that the value of cattle may be Shs. 600/- or 1,200/-.' This is quite correct but it is not the same as saying that a compensation order may not be made in kind. It only points out the difficulty that may be encountered. Whether compensation is in money or in kind it is to be 'as assessed by the court,' which would have all available facts at its disposal and use its discretion and common sense, it would be more convenient to express the compensation in terms of money but that should be for the court to decide.

The learned Judge was not therefore disposed to interfere with the order for compensation.

The latter case, notwithstanding Makame, J.'s qualified concurrence in the decision in the **Wanyagura** case, is, to my mind, a clear departure from the view taken by Seaton, J., which is as I understand it, that the law requires the unrecovered stolen property to be assessed as to value and an order made to pay compensation equivalent to such value in money. In the instant case, therefore, I find myself unable to reconcile the two decisions of this court. They both turn on the proper application of s.6(1) of the M.S.A., 1963 but

as the language of that subsection was repeated word-for-word in s.7(1) of the repealing and replacing Minimum Sentences Act of 1972, the conflicting arguments appearing in the two decisions would be relevant to the present facts.

In the **Mutito case,** this court referred to the provisions of s.176 of the C.P.C. as lending support to the interpretation that compensation under s.7(1) of the M.S.A. may be ordered either in kind or in money. It is however to be observed, with profound respect, that s. 176 has no application whatever and ought to be disregarded in making an order for compensation under the M.S.A. S.7(1) provides:

> Notwithstanding the provisions of s.176 of the Criminal Procedure Code, where a court convicts any person of scheduled offence other than an offence under the Prevention of Corruption Act, 1971, the court shall, if it is of the opinion that such person has obtained any property as a result of the commission of the offence and that the owner of the property can be identified, make an order that the person convicted shall pay to the owner of the property compensation equal to the value of the property as assessed by the court.

In the case of scheduled offences, therefore, the provisions quoted above override those of s.176 of C.P.C. There are, as a matter of fact, numerous differences between an order made under s.176 of the C.P.C. and one made under s.7(1) of the M.S.A. One of such differences is that, while under the former compensation may be ordered "in kind or in money," an order under the M.S.A. is to be made by awarding "compensation equal to the value of the property as assessed by the court." Surely, when a person talks of a valuation of some property he is speaking of determining its value in monetary terms, and he cannot possibly be said to be engaged in an exercise of making comparisons of that property with other properties. But it has been suggested in the **Mutito case,** that barter is still the order of the day in our society and that it should be given recognition when making an order under s.7(1). While my learned brother may be entitled to such observation, for my part, however, I would have little hesitation to say that, in our day-to-day economic intercourse we have long evolved out of the barter system and that, if in our society there still exists any residual element of it, it does so only in a very small way and in a limited sense. Be that as it may, I have no doubt at all that the Legislature in this enactment has not sanctioned the making of an order to pay compensation in kind.

All through the life of the precursor of the present M.S.A. this court held, except in the **Mutito case,** that compensatton under the Act had to be ordered to be paid in cash only. It is presumably in recognition of this that the Legislature in 1970 amended s.176 of the C.P.C. by, among other things, introducing a provision, itself interpolated in parenthethis, for payment of compensation to be ordered either "in kind or in money." Then came the replacing Act of 1972. Its draughtsman being aware, as he must have been, of this court's decisions (except the **Mutito case,** which had not come out) relevant to the Act sought to be replaced, and also having in mind the 1970 amendment to s.176 of the C.P.C., had it spelled out in the new M.S.A. that, an order under s.7(1) should be made independently of the provisions of s.176 of the C.P.C., from which it may specifically be construed that the words "in kind or in money" are not to be read into the M.S.A.

Consistent with the above construction, subsection (3) of s.7, which provides for the execution of a compensation order as if it were a decree made under the Civil Procedure Code, empowers a district court "to execute such decree notiwthstanding that **the amount** of the compensation awarded exceeds the pecuniary jurisdiction of the district court." The words I have emphasized do, in my opinion, underscore the point that compensation shall be in money only. That is also the view taken by this court in **Francis (Aoko) s/o Onyango v. R.** reported in the [1967] H.C.D. as case n.309, where Cross, J. held, **inter alia:**

> ...s.6(2) (the precursor of the present s.7(3)) provides that compensation ordered under subsection (1) shall be recoverable as if it was a civil debt. This provision restricts recovery to a sum of money and does not allow payment in kind...

All this, therefore, brings me to the firm view that, in law, compensation under the M.S.A. is to be ordered only in terms of money. Accordingly, in this case the alternative form of paying compensation in kind is hereby invalidated and set aside and the compensation is to be paid only in money, that is, by each convict paying the complainant the sum of Shs. 3,000/-.

Order accordingly.

REPUBLIC v. SELEMANI RAMADHANI

[HGIH COURT OF TANZANIA AT KIGOMA (CHIPETA, J.)]

CRIMIANL SESSIONS CASE 54 OF 1979

Criminal law—Manslaughter—Manslaughter by criminal negligence—What constitutes criminal negligence.
Criminal law—Manslaughter—Manslaughter by criminal negligence—Whether contributory negligence of deceased can constitute defence to the charge.

The accused person was charged with manslaughter. While hunting with about 200 other people in a thick bush the accused threw his spear without taking reasonable precautions in the circumstances and caused the death of another hunter. The deceased acted unreasonably as well by following the hunted animal in the river, a danger area.

Held: (i) to constitute manslaughter by negligence the facts proved must show that, judged by the standard of a sober and reasonable man in the community of the accused, the act or omission of the accused which caused death was a criminally negligent act;

(ii) a criminally negligent act is a reckless act constituting unreasonable taking of risk;

(iii) the death of the deceased was in part due to the culpable negligence of the accused and the fact that the deceased was contributorily negligent cannot constitute a defence to the charge.

Accused guilty.

Cases referred to:

(1) **R.v. Swindall and Osborne** (1846) 2 C. & K. 230.
(2) **R.v. Jones** (1870) 11 Cox 544.

K.P. Massaba for the Republic.
A.L.K. Massati for the Accused.

March 7, 1980. CHIPETA, J.: The accused person in this case, Selemani Ramadhani, stands charged with the offence of manslaughter c/s 195 of the Penal Code.

The prosecution has alleged that on or about the 8th of September, 1977, in Kigoma Region, the accused unlawfully killed one Mwambara s/o Goragoza. The accused pleaded "Not Guilty" to the charge.

The prosecution's evidence, from a total of seven witnesses, is as follows. Both the accused and the deceased lived in the same village, that is, Kidyama village, in Kasulu District.

On 8th September, 1977, men of Kidyama village with others from three or four other villages went to hunt animals in Kashenyi River valley in Kabanga area. The hunters numbered more than two hundred.

At about 3.00 p.m., the hunters got tired, and so decided to go back to their respective villages.

When they were out of the valley, an animal locally known as "nzobe" came out of Kashenyi valley. All the hunters then went after it. The animal took refuge in the river and started wading or swimming downstream.

The hunters then split into two groups: one group, in which the deceased was, remained on one side of the river, while the second group, in which the accused and one Lucas (P.W.7) were, crossed the river to the opposite bank.

As the animal appeared to the hunters to be moving downstream, both groups moved along the river bank downstream, and then took up their positions.

All along the river banks were thickly grown trees, grass and reeds. In fact the bush covered the entire space above the river thus making it very difficult for someone on the river banks to see what was in the water below the banks.

The thick bush which ran all along the river, separated the two groups of hunters. Although the two groups were only about 20 to 40 paces apart, those on one side of the river could not see those on the other side because of the thick bush which separated them.

Like the other hunters, the deceased also moved downstream. But instead of taking up his position on the river bank as his colleagues did, the deceased actually went into the water and started moving up-

stream in a bid to intercept the animal.

Meanwhile, P.W.7 saw the animal in the water. Thereupon, he threw his spear and managed to stab the animal on the back. As is the practice with hunters, P.W.7 announced proudly that he had wounded the animal. The animal, however, kept on moving downstream in the direction in which the group on the opposite side was, and P.W.7 could no longer see it.

Just then, the accused, who had been standing about seven paces behind P.W.7, ran past P.W.7. When he was about 15 paces ahead of P W.7, the accused threw his spear into the water. Shortly thereafter, the deceased cried out: "Selemani! You have killed me!" Some of the hunters then rushed into the water and pulled the deceased out of the water. The deceased, who sustained a stab wound on the back of his right shoulder, died shortly thereafter.

The matter was then reported to Police, and Police Officers visited the scene and took the dead body to Kasulu Government Hospital.

In his extra-judicial statement, the accused said that when one of the hunters had wounded the animal, he (the accused) saw some movement in the water. Thinking that it was the animal itself, he threw his spear and then heard someone saying:

You have killed me!

On hearing that, he became mentally confused, and so he ran away to Police Station.

The Doctor who conducted the post-mortem examination on the body of the deceased observed that the dead body had a penetrating wound over the right shoulder which penetrated the upper part of the lungs. In his opinion, the cause of death was collapse of the lungs.

The accused gave his defence on oath. His account of what happened is substantially the same as that given by the prosecution witnesses. His story is that after he and P.W.7 had crossed the river and moved downstream along the banks of the river, they stopped and listened.

As they stood listening, the accused heard splashes of water and saw grasses shaking along the river. Just then, he saw P.W. 7 throw his spear into the river at the point where the accused had seen the movement of grasses. PW.7 then announced that he had wounded the animal. The accused, who had by then been standing some six paces behind P.W.7, moved past P.W.7 so as to intercept the animal farther downstream. Guided by the splashes of water, the accused said, he too threw his spear into the river and also claimed that he had hit the animal. But, to his horror, he heard the deceased saying that the accused had wounded him.

Fearing that the relatives of the deceased might revenge, the accused ran away from the scene and went to report the matter to Police.

That was the gist of the accused's story in his examination-in-chief. In cross-examination, however, the accused gave contradicting stories. At first he said that when he threw his spear he had not seen the animal nor any person and that he was merely guided by the noise of the splashes of water. In the same breath, however, the accused said that he made sure that he had seen the animal; that he in fact saw the animal when he shot at it with his spear, and that he saw its horns when he moved the bushes aside with his spear. In the end, however, the accused gave what I should perhaps describe as a built-in contradiction: he said that he saw the horns and heard splashes, and that he shot the spear in the direction of the noise of the splashing water—just in case he was lucky.

After my summing up to the two gentlemen assessors, both of them were unanimous: they found the accused guilty of manslaughter as charged.

From the foregoing evidence, there can be no dispute that the deceased by the name of Mwambara s/o Goragoza is dead and that he met his death at the hands of the accused. What is in dispute is whether the killing in the circumstances amounted to manslaughter as a result of criminal negligence, as the Republic contended, or it was a mere accident without any criminal negligence on the part of the accused, as contended by the defence.

Cases of manslaughter through criminal negligence present peculiar difficulties. In the main, the difficulties arise from the regrettable fact that there is a dearth of local authorities on this particular topic, and authorities in other jurisdictions, such as English authorities, are by no means unanimous as to the suitable language in which the principle as to what constitutes criminal negligence in such cases should be stated. For my part, I would prefer to state the principle thus: in order to constitute manslaughter by negligence, the facts proved must show that, judged by the standard of a sober and reasonable man in the community of the accused, the act or omission of the accused which caused death was a criminally negligent act in the sense that it was a reckless act in that it constituted an unreasonable taking of risk. Recklessness

here should be interpreted to mean pursuing a course of conduct in circumstrances in which a sober and reasonable man would have foreseen or ought to have foreseen possible dangerous consequences from such course of conduct, and which course of conduct such sober and reasonable man would not have pursued. To put it differently, to be reckless ought to mean to pursue a course of conduct in circumstances in which pursuing such course of conduct would result in reasonably foreseeable dangerous consequences, and where a sober and reasonable man would say that to pursue such course of conduct would be to take an unreasonable risk.

That principle, however, can only be a guide, for no two cases can be exactly the same. So what will constitute recklessness, or an unreasonable taking of risk, and in what circumstances one will say there is possibility that dangerous consequences will flow from a particular course of conduct, must all depend on the circumstances and nature of each case.

This being the position, it is my humble view that where such cases are tried with the aid of assessors, their opinions may be of great assistance in applying the objective test of what a reasonable and sober man would have done in the circumstances.

I now proceed to evaluate the evidence and come to my findings of fact. There can be no doubt that the area around which the deceased met his death was so thickly grown with trees, grasses and reeds that it was not easy for any one to see what was in the water. It is equally not in dispute that there were over 200 hunters at or around the scene and, to the knowledge of the accused, there were hunters on both sides of the river banks. The accused himself estimates the distance between the two groups of hunters at between 15—20 paces. It is also common ground that it was not possible for those on one side of the river to see those on the other side of the river. According to P.W.7, whose evidence I accept, after he had wounded the animal, he could no longer see it, and that it moved downstream in the direction of the group of hunters on the opposite side of the river.

From the evidence of the prosecution witnesses, and I think this should be common knowledge, hunting in thick bushes with lethal weapons such as spears or arrows is fraught iwth danger, and so a reasonable hunter in such circumstances is expected to exercise reasonable care to see that any conduct on his part does not endanger others. It is on that basis that I accept the statement of P.W.7 on this point when he said:

> If you are hunting, and you see an animal enter into water, it is usual for a person to go after it into the water. If at that point a man wants to throw spear at the animal in the water, he must move nearer in order to ensure that he has seen it. You cannot throw your spear before you see the animal.

P.W.7 is not alone on this point. P.W.2 said almost the same thing. He said:

> Before you shoot at an animal, you must wait and clearly see it.

Again supporting this line of reasonable conduct is the evidence of Kilaha (P.W.6). This witness had this to say:

> It was wrong for the deceased to go into the water. But if an animal enters a thicket, you must follow it there. Before you throw a spear, you first see the animal. You don't throw a spear merely because you have seen trees shaking.

This witness added:

> If it were me, I would have waited to see if that was the real "nzobe" before I threw my spear.

It is, perhaps, equally necessary to consider the matter from the view of the accused. In what circumstances did the accused throw his spear? As I have said earlier, the accused has given contradictory stories. In his extra-judicial statement, the accused said, in effect, that he saw some movement in the water and that he shot his spear thinking that it was the animal itself. In other words, he did not actually see the animal.

In examination-in-chief, he had this to say:

> When I threw my spear I did not see the animal. I was guided by the noise of the splashes of water.

In cross-examination, however, he said:

> **I made sure that I saw the animal. I saw the animal when I was throwing the spear. I saw its horns.**

But in answer to a question put to him by the second gentleman assessor, the accused had this to say:

> I saw the horns and heard splashes. I threw the spear just in case I was lucky—I threw it in the direction of the noise of splashing water.

From the foregoing evidence, I am in no doubt at all that at the time the accused decided to and did throw the spear, he had not in fact actually seen the animal. He either threw the spear in the direction of the noise of splashes of water, or where he saw the shaking of trees and grasses in the water.

The final question, therefore, is this: did the accused exercise reasonable care in the circumstances when he pursued that course of conduct? I do not think so. The accused is an experienced hunter. He was aware that there were over 200 hunters there, and that visibility was very poor. There was a possible, if not probable, chance that some hunters would follow the animal into the water. In the circumstances, I think that a reasonable hunter would have acted in the manner described by P.W.2, P.W.3, P.W.6 and P.W.7, for, as the second gentleman assessor put it:—

> **People go where noise comes from; and where an animal goes, there too go the hunters.**

In my considered opinion, therefore, and as the second gentleman assessor correctly observed, in taking a spear and throwing it in the direction of the noise of spashes of water without seeing the animal, at a time when there were to his knowledge, very many other hunters at the scene, and when the other groups of hunters (in whose direction the animal was moving) were only 15 to 20 paces across thick bush, the accused was taking an unreasonable risk because, as a reasonable man, he knew or ought to have known that such course of conduct was attendant with possible dangerous consequences. This, in my view, and in agreement with both gentleman assessors, amounted to recklessness which constituted culpable negligence.

It may be that the deceased ought not to have gone into the water, and that in doing so, he contributed to his death. But in my view, and persuaded by English authorities on this point, such as **R. v. Swindall and Osborne,** (1846) 2 C. & K. 230; and **R. v. Jones,** (1870) 11 Cox 544, in a charge of manslaughter, once it is established, as I am satisfied it was in this case, that the death of the deceased was caused in part by the culpable negligence of the accused the fact that the deceased was also guilty of negligence and so contributed to his death cannot constitute a defence to the charge.

On these grounds, I respectfully agree with the two gentlemen assessors, that the prosecution has proved its case beyond reasonable doubt. I, therefore, find the accused guilty as charged, and I duly convict him of the offence of manslaughter forthwith.

Accused guilty.

PAUL S. ALBERT ITULE v. THERESIA ANDREA AND ANOTHER

[HIGH COURT OF TANZANIA AT MWANZA (MFALILA, J.)]

CIVIL CASE 9 OF 1978

Negligence—Proof—Damages—Quantum
Limitation—Actio personalis morritur cum persona rule—Applicability.

The plaintiff brought this action to hold the first defendant, a mid-wife in a government hospital, liable for negligence and the second defendant, the State represented by the Attorney-General, vicariously liable for her torts as her employer and he claimed by way of damages Shs. 35,000/- in respect of the death of his new-born baby which he alleged was caused by the negligence of the hospital staff, particularly the first defendant.

It was not in dispute that at the time of her admission to the hospital she was only 32 weeks pregnant and developed premature labour which resulted in the premature birth of the baby; and the birth weight of the baby was 2.2 kgs. and that the baby was not taken to the special ward for premature babies, but was taken to the normal ward and kept with its mother. The baby died within 18 hours after birth. Upon the evidence the court found that the immediate cause of the death of the plantiff's baby was hypoglycaemia (i.e. low or no blood sugar); that premature babies get this complication if they were not fed within 2 hours of birth; that, if the baby had been taken to the special ward, it would have been fed and more likely than not that would have avoided this fatal complication; and therefore the failure to take the baby to the special ward contributed to its death.

The plaintiff contended that the failure to take the baby to the special ward, inter alia, constituted negligence on the part of the first defendant.

Held: (i) as a suit against the government cannot be instituted without the consent of the Minister, the time taken to obtain the necessary consent must be taken into account in the computation of time for the purposes of limitation and the time should not start to run until after the consent is obtained, provided that the original application (seeking consent) was made in time;

(ii) the old common law rule that the death of a person cannot be complained of as a legal damage in an action in tort does not apply to the case of a child killed by the tortious act of third parties and the deceased child's action for loss of expectation of life survives for the benefit of the estate and passes to the parents, although they have suffered no financial loss;

(iii) the quantum of damages in such cases may include not only the claim for pain and suffering and loss of expectation of life, but also for sentimental damage, bereavement;

(iv) the first defendant's failure to send the baby to the special ward, though it was a contributory cause for the death of the baby, did not amount to negligence as she acted in accordance with the instruction given to the nurses to send a newly born child to the special ward only if its birth weight was below 2.0 kgs., unless there were untoward symptoms calling for admission there and in this case the birth weight of the child was over 2.0 kgs. and his general condition was good;

(v) had liability been established damages would have been assessed at Shs. 10,000/- for loss of expectation of life.

Suit dismissed.

Cases referred to:

(1) **Baker v. Bottom** [1808] 1 Camp. 493.
(2) **Osborn v. Gillet** [1873] L.R. 8 Ex. 88.
(3) **Admiralty Commissioners v. S.S. Amerika** [1917] A.C. 38.
(4) **Muwanga v. Jiwani** [1964] E.A. 171.

E. Matemba for the Plaintiff.
A.R. Mlewa for the Republic.

January 9, 1980. MFALILA, J.: In this action the plaintiff Paul Albert Itule sued the defendants jointly claiming damages amounting to Shs. 35,000/- in respect of the death of his infant son which death he said was occasioned by the negligence of the 1st defendant Theresia Andrea a servant of the second defendant. Before narrating the story surrounding the case, I will describe the parties. The plaintiff is the father of the baby son whose death is the subject of these proceedings. The 1st defendant is the mid-wife who for the most part looked after the plaintiff's wife in her labour and the baby after birth, she was employed at the material time by the Government of Tanzania the owners of Bugando Hospital where the plaintiff's baby was born and died. The second defendant, the Attorney-General, as the Chief Law Officer of the Republic stands for the Government of Tanzania who as employers of the 1st defendant are vicariously liable for her torts.

In his plaint the plaintiff charged that his wife Thabita was admitted at Bugando hospital with labour pains on 21st November, 1972 and that early on 22nd November, 1972 she delivered a live though premature baby boy. He alleged that from the time of his birth the baby was subjected to such negligent treatment by the hospital staff particularly the first defendant that the baby died about 18 hours later. Against the 1st defendant he listed the following particulars of negligence:

(a) Failure to take the premature born baby to the Special Ward for premature babies.
(b) Failure to immediately advise the doctor on duty, the birth of the baby so that the doctor could

immediately take the necessary steps to save the life of the baby.

(c) Bathing of the premature baby in cold water.

(d) Failure by Theresia Andrea to advise the hand that took over duty from her that the baby was premature.

(e) Failure to tie up the umbilical cord properly.

Both defendants denied these allegations. In a joint written statement of defence the defendants denied that the 1st defendant was in any way negligent in her duties. They stated that although the baby was born prematurely, the delivery and baby weight were normal hence there was no need either to call in a doctor or to send the baby to the special ward for premature babies and that the baby's death was not caused by negligence on the part of the 1st defendant. With regard to the claim of Shs. 35,000/-, they stated that it was misconceived, arbitrary, grossly excessive and out of all proportions.

On the basis of these pleadings the issues were framed and agreed upon as follows:

(1) What was the condition of the mother at the time of her admission in hospital?

(2) In what condition was the baby born?

(3) In what Ward was it placed after birth?

(4) What was the immediate care given to the baby after birth?

(5) Did this type of care or lack of it constitute negligence on the part of the 1st defendant?

(6) Did the acts or omissions on the part of the 1st defendant lead to the death of the baby?

(7) If so are the defendants liable in damages?

(8) To what reliefs are the parties entitled?

Before going on to deal with the evidence on both sides led in support of the respective cases, I want to deal with two preliminary matters in a little more detail. The first of these is a question of limitation. The point was not raised at the trial, but it was raised at the hearing of the application to set aside the ex parte judgement of this Court dated 10th July, 1979. It was submitted on behalf of the defendants that the plaintiff's action was time barred because it was instituted three years after the cause of action arose. It was submitted ther that a suit against the Government cannot be instituted without the consent of the Minister first being had and obtained, and that as the Minister's consent was obtained on 22nd July, 1977 and the plaint was filed and fees paid on 1st March, 1978 almost six years after the cause of action arose on 22nd November, 1972 the suit was time-barred. In that application it was not necessary for the learned Judge to give a ruling on this question and he didn't. I will however rule on it now although it was not raised again at the trial. The learned Senior State Attorney who appeared for the defendants might have deliberately dropped the question and with good reason for quite frankly I think it is without substance. The cause of action arose on 22nd November, 1972 when the child died. On 22nd February, 1974 that is to say one year and four months later, the plaintiff filed his plaint and was forwarded to the Attorney-General's Office for the necessary consent. It took that office three years to issue the necessary consent by which time of course time had already run out against the plaintiff. Can the Government in these circumstances be heard to say that the plaintiff's action is time-barred? I think not. First of all the plaintiff filed his plaint within three years and the computation of time should take into account the time taken to get the necessary consent just as in lodging appeals, the time taken for the preparation of judgements is taken into account. Secondly the time should not start to run until after the consent is obtained provided the original application was made in time. For these reasons the plaintiff's action was not time barred.

The second question is whether the plaintiff can maintain this action i.e., whether he has a cause of action. It was submitted at the beginning of the trial on behalf of the defendants that the plaintiff has no cause of action for the death of his infant child. Mr. Mlewa the learned Senior State Attorney who appeared for both defendants argued that at common law no person has a right of action for the death of a person as a result of the tortious acts of another. He added that there were statutory exceptions, for instance in Tanzania the Law Reform (Fatal Accidents and Miscellaneous Provisions) Ordinance Cap. 360, but that even these are only for the benefit of dependants of the deceased person, so that as in this particular case the plaintiff was not a dependant of the deceased infant he cannot maintain this action. He cited in support of this proposition the old rule in **Baker v. Bolton** [*1808*] *1* **Camp** *493* and as it was affirmed in subsequent cases **Osborn v. Gillet** [1873] L.R. 8 Ex. 88 and the more recent **Admiralty Commissioners v. S.S. Amerika [1917] A.C. 38.**

I agree with Mr. Mlewa that at common law the death of a person cannot be complained of as a legal damage in an action in tort brought either by the deceased's person's estate or by dependants of his who suffer loss as a result of his death. The rule in its crudest form was formulated in a ruling by Lord Ellen-

borough in **Baker v. Bolton** cited above. In that case the learned Law Lord laid it down that: "In a Civil Court the death of a human being could not be complained of as an injury". This crude rule persisted over the years until its rigours were softened by Lord Comphell's Acts 1846—1959 but even these were limited to financial loss suffered by dependants as defined under the Acts, there was no room for what may be called sentimental damage, bereavement or pain and suffering. However as developments in other areas of human activity continued to take place Lord Ellenborough's crude rule could not be left untouched. In England a Law Commission published proposals which would make some allowance for non-pecuniary loss suffered by the relatives of the deceased i.e., for the loss of a spouse or minor child. But even without these proposals, in practice English Law allowed such a solatium i.e., where the deceased is a young child. In such a case the child's action for loss of expectation of life survives for the benefit of the estate and passes to the parents, although they will have suffered no financial loss. In East Africa the trend has been no less liberal. Courts in East Africa have allowed parents to sue for damages for loss of expectation of life of their children killed by the tortious acts of third parties. In **Muwanga v. Jiwani and another** [1964] E.A. 171 personal representative and mother of a young girl successfully sued for damages claiming negligence on the respondent's part which resulted in the death of the deceased. The damages were claimed in respect of among other things pain and suffering and loss of expectation of life. Indeed I can see no valid reason to refuse a claim for damages for sentimental damage and bereavement, if these are included in the claim. With respect therefore to the lerned Senior State Attorney, modern trend has parted company with the rule in **Baker v. Bolton** and frankly I cannot visualise how any modern system of law can apply Lord Ellenbough's rule and deny a parent his right of action for damages for loss he suffered following the death of his child as a result of the tortious acts of a third person.

For these reasons the plaintiff has a cause of action, his only task being to prove his allegation that his child died as a result of the negligence of the 1st defendant in the performance of her duties as a mid-wife.

The evidence in support of the plaintiff's case was supplied wholly by himself and his wife the mother of the dead infant. The plaintiff said in his evidence that on 21st November, 1972 he took his pregnant wife Thabita to Bugando hospital with a history of discharging water. Her discharging water worried him because the pregnancy was not yet full term. On arrival at the hospital, she was received and admitted into a ward by an unidentified nurse. He left her at the hospital and returned home. In the afternoon he went to hospital to visit his wife. He saw her and she told him that she had not yet been seen by a doctor but added that she was resting. During the evening visit, she told him again that she still had not been seen by a doctor although she had been given medicine and taken it. He added however that as far as he could tell, she looked alright, and so he went home. But when he paid another visit at the hospital the following morning, he was told by Theresia Andrea the 1st defendant that his wife had delivered a baby boy and that both baby and mother were doing well. She added however that he could not as yet see his wife because she was still in the labour ward. On being told this he left, but returned to the hospital in the afternoon when he found his wife and baby had been moved to Ward C4. His wife told him that the baby was crying continuously and suggested that the reason could be that he was feeling very cold on account of his having been bathed in cold water soon after birth. But he saw that the baby was wrapped in warm clothes. After this visit and on his way out of the hospital he met a doctor friend whom he asked to assist in seeing that his new baby was moved to a special ward for premature babies. His friend promised to do what he could. When he returned to hospital for the evening visit he found his wife standing outside the special ward for premature babies and she told him that at about 2 p.m., the condition of the baby had deteriorated and had to be moved to the special ward. He therefore left the hospital while the doctors were attending the baby. But when at about 6.30 p.m. he rang the hospital to find out or inquire how his baby was going on, he was told that the baby was dead. After the funeral, he asked his wife what had really happened, and he said, he was satisfied from what she told him that the baby died because of the negligent treatment to which it was subjected after birth. Before going on to relate what steps the plaintiff took after this, it is pertinent to record what it is that his wife told him, which satisfied and convinced him in the view that the death of his baby was caused by the negligence of the hospital staff particularly the 1st defendant.

What the plaintiff's wife Mrs. Thabita Itule told her husband must be the same as what she said in her evidence at the trial. She said that she was about 8½ months pregnant when on 20th November 1972 she noticed that she was discharging water. This development meant that she might have ruptured her membrane and as she was not yet full term, this was something to worry about. She therefore informed the plaintiff who immediately took her to Sekou Toure outpatient hospital. Then she was immediately referred to Bugando hospital where she reported the following day on 22nd November and was admitted. According to her from this point onwards her nightmare started. She received no care at all even after the start

of labour pains at about 11 p.m. She had to walk to the nurses room to seek assistance, for all her cries for help had gone unheeded. Her nightmares did not end when she was finally moved from the ward and taken to the Labour Ward. There she was put on the table and left to her own devices while the mid-wife who was supposed to look after her i.e., the 1st defendant pulled a screen and went to sleep. She would have delivered on her own had it not been for another nurse who happened to walk into the labour ward and assisted her deliver her baby. It was then that the 1st defendant woke up and started attending to the baby. She heard or saw the 1st defendant washing the baby at a cold water tap, she heard the baby wail in anguish at being washed in cold water. However there was nothing she could do and early the following morning she and the baby were taken to Ward C 4. This surprised her because in her view the baby should have been taken to a special ward for premature babies because it had been born before its time. However when late in the afternoon the condition of the baby became very bad, it was removed to the special ward, but it was too late, the baby died some hours later. In her view the baby died because of being washed in cold water and excessive bleeding from the improperly tied umbilical cord. She said she had seen blood in the umbilical cord area when the baby was being transferred to the special ward where the nurses told her that the baby was bleeding because the umbilical cord had been improperly tied.

When the plaintiff heard all this from his wife, he decided to write a letter of complaint to the relevant authority at Bugando hospital. In this letter **EX.P.1** he complained about the negligent manner to which his baby had been treated and how this had led to his death. For ease of reference I will reproduce this letter which was in the following terms:

CONFIDENTIAL

P.O. Box 899,
MWANZA.
13th December, 1972.

The Hospital Superintendent,
Bugando Hospital,
P.O. Box 370,
MWANZA.

Dear Doctor,

Re: **THERESIA ANDREA**
AYAH AT BUGANDO HOSPITAL

I have thought it fair to bring to your notice about the Ayah who, through her duty negligence, caused the death of my child on 22nd November, 1972.

After seeing that my wife Mrs. Thabita H. Itule who was 36 weeks pregnant was discharging water, I decided to take her to Bugando where I was taken by Dr. Nkulila and managed to see the midwife on duty. This was on the 20th November, 1972. The nurse on duty examined my wife and found the child and the mother were alright, she only advised me to take my wife to Sekou Toure Hospital on the following day to see the specialist. I took my wife to Sekou Toure Hospital in the morning of 21st November where she was examined by the midwife and found the child was alright, only that my wife needed a rest as she was a government employee, and which she could get from the Specialist at Bugando Hospital. On arrival at Bugando, my wife was admitted and was told to visit her at the allowed time. I visited her at 12.30 p.m. and 6.00 p.m. and found that she had not seen the doctor only that she was given some tablets to use.

When I went again on 22nd November at 6.30 a.m. Theresia and another Ayah who were on duty informed me that my wife was still in the labour room and had delivered a male child and that I could not see her until 12.30 p.m. I was assured that both were doing well. At 1.00 p.m. when I arrived, I was shocked to see my wife and the child who was premature, in the upper floor which is for mature children. This was so because the attendant (Theresia) did not take the child to the premature

room soon after birth and the whole process was distorted. I could not intervene because I am not expert.

My third visit on that day at 6.00 p.m. I found the child in the premature room and his mother standing in the verandah near the premature room.

The above statement is purely from what I know, apart from what my wife experienced in the ward which is as follows:—

After a day's admission, my wife began to feel pain at 11.00 p.m. and she rang the bell, but the Ayah, who was on duty could not turn up. Fortunately, a white sister came and asked her whether she had any trouble and she said that she was feeling pain and had rang the bell but to no avail. The sister went in search of the Ayah on duty and she came in with Theresia. Theresia told my wife to move to the labour room where she was shown a bed and Theresia went to sleep without even examining the stage my wife was in. My wife continued labouring alone until the child showed itself. Luckily enough, the sister came in again and found my wife labouring alone. While discussing with the sister, Theresia appeared and she helped my wife to deliver. Theresia moved the child to the next room where my wife heard the child being washed and crying. The child was soon brought back in the room and my wife witnessed it being washed again with cold tap water before being taken upstairs. My wife could not comment as she was no expert in midwifery. At about 4.00 p.m. the health of the child changed and my wife reported it to sister and asked her how they deal with premature children. The sister immediately came in and was shocked at the condition of the child, she also noticed a second thing that the child's umbilical cord was not properly attended to. She immediately transferred the child to the premature room where the specialist doctor and herself laboured hard to save the life of the child but failed because it was too late. My wife and myself thank these devoted servants though the child passed away at 6.00 p.m.

Sir, from the foregoing statement, you can easily see how the said Ayah neglected her duty towards the child in question as follows:—

1. She failed to take the child to the premature room immediately after birth-knowing quite well that the child was premature. The clinic history sheets and the death certificate verify this.
2. After birth, she did not inform the doctor concerned so that child's health could be examined.
3. Although I am personally not a doctor, I still fail to see the possibility of washing a premature child with cold water and taking it to ordinary rooms of mature children.
4. The handing over of duties to the incoming Ayah was not properly done by Theresia to enable them to know the position of the said child.
5. The umbilical cord as stated was not properly fastened by Theresia.

Sir, I have thought it wise to present this incident to you about the said Ayah so that the matter could be checked and that she is punished so that she does not continue injuring the reputation of Bugando Hospital which has cost the Tanzanians and its benefectors a tremendous amount of money and energy in its pursuit of eradicating disease, thereby promoting good health for its people.

I shall be most grateful if you will conveniently let me know what you have thought of this personal....

Yours sincerely,

(SGD)
PAUL S. ALBERT (ITULE)

Copy to:

Regional Commissioner,
MWANZA.

Area Commissioner,
MWANZA.

TANU Regional Headquarters,
MWANZA.

TANU District Headquarter,
MWANZA.

The Superintendent of Bugando hospital one Dr. Doisey received this letter and replied admitting substantially all the complaints raised by the plaintiff. In his letter Ex.P.2 & D.5 the Hospital Superintendent admitted negligence on the part of the 1st defendant saying that he had arrived at this conclusion after making enquiries. Again this letter is reproduced for ease of reference: It reads as follows:

CONFIDENTIAL

Mwanza Regional Consultant
and Teaching hospital,
P.O. Box 1370,
MWANZA.

Our Ref. No. 17/1151 4th January, 1973.
Mr. Paul S. Albert (Itule),
P.O. Box 899,
MWANZA.

Dear Mr. Paul,

I wish to extend my most sincere regrets to your wife and yourself on the death of your newborn child on 22nd November. Thank you very much for bringing this serious matter to my attention. I regret I have not been able to reply sooner but my investigation of the matter has been delayed by the pressure of many other urgent problems.

At this point, I am able to tell you that all the important points you brought out have been confirmed by my investigation so far and we shall take disciplinary action shortly against the employee you have named. It seems clear that she was very negligent in her duties. I am very sorry that our general shortage of qualified midwives and nurses forces us to have an inadequate trained staff at night on occasion. However, there is no excuse at all for her to have been sleeping when a patient was in labour nor did she perform other duties properly which she should know.

Please accept my condolences and be assured that we will make every effort to prevent the recurrence of such an unfortunate event.

Yours sincerely,
(SGD.)
Dr. William F. Dorsey
Ag. MEDICAL SUPERINTENDENT.

Copy to: Regional Commissioner,
P.O. Box 119,
MWANZA.

" " Area Commissioner,
P.O. Box 119,
MWANZA.

" " TANU Regional Headquarters,
P.O. Box .....
MWANZA.

" " TANU District Headquarters,
P.O. Box ....
MWANZA.
WFD/pk.

The plaintiff then stated that when he received the above letter, he was confirmed in his view that his baby died because of the negligent acts of the 1st defendant and decided to sue both defendants claiming damages for his child's death.

The 1st defendant gave evidence in which she denied all the allegations of negligence on her part. She said that she was a trained mid-wife and that she started working in 1947 after completing her training at Sumve. She added that on 21st November, 1972 when she reported on duty at 8 p.m., she being on night shift, she found the plaintiff's wife had been admitted in Ward C 2. She remained in this Ward until mid-night when she was moved to the labour Ward where she delivered a baby boy at about 2.30 a.m. After the baby was born normally, the 1st defendant said she attended to him by giving him all the usual attention i.e., taking all the measurements including weight which was 2.2 Kgs. and cleaning him with a piece of gauze dipped in savlon solution which is an antiseptic. She said that this is standard procedure and that as far as she could see both mother and baby were doing well and she so informed the plaintiff when he came to the hospital at about 6.30 a.m. Before the end of her night shift at 8.00 a.m. she had all the mothers and their babies who were in good condition moved from the labour ward to ward C 4. This included the plaintiff's wife and her baby. But when she reported for duty again in the evening, she was told that the plaintiff's baby had died. As to her failure to take the plaintiff's baby to the special ward, the 1st defendant explained that although the baby was premature in that he was born before his full term, his weight and general condition were normal. He weighed 2.2 Kgs. In this condition it was not necessary to take him to the Special Ward and these were the doctor's standing instructions unless the baby's condition was unsatisfactory in which case a doctor had to be informed. But as there was nothing seemingly wrong with the baby and his weight exceeded 2 Kgs, there was no need to inform the doctor. As to the bathing the baby in cold water, this she denied, saying that as a rule babies born at night are never bathed because there is no supply of hot water at night. They are kept like that till morning when hot water is in supply again. What happens soon after birth is that the baby is cleaned with a gauze dipped in an antiseptic solution, and this is what she did to the plaintiff's baby. The next thing she heard about this baby was on 10th January, 1973 when Dr. Doisey then Medical Superintendent asked her verbally to make a written explanation regarding the circumstances of the birth and death of this baby and how she had attended it and treated its mother. This she did in her letter produced in evidence as Ex. D.1.

In this she was supported by the nurse incharge of the night shift Mrs. Anna Nsemiwe who also gave evidence. Mrs. Nsemiwe confirmed that the 1st defendant attended the plaintiff's wife in the labour ward but that she was herself ultimately responsible for anything that happened in the labour room. She therefore saw to it that everybody did her job properly. As to the 1st defendant, she said she was satisfied with what she did to the baby, i.e. tying the umbilical chord and cleaning him with a sterilised piece of cloth, and that when the baby was released to the ward with his mother, he was not bleeding , and she also denied that the baby was washed in cold water soon after birth saying that this would have been contrary to normal practice which is that babies are only washed when warm water is available during the daytime. As the nurse incharge of the shift in which this incident happened, she was also asked to make a written explanation on the way the baby and its mother were treated. She did so in her letter Ex.D.2.

The next witness called on behalf of the defendants was Professor Valerian Pius Kimati of the Muhimbili hospital Medical School. He said that he is a Specialist Paedetrician and that before his appointment at Muhimbili Medical School as Professor of Medicine he was stationed at Bugando hospital. He added that on 22nd November, 1972 at about 2.30 p.m. he received an urgent summons to proceed to a Ward where there was a baby in serious condition. He proceeded there, and as the record Ex.D.3 reminded him, he found the plaintiff's baby in very bad condition. It had collapsed, it was not breathing efforts were therefore made to rescucitate it. In addition it had developed heart failure and when tested for blood sugar, he found that the baby's blood sugar content was Zero. After making these preliminary diagnoses he ordered urgent treatment. He ordered the baby taken to the special ward where efforts were intensified to restart the breathing and to make the heart function again. He also ordered sugar drip introduced in the baby's blood system. When all this was done, he noticed that the baby started breathing and he responded to the treatment. But he did not improve sufficiently to survive because in his view the baby had remained for too long without sugar in his blood. As a result the baby died in his presence at 5 p.m. In the baby's file Ex. D 3 Professor Kimati recorded Hypoglycaemia as the cause of death. He added however that although he recorded Hypoglycaemia i.e., low blood sugar as the immediate cause of death, the baby's heart failure and prematurity did not help him. As to what brought about this condition in the plaintiff's baby, Professor Kimati stated that premature babies, get this complication i.e., hypoglycaemia if they are not fed immediately i.e., within two hours after birth. Professor Kimati was then asked to give his observations and opinions on the state of the baby's umbilical cord; whether it was washed in cold water after

birth and if so what would have happened; the standard treatment accorded all premature babies and lastly on the accuracy of Dr. Doisey's remarks in his letter Ex.P.2 or D.5 regarding the cause of the baby's death.

With regard to the state of the umbilical chord, Professor Kimati stated that he was positive it was properly tied and dry, because if the position had been otherwise i.e. it had been bleeding, he would have noticed it and noted it in the file for in new born babies this is the first thing a doctor looks for. Therefore he said the umbilical chord had nothing to do with the death of this baby.

As to whether the plaintiff's baby was washed in cold water after birth, Professor Kimati thought this very unlikely for he said you do not wash new born babies in cold water. They are simply cleaned with a sterilised gauze as the 1st defendant is said to have done. However if a new born baby is washed in cold water and left exposed serious complications i.e., hypothermia can result, but when he saw this baby, he was wrapped in warm clothes.

Concerning premature babies, he said that professionally these are divided into two categories. The first category covers those born with weights less than 2 Kgs. These cannot feed themselves and require more heat. They are therefore put to special care under special facilities. The second category covers those born with weights more than 2 Kgs. i.e., from 2 Kgs. upwards. These though they are technically premature i.e., born before 37 weeks, they can feed themselves on mother's milk and need only normal heat. These do not need specialised attention and therefore are given and remain with their mothers. So that as the plaintiff's baby belonged to this second group there was no need for the nurses either to inform him or to take him to the special ward.

Lastly with regard to Dr. Doisey's letter **Ex.P.*2*** or **D.*5*** admitting negligence on the part of hospital workers as the cause of death of the plaintiff's baby, Professor Kimati did not think any investigations were made before that letter was written, because as the doctor who had treated the baby up to the last moment, he was medically the only person who could say what the cause of death was and that therefore he was the obvious person to have been contacted in any investigations by Dr. Doisey, but he was not.

The last witness called on behalf of the defendants was Professor Suedi Abdallah Mwankemwa also of Muhimbili Medical Centre. He said that before he was posted to Muhimbili Medical Centre as the Deputy Director-General, he was stationed at Bugando hospital as Medical Superintendent in succession to Dr. Doisey. He added that when he took over from Dr. Doisey he found from the office correspondence the matter regarding the plaintiff's baby. He saw Dr. Doisey's two letters **Ex. D.*5* (P.*2*)** and **Ex. D.*6***. He therefore asked Dr. Doisey what investigations he had carried out before writing the letter Ex. D.5 and how he reconciled this letter to his subsequent letter **Ex. D.** *6* written to the Regional Development Director's Office. This letter dated 13th April, 1973 reads as follows:

MINISTRY OF HEALTH AND SOCIAL WELFARE

THE UNITED REPUBLIC OF TANZANIA

MWANZA REGIONAL
CONSULTANT AND
TEACHING HOSPITAL,
P.O. BOX 1370,
MWANZA.
13th April, 1973.

Our Ref. 4A/1364

Mr. I.R. Mwajasho,
Regional Development Director's Office,
P.O. Box 119,
MWANZA.

Dear Sir.

Re: COMPLAINT AGAINST THERESIA ANDREA—
NURSING ASSISSTANT, MWANZA HOSPITAL

YOUR REF: CM 2/165 (2ND JANUARY, 1973)
CM 2/200 (3RD APRIL, 1973).

Your request for information on the action taken in this matter has been noted.

Certain general steps were taken immediately upon receipt of the letter in January to advise the staff of the Maternity Unit that sleeping on duty by any member would not be permitted. This was put in writing and explained to all staff in Maternity by the Nurse in-Charge, in English and Kiswahili.

The members of the staff who were involved in the incident were interviewed and told to submit written statements about the matter. These statements contain certain contradictions and the case is not as clear as it seemed to be at first. Some of the questions involve facts, others involve professional judgements which were made at the time.

A final disposition will be made as soon as the Matron and I can fairly judge all the questions involved.

Sincerely yours,

(SGD.)
Dr. William F. Dorsey
Ag. MEDICAL SUPERINTENDENT

Copy to: Regional Medical Officer,
P.O. Box 132,
MWANZA.

" " Mr. P.S. Albert (Itule),
P.O. Box 899,
MWANZA.

WFD/pk

Professor Mwankemwa said that he never received a satisfactory reply from Dr. Dorsey until he left the hospital. In these circumstances he decided to make his own investigations into the whole affair and he so informed the Regional Development Director in his letter dated 9th June 1973 Ex. D.7. The text of this letter was as follows:

CONFIDENTIAL

MINISTRY OF HEALTH AND SOCIAL WELFARE

THE UNITED REPUBLIC OF TANZANIA

MWANZA REGIONAL
CONSULTANT AND
TEACHING HOSPITAL,
P.O. BOX 1370,
MWANZA.

Our Ref. C/G.1/17

9th June, 1973.

Regional Development Director,
P.O. Box 119,
MWANZA.

RE: COMPLAINT AGAINST THERESIA ANDREA
NURSING ASSISTANT

1. Please refer to your letter No. POF.284/93 of 26th May, 1973.
2. I am sorry to note that there has been a long delay in finalising this matter. However I have had the occasion to discuss this matter with my predecessor and I have so far been able to interview one member of the staff involved.
3. The whole case does not seem to be as straight as was originally thought. From what I have been able to gather there are so many missing links to establish what my predecessor has already admitted in his letter No. 17/1151 of 3rd January, 1973 which was addressed to Mr. Paul S. Albert (Itule) in response to Mr. Albert's letter of 13th December 1972. Copies of both letters were sent to you. Facts admitted are:

(i) Failure to take the child to Premature room.
(ii) Failure to inform the doctor immediately following birth of child.
(iii) Washing newly born child with cold water.
(iv) Day Nurses were not properly briefed regarding condition of the child.
(v) Umbilical cord was not properly fastened.

4. Apart from discovering the missing links, one would also want to know exactly what was the cause of death.
5. I hope I will be able to give my views on this case not before long perhaps before the end of this month.
6. Incidentally you may wish to know that the Matemba & Company (Advocates) of Mwanza, in their letter No. MZA/3477/7 of 23rd May, 1973 addressed to us and copied to Theresia Andrea, are claiming on behalf of their client for damages of a token payment of Shs. 50,000/-, copy of their letter is attached herewith for your information. Copy of my letter of acknowledgement is also attached for your information.

(SGD. A. MWANKEMWA)
MEDICAL SUPERINTENDENT

Copy to:

The Regional Medical Officer,
P.O. Box 132,
MWANZA.

" " Mr. P.S. Albert (Itule),
P.O. Box 899,
MWANZA.

In the meantime the plaintiff through his advocates had written to the hospital authorities demanding payment of Shs. 50,000/- as compensation for the death of his child, which had died through the negligence of their workers. When therefore Professor Mwankemwa completed his investigations, he wrote to the plaintiff's advocates his letter dated 9th August, 1973 **Ex. D. 8** in which he explained fully what had happened and denied any liability. This letter was in the following terms:

CONFIDENTIAL

C/G.1/25 9th August, 1973

Messers. Matemba and Company,
P.O. Box 290,
MWANZA.

Dear Sirs,

Re: PAUL S. ALBERT ITULE

Please refer to correspondence resting with letter No. PCF.284/15 dated 4th August, 1973 from the Regional Development Director, Mwanza which was addressed to me and copied to you and Mr. P.S.A. Itule.

My investigations have revealed that there was no evidence of negligence on the part of Theresia Andrew.

You may wish to know that Mrs. Itule was not delivered at full term. When she was admitted for delivery on 21st November, 1972 she was only 32 weeks pregnant. Women normally deliver at 40 weeks, (full term). As it can be seen her delivery was premature. At admission, she had history of watery discharge per vagina for 3 days. The birth weight of the child was 2.2 Kilograms; normal birth weight being 3.4 kilograms.

With the above background, I would now try to answer the allegations:

(i) **Failure to take the child to Premature Room.** Our Nurses have been instructed to send a newly born child to premature room only when its birth weight is less than 2.0 kilograms unless there are untoward symptoms calling for admission there. In this case the child was in good condition and there was no need to send it there.

(ii) **Failure to inform the doctor immediately following birth.** There was no need for this as child's condition was good.

(ii) **Washing newly born child with cold water.** This was not done. The baby was taken behind the screen and its eyes and head were mopped. Perphas Mrs. Itule heard tap water running and thought that the child was being washed.

(iv) **Day Nurses were not properly briefed regarding condition of the child.** All children born the previous night are sent to post natal ward (C 4) the following morning unless there is cause for alarm. In this case the condition of the child then was good and was transferred to C4. The child was sent to Premature Unit and it was only at 11.00 a.m. when it was discovered that its condition was deteriorating.

(v) **Umbilical cord was not properly fastened.** If this was true, the child would not have survived much longer. The child's condition at 7.30 a.m. was good before being transferred to C4.

With prematurity, child's condition may deteriorate a few hours after birth and the fact that later in the morning 22/11/72 its condition became worse is not unusual though some premature children manage to survive. It was at this stage when the child was sent to premature unit when it died subsequently. To summarise this was a case of Premature Labour Leading to Neonatal death.

Yours faithfully,
(SGD.)
DR. S. A. MWANKEMWA

Professor Mwankemwa told the Court that at this stage he was more than satisfied that the plaintiff's child did not die as a result of negligence on the part of any hospital worker. He was convinced as a result of his findings that his predecessor wrote the letter admitting negligence before making any investigations, otherwise he would not have repudiated the contents of his letter Ex. D.5 (P.2) in his subsequent letter **Ex. D.6.** Therefore he did not know on what basis Dr. Dorsey made the admissions of negligence in his letter dated 4th January, 1973 before he received the two written explanations dated 6th January, 1973 and 10th January 1973 from Anna Nsemiwe and the 1st defendant when otherwise there was no proof regarding all the allegations of negligence made by the plaintiff against the hospital workers.

This in its entirety is about all the evidence on both sides, and from the allegations and counter allegations. The plaintiff's position can be summarised as follows: according to him his baby died because of inadequate and bad care consisting of firstly washing the baby in cold water, secondly improper tying of the umbilical cord leading to bleeding with fatal consequences and lastly taking the baby to a normal ward when it needed the facilities of a special ward for premature babies. I will now relate the issues to these factors. The 1st three issues are related to the 1st cause of death i.e., failure to take the baby to a special ward.

Issue 1: What was the condition of the mother at the time of her admission in hospital?

I think it was not disputed that at the time of her admission the plaintiff's wife was discharging water and later developed premature labour which resulted in the birth of the baby.

Issue 2: In what condition was the baby born?

Again it was agreed in the course of the hearing that the plaintiff's baby was premature.

Issue 3: In what ward was the baby placed after birth?

Although the baby was born prematurely before its full term, it was taken to the normal ward and remained with its mother. It was not taken to the special ward for premature babies. The first question then is whether this act of taking the baby to the normal ward contributed or was the cause of death of the plaintiff's baby as alleged by him. In this I can do no better than go back to the evidence of Professor Kimati. He said that although the immediate cause of death of the plaintiff's baby was hypoglycaemia, he added that the baby's prematurity did not help it because premature babies get this complication if they are not fed within about two hours of birth. This obviously means that if the plaintiff's baby had been taken to the special ward, it would have been fed and more likely than not would have avoided this fatal complication. Therefore on this evidence I would say that failure to take the plaintiff's baby to the special ward contributed to its death. The next question is whether this was negligence on the part of the first defendant. This is not an easy question, for the evidence reveals that this involved professional judgment. The 1st defendant stated that considering the condition of the baby i.e., he weighed over 2 Kgs. and generally he looked alright, she was acting within the doctor's standing instructions in not taking him to the special ward. Professor Kimati in his evidence confirmed this and explained how premature babies are categorised. Can it therefore be said in these circumstances that the first defendant was negligent in taking the plaintiff's baby to the normal ward? I think not, it would be asking too much of her. Until this unfortunate incident involving the plaintiff's baby, the categorisation explained by Professor Kimati appeared to have worked very well, the 1st defendant had therefore no reason to suppose that in this case the categorisation would fail her.

Issue 4: What was the immediate care given to the baby after birth?

According to the plaintiff's wife, her baby was washed in cold water immediately after birth, and that this caused the death later on the same day. However the 1st defendant denied this. She said that after the birth she gave he plaintiff's baby the normal care and attention i.e., cleaning him with a piece of sterilised cloth weighing him and tying his umbilical cord. The nurse incharge of the shift confirmed this that as far as she was concerned the 1st defendant properly cleaned the baby, weighed it and tied its umbilical cord in such a way that it was not bleeding. I think on the balance of the evidence the plaintiff's wife must have been imagining that her baby was being washed in cold water when she heard him wail as the 1st defendant was cleaning him and later heard the tap running as she rinsed the cloth. I do not believe that however cruel the 1st defendant must have appeared to her, she could have subjected an innocent new born baby to such cruel treatment. In any event after cleaning it, the 1st defendant saw to it that the baby was warm for everybody including the plaintiff himself said the baby was nicely wrapped up. As to whether the baby was bleeding in the umbilical cord area, I will accept Professor Kimati's evidence based on professional practice that the

baby was not bleeding and that this was completely unconnected with its death. I would therefore say on the evidence that after birth the plaintiff's baby was given normal care and attention i.e., it was cleaned, weighed and its umbilical cord tied in such a way that it was not bleeding and that it was not washed in cold water.

Issue 5: Did this type of care or lack of it constitute negligence on the part of the 1st defendant?
The answer is obviously in the negative. This was what the 1st defendant was expected to do to all newly born babies.

Issue 6: Did these acts or omissions on the part of the 1st defendant lead to the death of the baby?
I have already held that the only omission on the 1st defendant's part which contributed to the death of the plaintiff's baby was her failure to take the baby to the special ward, but this I have held did not amount to negligence on her part because she was acting on standing instructions based on professional judgment which appears to have worked pretty well untill this mishap involving the plaintiff's baby happened. The rest of the 1st defendant's actions did not in any way contribute toward the death of the plaintiff's baby. As we were told by Professor Kimati, the cause of death of the plaintiff's baby was hypoglycaemia or in lay language low or no blood sugar. On these findings I agree with Professor Mwankemwa that his predecessor made admissions of negligence on the part of the hospital staff prematurely before he had carried out investigations and this was very unwise. Indeed he later realised his mistakes and sought to change the position by writing his subsequent letter dated 13th April, 1973 **Ex.D.6.** Therefore the letter dated **4/1/73 Ex.D.5 (P.2)** cannot be used as evidence proving negligence on the part of the 1st defendant. As Mrs. Anna Nsemiwe stated, Dr. Dorsey might have written it out of fear.

Issue 7: If so are the defendants liable in damages?
Since no act of negligence has been proved on the part of the 1st defendant, the answer to this issue must be in the negative.

Issue 8: To what reliefs are the parties entitled?
None so that this suit fails. However in case I am held to be wrong on the question of negligence on the part of the 1st defendant and the cause of death, I will proceed to estimate the amount of damages which I would have awarded to the plaintiff had he been successful. I should perhaps point out with respect that the plaintiff's counsel should have been more specific in his claims. It is no good just putting up a global figure in this case Shs. 35,000/- without saying what this is supposed to represent. In the case of young children and infants parents would normally make as one of the heads of claim loss of expectation of life, but as I said earlier I would not refuse a parent a claim for sentimental damage, bereavement or pain. But since this was not done I will only consider loss of expectation of life as a head of claim. In this regard some jurisdictions have fixed tarrifs of spouses and minor children, but in East Africa there are no such tarrifs. In **Muwanga v. Jiwani and another,** [1964] E.A.171 a Uganda case, Sir Udo Udoma the then Chief Justice awarded the mother of a 13 year old girl Shs. 5,000/- for loss of expectation of life for her daughter. I have to take into account in this case the fact that sixteen years have gone by and that the deceased here was an infant less than a day old. In these circumstances I would have awarded the plaintiff the sum of Shs. 10,000/- for this head of claim and therefore in the suit as a whole of course plus the costs.

But as I have already remarked, the plaintiff did not prove any act of negligence on the part of the 1st defendant, therefore this suit fails and it is dismissed with costs. Right of Appeal explained.

Suit dismissed

ORDERS AS TO EXHIBITS:

(1) EXHIBITS D3/PATIENT FILE) and EXHIBIT D4 (BIRTH REGISTER)
Hospital—Either after appeal or after the palse of the period for loding one.
(2) The other exhibits in the form of letters can be returned to the owners on application and after they have been photostated.

GEOFREY MALEKO v. THOMAS MWAIKAJA

[HIGH COURT OF TANZANIA AT TABORA (SAMATTA, J.)]

CIVIL APPEAL 12 OF 1977

Evidence Act, 1967 ss. 42–46—Admissibility in a civil action of a judgement in a criminal case as evidence.
Evidence Act, 1967 s. 166—Purpose of admitting a deposition in evidence.
Evidence—Weight given to evidence by trial court—Interference in Appeal—Duty of the appeal court.

The respondent filed a suit against the appellant in the District Court for conversion of 28,600 bricks belonging to him. Earlier, the appellant had been acquitted in a criminal case of the charge of stealing the bricks. The court record of the criminal case was produced as an exhibit by one of the witnesses of the repondent and was admitted in evidence by the trial court. The appellant admitted in his examination-in-chief that he took 5,000 bricks and was liable to that extent, but not beyond. He did not produce any other witness. The trial court decreed the respondent's claim in full.

In his appeal to the High Court the appellant contended that, he having been acquitted of stealing the 28,600 bricks, the trial court should have found it as a fact that he had converted no more than 5,000 bricks as admitted by him and that the trial court erred in believing the respondent and his witnesses.

Held: (i) the law of this country lays down in clear terms that in determining the issues before it a civil court must entirely disregard any judgement delivered in a criminal case, even if the facts in the two cases are the same;

(ii) the inadmissibility in a civil proceeding of evidence of acquittal in a criminal case rests, **inter alia,** on the ground that the degree of proof which the prosecution must attain to succeed is far higher than that required of a plaintiff in a civil case;

(iii) it is the duty of the appellate court to defer to the conclusion reached, or inference made, by the trial judge who has had the advantage of hearing and seeing the witnesses with regard to the weight on balance of their evidence, unless the appellate court comes to a clear conclusion that the trial judge was plainly wrong;

(iv) the trial magistrate was right, upon the evidence before him, in holding that the respondent had discharged the onus of establishing his case upon a balance of probabilities;

(v) the only legitimate purpose for which any deposition can be admitted in evidence is either to impeach the veracity of a witness of the adverse party or to demonstrate consistency under the Evidence Act, 1967, s. 166, on the part of a witness; the production in and admission by the trial court of the record of the criminal case was not aimed at achieving either of these purposes.

Appeal dismissed.

Cases referred to:

1. **Rondel v. Worsley** [1966] 3 All E.R. 657.
2. **Clarke v. Edmiburgh and Disbrick Tramways Co.** [1919] S.C. (H.L.) 36.
3. **Powell v. Streatham Manor Nursing Home** [1935] ALL E.R.58

May 20, 1978. SAMATTA, J.: By these proceedings the defendant, Geoffrey Maleko, appeals from the judgement of the District Court of Sumbawanga District which awarded the plaintiff, Thomas Mwaikaja, the sum of Shs. 14,300/-. The action was brought in respect of 28,600 bricks belonging to the respondent which the appellant was alleged to have converted.

Although in his statement of defence the appellant totally denied liability, during the trial, while giving evidence, he admitted liability to the extent of the value of 5,000 bricks. The principal issue at the trial was, therefore, the number of the respondent's bricks the appellant had converted. In his testimony the respondent claimed that the number of the bricks was 28,600. According to him, all those bricks were stacked in one kiln. One of his witnesses, one Francis Kungula, who was the one who made and baked the bricks, gave evidence confirming that testimony. Another witness for the respondent, one Sgt. Hezron, produced before the court as an exhibit the court record of a criminal case in which the appellant had been charged with and acquitted of stealing the alleged 28,600 bricks. I pause here to observe that I own I have not been able to

understand the purpose for which the record was produced and admitted in evidence. The only legitimate purpose for which any deposition can be admitted in evidence is either to impeach the veracity of a witness of the adverse party, or to demonstrate constistency, under s. 166 of the Evidence Act, 1967, on the part of a witness. Clearly, the production of the record of the criminal case in the case now under consideration was not aimed at achieving either of those two purposes. To revert to the summary of the evidence that was laid before the lower court, the testimony of the appellant was, strangely, very brief. I can quote the whole of it without umaking this judgement unduly long. The appellant said, in examination in chief:

> I deny that I took 28,600 bricks of the plaintiff's. I took only 5,000 bricks of the defendant (sic). I admit liability to the extent of 5,000 bricks only and not 28,600 bricks. That is all.

The appellant was asked only one question in cross-examination. In answering it, he said:

> In the Criminal Court I did not say that I took 5,000 whole bricks and more broken pieces in a lorry.

That was all that the appellant told the lower court during his testimony. At the end of that testimony, the appellant applied for and was granted a two-week adjournment of the case to enable him to get his witness, the man whom he had engaged to collect the bricks and convey them to the site where he had been constructing a house, before the court. The witness did not give evidence when the hearing resumed two weeks later. Why not? That I will tell. The appellant dispensed with the evidence of the witnessess. This is what he is on record as having told the court: "My witness has not turned up though I orally told him to come. I shall dispense with him." Twenty days later the learned trial Magistrate delivered his judgment. Having analysed the evidence laid before him, the learned trial Magistrate held that the respondent had established his case. He accordingly entered judgment for him.

Was that decision right? The appellant, who appeared in person at the hearing of the appeal, has sought to persuade this court to answer that question in the negative. He appeared to contend, if I understood him correctly, as I hope I did, that he having been acquitted of the charge of stealing the alleged 28,600 bricks, the learned trial Magistrate should have found it as a fact that, he, the appellant, had converted no more than 5,000 bricks, the liability in respect of which he had admitted in his testimony at the civil trial. Is there any merit in that contention? I think not. The law of this country lays down in clear terms that in determining issues before it a civil court must entirely disregard any judgement delivered in a criminal case even if the facts in the two cases are the same. That rule arises from the provisions of s. 45 of the Evidence Act, 1967, which is to be read together with the three sections immediately preceding it. S. 42-46 (inclusive) of our Evidence Act are **in pari materia** with their respective predecessors, s. 40-44 of the Indian Evidence Act, 1872. Explaining the rationale behind s. 43 of the Indian Evidence Act, Ratanlal Ranchoddas and Dhirajlal Thakore the learned authors of "The Law of Evidence (The Indian Evidence Act)" 14th edn., state, at p. 129:

> A judgment in a criminal case cannot be received in a civil action to establish the truth of the facts upon which it is rendered, ... Technically, it is inadmissible as it is not between the same parties, the parties in the prosecution being the State on the one hand, and the accused on the other, and in the civil suit the accused and some third party; but the substantial ground is that the issues in a civil and criminal proceeding are not identical and the burden of proof rests in each case on different shoulders.

If I may add, the rule, in-sofar as the inadmissibility of evidence of acquittal in a civil case is concerned, can be defended on another ground, namely, that the degree of proof which the prosecution must attain to succeed is far much higher than that required of a plaintiff in a civil case. If I may be allowed to digress for a moment or two, I would point out that the rule regarding the inadmissibility in a civil case of a conviction in criminal case is not beyond rational criticism. The most forceful criticism of the rule was made in **Rondel V. Worsley** [1966] 3 ALL E.R. 657 by Lord Denning, M.R., when he said, at p. 666:

> Once a man has been convicted by a jury of a crime, and his appeal has been rejected, he should not be permitted to challenge it again in a civil court. He cannot sue the

> judge saying that he misdirected the jury. He cannot sue a witness saying that he committed perjury. Nor should he be permitted to sue his own counsel saying that he was negligent. Test it this way. Suppose he were to succeed as between himself and his counsel, in showing that he was wrongly convicted. The Crown would not be bound by that decision. We would have a criminal court sentencing him to imprisonment on the footing that he was guilty, and a civil court awarding him damages on the footing that he was not guilty. No system of law could tolerate such a glaring system. The Home Secretary would be bound to refer the whole case to the Court of Appeal as he did in Hind's case. The Court of Appeal might still affirm the correctness of the conviction, as they did in Hind's case. We would have the spectacle of a man, found affirmatively to be guilty, recovering damages on footing that he was innocent. That should not be allowed.

With respect, that criticism is unanswerable.

I have sufficiently demonstrated, I hope, that the appellant's argument based on his acquittal at the criminal trial is misconceived in law. Without the slightest hesitation, I reject it.

The appellant also put forward another argument against the lower court's decision. I proceed to deal with it. In its naked simplicity, the argument was that the learned trial Magistrate was wrong in believing the evidence of the respondent and that of his (respondent's) witnesses. I desire to make it abundantly clear that in considering that argument, I will be guided by the clear light from a passage in the judgment of Lord Shaw in **Clarke v. Edinburg and District Tramways Co.** [1919] S.C. (H.L.) 36, which was cited with approval by Lord Sankey, L.C., in **Powell v. Streatham Manor Nursing Home** [1935] All E.R. Rep. 58:

> When a judge hears and sees witnesses and makes a conclusion or inference with regard to what is the weight on balance of their evidence, that judgment is entitled to great respect, and that quite irrespective of whether the judge makes any observation with regard to credibility or not. I can, of course, quite understand a court of Appeal that says that it will not interfere in a case in which the judge has announced as part of his judgement that he believes one set of witnesses, having seen them and heard them, and does not believe another. But that is not the ordinary case of a cause in a court of justice. In courts of justice in the ordinary case things are much more evenly divided; witnesses without any conscious bias towards a conclusion may have in their demeanour, in their manner, in their hesitation, in the nuance of their expressions, in even the turns of the eyelid, left an impression upon the man who saw and heard them which can never be reproduced in the printed page. What in such circumstances, thus psychologically put, is the duty of an appellate court? In my opinion, the duty of an appellate court in those circumstances is for each judge of it to put himself, as I now do in this case, the question, am I—who sit here without those advantages, sometimes broad and sometimes subtle, which are the privileges of the judge who heard and tried the case—in a position, not having those privileges, to come to a clear conclusion that the judge who had them was plainly wrong? If I cannot be satisfied in my own mind that the judge with those privileges was plainly wrong, then it appears to me to be my duty to defer to his judgment.

The learned trial magistrate had the enviable advantage of watching the demeanour of the witnesses. Although he did not expressly say so, he would appear to have found the respondent and his witnesses more credible than the appellant. I can see no reason for taking the view that he was wrong to have formed that impression. I am also satisfied that the learned trial Magistrate reached the right decision in this case because unlike the evidence of the appellant, the evidence of the respondent was amply corroborated. In those circumstances, I cannot see my way to giving the appellant's argument countenance. All that the respondent was required to do to obtain judgment was to establish his case on a balance of probabilities. I think the learned trial Magistrate was right, upon the evidence before him, to hold, as he in effect did, that the respondent had discharged that onus.

For the reasons I have attempted to state, I have reached the conclusion that this appeal must fail. I dismiss it, with costs.

Appeal dismissed.

REPUBLIC v. EMMANUEL TIMOTHY

[HIGH COURT OF TANZANIA AT MBEYA (SAMATTA, J.)]

CRIMINAL REVISION 8 OF 1980

Criminal practice and procedure—Sentencing—No punishment provided for a statutory offence—Power and duty of the trial Magistrate.

The accused was convicted by a district court on two counts. On count one the accused was convicted of possession of Part I poisons c/s 37(1)(a) of the Pharmaceuticals and Poisons Act, n.9 of 1978. The Act does not provide for the sentence to be imposed on convicts of this offence. The trial Magistrate referred the file to the High Court for sentence.

Held: where punishment for a statutory offence is not provided for, the trial court should revert to the common law and punish the convict with imprisonment or fine at its discretion provided it does not give an inordinate sentence.

Order accordingly.

Cases referred to:

(1) **R. v. Morris** 1949—1950) 34 Cr. App. R.210; [1950] 2 All E.R. 965.

(2) **R. v. Higgins** 35 Cr. App. R. 130.

(3) **Verrier v. Director of Public Prosecutions** [1966] 3 All E.R. 568.

September 11, 1980. SAMATTA, J.: The accused in this case was convicted by the District Court of Iringa of two offences, namely, possession of Part I poisons, contrary to s.37(1)(a) of the Pharmaceuticals and Poisons Act, 1978, and unlawful possession of Government stores, contrary to s.312 A(2) of the Penal Code. The learned trial Magistrate "committed" the accused to this court for sentence. He gave reasons why he took that step. He said:

> After convicting the accused on both counts I have been faced with the problem of what sentence to impose on [the] accused in respect of 1st count for possession of Part I poisons c/s 37(1)(a) of the Pharmaceuticals and Poisons Act No. 9/78. The said Act does not provide the sentence to be imposed on offenders convicted with this offence. As far as I am aware there is no penal section in this Act [in respect of this offence]. I have searched all through this Act but I have failed to spot the penal section....

I have also made a journey through the Act and have not come across the penal provision.

Very rarely indeed the draftsman forgets to provide for a penal provision, but I think he would readily plead guilty of omission in so far as s.37(1)(a) of the Pharmaceuticals and Poisons Act, 1978, is concerned. But does the omission make courts impotent to punish those who are convicted of having waged war against the section? I think not. Until the legislature corrects the error, the courts can and should fall back on the common law and deal with the offenders accordingly. Under the common law, offences in respect of which the legislature has not prescribed a sentence can be punished by imprisonment and fine, provided that the sentence is not inordinate. I base that proposition on **R. v. Morris** (1949—1950) 34 Cr. App. R.210; [1950] 2 ALL E.R. 965. Delivering the judgment of the Court of Criminal Appeal, Lord Goddard, C.J., said, at p.215:

> ...it is just as well that it should be laid down and understood that for common law misdemeanours, that is to say, any offences for which a statute has not prescribed any particular period of imprisonment, the law is and always has been that a Court can sentence to imprisonment and fine at discretion, provided, of course, that it does not give an inordinate sentence.

The decision in Morris' case was followed in **R. v. Higgins** 35 Cr. App. R.130 and approved in **Verrier v. Director of Public Prosecutions** [1966] 3 All E.R. 568. Relying on that decision, as I do, I am of the view that there was no reason for the learned trial Magistrate to entertain the view that he was impotent on the question of sentence. He had both the power and duty to deal with the convict in accordance with the common law. I make an order, therefore, that the file of the case be sent back to the district court which is hereby directed to deal with the convict in accordance with what I have endeavoured to state above.

Order accordingly.

REPUBLIC v. DEEMAN CHRISPIN AND OTHERS

HIGH COURT OF TANZANIA AT ARUSHA (MZAVAS, J.)

CRIMINAL REVISION 12 OF 1979

Criminal Practice and Procedure—Dismissal of charge by the Court—Whether legal.

This was a revision by the High Court of the Order given by a Senior Resident Magistrate dismissing a charge of murder and discharging the accused persons.

Before the High Court it was argued for the Republic that the law in its present form does not empower the court to dismiss a charge on the ground that the prosecution had failed or delayed in producing evidence.

Held: a court has power to refuse adjournment under s.201 of the Criminal Procedure Code and has got inherent power to dismiss a charge and discharge the accused if the prosecution unreasonably fails or delays in producing evidence.

Order of the lower court upheld.

Cases referred to:

(1) **R. v. Kanji Kotecha** [1976] L.R.T. n. 41.
(2) **R. v. Cleophace Kateti** [1977] L.R.T. n. 19.
(3) **Martin Nguma and two Others v. R.** Crim. Appeals ns. 48 and 49 of 1976 (not yet reported).

July 10, 1979. MNZAVAS, J.: In this case three persons were charged with murder c/s 196 of the Penal Code. The case was for the first time brought in court on 21/1/1978 when the prosecution said that investigations were still continuing and the case was adjourned for mention on 14/2/78. On 4/2/78 the prosecutor told the court that investigations were still not yet completed.

The Prosecution continued to ask for adjournment every time the case came up for mention before the lower court and the reason advanced now for adjournment was that the police case file was in the hands of "higher authorities."

On 30/3/79 the case came up before Msumi, Senior Resident Magistrate and again the Prosecutor asked adjournment saying that he did not have the police case file with him.

Thereupon the court said, and I quote **in extenso:**

> Accused has been in remand custody since January, 1973. The police file has been missing since March, 1973. On several occasions the prosecution has been asked to produce the file but in vain. This means that the accused and the court do not know how far the case has gone. Admittedly the accused are facing a serious charge—murder. But all the same the missing of police file for over one year is too much. It is quite clear that somewhere somebody is trying to misuse the machinery of justice. This cannot be tolerated. I think this is a fit case for the court to invoke its inherent power in order to curb such malpractice.
> **ORDER:** The charge is thus dismissed and all accused persons are hereby discharged.

When the learned Magistrate's order came to the notice of this court, the court minuted:

> Admit for argument as to the legality or otherwise of the lower court's order. Serve state attorney chambers with copy of the proceedings.

In his submission before this court the learned State Attorney argued that the lower court had no power to dismiss the charge. It was submitted that the learned Senior Resident Magistrate did not quote the provisions of the law under which he was empowered to dismiss the charge. It was the Republic's argumen' that the law, in its present form, does not empower the court to dismiss a charge on the ground that the prosecution had failed or delayed in producing evidence. In support of this argument the court was referred to the decisions in **R. v. Kanji Kotecha** [1976] L.R.T. n.41 and **R. v. Cleophace Kaleti** [1977] L.R.T. n.19.

I have read the above quoted decisions. I have also read the decision reported in (1950) 6 U.L.R. in the case of **Kanji Kotecha,** Lugakingira, J. said that "unless a case has been withdrawn by the prosecution a court has no power to dismiss a case for want of prosecution."

With respect I agree with his decision. Our corts are as we all know are creatures of statute. They have such powers as are conferred upon them by statute.

There is, in so far as I am aware, no provision in our Criminal Procedure Code empowering the court to dismiss a case and acquit the accused because the prosecution has failed to adduce evidence. The case in **R. v. Kanji Kotecha** concerned the provisions of s.198 of the Criminal Procedure Code.

The scope and applicability of s.198 of the Criminal Procedure Code was fully discussed by the Court of Appeal in **Martin Nguma and Two Others v. R.** Cr. Appeals ns. 48 and 69 of 1976 (not yet reported). It was held that a court will only be entitled to dismiss a charge and acquit the accused person if the complainant fails to appear.

The court was however of the view that if a court has in exercise of its disretionary power refused adjournment under s.201 of the Criminal Procedure Code it has by implication "the power or authority" to enforce an order it makes.

The court said inter alia:

> ....A court must have, within reason, the power to control or regulate its own proceedings in order to prevent itself from being emasculated or rendered impotent. Some of these regulatory powers derive from a court's inherent power to control its own proceedings, which power originates from common law, or the very nature of its functions not necessarily from statute, such as the power to punish summarily for contempt. In our view if a court refuses an adjournment and the prosecution is unable to proceed... a court does not have to... rescind its order at the "whim" of the prosecutor. That would be intolerable, and would place the court at the...at the mercy of the lazy, inefficient or uncooperative prosecutor and hold the administration of justice up to radicule and contempt. We believe that a court can, in such circumstances of emergency, clothed as it is with inherent power to control its own proceedings, dismiss the charge and discharge the accused, despite the lack of any statutory provision to that effect. We think that such a discharge and dismissal would be sufficient exercise of the court's inherent power to regulate its own proceedings; and that an order of acquittal, unless in the most exceptional circumstances, unnecessary and unsuitable for that purpose.

The court went on and said:

> An order made by a court in the exercise of its inherent power must be fair and reasonable, and in exercising it a court must look at a matter realistically, and keep in view and in balance the rights of an accused person and the duty of the prosecution to bring miscreants to justice.

With respect I agree, and I am bound, by the majority judgment of the Court of Appeal. Coming to the present case there was clearly no doubt that there were innumerable adjournments in the lower court.

The accused were brought in court on 21/1/78 when the charge was read and explained to them. On that day the prosecution asked for an adjournment and the case was fixed for mention on 4/2/78. When the case came up on 4/2/78 the prosecution applied for another adjournment on the ground that investigations were not yet complete.

When the case came up on 18/2/78 the court was again told that investigations weres till incomplete. On 3/3/78 the prosecutor told the court that he did not have the police file with him. The magistrate ordered that the file be traced and the case was fixed for 17/3/78. On 17/3/78 the prosecutor is on record saying "I am not in possession of police file". On 29/3/78 the prosecutor again told the court "I pray for a mention date. I have no police file with me here." On 11/4/78 the prosecutor changed his story. Now he said that investigations were not ready. The same was repeated on 21/5/78, on 3/5/78 and on 16/5/78. For the same reasons the court adjourned the case to 12/6/78 and 26/6/78. When the case came up on 10/7/78 the story that the prosecutor had no police file was repeated. The matter remained pending up to the 16/3/79. All this period the prosecutor could not produce statements before the court in support of the charge against

the accused persons The reasons given by the prosecution were invariably because investigations had not been completed or because the prosecutor did not have his police file with him.

On 16/3/79 the court said: "The accused and the court are entitled to know the nature of the investigations which have taken over a year. Police to trace their case file."

The prosecutor said:

> I have no file. It is with higher authorities.

On 30/3/79 when the case came up the prosecutor again told the court "I have no police file." It was on this day that Mr. Msumi, the learned Senior Resident Magistrate refused adjournment, and dismissed the charge and discharged the accused persons.

Although the learned Senior Resident Magistrate did not say so in his order he no doubt refused adjournment under s.201 of the Criminal Procedure Code and having done so, he had authority to enforce his refusal to a request for an adjournment. And, if I may be allowed to repeat the judgment of the Court of Appeal (above quoted), "To hold otherwise would make such power granted to the court meaningless and illusory."

For over one year the prosecution was allowed by the lower court to produce statements in support of the charge but time and again the prosecutor kept on saying that investigations were not yet completed and that the police file was not with him.

In such circumstances the lower court had no alternative but to invoke its inherent power and dismiss the charge and discharge the accused persons.

Needless to mention that hundreds of accused persons are languishing in prison for the simple reason of the prosecution's failure to produce evidence and enable the courts to hear and finalize the cases.

For non-bailable offences as murder, it means that accused will remain in remand for years on the ground that the prosecution "has not completed investigations." Such a situation is most undesirable and courts of law are not expected to condone it.

Even under the United Nations charter of Human Rights an accused has the right to expect the hearing of the charge against him within a reasonable length of time.

The order of the learned Senior Resident Magistrate was perfectly right and is supportable by this court. Justice delayed is justice denied.

As the accused were merely discharged and not acquitted the Republic is at liberty to proceed against them afresh if it is so desired.

Order accordingly

RAMADHANI MAISOLI AND TWO OTHERS v. REPUBLIC

-HIGH COURT OF TANZANIA AT MWANZA (MFALILA, J.)

CRIMINAL APPEAL 290 OF 1977

Criminal law—Possession of property suspected of having been stolen—Accused arrested in connection with housebreaking and stealing by a member of the people's militia—Goods suspected of having been stolen found in possession of first accused—All three accused convicted of storebreaking and stealing—Penal Code s.296(1)—Criminal Procedure Code, s.24 and s.287(1) T.—Peoples Militia (Powers of Arrest) Act 1975, s.3.

Statutory interpretation—Penal statutes—Whether to be strictly construed or not.

The three accused were convicted of store breaking and stealing c/s 296(1) of the Penal Code. The evidence established that the three accused were stopped and arrested by a member of the people's militia. The first accused was found in possession of bags of cement for which he could not offer a reasonable explanation. The only point in issue on appeal was whether on the evidence the appellate court was entitled to substitute a conviction under s.312(1)(b) of the Penal Code. It was submitted on behalf of the Republic that the accused was guilty of an offence under s.312 on the ground that the arrest of an accused by a police

officer of the rank of inspector or above is neither the sole prerequisite for the bringing of the accused before the court in respect of a charge under s.312 nor even a necessary one.

Held: (i) s.312 of the Penal Code applies only to persons who are brought before the court after having been detained as a result of the powers conferred by the law on the competent authority under s.24 of the Criminal Procedure Code and arrest by the competent authority is a prerequisite for a conviction under s.312;

(ii) where on a charge of theft the evidence adduced supports the offence of being in possession of property suspected to have been stolen or unlawfully acquired, the court can enter a substituted conviction;

(iii) the principle of strict construction of penal enactments does not apply where it does not accord with legislative intent.

Appeal allowed.

Cases referred to:
(1) **Oberi s/o Alimani v. R.** [1960] E.A. 517.
(2) **Zubaili s/o Katakuhakwa and Another** [1963] E.A. 17.

July 18, 1977. MFALILA, J.: The appellants were jointly charged with the offence of store breaking and stealing contrary to s.196(1) of the Penal Code. They were all convicted, whereupon the appellant Ramadhani Maisoli (1st accused) was sentenced to five years imprisonment, and the appellants Mabele Malemo (2nd accused) and Mbasi Mabweye (3rd accused) were each sentenced to three years imprisonment. I found the reasons given by the trial Magistrate for these different sentences somewhat strange. He said that the 2nd and 3rd accused persons had no share in the property obtained and that it was the 1st accused alone who "enjoyed the benefit of property and sweat of the 2nd and 3rd accused persons." If this is so, that the 2nd and 3rd accused persons were merely the instruments of the 1st accused, I do not understand on what basis the Magistrate found them guilty at all.

The allegation against the appellants was that on or about 17th November 1975 at 22.00 hours at Isamilo Mwanza township, they broke and entered into a store of Tanganyika Builders and stole 57 bags of cement valued at 2,280/-. There was no direct evidence linking any of the appellants to the breaking of the store at Isamilo. The prosecution only led circumstantial evidence. The main witness for the prosecution was WP 6 Michael (P.W.1) who said that he is a cell leader as well as a member of people's militia along Bomba Road along which the 1st accused also lives. On 16/11/75 at 10.30 p.m., he was resting on the verandah of the house in which he lives when he saw the 2nd and 3rd accused persons pushing a hand cart. He became suspicious as to the contents of the cart. He saw the two of them push the cart towards the house where the 1st accused rented a room and stopped there. To satisfy his curiosity, he decided to follow the hand cart and when he caught up with it where it had stopped outside the 1st accused's home, he asked the 2nd and 3rd accused persons what they were carrying in the hand cart. The 2nd accused told him that they were carrying cement belonging to the 1st accused who lived in that house. At this juncture the 3rd accused ran away, soon thereafter the 2nd accused followed suit. This witness added that as he was alone, he did not give chase, instead he decided to go and enlist the assistance of another member of the People's Militia William Mlaki, who went and made a report at the Police Station. Following this report, P.C. Johannes Makeba (P.W.5) arrived at the scene and found the cart loaded with 10 bags of cement. He started enquiring as to the ownership of the cement but he received no reply, and when he entered the house and saw a further 18½ bags of cement along the corridor he asked the occupants whether any of them knew anything about the cement, they all including the 1st accused denied any knowledge. In these circumstances he ordered the cart with the cement to be taken to the Police Station and that he would come for the remaining 18½ bags in the house the following day. The following morning on 17/11/75 at between 8.00 and 9.00 a.m., two people arrived at the Police Station and reported that their store at Isamilo had been broken into and a total of 57 bags of cement stolen. However he left this report in the hands of his colleague d/c Elisante (P.W.6), while he himself returned to the 1st accused's house where he collected the 18½ bags of cement and the 1st accused's wife and took them to the Police Station. The wife was released when the 1st accused himself turned up at the Police Station.

No. B. 7146 D.C. Elisante (P.W.6) the investigating officer took up the story from there. He said that

early during the morning on 17/11/75 there came two people at the police station who reported the breaking of their store at Isamilo and the theft of 57 bags. On receipt of this report he proceeded to the scene with the two complainants where he saw the way the store window had been forced open. On closer examination he saw wheel marks on the ground and traces of cement which was flowing as the cement bags were being transported. According to him he traced this cement flow up to the home of the 1st accused where it ended. However when the 1st accused later called at the Police Station, he denied having anything to do with the bags of cement. With regard to the cart, Mnangwa s/o Bwire (P.W.8) had reported at the Police Station the disappearance of his cart at the Lake shores at Kirumba and indeed recognised it immediately when he saw it outside the Police Station. Mnangwa himself said that his cart disappeared from the shore on 16/11/75 and that on the same day he was told that the 2nd and 3rd accused persons were seen pushing it. When he went to report at the Police Station, he saw his cart loaded with cement. As he knew the 2nd and 3rd accused persons, he assisted the police in tracing them and having them arrested in Ukara Island their home area. On this evidence, the appellants were charged, convicted and sentenced as indicated. The trial Magistrate rejected the appellants' defences. All of them elected not to give evidence, they opted to make statements. Unfortunately the trial Magistrate did not know the consequences of the appellants' election. I thought he should have known that having elected not to give evidence, they automatically rendered themselves free from cross-examination by anybody including the Court. It may be a foolish provision, but that is the law at the moment. As the trial Magistrate failed to appreciate the difference between electing to give evidence and a mere statement by the accused persons before him, he subjected them to cross-examination although I might add in respect of the 1st accused that it was for his own good. In any event the 1st accused said in his defence that all the bags of cement which were seized in the cart and in the house where he lives are his as he bought them from the R.T.C. on 8/7/75. He added that at the time when he bought them he asked one Marwa (D.W.1) to keep the cement for him until such time as he was able to keep them himself. He said that Marwa agreed and had then all the 29 bags of cement stored at Marwa's house. They remained there until 15/11/75 when Marwa asked him to remove the cement from his house along Ghana Street because his family were coming and would therefore require all the space in his house. On this request, he arranged to move the cement the following day on 16/11/75, and he hired the 2nd and 3rd accused persons to carry all the cement for him in their cart. On 16/11/75 he was actually in this process when (P.W.1) intervened. In support of these allegations he produced three receipts from R.T.C. to support his purchases. These he tendered in evidence at his trial and were admitted as **Exhibit D1—D3.**

The 2nd and 3rd accused persons confirmed what the 1st accused said, and stated that they had just been hired by him to carry the bags of cement from the house of one Marwa in Ghana Quarters. They were delivering the second lot when they were stopped on suspicion that they were thieves.

As indicated the trial Magistrate rejected these defences. In dealing with the 1st accused, the Magistrate found that the so called receipts produced in support of the alleged purchases from the R.T.C. were false in that they were in names of people other than the 1st accused, and he was not impressed by the explanation extracted from him regarding this anomaly. With regard to the 2nd and 3rd accused persons, he found that they aided the 1st accused in the commission of the offences for if they were innocent they could not have run away from the scene and later flee to Ukara.

I will dispose of the appeals of the 2nd and 3rd accused persons. As the Magistrate himself found the only evidence against them was that they were found carrying the bags of cement and that on being confronted they fled. I think that if the Magistrate had given the matter more thought, he would easily have found that both these factors could be explained away. As regards the fact of transporting the cement, the explanation is that they were hired to do so by the 1st accused who admitted as much. As to their running away, they must have done so for fear of being arrested for stealing Mnangwa's cart from the Lake shore. Therefore their fear was in respect of the stolen cart not the cement, and as they were not charged with stealing the cart, that theft should not have been related to the cement in the absence of evidence that they stole the cart in order to facilitate the transportation of the cement from the store which they intended to break.

For these reasons I think with respect that there was no evidence linking the 2nd accused Mabele Malemo and 3rd accused Mbasi Mabweye to the store breaking at Isamilo. Accordingly I allow their appeals, quash their convictions and set aside the sentences imposed upon them. They should be released from prison immedately unless they are otherwise lawfully detained.

The case against the 1st accused was somewhat complicated. He told lies throughout in connection with the 28½ bags of cement. At first he denied having anything to do with them. Later he relented and agreed that they were his because he bought them from R.T.C. When asked to substantiate his claims, he produced receipts all of which were in the names of people other than himself. He did not explain in his statement how

it was that the receipts were in the names of other people. However the Magistrate, albeit unlawfully asked him about this, whereupon he replied that he asked these people to buy cement for him because of the limitation imposed upon individuals namely that no individual is allowed more than 10 bags of cement at a time. There was no explanation even at the time of hearing this appeal, as to why he failed to buy even one lot in his own name. At the hearing of this appeal he told another lie. He alleged, despite the record, that the trial Magistrate had refused him permission to call the three people who had bought the cement on his behalf, and that therefore he was prejudiced. This allegation was untrue because at the trial he applied to summon only one witness, Marwa, who was called and testified. However despite this obvious lie, I informed him that I intended to ask if it was possible for him to call these important witnesses in the interests of justice. I suppose he did not expect this, for he became apprehensive and informed me that these people were not available, he did not know where they lived and as to the one witness John, he said he had gone to Dar es-Salaam and did not know when he would be back. It is obvious from all this that the 1st accused Ramadhani was lying all along in connection with his possession of these bags of cement. In the circumstances the inevitable conclusion is that he came by them unlawfully. The next question flowing from this conclusion is whether this cement was the same cement which was stolen from the store of M/S Tanganyika Builders at Isamilo. Apart from the fact that according to the charge sheet the store was broken into after the cement was seized from the 1st accused there is very little evidence if any to connect the two. By their very nature these bags of cement could not be identified indeed Marendra Mistry (P.W.7) said that these were not marked for Tanganyika Builders. The nearest the prosecution got to connecting the two was the evidence by the investigating officer D.C. Elisante that he saw and followed the trail of cement from the stores to the 1st accused's home. At the highest D.C. Elisante must have chosen to include himself in fancy, for just how could he have managed to keep track of the cement flow on the ground along a labyrinth of roads in town almost twelve hours after the event? In any event, if the stolen bags were 57, where were the remaining 29 taken to, and didn't these leave a trail behind for Elisante's good observant eyes? The whole thing then boils down to this, that the appellant Ramadhani was seen with bags of cement whose origin he could not explain satisfactorily almost at the same time as the store of M/S Tanganyika Builders was broken into and cement stolen wherefrom.

Therefore the prosecution said that the cement found with the 1st accused was stolen from this store thus making him the culprit. I am afraid this syllogism does not quite add up. There is something missing Thus while I am satisfied on the evidence that the 1st accused obtained this cement unlawfully there is no evidence to show how. Thus I will now consider whether I can substitute a conviction for an offence under s.312 of the Penal Code, acting under the provisions of s.187(1) of the Criminal Procedure Code which provides as follows:

> S.187–(1) When a person is charged with stealing anything and the court is of the opinion that he is not guilty of that offence but that he is guilty of an offence in respect of that thing under one of the sections...and s.312 of the Penal Code, he may be convicted of that offence although he was no charged with it.

As the appellant was not detained and found in possession of or conveying the bags of cement, the applicable sub-section is (b) of sub-section (1) which provides as follows:

> **312–(1) Any person** who
>
> **(a)** ...
>
> (b) is found by any police officer of or above the rank of Inspector in possession of or having control over any property which may, having regard to all the circumstances, be reasonably suspected of having been stolen or otherwise unlawfully acquired,
>
> may be charged with being in possession of, or conveying, or having control over, as the case may be, the property which is suspected of having been stolen or otherwise unlawfully acquired and shall, if he fails to satisfy the court that he did not steal or otherwise unlawfully acquire the property, be guilty of the offence with which he is charged and be liable, on conviction, to imprisonment for a term not exceeding three years.

The immediate objection that can be anticipated in using this section against the appellant Ramadhani Maisoli is that he was not found in possession of these bags of cement by a police officer of or above the

rank of Inspector. He was found in possession of these bags by member of the People's Militia who under the provisions of s.3 of the People's Militia (Powers of Arrest) Act 1975 wield the powers of a police officer of the rank of constable. Indeed there are two decisions of this court which are solidly against this line of action. In **Oberi s/o Alinani v. R.**, [1960] E.A. 517, the appellant with two others brought on 30th October twelve bags of coffee for sale at the store of one Kassam, who took delivery and weighed them. Subsequently Kassam became suspicious because on the night of 26th/27th last, two of his coffee stores were broken into and **inter alia** twenty one bags of coffee were stolen. Wishing to confirm his suspicion, he took a sample from one of the bags which he said looked like this coffee which had been stolen. He then informed the appellant and his friends that it was indeed part of his stolen coffee and that he was going to report to the police. Leaving them under the watch of his own employees, he went to the police and returned with a sub-Inspector of Police who questioned the appellant and his colleagues, and not being satisfied with their answers he charged them with store breaking and stealing. The trial Magistrate considered that he could not rely on the evidence by Kassam identifying the coffee as that stolen from his store and that therefore the charge under s.296(1) could not stand. However he invoked s.187(1) of the Criminal Procedure Code and convicted the appellant of having in his possession or conveying property suspected of having been stolen or unlawfully obtained contrary to s.312 of the Penal Code. On appeal to the High Court, this conviction was quashed and my understanding of the judgment delivered by Crawshaw Ag. C.J., is that the learned Ag. Chief Justice based his decision on two grounds. He held that s.312 of the Penal Code was not applicable because the "conveying" had come to an end and also the possession which had passed to Kassam. Thus to the application of s.187(1) of the Criminal Procedure Code the learned Judge had this to say at page 517:

> I have said that the conviction under s.312 was under the powers contained in s.187(1) of the Criminal Procedure Code, which **inter alia**, provides that when a person is charged with stealing he may be convicted of conveying under s.312 even though he was not charged with it. This to my mind seems at variance with the express condition in s.312 that a person is
>
> 'brought before a court charged with having in his possession or conveying....
>
> I am of the opinion that there is a distinct danger invoking the powers in s.187(1), especially as there is a change of onus, for a person charged with theft, as in the instant case, might well after hearing the prosecution evidence be satisfied that the prosecution have not proved that the property was stolen, and decide that it was in h s best interests to say nothing in his defence. It would, I suggest be most unfortunate if he was then to be informed that although the court also was satisfied that the theft had not been proved, yet as he had failed to give an account to the satisfaction of the court, or any account at all, as to how he came by the property, he is convicted of an offence under s.312 with which he has never been charged....

Thus it is clear from these remarks that the learned Judge considered the provisions of s.187 of the Criminal Procedure Code unfair not only because they are at variance with the express condition in s.312 but also because it puts the accused at a greater disadvantage in that he may be taken by surprise. Before putting forth and applying my own views on the application of s.187 of the Criminal Procedure Code, I will consider another decision of this Court on the same subject. In **R. v. Zubaili s/o Katakulekwa and Another** [1963] E.A. 17, the application of s.187(1) of the Criminal Procedure Code was not directly in issue but it was considered as an aid in the construction of s.312 of the Penal Code. In that case the appellant had been charged and convicted of **inter alia** being in possession of property reasonably suspected to have been stolen contrary to s.312 of the Penal Code. The property in question was a syringe and a bottle of penicillin which were found on him when searched by a Messenger at a local court. He was then taken to the Police Station where he was re-arrested and the Messenger handed in the syringe and the bottles. In quashing this conviction, Reide, J., stated at p.18:

> Boniface was not detained or arrested by a police officer until he was brought to the Police Station. ...; and when he was so brought he could not be said, in my view, to be "conveying" the articles, nor had he a possession of them ejusdem generis with conveying, within the meaning of s.312, since the articles had been taken from him earlier at the local court and were in the possession of the Messenger. Even if they had still been on his person, I should have found...that since he were already under arrest or "detention" and so not a free agent, he could not be said to be "conveying" within the meaning of s.312.

However learned Crown Counsel who appeared for the Crown (as it was at that time) submitted that the accused Boniface may nevertheless be guilty of an offence contrary to s.312 as charged on the grounds that the exercise of the powers conferred under s.24 of the Criminal Procedure Code is neither the sole pre-requisite for the bringing of an accused before the court in respect of a charge contrary to s.312 nor even a necessary one. In support of this argument, the Crown Counsel referred to s.187(1) of the Criminal Procedure Code and submitted that the wording of this sub-section indicates that the exerice of the powers conferred by s.24 of the Criminal Procedure Code cannot be an essential pre-requisite for a charge contrary to s.312, since a man who had been arrested on a charge of stealing will not have been subject to the exercise of the powers conferred upon the police under the provisions of s.24. While appreciating the ingenuity of these arguments, the learned Judge rejected them in the following terms at p.19 and I can do not better than quote them verbatim:

> I should like to say first that these submissions apart, I should be very unwilling to extend the scope of s.312 farther than the law manifestly required me to. It is not only a "highly technical section"...but it is on which involves an exception to the salutary rule of law whereby the onus of proving guilty lies throughout on the prosecution, in that the burden of furnishing to the Court a credible explanation of his possession of the supected articles is here thrown upon the accused.
>
> Secondly I cannot agree that the provisions of s.187(1) of the Criminal Procedure Code may be so construed, as in effect to enable a Court in certain circumstances to convict a person originally charged with theft of an offence contrary to s.312 of the Penal Code without being satisfied that he was "detained" under the powers conferred by s.24 of the Criminal Procedure Code, or that "detention" in accordance with the provisions of that section is not a pre-requisite for a conviction under s.312. (The learned Judge then gave an example of a case in which a conviction for conveying under s.187(1) may arise i.e., where an accused is arrested carrying an article which the arresting constable believes to belong to X but later turns out not to be the case and accused has no explanation) and continued: "I do not think the provisions of s.187(1) were intended to go further than a case of this sort, and I am very glad that, that should be so. If learned Crown Counsel's submissions were correct, then a person charged with a theft for which no sufficient evidence could be brought before the court to secure his convition, and who had been arrested in no matter what circumstances, would nevertheless stand in peril of conviction for conveying contrary to s.312, whenever the ownership of the article could not be or was not known, the special pre-requisite concerning s.24 of the Criminal Procedure Code being then entirely ignored.
>
> I do not believe that such a startling extension of the exceptional requirements thrown upon the accused in proceedings instituted under s.312 to give an account of his possession to the satisfaction of the court, is desirable, or that it has been effected by the terms of s.187(1) of the Criminal Procedure Code.

As remarked the decisions in these cases are solidly against my resorting to s.187(1) to convict the appellant Ramadhani with the offence under s.312(b), I will however examine these decisions a little more closely in an effort to see whether they are sound and were taken without losing sight of the fact that courts of law are established by society as instruments of combating all forms of injustice by or against it and in the area of crime this task of combating injustice involves not only the duty to see that nobody is unjustly punished, but also that nobody escapes punishment through mere technicalities which are wholly devoid of reality. If the courts indulge in the latter course, they will no longer be society's effective instruments for combating crime.

The first observation which I want to make is that the decisions in both these cases were based on the old common law rule of construction of statutes that penal statutes must be strictly construed, meaning in favour of accused persons. I must confess I have never understood the rationale behind this rule. Why should penal statutes be strictly construed in favour of accused persons? Since the courts are only interested in doing out justice without favour, all statutes, whether penal or not should be construed on the principle that justice shall be done. In the two cases s.187(1) of the Criminal Procedure Code was strictly construed obviously in favour of accused persons and I do not think in these two cases the courts effectively fulfilled

their duty of combating crime. In the **Oberi Case** the learned Ag. Chief Justice exhibited a typical common law approach to penal provisions, for which I hasten to add he can hardly be blamed, he thought there was "a distinct danger in invoking the power in s.187(1)," because there is a change of onus of proof and he thought that the accused would be prejudiced in cases where he thinks it would be in his own interests to say nothing in his defence. In sum then the learned Judge made it clear that he would not readily invoke the powers in s.187(1) because to his mind it "seems at variance with the express condition in s.312." This kind of approach to interpretation resulted in the letting off of an accused person who was obviously guilty and covered by the provisions of s.187(1) of the Criminal Procedure Code as the trial Magistrate had ruled. Letting off such obviously guilty people on technicalities which should be only of academic interest hardly scores any credit on the courts—because such decisions are unjust vis-a-vis the society.

In the **Zubaili Case** the learned Judge was even more outspoken against the use of s.187(1) in cases where s.24 of the Criminal Procedure Code had not first been complied with. He thought that doing so would be to extend the scope of s.312 farther than the law requires and that it would be a "startling extension of the exceptional requirement thrown upon the accused in proceedings instituted under s.312 to give an account of his possession to the satisfaction of the court." Yet the simple and unsallied truth is that by enacting s.187(1) of the Criminal Procedure Code, the legislature, which I take to be supreme in these matters, meant to do just that, namely to extend the scope of s.312 to cover all situations where a person is charged with theft but the evidence in support thereof falls short of that offence but reveals the ingredients of the substantive offence provided in s.312 of the Penal Code. To be meaningful and to give s.187(1) the teeth which it was meant to have, the courts should make a distinction between the procedural aspects of s.312 and its substantive aspects. Hence I am readily in agreement with the submissions of the Crown Counsel in the Zubaili case that the wording of s.187(1) makes the exercise of the powers conferred by s.24 of the Criminal Procedure Code a non-essential pre-requisite for a conviction under s.312 where this is sought to be done under powers of that section i.e., s.187(1) since a man who has been arrested on a charge of stealing will not have been subject to the exercise of the powers conferred upon police under the provisions of s.24. In the circumstance I would not limit the application of s.187(1) to the sort of case example given by Reide, J.

There is yet another objection which can be made against the application of these decisions in the present circumstances. These decisions were based on the principle of interpreting statutes provided under the old s.4 of the Penal Code which was in the following vein:

> S.4—This Code shall be interpreted in accordance with the principles of legal interpretation obtaining in England, and expressions used in it shall be presumed, so far as is consistent with their context, and except as may be expressly provided, to be used with the meaning attaching to them in English criminal law and shall be construed in accordance therewith.

Thus in 1960 and 1962 when Crawshaw Ag. Chief Justice and Reide, J. were interpreting s.187(1) they did so on the principle of legal interpretation obtaining in England which **inter alia** includes the rule that Penal Statutes are to be construed strictly. This however is no longer the law of this country. S.3 of the Administration of Justice (Miscellaneous Amendments) Act 1971 repealed the old s.4 quoted above and replaced it with the new s.4 which provides as follows:

> S.4. Subject to the provisions of Interpretation and General Clauses Ordinance the Court shall, in construing the provisions of this Code, be guided by the principles of natural justice.

The second observation which I would also like to make is that the common law rules of constructions aside, both the learned judges in the two cases interpreted s.187(1) without reference to the provisions of s.188 of the Criminal Procedure Code which provides as follows:

> S. 188. The Provisions of ss.181 to 187 shall be construed as in addition to, and not in derogation of, the provisions of any other ordinance and the other provisions of this Code, and the provisions of ss.182 to 187 shall be construed as being without prejudice to the generality of the provisions of s.181.

It is clear then that in interpreting s.187(1) in relation to s.312 of the Penal Code, the courts are called upon to regard the provisions of that section i.e., 187(1) as adding to the provisions of s.312. The learned judges in the two cases construed s.187(1) in derogation of s.312 of the Penal Code.

Reverting now to the case before me, the appellant Ramadhani Maisoli was charged with store breaking and stealing the bags of cement which were found in his possession. There was no evidence establishing the ownership of these bags of cement or that they were stolen from the store which was broken into. Clearly then the charge could not stand. But at the same time, the appellant totally failed to explain satisfactorily how he obtained them. He at first denied ownership, later he claimed that he had bought them and this turned out to be untrue when he produced unrelated receipts. It is clear then that he could not have acquired them lawfully. In the words of sub-section 312(1) of the Penal Code, he must have acquired these bags of cement unlawfully. This is exactly the kind of mischief meant to be covered by s.187(1) of the Criminal Procedure Code so that an accused who is found not guilty of stealing as originally charged but clearly guilty of the substantive offence under s.312(1)(b) i.e., being found in possession of property suspected to have been unlawfully acquired, should not get away with it. The procedural aspects of s.312 i.e., arrest and detention by a police officer (sub-section (1)(a)) and being found in possession by a police officer of the specified rank (sub-section (1)(b)) are only important and should be complied with when the charge is originally laid under that section. These procedural aspects are inapplicable when it is sought to enter convictions for offences under s.312 using the power in s.187(1) of the Criminal Procedure Code.

For all these reasons I am satisfied that the prosecution failed to prove the charge of store breaking and stealing contrary to s.296(1) but on the evidence I am clearly of the opinion that the appellant Ramadhani is guilty of the offence in respect of these bags of cement under s.312(1)(b) of the Penal Code. In the result I quash the conviction for store breaking and stealing contrary to s.296(1) but in its place substitute a conviction for an offence under s.312(1)(b) of the Penal Code. As the maximum sentence under s.312(1)(b) is three years, I set aside the sentence of five years imprisonment and in its place substitute a sentence of two years imprisonment.

Lastly in view of my finding on the ownership of the bags of cement, I vary the order on the disposal of the bags of cement, I vary the order on the disposal of the exhibits made by the trial Court. The bags of cement (Exhibit A) will now be forfeited to the Government.

Appeal allowed.

AROBOGAST FUNDI v. MASUDI ZAID (LUGAKINGIRA, J.)

AROBOGAST FUNDI v. MASUDI ZAID

[HIGH COURT OF TANZANIA AT MWANZA (LUGAKINGIRA, J.)]

(PC) CIVIL APPEAL 189 OF 1977

Civil Practice and Procedure—Attachment of property in execution of judgment—Costs for services rendered—Defendant contested costs—Fresh suit filed in the same court instead of appeal to higher court—Whether irregularity innocuous.

Civil Practice and Procedure—Assessors—Changing assessors in course of trial—Case summed to two assessors one of whom not taken part from the beginning—Whether irregularity curable—Magistrates' Courts Act, Cap. 537, ss.8(3), 32(2).

Civil Practice and Procedure—Magistrate—Succession of trial magistrates in the same case—Case partly heard by one magistrate and concluded by another—No reasons recorded for succession—Magistrate not recommencing the trial—Succeding magistrate concluded trial with original assessors —One assessor had not been present while some witnesses gave evidence—Whether irregularities render the proceedings null and void—Magistrates, Courts Act, 1963 (Cap.537), s.8(3).

Costs—Assessment—Principles governing assessment of.

The respondent sued the appellant in the primary court to recover money on account of expenses for services rendered to the appellant. On the first day of the trial the court sat with two original assessors and took evidence from two plaintiff's witnesses. On the second day of the trial the magistrate sat with one of

the original assessors and a stranger assessor. It took evidence from the third plaintiff's witness and one defence witness. Subsequently, the magistrate was succeeded by another magistrate. The succeeding magistrate proceeded with the trial this time with the two original assessors. The court gave judgment for the respondent. The respondent sought to realise the judgment by attaching the property of the appellant. Thereupon the appellant filed a fresh suit in the same court objecting to the assessment of the costs. He was unsuccessful. He appealed to the High Court. Two main points arose for consideration by the High Court on appeal. First, whether the change of assessors and the magistrate were curable irregularities; and secondly whether the trial Court was justified in taking into account unauthenticated claims in assessing the costs.

Held: (i) the test of determining whether a change of assessors during trial is a curable irregularity or not is whether such a change occasions a failure of justice to a party in fact;

(ii) the institution of a fresh suit in the same court by the appellant to contest the costs was an irregularity that was innocuous as it occasioned no failure of justice;

(iii) it is desirable that where a trial magistrate is prevented from concluding the proceedings his successor should record the reasons for such succession;

(iv) where a magistrate is prevented from concluding a trial either by reason of death, transfer or other cause his successor may, if no objection is raised proceed with the trial from where his predecessor left and treat the evidence on record as if the same had been given before and taken down by him;

(v) costs are awarded by the court as reimbursement for expenses reasonably incurred.

Appeal allowed.

No case referred to.

October 25, 1979. LUGAKINGIRA, J.: This appeal has such a tangled background that I must devote some time putting the record straight. It all started with Civil Case No. 21/74 before the Primary Court at Ibwera, Bukoba District. The respondent, Masudi Rutatinisibwa Zaidi, was then claiming from the appellant, Arobogast Fundi, the sum of Shs. 95/- being the balance of charges for services rendered at the appellant's request. The respondent was successful. The appellant appealed without success to the District Court in Civil Appeal No. 171/74. He again unsuccessfully applied to appeal out of time to this Court in (PC) Civil application No. 37/75. That was the end of that litigation and the appellant was then faced with the additional burden of the respondent's costs.

It would appear that the respondent did, indeed, prepare and present some bill of costs to the same primary court, which was passed. One cannot be certain of the true position for there is nothing on record to go by. There are only the repercussions to deduce from. It would thus appear that the appellant failed to meet this bill and his property was attached. This action precipitated the present proceedings. On 12/10/76 the appellant filed a suit in the same primary court stating:—

> Ninapinga ukamataji wa mali yangu ninayodaiwa na Masudi Zaidi kwa kunidai Sh. 2,076/-. Madai haya si ya kweli ninajua deni Sh. 95/- tu kutokana na H/Court Civil Case (sic) No. 37/75.

The suit was registered as Civil Case No. 83/76. As can be seen the plaint was ambiguous. It is not clear whether the appellant was objecting to the attachment of his property or to the assessment of the costs. In the course of the trial it turned out that he was objecting to the latter. If ever there had been an assessment of costs, therefore, the ensuing exercise amounted to a re-assessment. The respondent tendered a copy of his bill of costs together with some receipts. The bill came to Shs. 2,373/60 which was allowed **in toto.** The appellant appealed to the District Court in Civil Appeal No. 270/76 which taxed off certain items leaving Shs. 1,552/85 inclusive of costs for that appeal. He then brought the present appeal.

I think that the present proceedings were improperly or unnecessarily brought and entertained. The appellant did not have to file a fresh suit in order to contest the costs. All he was required to do was to appeal straight to the district court if he was dissatisfied with the assessment. It was the duty of the primary court to educate the parties on the proper procedure. I think, however, that the irregularity was innocuous. It was a mere superfluity which occasioned no failure of justice. The only negative side of it is that it occasioned expenses to the appellant which he should not have incurred. But I also think that there was another irregularity which requires closer examination. This was the change of assessors. On 24/11/76 the trial magistrate sat with William and Arobogast (not the appellant) as assessors. The parties were accordingly heard. The following day (wrongly recorded as 24th as well) the magistrate sat with William

and one Anatori. It is these two to whom the case was summed up and who gave their opinions before judgment. With respect, Anatori was incompetent to take part in this proceeding as he had not done so from the beginning. The issue which naturally arises is whether Anatori's participation was fatal. Under s.32(2) of the Magistrates' Courts Act, Cap. 537, a decision or order of a primary court or district court under Part III of the Act would not be reversed or altered by reason of any irregularity in the proceeding before or during hearing unless it has in fact occassioned a failure of justice. Looking at what transpired in this case I think there was no failure of justice. I believe that since one of the original assessors, William, participated to the end, the irregularity in this case was vitiated by s.8(3) of the Act as amended by Act No. 18/69. This provides:—

> Where an assessor is present at the commencement of any proceeding and is subsequently, by reason of illhealth or other good cause, unable to continue to perform his functions as an assessor, the proceeding shall not be invalid by reason of his absence and the magistrate may continue to hear and determine the proceeding with the remaining assessor or assessors, as the case may be.
>
> Provided that in no case shall a magistrate proceed to hear and determine any proceeding in the absence of all the assessors.

From the foregoing provisions it is clear that the trial Magistrate in the instant case could validly proceed and dispose of the proceeding with the assistance of William only. The question is whether the participation of Anatori, a stranger, rendered these provisions the less applicable. What the law is concerned with is whether an injustice was occasioned in fact and not merely whether there was an irregularity. It is evident from the record before me that Anatori's participation did not influence the results at all. He gave his opinion after William, merely and briefly concurring with the latter. The trial Magistrate then concurred with both of them. Anatori's opinion was therefore without consequence. It would have been a different matter had Anatori disagreed with William and succeeded in winning the magistrate to his own side or had the magistrate dissented from the unanimous view of William and Anatori. In those events the opinion of Anatori would have been decisive to the case and fatal to the proceedings. But in the circumstances stated the opinion of Anatori was irrelevant and therefore s.8(3) still applied. There was in the event no injustice occasioned and I therefore proceed to dispose the appeal on its merits.

At the outset I wish to remark, with regret, that the trial court completely abdicated its duty. Costs are awarded as reimbursement for expenses reasonably incurred. There are therefore two considerations in this regard: the costs must have been incurred and they must have been reasonably incurred. The trial Court never addressed itself to these considerations with the result that it allowed some claims which were either dubious or unreasonable, in most instances there were no receipts furnished. In one instance the receipt was clearly forged. In other instances the respondent did not have to make the trips he made. The district magistrate tried to improve on the position but not impressively in my view. Some dubious and unreasonable claims still managed to slip through his fingers. I do not need to dwell on each small item. They are over sixty in all. But after giving each item due consideration I think that the following only should have been allowed:—

A.	**Civil Case No. 21/74**	8.00
	1. Filing suit	6.00
	2. Summonses	28.00
	3. Attendance by Pf (4/- × 7)	8.00
	4. Attendance by his 2 witnesses (4/- × 2)	
B.	**Civil Appeal No. 171/74**	8.00
	1. One attendance	25.00
	2. Lodging	
C.	**(PC) Civil Appl. No. 37/75**	9.00
	1. Reply to application	16.00
	2. One return journey	45.00
	3. Lodging	
	TOTAL	213.00

That, in my view, is the sum reasonably incurred by the respondent. He had no reasonable cause, for instance, to travel to Mwanza in March, 1976 to inquire about the fate of the appellant's application. That was none of his business. What he could have possibly done was to apply for execution if he considered the appellant renegueing on his application. It is also not without significance that before the trial Court the respondent himself stated: "Hasa kwa jumla nadai Sh. 205/- ambazo receipts zake zipo." It must have been beyond his expectation when the trial Court awarded him Shs. 2,373/60 and even when the district court awarded him Shs. 1,552/85. The assessment of Shs. 213/- by this court meets even the respondent's own sense of justice, it being still higher than his estimation.

Subject to what is discussed below it follows that the appeal succeeds and is hereby allowed. The costs are reduced to Shs. 213/- only. In view of the difficulties attendant to the present proceedings, I would order that the parties will bear their respective costs here and below.

Although I have reached the above decision I do not consider it desirable that it should proceed to immediate execution. It is because a perusal of the proceedings in Civil Case No. 21/74 inclines me to the unfortunate view that they were null and void. It suffices to catalogue the irregularities. On 5/3/74 the trial Court was presided over by C.R. Pangani, Esq., who was assisted by Josephat and Martin as assessors. It heard the evidence of P.W.1 and P.W.2. On 28/3/74 the same magistrate sat with Josephat and, this time, Anatori. P.W.3 and D.W.1 testified. On 16/4/74 the same magistrate now sat with Martin and William. D.W.2 was heard. At this juncture there arose a dispute over certain writings and signature attributed to D.W.2 which the latter disowned. These and necessary specimens were sent to the Identification Bureau, Dar es Salaam, for expert examination. On 16/7/74 the court sat to hear the report of the handwriting expert. On this occasion it was presided over by one I. Taslima who sat with Josephat and Martin. It seems that the report was read and it is beyond doubt that neither Mr. Taslima nor the assessors understood what the report said or even what the whole suit was about. There is then no record of summing up. Instead Mr. Taslima proceeded to record the following:

> **Maoni ya Washauri**
>
> Wanaungana kuwa kwa kuwa Hati Ex. A imegundulika kuwa iliandikwa na mdaiwa (sic!) basi madai ni ya haki.
>
> **Sahihi 1.**
> **2.**

No assessor signed, Mr. Taslima then proceeded to write his judgment which had no relevance to the claim or evidence.

Under r.48(1), G.N. 310/64, where a magistrate is prevented by death, transfer or other cause from concluding the trial or a proceeding, his successor may, if no objection is raised by any of the parties, continue the proceeding from the stage at which his predecessor left it and treat the evidence on the record as if the same had been given before and taken down by him. Although he did not say so, it is safe to assume that Mr. Taslima took over the trial on the strength of this provision. It is certain, however, that Mr. Pangani had not died nor had he been transferred. Some other cause might have prevented him from concluding the trial but we do not know which. I think it is desirable that when one magistrate succeeds another under these provisions he should record the reasons giving rise to the succession especially when he does not propose to recommence the trial. But while I believe that the omission in this case might not have been fatal I do not believe that the same thing could be said about the change of assessors. Clearly, none of the final assessors was competent to express an opinion in the case. Josephat did not hear the evidence of D.W.2 while Martin did not hear the evidence of P.W.3 and D.W.1. The irregularity of having these assessors is thus not covered by s.8(3), Cap.537, and is to my mind incurable. To crown it all, Mr. Taslima and the two assessors misconstrued the basis of the claim and, in particular, the handwriting report. In directing ones mind to these and other irregularities one cannot fail to see that there was a failure of justice in the trial of Civil Case No. 21/74. Yet, the appellant lost on first appeal and his application to this court was similarly dismissed—it being said by the learned Judge that "The lower courts dealt with the case so well that the intended appeal has no chance of success." With due respect, I think I have sufficiently demonstrated that there is reason for saying that the lower courts dealt with the case so badly that the intended appeal had overwhelming chances of success.

It is for these reasons that I think execution of this judgment should be stayed. It would be a mockery of justice to permit the respondent to recover costs which I believe he should have lost. I propose to give

the appellant opportunity to pursue this matter. I therefore order that execution of this judgment will be stayed to permit the appellant to appeal against the ruling of this court in (PC) Civil Application No. 37/75. In exercise of powers to that effect contained in s.10(1) of the Appellate Jurisdiction Act, 1979 I extend the time for giving notice and for obtaining the necessary certificate to sixty (60) days from the date this judgment is read to the appellant.

It is so ordered.

Appeal allowed.

THOBIAS MBILINYI NGASIMULA v. REPUBLIC

-HIGH COURT OF TANZANIA AT MBEYA (SAMATTA, J.)-

CRIMINAL APPEAL 143 OF 1978

Criminal Practice and Procedure—Handwriting expert's report—s.154 C (1) Criminal Procedure Code—Form required—Seventh Schedule.
Evidence—Admissibility—Handwriting expert's report—Condition for admissibility.

The appellant was convicted in the lower court on two counts of forgery and two counts of stealing by a person employed in public service. The conviction was based on the evidence of a handwriting expert. Dissatisfied the appellant lodged an appeal challenging the decision of the lower court. It was argued on appeal that the handwriting expert's report was inadmissible in evidence because it did not conform to the form set out in the Seventh Schedule to the Criminal Procedure Code as required under s.154C (1) of the Cod-

Held: a condition for admission of the handwriting expert's report in evidence under the authority of s.154 C (1) of the Criminal Procedure Code is that the report must be in the form set out in the Seventh Schedule to the Code.

Appeal allowed.

Cases referred to:

(1) **Salum v. Republic** [1964] E.A. 127.
(2) **R. v. Padmore** (1930) 46 T.L.R. 365; 22 Crim. Rep. 36.
(3) **Venance Fundisha and Another v. Republic** (Mbeya Criminal App. n.22 of 1977 unreported).
(4) **Abdallah bin Wendo and Another v. Reginam** (1953) 20 E.A.C.A. 166.

M.H.A. Tukunjoba for the Appellant
J.P. Mwanyika for the Respondent

June 13, 1979. SAMATTA, J.: In 1977 Tobias Mbilinyi Ngasimula was a postal clerk. He was employed by the now defunct East African Posts and Telecommunications Corporation. Today he is a prisoner, serving a substantive term of three years' imprisonment. On September 23, 1978, he was convicted by the District Court of Mbeya on two counts of forgery, contrary to s.337 of the Penal Code, and two counts of stealing by a person employed in public service, contrary to ss. 265 and 270 of the aforementioned Code. He believes that the district court's decision was not a triumph for justice. Hence the present appeal.

The story which was unfolded before the district court starts in 1973. In that year one Ali Mkasi, an employee of the Ministry of Communications and Works, opened a savings account with the Post Office Savings Bank at the Mbeya Post Office. He was issued with Pass Book No. TMBE 10784. The saving was not a big amount; richness has, usually, a humble starting point.

On July 3, 1977, Ali Mkasi withdrew Shs. 300/- from the account, leaving a balance of Shs. 300/35. As the pass book had been fully used, he surrendered it at the post office for an issue of a new one by the head office of the bank. It was in evidence that on August 3 the Post Master at the Mbeya Post Office sent Ali Mkasi's new pass book, through a messenger, to one Joseph Mahundi a counter clerk at the post office. The pass book's number was 10784. The counter clerk kept the book in an unlocked drawer. Later in the day, when Ali Mkasi reported at the Post Office, the pass book was discovered missing from the drawer. A search for the book proved fruitless. On August 10 and 17 withdrawals of Shs. 200/- and 50/- respectively were effected from Ali Mkasi's accounts. The withdrawal forms on both occasions were filled in by the appellant. Ali Mkasi, who did not know the appellant, played no part whatsoever in the two transactions. He had not authorised anyone to effect the withdrawals. According to Joseph Mahundi, who gave evidence as P.W.4, there was no regulation of the Corporation that prohibited a postal clerk from "filling the withdrawal form on behalf of someone...." On the top of each withdrawal form used in withdrawing money from Ali Mkasi's account on August 10 and 17 were written these words, in capital letters: PAYEE KNOWN. According to the procedure then prevailing at the bank, after withdrawal of money from an account the withdrawal, was required to be entered in a form called 'Daily Account of withdrawals' reflecting the following details: the name of the bank, the number of the Pass Book in question, the amount of withdrawal, and the initials and surname of the depositor. The two withdrawals from Ali Mkasi's account were so reflected in the Daily Account of Withdrawals by the appellant. The prosecution and the defence were at one on all these facts.

Sometime in October, 1977, a hound of justice, Bahati Mwakanyamale, took specimen handwritings from the appellant, Joseph Mahundi and Ali Mkasi. These were submitted, together with the two withdrawal forms, to the handwriting expert in Dar es Salaam for examination. The handwriting expert's report of his examination, which was produced at the trial by a police officer, reads as follows, in Swahili:

TAARIFA YA UCHUNGUZI WA MAANDISHI

Tarehe 28/11/77 nilipokea vielelezo vifuatavyo kutoka kwa Mkuu wa Upelelezi Mkoani Mbeya, kwa dispatch ili vifanyiwe uchunguzi:—

Vielelezo: "D" na "H"—Form mbili SB21T za tarehe 10/8/77 and 17/8/77 pamoja na form mbili SB 10 zote za Shirika la Posta zenye maandishi na sahihi zinazobishaniwa.

Vielelezo: "A"—"B"—Karatasi tisa zenye maandishi ya Ndugu Ali S. Mkasi na sahihi zake.

Vielelezo: "C"—Formu nne za SB 10 zenye maandishi ya Ndugu Mahundi.

Vielelezo: "E"—"G" na "I"—Karatasi mbali mbali ishirini na sita zenye maandishi ya Ndugu Thobias Mbilinyi Ngasimula.

Nimefanya uchunguzi na kulinganisha maandishi yanayobishaniwa kwenye vielelezo "D" na "H" vyenyewe kwa vyenyewe na nimegundua kwamba viliandikwa na mtu mmoja.

Baadaye nimefanya uchunguzi na kulinganisha maandishi yanayobishaniwa kwenye vielelezo "D" na "H" pamoja na maandishi kwenye vielelezo "A", "B", "C", "E" na "I". Nimegundua alama za maumbile ya herufi na tarakimu zinazofanana kati vielelezo "D" na "H" na "E—GG" na "I", zinatosha kwa maoni yangu kudhihirisha kwamba Thobias Mbilinyi Ngasimula aliandika maandishi yanayobishaniwa kwenye vielelezo "D" na "H".

Mwisho nimezichunguza sahihi zinazobishaniwa kwenye vielelezo "D" pamoja na sahihi zilizoko kwenye vielelezo "A" na "B". Nimegundua kwamba sahihi hizo zinatofautiana kimaumbile. Hivyo ninayo maoni kwamba sahihi hizo siyo sahihi halisi za Ndugu Ali S. Mkasi, bali kuna mtu mwingine aliyeziigiza kutokana na sahihi zake halisi. Hakutambuliwa mwandishi wa sahihi zilizoko kwenye vielelezo "D".

Nakurudishia vielelezo vyote baada ya kufanyiwa uchunguzi na kupigwa picha.

John E. Bunga—ASP
(MCHUNGUZI WA HATI)

There was also undisputed evidence at the trial that before the payment of the money the withdrawal forms of August 10 and 17 had been checked by a checking officer who approved them for payment.

Sometime in October, 1977, P.C. Singowi searched the appellant's residence and office, but the search produced nothing incriminating against anyone. Another witness for the prosecution, one Aundi Mwakilembe, who used to work, at the material time, as a clerk at the post office told the lower court that the attention of all the workers at the post office was drawn to the disappearance of Ali Mkasi's pass book. The witness was silent, however, as to whether the workers' attention was drawn before August 18, 1977.

The substance of the appellant's defence, given under oath, was this. On August 10, 1977, a man who claimed to be the owner of Pass Book No. 10784 came to the post office and asked for his assistance in filling in a withdrawal form. He (the appellant) rendered the sought for assistance. The filled form was finally taken to Joseph Mahundi, who effected the payment to the man. On August 17th the man came again to the post office, and what had taken place on August 10 was repeated. The appellant asserted that he had no knowledge before August 18 that Pass Book No. 10784 had been missing from the post office. On each occasion, before he had handed over the pass book and the withdrawal form to Joseph Mahundi, the appellant compared the signature in the withdrawal form and that in the pass book and was satisfied that they were of the same person.

That, in summary, was the evidence which was laid before the lower court. After he had reviewed it at some length the learned trial Magistrate entertained no sane doubt about the appellant's guilt on all the four counts. Mr. Tukunjoba attacked the learned Magistrate's decision from various fronts. Mr. Mwanyika found himself unable to support the decision. He drew attention to the irregularities in the handwriting expert's report, submitting that the report was inadmissible in evidence as it did not conform to the form set out in the Seventh Schedule to the Criminal Procedure Code. If I may say so, that is a very interesting submission. I propose to deal with it straightaway.

The learned trial Magistrate admitted the handwriting expert's report in evidence under the authority of the provision of s.154 C (1) of the Criminal Procedure Code. By that provision it is enacted that:

> In any inquiry, trial or other proceeding by or before a resident magistrate under this Code, a report **in the form set out in the Seventh Schedule to this Code,** given under the hand of an officer appointed by order of the Director of Public Prosecutions for the purpose, being a report upon any handwriting, or any photographic representation of any handwriting, submitted to him for examination or comparison, together with any photographic prints, enlargements or other annexures referred to therein and signed by such officer, shall be receivable in evidence and such report shall be evidence of the matters stated therein. (the emphasis is supplied).

It leaps to the eye that the invocation of that provision has the advantage of dispensing with the personal attendance in court of the handwriting expert, a very busy public officer. But the legislature has laid down a condition for the reception of the handwriting expert's report: the report must be in the form set out in the Seventh Schedule to the Criminal Procedure Code. It follows that if the handwriting expert's report is not in the form set out in that Schedule the court has no power to invoke the provision of s.154C(1) of the Criminal Procedure Code and dispense with the personal attendance in court of the handwriting expert. It becomes necessary now to have a look at the form set out in the Seventh Schedule. The Schedule reads as follows:

REPORT

The Criminal Procedure Code (Cap.20)
(Section 154C)

I,.....of.....being an officer appointed under s.154C of the Criminal Procedure Code under Government Notice No. .....of.....19...., hereby certify as follows:—

(1) On the ....day of ....19....at....I received a sealed packet, number.... purporting to be sent by....which contained....under cover of a letter No. ....dated....purporting to be signed by....The said packet, letter and....were each signed and dated by me and are attached hereto as annexurers....and....

(2) On the....day of....19....at....I received a sealed packet, number.... purporting to be sent by....which contained (*in the same package).... under cover of a letter No....dated....purporting to be signed by....The said.....and the said packet and letter were each signed and dated by me and are attached hereto as annexures ...., ...and....

(3) I have examined and compared the handwriting on the said annexure....and the handwriting on the said annexure....*a photographic representattion the handwriting on the said annexure.....*a photographic representation (*a schedule) of comparisons and similarities between the handwriting on the said annexures....and....together with my comments thereon. And I hereby state that, in my opinion,....Given at....under my hand this....day of.... 19....

Signed.....

*Deleted whichever is not applicable.
+Delete if not applicable.

It does not require the concentration of a yogi for one to say, as I do, that the handwriting expert's report which was admitted in evidence in the case now under consideration was not in a form set out in the Seventh Schedule, quoted above. For reasons known to himself, the handwriting expert elected to put his report in a form different from that which, in its wisdom, the legislature required him to put it. The consequence of that failure to comply with the law is that the report became inadmissible in evidence. I agree with Mr. Mwanyika that the learned trial Magistrate erred in law in admitting the report in evidence. He should have shut it out of the case. It follows that in considering the propriety of the learned Magistrate's decision I must completely ignore the contents of the report. Before I proceed to another point, however, I would like to say one word or two on the report, for the benefit of the handwriting expert and his colleagues in the enviable profession. In the report the handwriting expert expressed the opinion, among others, that the two withdrawal forms were in the appellant's handwriting. Apparently the handwriting expert's attention has never been drawn to the observations of SPRY, J., as he then was, in **Salum v. Republic** [1964] E.A. 127, at p.128.

> I think the true answer was given by the Bishop of Lincoln case, that 'it is not possible to say, definitely that anybody wrote a particular thing.' I think an expert can properly say, in an appropriate case, that he does not believe a particular writing was by a particular person. On the positive side, however, the most he could ever say is that the two writings are so similar as to be indistinguishable and he could, of course, comment on unusual features which make similarity the more remarkable. But that falls far short of saying that they were written by the same hand.

The learned Judge made those observations after he had cited the following language of Lord Hewart in his summing up in **R. v. Padmore** (1930), 46 T.L.R. 365; 22 Cr. App. Rep. 36:

> Let me say a word about handwriting experts. Let everyone be treated with proper respect, but the evidence of handwriting experts is sometimes rather misunderstood. A handwriting expert is not a person who tells you, this is the handwriting of such and such a man. He is a person who, habituated to the examination of handwriting, practised in the task of making minute examination of handwriting, directs the attention of others to things which he suggests are similarities. That, and more than that, is his legitimate province.

It is to be hoped that in future our handwriting experts will not venture, in making their reports, to go beyond the bounds of their professional competence.

I proceed now to consider whether, excluding the contents of the handwriting expert's report, there was sufficient evidence in this case to warrant the decision the learned trial Magistrate arrived at. In coming to that decision the learned Magistrate directed himself partly as follows:

> Much as I could agree with the accused person that on filling the withdrawal forms (Exh. P.8) was in accordance to the normal procedure at his place of work I find it to be more coincidental for the same customer to have approached him on both two (sic) occasions and asked for his assistance. Even if this was to happen it was enough for any ordinary diligent person to have noticed at a mere glance that the signatures endorsed on the Depositor's signature is (sic) quite different from the ordinary signatures of P.W.1 (on Exh. P.11) and particularly the one appearing on SB 21T of 10/8/77. And accused is more of an ordinary person; he is an officer of the post office, a real qualified one who told this court that he had attended the course for his duties. He should have noticed this without any doubt. Moreover, it would be more than enough coincidence, not easily believable, to note that after the accused person had helped the customer, if at all, (whom he could not remember) in filling the subject with drawer forms (sic) (Exh. P.8) he pursued the matter even in filling the same in the Daily Account of Withdrawals (Exh. P.9). And why the entries that concern the pass book TMBE 10784 for A. Mkasi (P.W.1) on both occasions, that is to say on 10th August 1977 and 17th August 1977? This is a transaction that is beyond grave suspicion which I am convinced (upon the evidence as produced) without any doubt that the accused is directly connected with stealing the subject money appearing on both counts four and two.

Having anxiously reflected upon the submissions made by both counsel in this appeal, I own that I find the learned Magistrate's reasoning in that passage rather unconvincing, if I may respectfully say so. Coincidence is not a very unusual phenomeon in human natural life. I do not think the learned Magistrate was right to attach so much weight to the factor. I hope I may be permitted to repeat what I said fairly recently on the question of the phenomenon. This is what I said on the matter in **Venance Fundisha and Another v. Republic,** Mbeya Criminal Appeal No. 22 of 1977 (unreported):

> The learned Resident Magistrate appears to have cast the accused's story to the winds because it was linked with coincidence. I find insuperable difficulty in accepting that as a sufficient reason. If the man on the street were asked: "Do you believe in coincidence?" I am almost certain his answer would be: "Yes, why not? I have myself been a witness to such occurrence," or some words to that effect.

I adhere to those words. I would not attach much importance to the coincidence in the case at hand unless the remaining evidence in the scale against the appellant expelled me to do so. As I hope to demonstrate, that evidence does not give rise to such compulsion.

The learned trial Magistrate was of the view that as a qualified postal officer the appellant would not have failed to notice the dissimilarities in the signatures. I confess that I am unable to understand exactly what the learned Magistrate had in mind in expressing that view. Ali Mkasi's signature which had to be compared with the signatures on the withdrawal forms was the one which was in the pass book.

But since the pass book was missing, the learned Magistrate was denied the opportunity and benefit of making that comparison. Be that as it may, Joseph Mahundi, who was also a qualified postal officer, apparently did not notice the alleged dissimilarities. Similarly, the checking officer before whom the withdrawal forms were submitted for approval did not, apparently, notice the alleged dissimilarities. One is entitled to assume, I think, that the checking officer was higher in rank and more qualified than the appellant. Why, then, I ask, should the appellant have been condemned because of the existence of the alleged dissimilarities? It is not irrelevant, I think, to point out that even to a naked eye the specimen signatures of Ali Mkasi which were submitted to the handwriting expert do somewhat differ from one another.

The fact that he entered the details of the two withdrawals of money in the Daily Account of Withdrawals weighed against the appellant on the mind of the learned trial Magistrate. With due respect to the learned trial Magistrate, I cannot bring my mind to the view by itself that act was of incriminating nature. According to the evidence on record, what the appellant did was in conformity with the procedure followed at the post office bank. I would be inclined to agree with the learned trial Magistrate that the fact that on each of the two occasions the appellant entered in the Daily Account of Withdrawals only details of a transaction relating to Ali Mkasi's pass book gives rise to some suspicion, but as against that it must be pointed out that no evidence was laid before the learned trial Magistrate demonstrating that on the two occasions the appellant had dealt with pass books belonging to other customers.

As was pointed out earlier, on both withdrawal forms were these words in long hand: PAYEE KNOWN

Excluding the contents of the handwriting expert's report which, as I have already, I hope, sufficiently demonstrated, was inadmissible in evidence, there is no evidence on record which proves that those two words were written by the appellant. It is more likely than not that those words were written by the appellant, but that falls short of the standard of proof in a criminal trial.

The prosecution sought to associate the appellant with the theft of the money withdrawn from Ali Mkasi's account by partly adducing evidence from Aundi Mwakilembe to the effect that the attention of the workers at the post office was drawn to the fact that Ali Mkasi's pass book was missing. But the witness was silent as to whether the worker's attention was drawn before August 18, 1977. In his evidence the appellant denied to have been informed about the disapperance of the pass book. If Aundi's evidence was true and the workers' attention was drawn before August 18, why did the checking officer and Joseph Mahundi allow the withdrawal transactions to be effected? If the two officers were not accomplices to the alleged fraud, does the fact that they permitted the withdrawals to take place not suggest and suggest strongly—that their attention had not been drawn to the fact that the pass book was missing from the post office or that, if their attention had been drawn, it must have been drawn after the last withdrawal (i.e., that effected on August 17) had been effected? I think it does.

It is beyond the province of rational controversy that there was a grave suspicion against the appellant, but, as was pointed out by the Court of Appeal in **Abdallah bin Wendo and Another v. Reginam** (1953) 20 E.A.C.A. 166, 170, "suspicion, however strong, cannot supply a basis for inferring guilt when proof of guilt cannot be safely inferred beyond reasonable doubt."

I would allow the appeal.

Appeal allowed.

AKENA ADOKO'S CHAMBERS v. MOHAMED MAGANGA

-HIGH COURT OF TANZANIA AT DAR ES SALAAM (BIRON, J.)

CIVIL REFERENCE 1 OF 1976

Advocates Ordinance (Cap.341)—Contract for fees by Advocate—Validity—Position of English Barrister—Suit in Firm Name—Maintainability—Costs.

A suit was instituted in the firm name in the District Court to recover fees due under an agreement for the services of an advocate. The District Court referred for the decision of the High Court, under C.P.C. 1966, O.XLI r.2, the questions whether an advocate in this country could sue his client in contract to recover his legal fees, whether such suit could be instituted in the firm name, and whether in such suit he had the right to address the court from the bar.

Held: (i) an advocate practising in this country cannot be equated to a barrister in England who is not in law entitled to a fee and therefore cannot use;

(ii) the suit can be filed in the firm name only if the firm is registered under the Business Names (Registration) Ordinance (Cap. 213—Supp. 57); otherwise it must be filed only in his own name;

(iii) when an advocate is a party in a litigation, he does so as a litigant and is not entitled to conduct his case from the bar as an advocate;

(iv) where an advocate appears as a litigant conducting his own case, whether in his own name or that of his firm, he is not entitled to costs, but only to his actual disbursements, such as court-fees, etc.

Order accordingly.

No Cases referred to.

December 14, 1976. BIRON, J.: The learned resident magistrate of the District Court at Kisutu has referred this case for the decision of the High Court under Order XLI r.2 of the Civil Procedure Code, 1966.

Statement of facts:

1. The plaintiff Mr. Akena Adoko is an advocate of the High Court of Tanzania and its subordinate courts practising under the style of firm name of Akena Adoko's Chambers;
2. In the course of his legal practice, the plaintiff accepted a brief from the defendant to make a bail application in respect of the defendant's brother at an agreed fee of shillings two hundred (Shs. 200/-);
3. The plaintiff duly appeared before the High Court and argued for bail as instructed, but the defendant has, until this date, refused and/or neglected to pay the agreed fee;
4. Mr. Akena Adoko, has therefore filed this suit against his client claiming the agreed fees together with costs;
5. When the case came up for mention both parties were not present, but Mr. Akena Adoko had purportedly instructed another advocate to hold his brief for the purpose of getting the case adjourned to another date.

Opinion of the Resident Magistrate:

In accordance with s.3(1) of the Advocates Ordinace (Cap. 341) an Advocate in Tanzania performs all those functions which in England may be performed by a Barrister or Solicitor of the Supreme Court of Judicature. Is it not right, therefore, to expect from him that he would live up to the Code of professional etiquette as practised in England?

In England (and it is submitted this is the unwritten law of Tanzania) a Barrister cannot sue a client for his fees, if he did he would be faced with disciplinary action. A Solicitor too cannot sue but is entitled to file a bill of cost.

Questions posed:

1. Can an advocate professing to be governed by the English rules of professional etiquette sue his client in contract to recover his legal fees?
2. If the answer is yes, in what name will the suit be instituted; the Advocate's Chambers being a non-legal entity?
3. Assuming that such suit is maintainable and the Advocate proceeds, has he got any right to address the Court from the bar; he being an ordinary plaintiff?

DECISION:

An advocate practising in this country, cannot be equated to a barrister in England; who is not in law entitled to a fee and therefore cannot sue, but he receives an honorarium. A barrister in England has no direct contract with his client, but only with or through, the solicitor instructing him.

If only for the completion of the record, it should be added that a dock brief where a prisoner in the dock picks upon a barrister who is sitting robed in court, to defend him, there being no intermediate solicitor, is a pecular unique institution, which has no parallel in this country.

If Mr. Akena Adoko's Chambers are so registered as a firm under the Business Names (Registration) Ordinance (Cap. 213—Supp. 57), then Mr. Akena Adoko can sue in the firm's name. But if such name is not registered as a firm, Mr. Akena Adoko can sue only in his own name.

Where an advocate is a party in litigation, as in this case, the plaintiff, and he appears in person, he does so as a litigant, and he is not entitled to conduct his case from the bar as an advocate.

Where an advocate appears as a litigant conducting his own case, whether brought in his own name, or that of his firm, he is not entitled to costs, but only to his actual disbursements, such as court fees etc.

Order accordingly.